

KANSAS EVICTION, FAIR HOUSING & COMPLIANCE

Procedure • civil rights • screening/data • safety • 2026 addenda • current cases

PROPERTY	9401 Nieman Road, Overland Park, Kansas 66214
CURRENT THROUGH	July 12, 2026
ACTIVE-SET STATUS	Current-law set; enacted addenda included; withdrawn sources excluded
SCOPE	Kansas sources that supplement Article 25 and materially affect fourplex leasing, operations, notices, evictions, safety and applicant/tenant data

Use rule: Retrieve the controlling text, confirm the trigger and currentness, then obtain Kansas counsel review before enforcement, filing, denial, accommodation decisions, or material lease changes.

This compilation is a research and retrieval aid, not legal advice, a title opinion, or a substitute for official current law. Summaries and applicability labels are navigation aids; the appended official text controls.

How this bundle should be used

LABEL	HOW TO USE IT
BINDING	Statute, regulation, ordinance, or controlling court decision. Confirm effective date and later history.
CONDITIONAL	Binding only when a stated trigger exists—such as HUD assistance, a federally backed mortgage, or third-party management.
GUIDANCE	Agency or court-administration material. Useful operationally but not itself controlling law unless incorporated.
PROPOSED	Monitoring only. Do not apply as current law.
WITHDRAWN	Excluded from this active set. Keep only in a separately labeled historical archive.

- HB 2357 and SB 391 are binding 2026 addenda effective July 1, 2026; earlier bill drafts are not included.
- The eviction-procedure corpus includes Chapter 61 Articles 28–41 for procedural completeness; money-collection provisions are not routine eviction authority.
- Cases are preserved as published official opinions; verify later history before relying on a holding.
- Agency checklists/guidance are labeled nonbinding and do not replace adopted codes or regulations.

Text-integrity rule: appended official PDFs are preserved as retrieved. The front matter adds navigation only and does not alter statutory, regulatory, judicial, or municipal wording.

Source inventory and page map

280 official source documents are included. Page numbers below refer to the finished merged PDF. Use the PDF bookmarks or search the exact citation.

	CITATION SOURCE	TITLE	PAGES
1	2026 SB 391 (enrolled)	Local housing-policy preemption; effective July 1, 2026	13-14
2	2026 Sub. HB 2357 (enrolled)	Eviction record expungement and mediation amendments; effective July 1, 2026	15-16
3	Kansas State Fire Marshal	Apartment inspection checklist	17-31
4	Housing Authority v. McConnell, 66 Kan. App. 2d 566 (2026)	Specificity required in a K.S.A. 58-2564 cure notice	32-39
5	Schutt v. Foster, 320 Kan. 852 (2025)	Late fee and unconscionability preservation issues	40-48
6	Washburn South Apartments v. Hession, 65 Kan. App. 2d 626 (2025)	Habitability duties and purported as-is terms	49-65
7	K.S.A. 50-623	Kansas consumer protection act; purpose; construction.	66
8	K.S.A. 50-624	Definitions.	67-68
9	K.S.A. 50-625	Waiver; agreement to forego rights; settlement of claims.	69
10	K.S.A. 50-626	Deceptive acts and practices.	70-72
11	K.S.A. 50-627	Unconscionable acts and practices.	73
12	K.S.A. 50-628	Duties of the attorney general.	74
13	K.S.A. 50-629	General powers of the attorney general.	75
14	K.S.A. 50-630	Rule-making requirements.	76
15	K.S.A. 50-631	Investigation of violations; remedies.	77
16	K.S.A. 50-632	Remedies of the attorney general or any county or district attorney; procedure for sequestration.	78-79
17	K.S.A. 50-633	Coordination with other supervision.	80
18	K.S.A. 50-634	Private remedies.	81
19	K.S.A. 50-635	Application of act.	82
20	K.S.A. 50-636	Civil penalties.	83
21	K.S.A. 50-637	Powers of receiver; effect of receivership.	84
22	K.S.A. 50-638	Jurisdiction and venue.	85
23	K.S.A. 50-639	Disclaimer or limitation of warranties; liabilities; attorney fees, when; section inapplicable to seed for planting, livestock for agricultural purposes or disposal of surplus property by a governmental entity.	86
24	K.S.A. 50-640	Door-to-door sales; cancellation; required disclosures; notice of cancellation; definition.	87-89
25	K.S.A. 50-642	Citation of act.	90
26	K.S.A. 50-643	Severability.	91
27	K.S.A. 50-6,139b	Requirements for holders of personal information.	92-93
28	Kansas Supreme Court Task Force	Best practices for eviction proceedings	94-122
29	K.S.A. 50-7a01	Consumer information; security breach; definitions.	123-124
30	K.S.A. 50-7a02	Security breach; requirements.	125-126
31	K.S.A. 50-7a04	Severability clause.	127
32	K.S.A. 16-1601	Short title.	128
33	K.S.A. 16-1602	Definitions.	129-130
34	K.S.A. 16-1603	Scope.	131
35	K.S.A. 16-1604	Prospective application.	132

	CITATION / SOURCE	TITLE	PAGES
36	K.S.A. 16-1605	Use of electronic records and electronic signatures; state agency written standards governing use of electronic signatures; rules and regulations governing use of digital signatures by state agencies.	133
37	K.S.A. 16-1606	Construction and application.	134
38	K.S.A. 16-1607	Legal recognition of electronic records, electronic signatures and electronic contracts.	135
39	K.S.A. 16-1608	Provision of information in writing; presentation of records.	136
40	K.S.A. 16-1609	Attribution and effect of electronic records and electronic signatures.	137
41	K.S.A. 16-1610	Effect of change or error.	138
42	K.S.A. 16-1611	Notarization and acknowledgment; electronic notarization.	139
43	K.S.A. 16-1612	Retention of electronic records; originals.	140
44	K.S.A. 16-1613	Admissibility in evidence.	141
45	K.S.A. 16-1614	Automated transactions.	142
46	K.S.A. 16-1615	Time and place of sending and receipt.	143
47	K.S.A. 16-1616	Transferable records.	144-145
48	K.S.A. 16-1617	Registered certification authorities.	146
49	K.S.A. 16-1618	Rules and regulations.	147
50	K.S.A. 16-1619	Reciprocity with other jurisdictions.	148
51	K.S.A. 16-1620	Severability.	149
52	K.S.A. 61-2801	Citation of act.	150
53	K.S.A. 61-2802	Application of code.	151
54	K.S.A. 61-2803	Supreme court rules.	152
55	K.S.A. 61-2804	Filings.	153
56	K.S.A. 61-2805	Acts by court or judge.	154
57	K.S.A. 61-2806	Construction.	155
58	K.S.A. 61-2901	Name of parties.	156
59	K.S.A. 61-2902	Commencement of actions, limitations of actions.	157
60	K.S.A. 61-2903	Pleadings and other papers allowed.	158
61	K.S.A. 61-2904	Appearance; answer; counter-claim; affirmative defenses.	159
62	K.S.A. 61-2905	Counterclaims and cross-claims.	160
63	K.S.A. 61-2907	Service and filing of pleadings and other papers.	161
64	K.S.A. 61-2908	Special matters.	162
65	K.S.A. 61-2909	Computation and extension of time.	163
66	K.S.A. 61-2910	Application of chapter 60, when.	164
67	K.S.A. 61-2911	Claims beyond the scope of actions authorized by K.S.A. 61-2802.	165
68	K.S.A. 61-2912	Adoption by reference of certain provisions of article 2 of chapter 60.	166
69	K.S.A. 61-3001	Summons; issuance.	167
70	K.S.A. 61-3002	Summons; time for appearance; form.	168
71	K.S.A. 61-3003	Methods of service of process.	169-171
72	K.S.A. 61-3004	Service of process; time limits; on whom service made.	172
73	K.S.A. 61-3005	Proof of service.	173
74	K.S.A. 61-3006	Service of process outside the state.	174
75	K.S.A. 61-3101	Admission of facts and genuineness of documents; withdrawal or amendment of admission.	175
76	K.S.A. 61-3102	Expenses on refusal to admit truth of matter requested.	176
77	K.S.A. 61-3103	Interrogatories.	177

#	CITATION / SOURCE	TITLE	PAGES
78	K.S.A. 61-3104	Subpoenas.	178
79	K.S.A. 61-3105	Depositions.	179
80	K.S.A. 61-3106	Production of documents.	180
81	K.S.A. 61-3201	Pretrial hearing.	181
82	K.S.A. 61-3202	Trial of actions by court or jury; evidence.	182
83	K.S.A. 61-3301	Default judgment.	183
84	K.S.A. 61-3302	Judgments.	184
85	K.S.A. 61-3303	Interest on judgments.	185
86	K.S.A. 61-3304	Modification of judgment.	186
87	K.S.A. 61-3402	Actions against residents.	187
88	K.S.A. 61-3403	Actions against corporations.	188
89	K.S.A. 61-3404	Actions against nonresidents and nonqualified corporations.	189
90	K.S.A. 61-3405	Actions against public utility, common carrier or transportation system.	190
91	K.S.A. 61-3406	Multiple parties.	191
92	K.S.A. 61-3407	Change of venue.	192
93	K.S.A. 61-3408	Time for objection to venue.	193
94	K.S.A. 61-3409	Effect of improper venue.	194
95	K.S.A. 61-3501	Attachment.	195
96	K.S.A. 61-3502	Nature of garnishment.	196
97	K.S.A. 61-3503	When garnishment available before judgment.	197
98	K.S.A. 61-3504	When garnishment available after judgment.	198
99	K.S.A. 61-3505	Order of garnishment, other than earnings.	199
100	K.S.A. 61-3506	Garnishment of funds held by financial institution; administrative fee; order of garnishment requirements.	200-201
101	K.S.A. 61-3507	Order of garnishment, earnings.	202-203
102	K.S.A. 61-3508	Notice to judgment debtor; hearing on claim of exemption.	204
103	K.S.A. 61-3509	Answer of garnishee; attachment of intangible property other than earnings.	205
104	K.S.A. 61-3510	Attaching earnings.	206
105	K.S.A. 61-3511	Reply by judgment creditor or judgment debtor; notification and hearing; burden of proof.	207
106	K.S.A. 61-3512	Garnishee's payment to the judgment creditor; refund of overpayment; release of funds; nonliability of garnishee.	208
107	K.S.A. 61-3513	Payment of earnings withheld by garnishee.	209
108	K.S.A. 61-3514	Failure of garnishee to answer.	210
109	K.S.A. 61-3515	Failure of garnishee to pay.	211
110	K.S.A. 61-3516	Miscellaneous garnishment provisions.	212
111	K.S.A. 61-3601	Stay of proceedings to enforce judgments.	213
112	K.S.A. 61-3602	Procedure.	214

#	CITATION / SOURCE	TITLE	PAGES
113	K.S.A. 61-3603	Exemption from seizure and sale.	215
114	K.S.A. 61-3604	Hearing in aid of execution.	216
115	K.S.A. 61-3605	Order back procedure.	217
116	K.S.A. 61-3606	Contempt.	218
117	K.S.A. 61-3607	Hearing; penalty.	219
118	K.S.A. 61-3608	Bench warrant; hearing; penalty.	220
119	K.S.A. 61-3609	Service at place of employment.	221
120	K.S.A. 61-3610	Dormant judgment; revivor.	222
121	K.S.A. 61-3611	Substitution of judgment creditor.	223
122	K.S.A. 61-3701	Replevin; procedure; orders; execution; judgment.	224-226
123	K.S.A. 61-3702	Foreclosure of security interest; procedure; orders; execution; judgment.	227-229
124	K.S.A. 61-3703	Sale of property to satisfy judgment.	230
125	K.S.A. 61-3704	Return; confirmation of sale.	231
126	K.S.A. 61-3705	Application of proceeds.	232
127	K.S.A. 61-3801	Scope.	233
128	K.S.A. 61-3802	Judgment not bar to other actions.	234
129	K.S.A. 61-3803	Notice to leave premises.	235
130	K.S.A. 61-3804	Petition for claim.	236
131	K.S.A. 61-3805	Summons; time for appearance.	237
132	K.S.A. 61-3806	Appearance; answer.	238
133	K.S.A. 61-3807	Trial.	239
134	K.S.A. 61-3808	Writ of restitution.	240
135	K.S.A. 61-3901	Grounds for appeal.	241
136	K.S.A. 61-3902	Appeals; procedure.	242
137	K.S.A. 61-3903	Appeals from district magistrate judge not regularly admitted to practice law; notice; assignment.	243
138	K.S.A. 61-3904	Execution on judgment pending appeal without bond.	244
139	K.S.A. 61-3905	Stay of proceedings on appeal; bond.	245
140	K.S.A. 61-3906	Forcible detainer.	246

#	CITATION / SOURCE	TITLE	PAGES
14 1	K.S.A. 61-3907	Insufficiency of bond.	247
14 2	K.S.A. 61-3908	Judgment against surety.	248
14 3	K.S.A. 61-3909	Dismissal of appeal.	249
14 4	K.S.A. 61-4001	Docket fee; authorized only by legislative enactment; poverty affidavit; additional court costs; exemptions.	250
14 5	K.S.A. 61-4002	Items allowable as costs.	251
14 6	K.S.A. 61-4101	Lost or destroyed court files.	252
14 7	K.S.A. 61-4102	Affirmation in lieu of oath.	253
14 8	K.S.A. 61-4103	Availability of other relief.	254
14 9	K.S.A. 61-4104	Effect on pending actions.	255
15 0	K.S.A. 44-1001	Title of act; declaration of state policy and purpose.	256
15 1	K.S.A. 44-1002	Definitions.	257-258
15 2	K.S.A. 44-1003	Human rights commission; membership; organization compensation and expenses staff.	259-260
15 3	K.S.A. 44-1004	Powers and duties of commission.	261-262
15 4	K.S.A. 44-1005	Complaints; investigation; proceedings; remedial orders; dismissal of certain complaints, when, procedure and effect.	263-265
15 5	K.S.A. 44-1006	Construction of act.	266
15 6	K.S.A. 44-1007	Invalidity of part.	267
15 7	K.S.A. 44-1009	Unlawful employment practices; unlawful discriminatory practices.	268-270
15 8	K.S.A. 44-1010	Petition for reconsideration of orders of commission.	271
15 9	K.S.A. 44-1011	Enforcement of commission orders; judicial review; procedure.	272
16 0	K.S.A. 44-1012	Posting of law and information.	273
16 1	K.S.A. 44-1013	Unlawful acts; penalties.	274
16 2	K.S.A. 44-1015	Discrimination in housing; definitions.	275
16 3	K.S.A. 44-1016	Same; unlawful acts in connection with sale or rental of real property.	276-277
16 4	K.S.A. 44-1017	Same; unlawful acts as to real estate loans.	278
16 5	K.S.A. 44-1017a	Homeowners association; removal of certain restrictive covenants; penalties.	279-280
16 6	K.S.A. 44-1018	Same; application of act.	281
16 7	K.S.A. 44-1019	Same; complaints; referral to local authority, when; investigation; administrative proceedings; election to file action in court; administrative remedial orders.	282-284
16 8	K.S.A. 44-1020	Same; subpoenas; witness fees and mileage; interim judicial relief; criminal enforcement of subpoenas.	285

#	CITATION / SOURCE	TITLE	PAGES
169	K.S.A. 44-1021	Same; judicial review of commission action; civil enforcement of act.	286-287
170	K.S.A. 44-1022	Same; civil action by attorney general, when.	288
171	K.S.A. 44-1023	Same; assignment of case; expedition.	289
172	K.S.A. 44-1024	Same; effect of city ordinances governing housing practices.	290
173	K.S.A. 44-1025	Same; cooperation of commission with local agencies; agreements.	291
174	K.S.A. 44-1026	Same; unlawful acts; enforcement of section.	292
175	K.S.A. 44-1027	Same; unlawful act; penalties.	293
176	K.S.A. 44-1028	Same; severability.	294
177	K.S.A. 44-1029	Same; act supplemental.	295
178	K.S.A. 44-1030	State and local government contracts; mandatory provisions.	296
179	K.S.A. 44-1031	Same; personnel to be used in performing contracts; reports; nonapplication to certain contractors.	297
180	K.S.A. 44-1032	Responsibility for and review of compliance with act; subpoenas; access to premises; oaths and depositions; failure to obey court order, effect; immunity of witnesses from prosecution; perjury.	298
181	K.S.A. 44-1033	Initiation and processing complaints; use of information.	299
182	K.S.A. 44-1034	Rules and regulations.	300
183	K.S.A. 44-1035	Information on racial identification maintained solely on payroll tapes; retrieval restricted.	301
184	K.S.A. 44-1036	Severability.	302
185	K.S.A. 44-1037	Liberal construction.	303
186	K.S.A. 44-1038	Provisions of K.S.A. 44-1031 through 44-1037 supplemental to act against discrimination.	304
187	K.S.A. 44-1039	Unlawful act; perjury.	305
188	K.S.A. 44-1041	Unlawful acts; penalty.	306
189	K.S.A. 44-1042	Award of compensatory damages; reduction.	307
190	K.S.A. 44-1043	Provisions of K.S.A. 44-1039 through 44-1042 supplemental to act against discrimination.	308
191	K.S.A. 44-1044	Probable cause determinations under K.S.A. 44-1005 or 44-1019; exempt from judicial review and civil enforcement of agency actions act.	309
192	K.A.R. Agency 21 compilation	Kansas Human Rights Commission rules and regulations (Article 60 fair housing at PDF pp. 39-47)	310-372
193	KHRC fair housing poster	Kansas fair housing poster	373
194	K.S.A. 31-132a	Fire safety and prevention; apartment house, defined.	374
195	K.S.A. 31-133	Fire marshal; power and duties; rules and regulations.	375-376
196	K.S.A. 31-134	Adoption of rules and regulations, procedure; distribution; fees; remittance; designated as fire prevention code; judicial review.	377

	CITATION / SOURCE	TITLE	PAGES
197	K.S.A. 31-135	Advisory committees to assist fire marshal; membership; no compensation.	378
198	K.S.A. 31-136	Same; exemptions from regulations, when; procedure.	379
199	K.S.A. 31-137	Same; enforcement of act and regulations; investigations; entry and examination of buildings and premises; report, filing.	380
200	K.S.A. 31-138	Same; hearings; information and evidence to attorney general or county attorney; prosecution; assistance by state fire marshal.	381
201	K.S.A. 31-139	Same; right of entry to determine compliance with law and regulations; complaint; order to cease and desist.	382
202	K.S.A. 31-140	Same; appeals from orders; notice and hearing; decisions; compliance.	383
203	K.S.A. 31-141	Same; powers of fire marshal in conduct of hearing; subpoena of witnesses and records; record of proceedings; statement; failure to comply with subpoena, effect; order by district court; service of process; costs, taxation.	384
204	K.S.A. 31-142	Judicial review of fire marshal's action.	385
205	K.S.A. 31-143	Fire marshal authorized to advise and assist state civil defense director; assistance to municipalities; responsibilities and duties of state fire marshal.	386
206	K.S.A. 31-144	School buildings; definition; inspection; correction of violations; closing in lieu of repair; judicial review.	387-388
207	K.S.A. 31-145	Powers of actual members of organized fire departments.	389
208	K.S.A. 31-146	Mandatory provisions of regulations governing transportation of liquid fuels; how inspections performed.	390
209	K.S.A. 31-147	Compliance with regulations by hotels, lodging facilities and restaurants.	391
210	K.S.A. 31-148	Inspection of building under jurisdiction of state penal director and division of institutional management.	392
211	K.S.A. 31-150	Fire safety and prevention; school buildings; construction, reconstruction or renovation requirements; accessibility to persons with a disability; building plans, certification; exceptions; rules and regulations.	393
212	K.S.A. 31-157	Fire marshal deputies and investigatory personnel; law enforcement powers, when; training required, exceptions.	394
213	K.S.A. 31-158	Fire safety and prevention; sale to or purchase by fire department of clothing or equipment which does not meet standards set by national fire protection association; penalty; definition.	395
214	K.S.A. 31-159	Violations of fire prevention code, administrative penalties.	396
215	K.S.A. 31-160	Smoke detectors; citation of act.	397
216	K.S.A. 31-161	Same; definitions.	398
217	K.S.A. 31-162	Same; installation of smoke detectors required; limitations on enforcement; certain evidence inadmissible; insurance payments not affected.	399
218	K.S.A. 31-163	Same; violations; penalties.	400
219	K.S.A. 31-164	Same; act in addition to local law.	401
220	K.S.A. 65-1,200	Citation of act.	402
221	K.S.A. 65-1,201	Definitions.	403
222	K.S.A. 65-1,202	Development and implementation of prevention program; licensure training and inspections; fees; rules and regulations.	404-405
223	K.S.A. 65-1,203	Licensure or certification to perform lead-based paint activities.	406

#	CITATION / SOURCE	TITLE	PAGES
22 4	K.S.A. 65-1,204	Same; qualification requirements.	407
22 5	K.S.A. 65-1,205	Remittance of fees.	408
22 6	K.S.A. 65-1,206	Lead-based paint hazard fee fund; sources of revenue; expenditures.	409
22 7	K.S.A. 65-1,207	Denial, suspension or revocation of license or certificate or accreditation of training program, when; suspension of abatement program; administrative review.	410–411
22 8	K.S.A. 65-1,208	Noncompliance; notice; duty to meet compliance requirements.	412
22 9	K.S.A. 65-1,209	Violations; criminal penalties.	413
23 0	K.S.A. 65-1,210	Same; civil penalties; corrective action; appeals; grants to communities to eliminate hazards.	414
23 1	K.S.A. 65-1,211	Same; additional remedies.	415
23 2	K.S.A. 65-1,212	Implementation of act by entities engaging in lead-based paint activities; when.	416
23 3	K.S.A. 65-1,213	Statutory audit privilege not applicable.	417
23 4	K.S.A. 58-3037	Exemptions.	418
23 5	K.S.A. 16-201	Legal rate of interest; prejudgment interest rate in civil tort actions.	419
23 6	K.S.A. 60-2610	Civil liability for worthless check.	420–421
23 7	K.S.A. 39-1101	Rights of persons with disabilities.	422
23 8	K.S.A. 39-1102	Same; use of guide dog by legally blind person.	423
23 9	K.S.A. 39-1103	Same; unlawful to interfere with rights.	424
24 0	K.S.A. 39-1104	Same; safety day; proclamation; contents.	425
24 1	K.S.A. 39-1105	Same; employment.	426
24 2	K.S.A. 39-1106	Same; name and citation of act.	427
24 3	K.S.A. 39-1107	Rights of persons with disabilities; use of hearing assistance dog by person who is deaf or hard of hearing.	428
24 4	K.S.A. 39-1108	Same; use of service dog by person with disability.	429
24 5	K.S.A. 39-1109	Use of assistance dog while training.	430
24 6	K.S.A. 39-1110	Use of professional therapy dog while training.	431
24 7	K.S.A. 39-1111	Procedure for verification of person's right to be accompanied by assistance dog or professional therapy dog.	432–433
24 8	K.S.A. 39-1112	Unlawful misrepresentations.	434
24 9	K.S.A. 39-1113	Assistance dogs and professional therapy dogs; definitions.	435
25 0	K.S.A. 39-1114	Children parented by blind individuals; purpose of act; legislative findings.	436
25 1	K.S.A. 39-1115	Definitions.	437

#	CITATION / SOURCE	TITLE	PAGES
25 2	K.S.A. 39-1116	Blindness of parent or prospective parent in parentage, dissolution of marriage, adoption, guardianship and child in need of care cases; considerations and restrictions.	438
25 3	K.S.A. 50-701	Findings and purpose.	439
25 4	K.S.A. 50-702	Definitions and rules of construction.	440-441
25 5	K.S.A. 50-703	Permissible purposes of reports.	442
25 6	K.S.A. 50-704	Obsolete information.	443
25 7	K.S.A. 50-705	Disclosure of investigative consumer reports.	444
25 8	K.S.A. 50-706	Compliance procedures.	445
25 9	K.S.A. 50-707	Disclosures to governmental agencies.	446
26 0	K.S.A. 50-708	Disclosures to consumers.	447
26 1	K.S.A. 50-709	Conditions of disclosure to consumers.	448
26 2	K.S.A. 50-710	Procedure in case of disputed accuracy.	449
26 3	K.S.A. 50-711	Charges for certain disclosures.	450
26 4	K.S.A. 50-712	Public record information for employment purposes.	451
26 5	K.S.A. 50-713	Restrictions on investigative consumer reports.	452
26 6	K.S.A. 50-714	Requirements on users of consumer reports.	453
26 7	K.S.A. 50-715	Civil liability for willful noncompliance.	454
26 8	K.S.A. 50-716	Civil liability for negligent noncompliance.	455
26 9	K.S.A. 50-717	Jurisdiction of courts; limitation of actions.	456
27 0	K.S.A. 50-718	Obtaining information under false pretenses.	457
27 1	K.S.A. 50-719	Unauthorized disclosures by officers or employees.	458
27 2	K.S.A. 50-720	Penalties.	459
27 3	K.S.A. 50-721	Enforcement by consumer credit commissioner.	460
27 4	K.S.A. 50-722	Citation of act.	461
27 5	K.S.A. 50-723	Security freeze on consumer report; requirements; procedure; damages.	462-465
27 6	K.S.A. 50-724	Security freeze; exceptions.	466
27 7	K.S.A. 50-725	Security freeze for protected consumers; requirements; procedure.	467-468
27 8	K.S.A. 12-16,120	Prohibiting rent control or control of real estate purchase price by political subdivisions; exceptions.	469
27 9	K.S.A. 12-16,123	Cities and counties prohibited from requiring lists of tenants; exceptions.	470

#	CITATION / SOURCE	TITLE	PAGES
280	K.S.A. 12-16,138	Cities; counties; prohibiting periodic interior inspections of residential property; exceptions.	471

Source URLs, retrieval date, authority/applicability labels, and SHA-256 fingerprints are recorded in the companion Markdown manifest.

SENATE BILL No. 391

AN ACT concerning private rental housing; prohibiting cities and counties from adopting or enforcing any ordinance or resolution that requires landlords to lease housing to tenants receiving financial assistance from or through the housing choice voucher program or any other housing assistance program or that otherwise restricts a landlord's ability to consider the income source of a prospective tenant.

Be it enacted by the Legislature of the State of Kansas:

Section 1. (a) No city or county shall adopt or enforce any ordinance or resolution that:

(1) Prohibits landlords from refusing to lease privately owned single-family or multi-unit residential property or commercial property to a person because such person's source of income to pay rent on such property consists, in whole or in part, of a financial payment or consideration from or through the housing choice voucher program, or any successor program, authorized by chapter 8 of title 42 of the United States code, or any other housing assistance program in which participation by a landlord is voluntary;

(2) restricts a landlord's ability to use or consider income-qualifying methods, credit scores, credit reports, eviction history, property damage history or criminal history or to request such information when done to determine whether to lease a property to a prospective tenant according to such landlord's customarily applied criteria in making such determinations;

(3) limits the amount of a security deposit a landlord may require to lease a property to a prospective tenant; or

(4) requires landlords to grant an automatic right of first refusal to tenants.

(b) Any ordinance or resolution prohibited by subsection (a) that was adopted prior to July 1, 2026, shall be null and void.

Sec. 2. This act shall take effect and be in force from and after its publication in the statute book.

I hereby certify that the above BILL originated in the
SENATE, and passed that body

SENATE adopted
Conference Committee Report _____

President of the Senate.

Secretary of the Senate.

Passed the HOUSE
as amended _____

HOUSE adopted
Conference Committee Report _____

Speaker of the House.

Chief Clerk of the House.

APPROVED _____

Governor.

Substitute for HOUSE BILL No. 2357

AN ACT concerning housing; providing for expungement of certain court records in eviction actions in which the underlying rental agreement is governed by the residential landlord and tenant act; requiring consideration of mediation in eviction actions in which the underlying rental agreement is governed by the residential landlord and tenant act; amending K.S.A. 61-3806 and 61-3807 and repealing the existing sections.

Be it enacted by the Legislature of the State of Kansas:

New Section 1. (a) (1) Except as otherwise provided in this subsection, a defendant in an eviction action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, may make an electronic filing for an expungement with the clerk of the district court at no cost. Such filing shall be made under the docket number of such eviction action. The defendant shall provide service of process to the plaintiff in such action by return receipt delivery as described in K.S.A. 60-303, and amendments thereto.

(2) The plaintiff in such action shall have 30 days after delivery of such service of process to file with the court an objection to such expungement. If an objection is filed, the court shall conduct a hearing and determine whether such expungement will be granted pursuant to this section. If no objection is filed, the court shall make such determination without a hearing, and there shall be a presumption that the monetary judgment owed by the defendant to the plaintiff arising from the underlying tenancy or rental agreement related to such eviction action, if any, are satisfied.

(3) The court shall grant an expungement if three years have passed since judgment was entered in such action, the defendant shows that the monetary judgment owed by the defendant to the plaintiff arising from the underlying tenancy or rental agreement related to such eviction action, if any, are satisfied and the defendant has no additional judgment entered in an eviction action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, within the three-year period.

(4) If a tenant has an additional judgment entered in an eviction action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, within the three-year period described in paragraph (1), the preceding judgment shall not be expunged until the ensuing judgment is eligible for expungement.

(5) In accordance with federal law and requirements, a public housing authority may request access to eviction judgment history for the past three-year period for active applicants for federal housing assistance.

(6) An eviction action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, and the defendant has an unsatisfied monetary judgment arising from the underlying tenancy or rental agreement related to such eviction action shall not be expunged unless the defendant and the plaintiff agree to such expungement.

(7) An order expunging an eviction action pursuant to this section shall not be construed to satisfy, extinguish or otherwise affect any monetary obligation owed by the defendant to the plaintiff arising from the underlying tenancy or rental agreement related to such eviction action. Nothing in this section shall impair or limit a plaintiff's right to pursue or maintain a separate civil action for unpaid rent, damages or other sums owed, including any action permitted under K.S.A. 61-3804, and amendments thereto, or other applicable law, within the applicable statute of limitations.

(b) The judicial council shall develop a form to be utilized for obtaining expungement pursuant to this section.

Sec. 2. K.S.A. 61-3806 is hereby amended to read as follows: 61-3806. (a) A defendant shall either appear in person or by counsel at the time and date set forth in the summons or file on or before such date a written answer.

(b) The answer, when filed, shall contain the information as

required under ~~subsection (b)~~ of K.S.A. 61-2904(b), and amendments thereto.

(c) *In an action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, the court shall consider mediation unless the court finds that mediation would not aid the parties materially or is impracticable.*

Sec. 3. K.S.A. 61-3807 is hereby amended to read as follows: 61-3807. (a) If a trial is necessary, the trial shall be conducted within 14 days after the appearance date stated in the summons.

(b) (1) *Except as provided in paragraph (2), no continuance shall be granted unless the defendant requesting a continuance shall file a bond with good and sufficient security approved by the court, conditioned for the payment of all damages and rent that may accrue if judgment is entered against the defendant.*

(2) *In an action in which the underlying rental agreement is governed by K.S.A. 58-2540 et seq., and amendments thereto, the court shall order a continuance of not more than 14 days from the date that the mediation order is entered if the parties are participating in mediation.*

Sec. 4. K.S.A. 61-3806 and 61-3807 are hereby repealed.

Sec. 5. This act shall take effect and be in force from and after its publication in the statute book.

I hereby certify that the above BILL originated in the HOUSE, and was adopted by that body

HOUSE adopted
Conference Committee Report_____

Speaker of the House.

Chief Clerk of the House.

Passed the SENATE
as amended _____

SENATE adopted
Conference Committee Report_____

President of the Senate.

Secretary of the Senate.

APPROVED _____

Governor.

Apartment Checklist

2006 IFC

Residential occupancies containing sleeping units or more than two dwelling units where the occupants are primarily permanent in nature.

Exit

A: Temporary Egress:

1001.2

It shall be unlawful to alter a building or structure in a manner that will reduce the number of exits or the capacity of the means of egress to less than required by this code.

B: Door Swing:

1008.2

Doors shall swing in the direction of egress travel where serving an occupant load of 50 or more persons.

C: Door Locks Required Key:

1008.1.8

Egress doors shall be operable from the egress side without the use of a key or special knowledge or effort.

Exceptions: Access doors or gates in barrier walls and fences protecting pool, spas, and hot tubs shall be permitted to have operable parts of the release of latch on self-latching devices at 54 inches (1370 mm) maximum above the finished floor or ground, provided the self-latching devices are not also self-locking devices operated by means of a key, electronic opener or integral combination lock.

D: Travel Distance:

Table 1019.2

In a Group R-2 occupancy the maximum travel distance to an exit is 50 feet. In all other Group R occupancies, the maximum is 75 feet.

E: Continuous Exits:

1019.3

Exits shall be continuous from the point of entry into the exit to the exit discharge.

F: Exterior Exits:

1018.2

Exterior exit doors shall lead directly to the exit discharge or the public way.

G: Normal Illumination:

1006.1

The means of egress, including the exit discharge, shall be illuminated at all times the building space served by the means of egress is occupied.

H-J: Exit Signs:

1011.1, 1006.1

Exit signs are required in rooms or areas which require two or more exits. Main exterior exit door signs may be exempt. Exit signs are not required in individual sleeping units or dwelling units in Group R-1, R-2, or R-3. Exit sign placement shall be such that no point in an exit access corridor is more than 100 feet or the listed viewing distance, whichever is less, from the nearest visible exit sign. Exit signs shall be internally or externally illuminated at all times.

K: Exit Obstructions:

1003.6

Obstruction to exits shall not be placed in the required width and exits shall not be obstructed in any manner.

L: Means of Egress:

1003.6

The required capacity of means of egress shall not be diminished (reduced) along the path of egress travel.

M: Egress Door Widths:

1008.1.1

Doorways shall not be less than 32 inches in clear width. This does not apply to door openings that are not part of the required means of egress in Group R-2 and R-3 occupancies.

N: Number of Exits:

Table 1015.1

Two exits or exit access doorways from any space in Group R shall be provided if the occupant load of the space exceeds 10 persons.

O: Access Control Door Locks:

Table 1008.1.3.4

Access-controlled entrance egress doors are permitted within Group R-1 and R-2 occupancies. The system must be approved. The doors shall be arranged to unlock by a signal from or loss of power to the motion sensor. There shall be a manual unlocking device (button) located 40-48 inches above the floor and within 5 feet of the secured doors with a sign that reads: "Push To Exit." Activation of the fire alarm system or the automatic sprinklers shall unlock the doors.

P: Sleeping Units (10 or Less):

1008.1.8.3

Egress doors shall be readily operable from the egress side without the use of a key or special knowledge or effort. Doors from individual dwellings or sleeping units of Group R occupancies having an occupant load of 10 or less are permitted to be equipped with a night latch, dead bolt or security chain, provided such devices are operable from the inside without the use key or tool.

Q: Emergency Lighting:

1027.5

In the event of power supply failure, exit illumination shall be automatically provided from an emergency system except where the guestroom or living unit has direct access to the outside at grade level. Applicable to Group R-1, R-2, and R-4 occupancies only. Group R-3 is exempt. Emergency power supply shall provide power for a minimum of 90 minutes. Equipment shall be tested for 30 seconds monthly and 90 minutes annually.

Fire Protection Systems

A: Sprinkler System Required:

903.2.7

An automatic sprinkler system shall be provided throughout buildings with a Group R fire area.

B: F and L Fire Extinguishers:

906.1

1x2A per 600 sq. ft. in light hazard. 1x2A per 3000 sq. ft. in ordinary hazard. Max travel distance to a fire extinguisher is 75 ft. Fire extinguishers shall be mounted, conspicuously located, unobstructed, and available for immediate use. If visual obstruction cannot be avoided, signs shall be provided. Height Requirements: <40lbs – Not more than 5ft >40lbs – Not more than 3.5ft and not less than 4in.

C: Travel Distance:

Table 906.3 (1)

Maximum travel distance to a fire extinguisher is 75 feet.

D-H: Fire Extinguishers:

906.5

Fire extinguishers shall be located in conspicuous locations where they will be readily accessible and immediately available for use. Portable fire extinguishers shall not be obstructed or obscured from view. In rooms or areas in which visual obstruction cannot be completely avoided, means shall be provided to indicate the location of extinguishers. Hand-held portable fire extinguishers, not housed in cabinets, shall be installed on hangers or brackets supplied. See Table 906.1 for additional required portable fire extinguishers. Fire extinguishers shall be serviced annually and shall have a current service tag attached. (NFPA 10)

I: Supervised Valves:

903.4

All valves controlling the water supply and water-flow switches on all sprinkler systems shall be electronically supervised when system has 20 or more sprinkler heads.

J: Painted Sprinkler Heads:

901.8

Painted sprinkler heads or cover plates are prohibited unless painted at the factory. They cannot be cleaned of paint. They must be replaced. (NFPA 13, 6.2.6.2.1)

K: Kitchen Fire Extinguisher (R1 Hotel/Motels):

904.11

Group R-1 hotel kitchens must provide extinguishers and protection same as Group A-1 for commercial cooking areas.

L: Fire Extinguishers:

906.9

Portable fire extinguishers having a gross weight not exceeding 40 pounds shall be installed so that its top is not more than 5 feet above the floor. Extinguishers having a gross weight exceeding 40 pounds shall be installed so that its top is not more than 3.5 feet above the floor and the bottom not less than 4 inches above the floor.

M: System Maintained:

901.6, Table 901.6.1

Fire detection, alarm and extinguishing systems shall be maintained in an operative condition at all times, and shall be replaced or repaired where defective. Non-required fire protection systems and equipment shall be inspected, tested and maintained or removed. Records of all inspections, tests and maintenance shall be maintained on the premises for a minimum of 3 years. Fire protection systems shall be inspected, tested and maintained in accordance with the following; Portable fire extinguishers NFPA 10 Dry-chemical extinguishing systems NFPA 17, Wet-chemical extinguishing systems NFPA 17A, Water-based fire protection systems NFPA 25, Fire alarm systems NFPA 72, Commercial Cooking Equipment: NFPA 96, Emergency Standby Power: NFPA 110 and 111.

N: Fire Hydrants:

508.2

A 3-foot clear space shall be maintained around the circumference of fire hydrants.

O: Smoke Alarms Required:

907.3.2.1

Single- and multiple-station smoke alarms shall be installed in existing Group R occupancies.

P-S: Fire Alarm System Required:

907.3

A fire alarm system shall be installed in existing Group R hotel and motels more than three stories or with more than 20 guestrooms. A fire alarm system shall be installed in existing Group R-1 boarding and rooming houses. A fire alarm system shall be installed in existing Group R-2 apartment buildings with more than three stories or with more than 16 dwelling or sleeping units. See exceptions.

T: Commercial Cooking Equipment:

904.11.5

Commercial cooking equipment involving vegetable oil or animal fat shall be protected by a Class K rated portable fire extinguisher provided within 30-foot travel distance of commercial-type cooking equipment. Minimum 2.5-gallon or two 1.5-gallon Class K wet-chemical portable fire extinguisher.

U: Class K-Fire Extinguishers:

904.11.5.2

When cooking areas include deep fat fryers, listed Class K portable fire extinguishers shall be provided. 1-4 fryers require one 1.5-gallon Class K and 5-8 fryers require two 1.5-gallon Class K portable fire extinguishers.

V: Maintenance Responsibility:

907.20.5

The building owner shall be responsible for ensuring that the fire and life safety system are maintained in an operational condition at all times.

W: Fire Watch:

901.7

Where a required fire protection system is out of service, the fire department and the fire code official shall be notified immediately and, where required by the fire code official, the building shall either be evacuated or an approved fire watch shall be provided for all occupants left unprotected by the shut down until the fire protection system has been returned to service. Where utilized, fire watches shall be provided with at least one approved means for notification of the fire department and their only duty shall be to perform constant patrols of the protected premises and keep watch for fires.

X: Generator Maintenance:

604.3, 604.5

Emergency and standby power systems shall be maintained in accordance with NFPA 110 and NFPA 111 such that the system is capable of supplying service within the time specified for the type and duration required. Routine maintenance, inspection and operational testing shall be overseen by a properly instructed individual.

Y: Cooking Equipment Maintained:

904.11, 2008 (96) 11.2.4, 11.6.1

Automatic extinguishing systems of commercial cooking equipment shall be serviced at least every 6 months by properly trained, qualified, and certified person (s). Fusible links and automatic sprinkler heads with fusible links shall be replaced at least annually. Maintain records and show proof upon inspection, if the exhaust system is found to be contaminated with deposits from grease-laden vapors, the contaminated portions of the exhaust system shall be cleaned by a properly trained, qualified, and certified company or person (s) acceptable to the authority having jurisdiction.

Housekeeping

A-E: Combustible Material Storage:

315.2

Storage of combustible materials in buildings shall be maintained in a neat, orderly manner. Storage shall be separated from heaters or heating devices by distance or shielding so that ignition cannot occur.

Combustible material shall not be stored in exits or exit enclosures. Combustible material shall not be stored in boiler rooms, mechanical rooms or electrical equipment rooms.

H: Unvented Heating:

603.4

Portable unvented fuel-fired heating equipment shall be prohibited in Group R-1, R-2, R-3, and R-4 occupancies.

Exception: Listed and approved unvented fuel-fired heaters in one and two family dwellings.

I: Oily Rags:

304.1

Materials susceptible to spontaneous ignition, such as oily rags, shall be stored in listed disposal containers (self-closing lids). Contents shall be removed and disposed of daily.

K: Cooking Equipment Cleaned:

904.11.6.3

Hoods, grease-removal devices, fans, ducts and other appurtenances shall be cleaned at intervals necessary to prevent the accumulation of grease. Cleanings shall be recorded.

L: Fire Department Connection:

508.5.4

Items shall not be placed or kept near fire hydrants, fire department inlet connections (FDC) in a manner that would prevent such equipment of fire hydrants from being immediately discernible and from gaining immediate access to the fire protection equipment of fire hydrants.

M: Hazardous Spaces:

Table 508.2

Incidental use areas shall be separated or protected, or both, in accordance with Table 508.2 – 1 hour or assembly Furnace room single piece > 400,000 BTU Boiler room Refrigerant machinery rooms Lab and vocational shops, in Group E Laundry rooms over 100 sq. ft. Storage rooms over 100 sq. ft. 2 hours; or 1 hour and assembly Parking garage (section 406.2) Paint shops 2 hours and assembly Incinerator room.

Electrical

A-C: Power Strips:

605.4

Re-locatable power taps shall be of the polarized or grounded type, equipped with overcurrent protection, and shall be listed. Re-locatable power taps shall be directly connected to a permanently installed receptacle. Re-locatable power taps shall not extend through walls, ceilings, floors, under doors or floor coverings, or be subject to environmental or physical damage.

D-J: Extension Cords:

605.5

Extension cords shall not be a substitute for permanent wiring. Extension cords and flexible cords shall not be affixed to structures, or extended through walls, ceilings or floors. Extension cords shall be plugged directly into an approved receptacle, power tap, or multiplex adapter. Except for approved multi-plug extension cords, each extension cord shall serve only one portable appliance. Extension cords shall not contain splices or damage. Extension cords shall be grounded when serving grounded portable appliances. The capacity of the extension cords shall not be less than the rated capacity of the portable appliance supplied by the cord.

K: Panel:

605.3

A working space of not less than 30 inches in width, 36 inches in depth and 78 inches in height shall be provided in front of electrical service equipment (panel). Where electrical service equipment is wider than 30 inches, the working space shall not be less than the width of the equipment.

L: Junction Box:

605.5

Open junction boxes and open wiring splices shall be prohibited. Approved covers shall be provided for all switch and outlet boxes.

M: Electrical Motors:

605.8

Electrical motors shall be maintained free from excessive accumulations of oil, dirt, waste and debris.

N-O: Temporary Wiring:

605.9

Temporary wiring for electrical power and lighting installations is allowed for a period not to exceed 90 days.

P: Multi-Plug Adapters:

605.4

Multi-plug adapters, such as cube adapters, un-fused plug strips or any other device not complying with the International Code Council Electrical Administrative Provisions shall be prohibited.

Miscellaneous

F-J: Evacuation Plan:

404.2, 405.2

An approved fire safety and evacuation plan shall be prepared and maintained for Group R-1 buildings and Group R-2 college and university buildings. Employees in Group R-1 occupancies shall be trained in the fire emergency procedures described in the fire evacuation and fire safety plans. Training is annual. Emergency evacuation drills shall be held in Group R-1 occupancies quarterly on each shift by employees only. In Group R-1 occupancies, a diagram depicting two evacuation routes shall be posted on or immediately adjacent to every required egress door from each hotel, motel or dormitory sleeping unit.

K: Emergency Guide (R-2 Apartment/Dorm):

408.9

In Group R-2 occupancies, each tenant shall be given a copy of the emergency guide prior to occupancy.

L: System Maintenance:

907.20.5

The building owner shall be responsible for ensuring that the fire and life safety system are maintained in an operational condition at all times.

M: Evacuation:

408.9

In Group R-4 occupancies, a fire safety and evacuation plan shall include special staff actions, including fire protection procedures for residents and shall be amended or revised upon admission of a resident with unusual needs.

Hazardous Materials

B-C: Hazardous Material Storage:

2703.9.8, 3404.3.3.5.3

Storage of incompatible materials shall be separated if in containers having a capacity over 5 lbs. of 0.5 gallon. Shelf storage of flammable and combustible liquids shall be orderly.

D: Cabinet Identification:

27083.8.7.2

Hazardous materials storage cabinets shall be clearly identified in an approved manner with red letters on a contrasting background to read: "Hazardous – Keep Fire Away."

E: Flammable Liquid/Gas Storage:

3404.3.4.4

Flammable and combustible liquids used for maintenance and the operation of equipment exceeding 10 gallons shall be stored in a liquid storage cabinet.

F: Below Grade LPG Storage:

3803.2.1.1

Portable LP-gas containers shall not be used in a basement, pit or similar location where heavier-than-air gas might collect.

H: Hazardous Material Storage:

3503.1

Except for cylinder not exceeding 250 cu. Ft. each, used for maintenance purposes, patient care or operation of equipment, flammable gases shall not be stored or used in Group R occupancies.

Fire Protection

L: Vertical Shafts:

IFC 704.1, Table 704.1

Interior vertical shafts, including but not limited to stairways, elevator hoist ways, service and utility shafts that connect two or more stories of a building shall be enclosed or protected as specified in Table 704.1. Group I Vertical openings connecting two or more stories 1-hour protection all, other than Group I Vertical openings are connecting three to five stories 1-hour protection or automatic sprinklers throughout all, other than Group I Vertical openings connecting more than five stories 1-hour protection.

A-E: Rated Doors Maintained:

703.2, 703.4

Fire doors and smoke barrier doors shall not be blocked or obstructed or otherwise made inoperable. Fire door assemblies shall not be modified. Swinging fire doors shall close from the full open position and latch automatically. The door closer shall exert enough force to close and latch the door from any partially open position. Horizontal and vertical sliding and rolling fire doors shall be inspected and tested annually to confirm proper operation and full closure. A written record shall be maintained and be available. When magnetic hold-open devices on fire doors are out of service the door shall remain in the closed position.

F-H Decorations:

806.1, 807.1

Natural cut trees shall be prohibited in Group M occupancies unless protected by automatic sprinkler system. Natural cut trees shall be prohibited in Group R-1 and R-2 occupancies unless protected by an automatic sprinkler system. Curtains, draperies, hangings and other decorative materials shall be flame resistant or be noncombustible in Group R-1 and dormitories in Group R-2. Ask to see certificate of treatment.

I: Fire Doors Fusible Links:

703.2

Fire door fusible links shall be replaced promptly whenever fused or damaged.

J: Fire-Resistance – Rated Construction:

703.1

The required fire-resistance rating of fire-resistance-rated construction (including walls, fire stops, shaft enclosures, partition smoke barriers, floors, fire-resistive coatings and sprayed fire-resistant materials applied to structural members and fire-resistant joint systems) shall be maintained. Such elements shall be properly repaired, restored or replaced when damages, altered, breached or penetrated. Openings made therein for the passage of pipes, electrical conduit, wires, ducts, air transfer openings and holes made for any reason shall be protected with approved methods capable of resisting the passage of smoking and fire. Openings through fire-resistance-rated assemblies shall be protected by self- or automatic-closing doors of approved construction meeting the fire protection requirements for the assembly.

K: Interior Finish:

803.1, 803.5, Table 803.3

Interior wall and ceiling finish shall have a flame spread index not greater than that specified for the group and location designated. Sprinklered- Class C: Exits passageways, corridors, and enclosed rooms and spaces, Non-sprinklered- Class B: Exits passageways and corridors, Class C: Enclosed rooms and spaces.

Kansas Statutes and Regulations

KS01: Fire Protection Changes:

K.S.A. 31-150

New buildings or changes in exiting, fire resistance, or handicapped accessibility, including modifications or additions, shall require that stamped and sealed plans from a licensed architect or engineer be submitted and reviewed by the appropriate authority having jurisdiction. Documentation indicating that the plans have been submitted and approved shall be available to the inspector.

KS02: Emergency Procedures:

K.A.R. 22-18-2(c)

Tornado procedures shall be established by the administrator of each community college and university for all buildings, which designates tornado safety refuge areas. A notice of location of the tornado safety refuge area shall be posted in conspicuous location. Administrators shall provide copies of tornado plans to local or county preparedness director for approval.

KS03: Building Structural Soundness:

K.S.A. 31-133(a)

If a building shows severe or worsening settlement, severe cracking of exterior bearing walls, or roof deflection, and a report shall be provided to OSFM for review and determination of appropriate action.

KS04: Exterior Stair Supports:

K.S.A. 31-133(a)

Exterior stair support shall be either:

- a) structurally supported to the ground; or
- b) documentation of an inspection by an architect or engineer with structural background within the last 5 years assuring that the exit stairs will remain structurally sound when supported solely by a building wall.

KS05: Below Grade LP Installation:

K.S.A. 31-133(a)

Where LP gas appliances are located in below-grade installations where an accumulation of gas vapors is possible, the area or room shall be protected by an approved vapor removal system. If LP gas piping system has not been pressure tested within the last five years or since the installation of new LP gas appliances or changes to LP gas piping, NFPA 85 and NFPA 54 require that the system is pressure tested and documented by authorized LP gas dealer or marketer.

KS06: Boiler Certificate:

K.S.A. 44-924(b)

A current boiler certificate, no more than 18 months beyond expiration date, shall be posted. This is required for all boilers, all water heaters with a water capacity of 85 gallons or greater, and all water heaters rated for more than 200,000 BTU's, regardless of size.

KS07: System Service:

K.A.R. 22-10

Fixed extinguishing systems protecting commercial cooking equipment shall be serviced by a firm licensed by OSFM. Fusible links shall be replaced yearly. Documentation shall be maintained on-site.

KS08: PTR/Valve Relief:

K.S.A. 44-924(b)

Pressure and temperature relief (PTR) valves on fuel fired hot water heaters shall appear operational and shall have piping which extends to within 6 inches of the ground. Piping shall not have bends and shall be of an appropriate material.

KS09: Loose Combustible Storage:

K.S.A. 31-133

Loose combustible storage is prohibited in boiler and furnace rooms and exit ways. Loose combustible storage includes pasteboard boxes, wooden furniture, and material packaged in combustible containers. It does not include bound books or paper bound in reams.

KS10: Compressed Gas Cylinder:

K.S.A. 31-133

Compressed gas cylinders shall be adequately secured with caps in place when not in use. Cylinders shall be stored away from heat sources.

KS11: Gas Powered Equipment:

K.S.A. 31-133

Gasoline powered equipment storage is prohibited in boiler, fuel-fired equipment rooms and exit ways.

KS12: Flammable Liquid Storage:

K.S.A. 31-133

Flammable liquid storage is prohibited in boiler and fuel fired equipment rooms and exit ways. Flammable liquids shall be in containers approved for the use and marked with the material's name. Storage shall be in an approved flammable liquid storage cabinet when total quantities stored exceed 5 gallons.

KS13: Dangerous Conditions:

K.S.A. 31-133

Situations requiring immediate action and building evacuation to mitigate an imminent danger to life or health of the building occupants that is not a normal component of the inspection, including a natural gas leak, atmospheric contaminant within the building, complete power failure, or similar emergencies. Inspector is required to contact the Chief of Fire Prevention Division for immediate guidance and determination of requirements and facility response.

KS14: Fire Drill Frequency (Group E):

K.A.R. 22-18-2(a)

Fire drills shall be conducted once each month that school is in session to simulate actual fire. If records indicate one or more months past due, a drill shall be conducted in the inspector's presence.

KS15: Fire Drill and Disability (Group E):

K.A.R. 22-18-2(a)

Fire drill procedures for occupants with disabilities shall exist in a written format and shall be maintained.

KS16: Fire Drill Documentation (Group E):

K.A.R. 22-18-2(a)

Fire drills shall be documented on a record provided by OSFM and publicly posted. Inspector shall verify owner information is complete on drill record.

KS17: Tornado Drill Alarm (Group E):

K.A.R. 22-18-2(c)

Tornado drills shall use a distinctly different alarm sound from that used for the fire alarm.

KS18: Tornado Refuge Area (Group E):

K.A.R. 22-18-2(c)

Tornado refuge area location shall be conspicuously posted, typically by signage at a building's main entrance bulletin board, classrooms, and/or signage at refuge area.

KS19: Tornado Drill Documentation (Group E):

K.A.R. 22-18-2(c)

Tornado drill shall be documented on record provided by OSFM and publicly posted.

KS20: Escape Window (Group E):

K.S.A. 31-150

Mobile classrooms require a remote, complying escape window or second exit door.

Exception: When each classroom has a door directly to the exterior.

KS21: Bus Barns (Group E):

K.S.A. 31-144(c)

Bus barns and district vehicle repair garages function independently of classrooms and require a 2 hour fire barrier with 1 ½ hour rated door assemblies between them and K-12 school areas, unless otherwise accepted by OSFM and documented in writing. (For auto-shop classrooms, see hazardous rooms.)

KS22: Juvenile Detention Fire Drills (Group I):

K.A.R. 22-15-7(q)

Quarterly fire drills for staff training are required and must be documented.

KS23: Juvenile Detention Construction (Group I):

K.A.R. 22-15-7(b) K.S.A. 31-136 (Equivalent construction types)

Approved construction shall be one of the following for single story buildings:

- 1) One hour non-combustible, or
- 2) When previously approved and documented in writing by the OSFM
 - a) one-hour wood frame construction, fully sprinkled, and limited 3,900 sq. ft. of detention space, or
 - b) heavy timber construction and fully sprinkled.

KS24: Rolling Fire Doors:

K.S.A. 31-133, 06

If a fire-rated door is not required at a location, the rolling door should be secured or removed. If a fire-rated door is required, the rolling door should be secured in place or removed completely, and then replaced with properly rated swinging doors. If the overhead doors cannot be immediately eliminated, the rolling doors shall be checked to insure they are being maintained properly and plans should be made to replace the doors.

Housing Authority of Kansas City v. McConnell

(589 P.3d 62)

No. 128,977

HOUSING AUTHORITY OF THE CITY OF KANSAS CITY, *Appellee*,
v. RODERICK MCCONNELL, *Appellant*.

SYLLABUS BY THE COURT

1. LANDLORD AND TENANT—*Notice Served on Tenant by Landlord to Vacate Premises under K.S.A. 58-2564(a)—Notice Must Specify Alleged Breaches.* When a landlord serves a tenant with a notice under K.S.A. 58-2564(a) that they have 14 days to cure an alleged breach or 30 days to leave the premises, that 14-30 notice must meet several requirements. In particular, the 14-30 notice must clearly and explicitly specify any alleged breaches, so that the tenant can understand what steps must be taken to cure those breaches.
2. SAME—*30-Day Notice of Termination of Lease under Statute—Valid 14-30 Notice Required for Eviction.* A landlord's 30-day notice of the termination of a residential lease (without any curative period) under K.S.A. 58-2564(a) can give rise to an eviction only after a valid 14-30 notice under that statute has been served.

Appeal from Wyandotte District Court; CANDICE ALCARAZ, judge. Oral argument heard on January 6, 2026. Opinion filed April 10, 2026. Reversed and remanded with directions.

Nicholas Blessing, of Kansas Legal Services, Inc., for appellant.

Hale G. Weirick and *Steve N. Gatzoulis*, of Evans & Mullinix, P.A., of Shawnee, for appellee.

Before WARNER, C.J., HURST and BOLTON FLEMING, JJ.

WARNER, C.J.: This case concerns the level of detail a landlord must provide a tenant believed to be in violation of the lease before the landlord may file an eviction action. Under K.S.A. 58-2564(a), if a tenant is in material noncompliance with a term of the lease, the landlord may notify the tenant in writing "specifying the acts and omissions constituting the breach" and informing the tenant that the lease will be terminated in 30 days unless the tenant remedies the breach within 14 days. Courts commonly call this written notification a "14-30 notice."

In this case, Roderick McConnell argues that the district court

Housing Authority of Kansas City v. McConnell

erred in finding that the Housing Authority of the City of Kansas City, Kansas, provided him with sufficient notice and opportunity to correct the alleged lease violations before filing for eviction. McConnell contends the 14-30 notice he received did not specify how he violated a rule against disturbing his neighbors in their accommodations, rendering the 30-day notice of termination that followed legally infirm. We agree. We thus reverse the district court's judgement in favor of the Housing Authority and remand with directions to consider what relief is appropriate based on the erroneous eviction.

FACTUAL AND PROCEDURAL BACKGROUND

McConnell previously rented an apartment in the Wyandotte Towers, managed by the Housing Authority of the City of Kansas City. When McConnell signed his rental agreement, some of the terms included agreeing to "[n]ot disturb other residents' peaceful enjoyment of their accommodations"; to "act in a cooperative manner with neighbors and the Housing Authority's Staff"; and to refrain from "acting or speaking in an abusive or threatening manner toward neighbors and the Housing Authority's staff."

The rental agreement also required the Housing Authority to fulfill certain obligations. For example, before Housing Authority staff could enter McConnell's apartment, the staff were required to provide him with written notice 48 hours in advance. And if the Housing Authority wished to evict McConnell, it was required to provide 30 days' written notice of termination specifically stating the reasons for termination.

In October 2024, the Housing Authority filed a petition to evict McConnell from the premises, stating that it had sent a 14-30 notice to McConnell on August 22, 2024, yet he continued to possess the unit without permission. While eviction proceedings were ongoing, the Housing Authority and McConnell renewed the rental agreement for an additional one-year term. On November 5, 2024, McConnell answered the complaint and counterclaimed that the Housing Authority failed to provide appropriate heating during the previous winter and refused to repair the heating when McConnell complained. The Housing Authority later dismissed this eviction action, but McConnell retained his counterclaim.

Housing Authority of Kansas City v. McConnell

During his time as a tenant, McConnell and the Housing Authority staff clashed on several issues, including that McConnell allowed his wife, Sherlynn Chege (who was not listed as a tenant on the lease), to stay in his apartment. On November 6, 2024, a security camera recording showed McConnell going to the Housing Authority's office and speaking to two of the staff. During the encounter, McConnell appeared animated, spoke in a loud voice, and gesticulated. This encounter was captured through a security video in the entryway of the complex, but it is difficult to understand what all is being said on the recording. According to the property manager of the building, McConnell was upset that Chege was banned from the building and used abusive language toward the property manager and other staff.

On November 18, the Housing Authority sent McConnell another 14-30 notice alleging that McConnell had breached the rental agreement because he allowed an unauthorized guest, Chege, to live in his apartment; did not keep his dog on a leash on June 7, 2024; did not maintain his animal in common areas on November 6, 2024; "disturbed the peace of enjoyment for others"; and continued to invite Chege into his unit despite her being banned from the premises. The notice stated that if McConnell did not remedy the breaches in 14 days, his tenancy would be terminated.

Nine days later, McConnell's attorney sent a letter to Housing Authority counsel "as part of a good faith effort by Mr. McConnell to remedy the alleged breaches of the rental agreement." The letter stated that McConnell had remedied all breaches that were specifically defined, including not inviting Chege back to the property and keeping his service dog on a leash. The letter noted, however, that some breaches were not specifically defined thus McConnell did not know what actions served as the basis of the alleged violations. Regardless, McConnell's counsel indicated that McConnell would maintain his dog on a leash in common areas and would "refrain from disturbing any other residents."

On December 3, the property manager went to McConnell's apartment to see if he had cured the breaches listed in the 14-30 notice. A guest who was in McConnell's apartment at the time opened the door and told McConnell "the lady" was there.

Housing Authority of Kansas City v. McConnell

McConnell was in the bedroom with his home health nurse at the time. McConnell said that there was some "commotion" after the door was answered. Both McConnell and the nurse later testified that McConnell did not give the property manager permission to enter the apartment. But the property manager testified that "[h]e told someone to let me in." She entered the apartment and stood in the entryway. After 10 minutes, she started to "look around and do [her] inspection" and went into the "back area" where she believed most of Chege's stuff was held. At that point, McConnell became angry and told her to leave. She left the apartment and heard McConnell continue to yell after she had gone.

On December 17, the Housing Authority sent a 30-day notice of eviction (what we call the "30-day notice") to McConnell. This notice alleged that on December 3, McConnell failed to cooperate with a "unit inspection"; spoke to Housing Authority staff in an "abusive and threatening manner"; and "disturbed the peace and enjoyment of his neighbors by yelling and disrupting the neighbors while arguing with the housing authority staff." There was no provision in the 30-day notice allowing McConnell to remedy these alleged breaches.

In January 2025, the Housing Authority amended its petition, alleging that because McConnell had received two notices of eviction (the November 14-30 notice and the December 30-day notice), he was unlawfully in possession of the unit. The district court conducted a two-day bench trial in February 2025. The court ultimately awarded \$500 in restitution to McConnell for one of his counterclaims but entered judgment in favor of the Housing Authority, granting it possession of the unit and giving McConnell 14 days to vacate. McConnell appealed.

DISCUSSION

The relationship between landlords and tenants in residential housing in this state is governed by the Kansas Residential Landlord and Tenant Act (commonly called the RLTA). See K.S.A. 58-2540 et seq. Among other things, the RLTA codifies several substantive rights and responsibilities of landlords and tenants, specifies when a rental agreement may be ended, and defines when and how a landlord may evict a tenant from a housing unit. *Washburn*

Housing Authority of Kansas City v. McConnell

South Apartments v. Hession, 65 Kan. App. 2d 626, 632-33, 570 P.3d 126 (2025).

K.S.A. 58-2564 establishes when and under what conditions a landlord may terminate a rental agreement, outlining the steps that must be taken before an eviction case is filed. 65 Kan. App. 2d at 638. The issues in this appeal center on K.S.A. 58-2564(a), which states that if a tenant is in material noncompliance with the rental agreement, "the landlord may deliver a written notice to the tenant *specifying the acts and omissions constituting the breach* and that the rental agreement will terminate upon a date not less than 30 days after receipt of the notice, if the breach is not remedied in 14 days." (Emphasis added.) This subsection further provides that if the tenant commits the breach listed in the notice "or a similar breach" after the 14-day period, the landlord may notify the tenant in writing "that the rental agreement will terminate upon a date not less than 30 days after receipt of the notice without providing the opportunity to remedy the breach." K.S.A. 58-2564(a).

The district court found that the 30-day notice the Housing Authority sent McConnell on December 3 provided a legal basis to evict him from the apartment. McConnell now challenges that ruling on multiple fronts. He claims that the Housing Authority's 14-30 notice in November—the predecessor to the 30-day notice—did not specify how he "disturbed the peace of enjoyment for others" and thus did not provide him with sufficient notice to allow him to cure the alleged breach. McConnell also argues that there was insufficient evidence to support the eviction. After carefully reviewing the record and the parties' arguments, we agree that the 14-30 notice was insufficient, rendering the later 30-day notice invalid.

Our state's appellate courts have long held that a 14-30 notice should clearly and explicitly specify any alleged breaches, so that the tenant can understand what steps must be taken to cure those breaches and remain on the premises. A notice is insufficient if it is "ambiguous, misleading, and unintelligible to the average person who is to be affected by it." *Fenn v. Windsor at Kingsborough, Inc.*, 226 Kan. 653, 656, 603 P.2d 188 (1979) (quoting 58 Am. Jur. 2d Notice § 23, p. 505).

Housing Authority of Kansas City v. McConnell

In *Fenn*, the 14-30 notice provided by the landlord did not include any reference to a 14-day window for remedying the breach—stating only that the tenants had 30 days to surrender possession of the property due to their "continuing loud and disruptive behavior." 226 Kan. at 656. The Kansas Supreme Court found that the notice did not comply with the statutory requirement that the written notice specify "(1) the [act or] omission constituting the breach; (2) the 30 day termination of the lease; and (3) the right to remedy the breach within 14 days." 226 Kan. at 656 (referencing K.S.A. 1978 Supp. 58-2564[a], which is materially the same as K.S.A. 58-2564[a]).

While the Housing Authority's 14-30 notice to McConnell on November 18 properly informed McConnell of his general right to remedy the breach, the notice failed to "specify the acts and omissions constituting the breach." K.S.A. 58-2564(a). The notice did not include the date of the alleged violation, nor any description of the act to which the Housing Authority was referring. Instead, the notice merely cited a vague disturbance of "the peace of enjoyment for others," without specifying any facts regarding who was involved, what occurred, or where and when the disturbance happened. This is patently insufficient under K.S.A. 58-2564(a).

The Housing Authority argues that there was sufficient detail in the 14-30 notice because it was "issued less than two weeks after the incident" on November 6, 2024 (when McConnell argued with Housing Authority staff in the office), and thus McConnell should have known what act the notice was referring to due to the proximity in time to that incident. But we disagree. Indeed, the letter from McConnell's attorney indicated that it was unclear what the notice's language relating to a disturbance referenced, and the Housing Authority never answered this inquiry. Nor does the notice provide sufficient information so that a court could assess whether the alleged breach had been cured. In fact, the notice specifically identifies dates for two other alleged breaches but remains silent as to the circumstances surrounding the disturbance. As a panel of this court observed previously in *Hill City Housing Authority v. Nevins*, No. 126,274, 2024 WL 3466559, at *5 (Kan. App. 2024) (unpublished opinion), "from an objective standpoint, the notice fails to precisely identify the grounds for termination."

Housing Authority of Kansas City v. McConnell

K.S.A. 58-2564(a) states that a 30-day notice (without any curative period) can give rise to an eviction only after a valid 14-30 notice has been served. Then if a tenant commits the same "breach or a similar breach" after the 14-day period, the landlord may notify the tenant in writing "that the rental agreement will terminate upon a date not less than 30 days after receipt of the notice" and may do so "without providing the opportunity to remedy the breach."

The 30-day notice alleged that on December 3, 2024, McConnell: (1) failed to cooperate with a "unit inspection"; (2) spoke to Housing Authority staff in an "abusive and threatening manner"; and (3) "disturbed the peace and enjoyment of his neighbors by yelling and disrupting the neighbors while arguing with the housing authority staff." The only allegation that might constitute a "similar breach" as any described in the November notice is the third violation—that McConnell disturbed the peace and enjoyment of his neighbors on December 3 (when the property manager entered McConnell's apartment without his permission to check for compliance with the 14-30 notice). And as we have already established, the Housing Authority's 14-30 notice did not sufficiently specify the basis for that allegation.

Because the 14-30 notice did not specify the acts in which McConnell "disturbed the peace of enjoyment for others," the 30-day notice that followed was legally deficient. See K.S.A. 58-2564(a). The Housing Authority did not properly notify McConnell of the breaches it alleged as the basis for terminating his lease.

Because the 30-day notice—the basis for evicting McConnell—was invalid, the district court lacked legal authority to evict him from the premises. We thus reverse the district court's judgment.

McConnell raises a few other arguments under his first issue, mainly that the 14-30 notice also did not comply with the lease itself and with the specificity requirements of federal housing laws. McConnell also argues that there was insufficient evidence to support the eviction. Because we have already determined that we must reverse the district court's judgment, consideration of these remaining arguments is unnecessary.

Housing Authority of Kansas City v. McConnell

Before closing, we pause to note that McConnell has requested reinstatement of his lease as a remedy for the erroneous eviction. But McConnell did not request a stay of the district court's order. As a result, McConnell was evicted from the apartment and now lives in another residence, and his former apartment is no longer available. Under these circumstances, it may not be feasible to render McConnell the relief he requests. We therefore remand the case to the district court to determine what relief is appropriate in light of the erroneous eviction. See, e.g., K.S.A. 58-2563 (stating tenant who has been improperly evicted may recover one-and-a-half months' rent or actual damages sustained by the tenant, whichever is greater).

Reversed and remanded with directions.

Schutt v. Foster

No. 126,555

JOHN SCHUTT, as Agent for the Owner J.E. SCHUTT & M.A.
SCHUTT FAMILY TRUST, *Appellee*, v.
SHERRI FOSTER, *Appellant*, v.
JOHN SCHUTT and STUDIO 605-RENEW, LLC,
Third-party Defendants.

(572 P.3d 770)

SYLLABUS BY THE COURT

1. **APPEAL AND ERROR**—*Issues Raised for First Time on Appeal—Supreme Court Rule Requires Exception to Preservation Rule Be Briefed.* When appellants raise issues for the first time on appeal, Kansas Supreme Court Rule 6.02(a)(5) (2025 Kan. S. Ct. R. at 36) requires that they brief an exception to the preservation rule in their opening brief.
2. **SAME**—*Reply Brief—Exception to General Preservation Rule May Not Be Invoked.* Appellants may not invoke an exception to the general preservation rule for the first time in a reply brief.

Review of the judgment of the Court of Appeals in an unpublished opinion filed July 26, 2024. Appeal from Johnson District Court; JOHN MCENTEE, judge. Oral argument held May 13, 2025. Opinion filed July 25, 2025. Judgment of the Court of Appeals reversing the district court in part is reversed, and its opinion is vacated. Judgment of the district court is affirmed.

Eric G. Kraft, of Eric Kraft Law, P.A., of Prairie Village, argued the cause and was on the briefs for appellant.

Jadh J. Kerr, of Speer & Holliday, LLP, of Olathe, argued the cause and was on the briefs for appellees.

The opinion of the court was delivered by

WALL, J.: This matter arises from a substantive dispute between landlord and tenant. A district court awarded John Schutt \$21,240 in late fees after Sherri Foster missed three \$1,900 rent payments, and Foster appealed from this judgment. But the matter turns on a question of appellate procedure—issue preservation.

Foster argued for the first time on appeal that the late-fee provision in the lease was unconscionable. Issues not raised before the district court typically cannot be raised on appeal—a principle we often call the preservation rule. But we have recognized exceptions to this general rule. And the Court of Appeals panel relied

Schutt v. Foster

on these exceptions to reach the merits and conclude that the late fees were unconscionable under the Residential Landlord and Tenant Act, K.S.A. 58-2540 et seq.

But our appellate rules establish a procedure that appellants must follow to properly invoke exceptions to the preservation rule. Supreme Court Rule 6.02(a)(5) (2025 Kan. S. Ct. R. at 36) requires appellants to identify these exceptions in their opening brief. The failure to do so precludes appellate review of unpreserved issues.

Foster failed to comply with this requirement. She first invoked exceptions to the preservation rule in her reply brief. Our rules foreclose this practice. And the panel erred by relying on Foster's preservation exceptions to reach the merits. We thus reverse the judgment of the Court of Appeals and vacate its opinion.

FACTS AND PROCEDURAL BACKGROUND

Schutt leased a residential property to Foster. Under the lease, Foster agreed to pay \$1,900 per month in rent due on the first of the month, with a late charge of \$20 per day for any rent paid after the due date. Foster also worked as a construction manager, and she agreed to perform construction services for Schutt on several of his properties.

Foster failed to pay her rent for July, August, and September 2020. In September 2020, Schutt filed a forcible detainer petition for rent and possession of the property. Schutt sought a judgment against Foster for \$7,600 in unpaid rent and late fees plus "ongoing rent and fees which may accrue during the pendency of the action." Foster countersued Schutt for money he owed her for construction services.

Almost two-and-a-half years later, the district court held a bench trial and issued its judgment in May 2023. It found Foster owed Schutt \$5,700 in unpaid rent. The district court also awarded Schutt late fees of \$21,240. It calculated this amount by applying the \$20-per-day late fee to the 1,062 days between Foster's first missed rent payment and the judgment date. The district court also found that Schutt owed Foster for construction work she had completed on Schutt's properties and for Schutt's failure to itemize damages or return Foster's security deposit. After offsetting the

Schutt v. Foster

judgments, the district court ruled that Schutt owed Foster \$544.98.

Foster appealed, challenging the district court's award of \$21,240 in late fees on several grounds. First, she argued that Schutt did not specifically ask for that amount in his forcible detainer petition. Second, she claimed that the late fees were unconscionable. Finally, she believed that it was improper to impose late fees after she had invoiced Schutt for her construction work or after she had vacated the property.

Schutt argued that Foster's challenges to the late fees were not preserved for appellate review because she had not raised them before the district court. He added that Foster had violated Rule 6.02(a)(5) because she did not explain in her opening brief why the newly raised issues were properly before the Court of Appeals.

In her reply brief, Foster maintained that her arguments were properly before the Court of Appeals because exceptions to the preservation rule applied. A panel of the Court of Appeals reached the merits, relying on the preservation exceptions Foster asserted in her reply brief. *Schutt v. Foster*, No. 126,555, 2024 WL 3548641, at *2 (Kan. App. 2024) (unpublished opinion).

The panel held that Schutt's petition adequately requested ongoing rent and late fees. 2024 WL 3548641, at *3. But it held that the late fees were unconscionable under K.S.A. 58-2544(a). 2024 WL 3548641, at *4. It reasoned that the \$20-per-day late fee became unconscionable when the district court assessed late fees after the date Foster had vacated the property. 2024 WL 3548641, at *4. The panel thus reversed and remanded to the district court. It instructed the district court to vacate late-fee amounts exceeding \$2,460—the amount due for the 123 days between Foster's first missed rent payment and the date she vacated the property. 2024 WL 3548641, at *4. Finally, the panel held that Foster's remaining issues were rendered moot by the panel's unconscionability holding. 2024 WL 3548641, at *3.

Schutt moved for rehearing or modification. He argued that K.S.A. 58-2544(b) required the panel to remand the case for an evidentiary hearing before deciding whether the late fees were unconscionable. See K.S.A. 58-2544(b) (when the unconscionability

Schutt v. Foster

of a rental agreement is put into issue, "the parties shall be afforded a reasonable opportunity to present evidence as to the setting, purpose and effect of the rental agreement . . . to aid the court in making the determination"). The Court of Appeals denied his motion.

We granted Schutt's petition for review. He raises four issues. First, Schutt argues that the panel erred by reaching the merits of Foster's unpreserved unconscionability claim. Second, he claims that the panel was required to remand for an evidentiary hearing before ruling on the unconscionability issue. Third, he contends that there was no evidence that the late-fee provision was unconscionable when made. Finally, he believes the panel erred by ruling that late fees cannot accrue after Foster vacated the property.

Foster did not cross-petition for review of the panel's adverse holdings on her other claims, so they are not properly before us. See Supreme Court Rule 8.03(i)(1) (2025 Kan. Sup. Ct. R. at 59) (issues subject to review include those issues which the petition or cross-petition allege were erroneously decided by the Court of Appeals or warrant review for other reasons).

We heard arguments from the parties on May 13, 2025. Jurisdiction is proper. K.S.A. 20-3018(b) (providing for petitions for review of Court of Appeals decisions); K.S.A. 60-2101(b) (Supreme Court has jurisdiction to review Court of Appeals decisions upon petition for review).

ANALYSIS

We need only address Schutt's first issue—whether the panel erred by reaching the merits of Foster's unconscionability issue—because it is dispositive of the appeal.

A. Standard of Review and Relevant Legal Framework

When a panel of the Court of Appeals decides to address an unpreserved issue for the first time on appeal, we review that decision for an abuse of discretion. *In re A.S.*, 319 Kan. 396, 400, 555 P.3d 732 (2024). A court abuses its discretion when its action is (1) arbitrary, fanciful, or unreasonable; (2) based on an error of law; or (3) based on an error of fact. 319 Kan. at 400.

Generally, appellate courts do not address issues raised for the

Schutt v. Foster

first time on appeal. *State v. Allen*, 314 Kan. 280, 283, 497 P.3d 566 (2021). But an appellate court may consider a newly raised issue when certain recognized exceptions apply. 314 Kan. at 283. These exceptions include:

“(1) the newly asserted theory involves only a question of law arising on proved or admitted facts and is determinative; (2) consideration of the theory is necessary to serve the ends of justice or to prevent the denial of fundamental rights; and (3) the trial court may be affirmed because it was right for the wrong reason.” *In re N.E.*, 316 Kan. 391, 407-08, 516 P.3d 586 (2022).

Kansas Supreme Court Rules also require that appellants raising issues for the first time on appeal must explain why those issues are properly before the appellate court. See Rule 6.02(a)(5) (2025 Kan. S. Ct. R. at 36) (“If the issue was not raised below, there must be an explanation why the issue is properly before the court.”). In other words, appellants who rely on a preservation exception must invoke that exception and argue that it applies. See *State v. Godfrey*, 301 Kan. 1041, 1043, 350 P.3d 1068 (2015). An appellant who fails to do so is deemed to have waived and abandoned any exceptions to the preservation rule. *In re N.E.*, 316 Kan. at 408; *Godfrey*, 301 Kan. at 1044.

B. *The panel erred by relying on exceptions to the preservation rule that Foster failed to properly invoke under Rule 6.02(a)(5).*

In her reply brief, Foster argued that two preservation exceptions applied to her unconscionability issue. The panel agreed and reached the merits. *Schutt*, 2024 WL 3548641, at *2. Schutt now argues that the panel erred by reaching the merits because Foster failed to comply with Rule 6.02. We agree.

To understand why, we first interpret the relevant rules of appellate procedure to identify the requirements for properly invoking an exception to the preservation rule. Then, we apply the rules to the facts before us and conclude that the panel abused its discretion by reaching the merits of Foster's unconscionability issue.

1. *The rules require appellants to brief exceptions to the preservation rule in the opening brief.*

When appellants raise an issue for the first time on appeal, Rule 6.02(a)(5) requires them to brief an exception to the preservation rule in the opening brief. The failure to do so cannot be cured in the reply brief. This interpretation is supported by the plain language of Rule 6.02(a)(5). And it is reinforced when reading that provision together with other rules of appellate procedure.

Kansas Supreme Court Rule 6.01(b) (2025 Kan. S. Ct. R. at 35) identifies the types of briefs parties may file with the appellate courts on direct appeal and the schedule for filing those briefs. That rule authorizes parties to file: (1) an appellant's brief; (2) an appellee or appellee/cross-appellant's brief; a cross-appellee's brief; or an appellee/cross-appellee's brief; and (3) a reply brief.

Other rules govern the content of each type of brief. Relevant here, Rule 6.02(a) describes the required contents of the appellant's brief. Under that rule, the appellant's opening brief must cite to the record where an issue was raised and decided below or otherwise explain why the issue is properly before the appellate court:

"(a) Required Contents. An appellant's brief *must* contain the following:

....

(5) The arguments and authorities relied on, separated by issue if there is more than one. Each issue must begin with citation to the appropriate standard of appellate review and a pinpoint reference to the location in the record on appeal where the issue was raised and ruled on. *If the issue was not raised below, there must be an explanation why the issue is properly before the court.*" (Emphases added.) Rule 6.02(a)(5) (2025 Kan. S. Ct. R. at 35).

Thus, under the plain language of the rule, if an appellant intends to invoke an exception to the preservation rule, that exception must be invoked in the appellant's opening brief.

Supreme Court Rule 6.05 governs the content of reply briefs. It specifies that the reply brief may address only new matters raised by an appellee:

"A reply brief may not be submitted unless made necessary by new material contained in the appellee's or cross-appellee's brief. A reply brief must include a specific reference to the new material being rebutted and may not include, except

Schutt v. Foster

by reference, a statement, argument, or authority already included in a preceding brief." Rule 6.05 (2025 Kan. S. Ct. R. at 37).

Nothing in Rule 6.05 permits an appellant to invoke an exception to the preservation rule for the first time in a reply brief.

But what if the appellee's brief first raises preservation concerns about an appellant's issue, as happened here? One might argue that Rule 6.05 allows the appellant to invoke a preservation exception in the reply brief as "new material being rebutted" in the appellee's brief. But that reading of Rule 6.05 would directly undercut the plain language in Rule 6.02(a)(5). That language explicitly requires the appellant to explain in the opening brief why an issue not raised below is properly before the appellate court. Reading these rules together, Rule 6.02(a)(5) requires appellants relying on a preservation exception to identify and brief that exception in their opening brief. Appellants may not invoke preservation exceptions for the first time in the reply brief.

We recognize that in prior decisions applying Rule 6.02(a)(5), the court mentioned that the appellants had failed to invoke any preservation exceptions in their opening or reply briefs. See *State v. Ochoa-Lara*, 312 Kan. 446, 448, 476 P.3d 791 (2020) ("Ochoa-Lara chose not to submit a reply brief to respond to the State's preservation argument."); *Godfrey*, 301 Kan. at 1044 ("[A]fter the State raised a lack of preservation in its brief, Godfrey failed again to proffer any reason why this court should hear his claim in a reply brief."). But in these cases, the court was simply emphasizing that the appellants had utterly failed to explain why an unpreserved issue warranted review. It was not sanctioning the practice of first raising preservation exceptions in the reply brief.

Our conclusion that appellants must brief preservation exceptions in the opening brief should come as no surprise. For over a decade now, we have been clear that parties who fail to strictly comply with Rule 6.02(a)(5) do so at their own peril. See *State v. Williams*, 298 Kan. 1075, 1085, 319 P.3d 528 (2014); see also *Godfrey*, 301 Kan. at 1043 ("We have recently reiterated [in *Williams*] that Rule 6.02[a][5] means what it says and is ignored at a litigant's own peril."). We require strict adherence for a good reason—Rule 6.02(a)(5) encourages sound appellate practices.

Schutt v. Foster

First, it ensures that the parties fully develop the basis for appellate review. "Appellate courts cannot be left to divine the preservation argument a party might assert or the reasons a party might believe preservation is not required." *Ochoa-Lara*, 312 Kan. at 449. Requiring appellants to brief preservation issues in their opening brief ensures that both parties fully develop those issues.

Second, the requirement promotes fairness. If a party waits until its reply brief to invoke an exception to the preservation rule, then the opposing party is left with no opportunity to respond. Our rules do not contemplate further briefing after an appellant's reply brief. See Rule 6.01(b).

2. *Foster failed to comply with Rule 6.02(a)(5) because she did not invoke any preservation exceptions until her reply brief.*

Foster's opening brief failed to conform with Rule 6.02(a)(5). She did not challenge the late-fee provision as unconscionable at the district court level. So Foster needed to brief an exception to the preservation rule in her opening brief. She did not. Foster waited until the reply brief to argue that preservation exceptions applied to this issue. This practice fails to comply with the rule.

Foster counters that she did comply with Rule 6.02(a)(5) in her opening brief. She offers two explanations. But neither persuades us that her brief complied with the rule.

First, Foster notes that her opening brief complied with the rule because it included a pinpoint cite to where the district court awarded Schutt \$21,240 in late fees. See Rule 6.02(a)(5) (2025 Kan. S. Ct. R. at 36) ("Each issue must begin with . . . a pinpoint reference to the location in the record on appeal where the issue was raised and ruled on."). But to comply with the rule, Foster needed to include pinpoint cites to the record showing where she raised the unconscionability challenge below and where the district court ruled on it. This did not happen because she did not raise the unconscionability issue below.

Second, Foster asserts that she could not have challenged the late-fee provision as unconscionable in district court because

Schutt v. Foster

Schutt did not specifically request \$21,240 in late fees and the district court did not award this amount until it entered the final judgment. The premise of Foster's argument is questionable. The panel held that Schutt's petition requested ongoing late fees, and Foster did not cross-appeal from this holding. But even if we accept the premise, Foster simply tries to explain why she waited until her appeal to raise the unconscionability challenge. This does not explain why the issue is properly before the appellate court as required by Rule 6.02(a)(5). See *Ochoa-Lara*, 312 Kan. at 449 ("A party fails to satisfy the requirements of Rule 6.02[a][5] by implicitly raising an argument as to why an issue is preserved.").

Foster's reliance on *Russell v. Treanor Investments*, 311 Kan. 675, 466 P.3d 481 (2020), does not alter this conclusion. In *Russell*, the appellant cited the record where the district court raised an issue on its own initiative and ruled on it. We held that the appellant complied with Rule 6.02(a)(5) because it requires only that the appellant cite to where the issue was raised and ruled on—it does not require the appellant to be the party that raised the issue. 311 Kan. at 682. But here, the district court neither raised nor ruled on the unconscionability issue. So *Russell* does not apply.

In sum, the panel abused its discretion by reaching the merits of Foster's unconscionability claim. Foster raised that claim for the first time on appeal. But she did not explain in her opening brief why the issue was properly before the Court of Appeals as required by Rule 6.02(a)(5). In failing to do so, Foster waived and abandoned any argument that an exception to the preservation rule applied to her issue. And she could not cure this deficiency in the reply brief. The panel's reliance on the preservation exceptions that Foster first raised in her reply is inconsistent with Rule 6.02(a)(5) and constitutes an error of law. Because the panel erred by reaching Foster's unconscionability claim, we need not consider Schutt's other claims of error.

Judgment of the Court of Appeals reversing the district court in part is reversed, and its opinion is vacated. Judgment of the district court is affirmed.

WILSON, J., not participating.

Washburn South Apartments v. Hession

(570 P.3d 1268)

No. 126,456

WASHBURN SOUTH APARTMENTS LLC, *Appellee*, v.
KIA HESSION, *Appellant*.

SYLLABUS BY THE COURT

1. **LANDLORD AND TENANT—*Act Defines Duties of Tenants and Landlords in Residential Leases—Requirement of Habitable Housing.*** The Kansas Residential Landlord and Tenant Act, K.S.A. 58-2540 et seq., defines the legal duties of tenants and landlords in residential leases, regardless of the terms of a rental agreement. Among other duties, a landlord must provide habitable housing—that is, the landlord must reasonably maintain any common areas, provide a housing unit that complies with all material health and safety codes, and ensure that the housing unit is generally safe with adequate electricity, plumbing, sanitation, heat, and ventilation.
2. **SAME—*Legal Duty to Provide Habitable Housing under Act—Cannot Be Waived.*** Although Kansas law permits landlords to contractually shift some of their duties to tenants in limited circumstances, the legal duty to provide habitable housing—codified in K.S.A. 58-2553(a)(1) through (3)—may not be delegated or waived.
3. **SAME—*Breach of Duty Claim Raises Breach of Warranty Claim—Damages May Be Recovered by Tenant.*** A tenant claiming a landlord has breached its duty to provide habitable housing raises a breach-of-warranty claim and may recover damages suffered due to the breach. The primary measure of damages is the difference between the fair rental value of the apartment and the amount the tenant paid. The tenant may also recover consequential damages that arose from the breach or damages that may reasonably be assumed to have been within the contemplation of both parties as the probable result of the breach.
4. **SAME—*Statute Permits Landlord to Terminate Rental Agreement if Rent Not Paid—Three Days' Grace Period.*** When a tenant has not paid their monthly rent, K.S.A. 58-2564(b) permits a landlord to terminate a rental agreement after providing a written notice to the tenant of the deficiency and allowing the tenant to pay the missed rent within three days.
5. **SAME—*Rental Agreement Includes Requirement of the Act—Contract between Landlord and Tenant.*** A rental agreement for a residential housing unit is a contract between the landlord and tenant that includes—either implicitly or explicitly—the requirements of the Residential Landlord and Tenant Act. A violation of the Act is both a statutory violation and a breach of contract.

Washburn South Apartments v. Hession

6. **CONTRACTS—*Duty of Good Faith for Each Party to Perform Contractual Obligations—Breach of Duty of Good Faith.*** There is an implicit duty in every contract for each party to perform their contractual obligations in good faith. This duty of good faith means, among other things, that a party will not intentionally or purposely do anything to prevent another party from carrying out their obligations under the agreement. As a corollary, a party to a contract may not refuse to permit another person to perform their obligations and later claim that the person has breached the agreement through that nonperformance. Whether the duty of good faith has been breached and whether that breach caused damage to another contracting party are questions of fact.

Appeal from Shawnee District Court; DIANE GLYNN, judge pro tem. Submitted without oral argument. Opinion filed June 6, 2025. Reversed and remanded with directions.

Rebekah Gaston, of Kansas Holistic Defenders, of Lawrence, for appellant.

No appearance by appellee.

Before ISHERWOOD, P.J., WARNER and HURST, JJ.

WARNER, J.: Most residential leases in Kansas are governed by the Kansas Residential Landlord and Tenant Act (commonly called the RLTA). See K.S.A. 58-2540 et seq. The RLTA establishes rights and responsibilities of landlords and tenants that cannot be waived by a rental contract. For example, tenants must comply with applicable health and safety ordinances and keep their housing unit reasonably safe and clean. See K.S.A. 58-2555. And landlords must provide housing that meets minimum habitability requirements, meaning the housing must comply with applicable building and housing codes affecting health and safety. See K.S.A. 58-2553(a).

This case arises at the intersection of a landlord's legal duty to provide habitable housing and a tenant's contractual duty to pay their rent. In 2022, Kia Hession was renting an apartment from Washburn South Apartments in Topeka. Hession did not make her monthly rent payment in October 2022. Later that month, Washburn South filed this lawsuit seeking to evict her and recover the past-due rent. Hession counterclaimed, arguing her apartment did not meet minimum habitability requirements and asserting this case was filed in retaliation for Hession's communications regard-

Washburn South Apartments v. Hession

ing the apartment's condition with the City of Topeka and a housing-assistance program.

After an abbreviated trial, the court ruled in Washburn South's favor, finding Hession owed her unpaid rent plus interest. (Hession had moved out of the apartment while the case was pending.) Hession appeals, arguing the court's judgment was based on incorrect interpretations of the RLTA. After carefully reviewing the record, we agree with Hession that the court's ruling was based on errors of law. We therefore reverse the trial court's judgment and remand the case for a new trial.

FACTUAL AND PROCEDURAL BACKGROUND

Hession and her one-year-old daughter moved into an apartment at Washburn South in November 2019 and lived there for three years. On June 8, 2022, Hession renewed her lease for one year. The new lease stated that Hession would pay Washburn South monthly rent of \$550, due the first day of each month. The lease also stated that Hession accepted her apartment "as is."

Hession's rent was subsidized through the Shelter Plus Care housing-assistance program. In August 2022, the program notified Hession that it was terminating its assistance voucher at the end of September because Hession's apartment did not meet the program's minimal habitability standards. Hession had 38 days after receiving notice of the voucher's termination to find a new apartment that would accept a voucher or lose access to that assistance. But she was unable to find another suitable apartment before the end of September and was also unable to pay the monthly rent to Washburn South by October 1 on her own.

On October 4, Washburn South posted a notice on Hession's apartment door that she must pay her rent or vacate the apartment in three days, or else be evicted from the apartment. Two days later, a representative from Doorstep (a local nonprofit organization) contacted Washburn South with questions about how it could pay Hession's rent. Washburn South's property manager, Crystal Orcutt, told the representative that the apartment complex would not accept the payment. Hession did not otherwise pay the rent within three days of the notice, but she remained in the apartment.

On October 17, Washburn South petitioned to evict Hession

Washburn South Apartments v. Hession

and collect the unpaid rent. Hession filed a written answer to the petition. She noted that the Doorstep representative had attempted to pay her October rent within the three-day period covered by the apartment complex's notice, but Washburn South had rejected the offer of payment. Hession also asserted two counterclaims: first, that Washburn South violated the RLTA by breaching its warranty of habitability under K.S.A. 58-2553 and second, that Washburn South's attempt to evict Hession was in retaliation for Hession reporting code violations to the City of Topeka—a violation of K.S.A. 58-2572. About two months later, the apartment complex filed an answer denying Hession's allegations.

The trial

The court scheduled a bench trial for the eviction case on December 27, 2022. Hession moved out of the apartment weeks before the trial date. The day of the trial, the court consulted with the parties to see whether they wished to proceed with their claims since Hession was no longer living at Washburn South. After a few minutes of discussion, Hession indicated that she would like to proceed with a hearing that day on the remaining issues in the case—whether and to what extent any rent was owed by Hession and whether she had suffered and was entitled to damages under the RLTA.

Washburn South's property manager, Orcutt, testified that Hession renewed her lease agreement on June 8, 2022, at a monthly rate of \$550, due the first of each month. She stated that Hession did not pay the October rent, and so Orcutt posted the three-day notice to Hession's door on October 4. Orcutt acknowledged that someone from Doorstep contacted her on October 6 to pay Hession's October rent, but she stated that she told the representative that Washburn South was "going through evictions and not accepting payment from Ms. Hession." The judge asked Orcutt whether she would have accepted any rent payment from Hession before October 7, and Orcutt replied that the owner of the apartment complex had instructed her not to accept any payment from Hession.

Hession's witnesses focused on the state of her apartment and the steps she had taken to mitigate some of her health and safety

Washburn South Apartments v. Hession

concerns. Nathan Dykeman, a code enforcement inspector for the City of Topeka, and Greg McGivern, a housing inspector with the Shelter Plus Care housing-assistance program, both testified about the deficiencies they found when they inspected the apartment in the summer of 2022:

- Dykeman inspected Hession's apartment in June and August. He found several code violations during his June inspection and summarized these in a letter to Hession and Washburn South. The letter included 8 categories of violations and 27 photographs showing the deficiencies. Dykeman testified that when he returned in August, several of the code violations remained unchanged, and he observed no indication that anyone had attempted to address them.
- McGivern conducted an inspection of Hession's apartment in July and found several conditions that violated the standards set by Shelter Plus for rental assistance. For example, the front door was damaged and not operating properly, and the front window was taped together. McGivern detailed his findings in a letter to Washburn South and Hession. When McGivern returned for a follow-up inspection in August, none of these issues had been fixed.

Hession also testified, describing multiple issues that arose during the three years she lived at Washburn South. These issues included:

- Leaking water and mold in the bathroom,
- Excessive moisture in the air,
- Wet and dirty carpet,
- Holes in the floorboards,
- Cracks in the windows, and
- Significant insect infestation.

Hession had reported these issues to Washburn South, submitting 8 written and 12 verbal reports. Hession testified that maintenance staff would come and look at the items needing repairs, but no one came back to make the repairs or follow up with Hession. She stated that she complained to the City of Topeka, the Shelter

Washburn South Apartments v. Hession

Plus Care housing-assistance program, and the Department of Housing and Urban Development about these issues and Washburn South's lack of responsiveness.

Hession testified that when Washburn South did not address these issues, she purchased several different cleaning products—shampoos, vacuums, and cleaning solutions—to address the carpet problems. Hession explained that she had to clean each section of carpet in her apartment once or twice per month and when she did so, the water released from the carpet was a dark gray color and smelled bad. Needing a fix that did not require time-consuming cleaning, Hession purchased rugs to cover the carpet so her daughter did not have to crawl on the dirty floor. She also purchased a dehumidifier to reduce the excessive moisture level in the air. And she bought plastic containers to store the clothing for her and her daughter to prevent it from taking on the odor of the apartment. Hession testified that she believed the apartment's condition warranted no more than \$200 per month in rent.

Before Hession concluded her testimony, the court asked if Hession had given a 14-30 day notice to the landlord—a formal notice that she would be dissolving the lease if the landlord did not cure these conditions. Hession responded that she never provided any formal notices of these conditions to Washburn South. The court indicated that this did not prevent her from bringing her counterclaim, but it found that Hession could only assert a claim for damages that was "tied to the lease that is related to this eviction" for the rental period beginning June 8, 2022.

The end of the trial and the court's ruling

During Hession's testimony, the court became concerned that Hession's trial was taking too long given the other hearings scheduled for that day. The court told the parties that the trial had taken more than 90 minutes, and there were "14 more trials waiting in the hallway." Hession's lawyer suggested that the parties could finish presenting their evidence another day, but the court rejected that suggestion. After Washburn South concluded its cross-examination of Hession, the trial court ended the hearing "[i]n the interest of time." The court thus did not allow Hession's attorney any

Washburn South Apartments v. Hession

redirect examination and did not allow either party a closing argument or to provide an oral or written summation of the legal claims.

The court found that Hession owed Washburn South \$1,011.94 plus interest—the full amount requested by the apartment complex. The court then ruled against Hession on each of her counterclaims:

- The court found that Hession could not prevail on her claim that the apartment was uninhabitable, as she "knew the circumstances" and the condition of the apartment when she renewed her lease in June 2022 and took the apartment "as is." (The court indicated that the rental agreement stated Hession took the apartment "as is," but that agreement is not included in the record.) The court also found that Hession had not provided any "admissible evidence" of damages relating to the habitability of the apartment.
- The court found that the Doorstep representative had not tried to make an actual payment—but rather asked how that payment should be made—so Hession had not shown that Washburn South declined any payment between October 4 and October 7. And it found that whether Washburn South had wrongfully sought to evict her was moot because she had since moved out of the apartment.
- The court found that there was no evidence that Washburn South retaliated against Hession based on her previous reports to the City or to Shelter Plus regarding the state of the apartment. The court indicated that Hession had an obligation to show that Washburn South retaliated by either "increasing the rent or decreasing services," and she had not done so.

Hession appeals.

DISCUSSION

The RLTA governs the relationship between landlords and tenants in residential housing in this state. The RLTA codifies sev-

Washburn South Apartments v. Hession

eral substantive rights and responsibilities of landlords and tenants, defines when either party to a rental agreement may end that lease, and defines when and how a landlord may evict a tenant from a housing unit. This appeal concerns two of the RLTA's provisions:

- K.S.A. 58-2553(a) states that a landlord has a legal duty to provide housing that meets minimal habitability requirements; and
- K.S.A. 58-2564(b) states that a landlord must give a tenant three days to pay any unpaid rent before evicting them from a housing unit.

The trial court found that these provisions had no bearing on Hession's case, and Hession now challenges several aspects of that ruling. She claims the court erred when it concluded that the rental agreement's statement that Hession was leasing the apartment "as is" relieved Washburn South of its legal duty to provide habitable housing under K.S.A. 58-2553(a). Hession also asserts that the court's finding that she had not paid her October rent within three days of receiving the eviction notice was unsupported by the record, as the apartment manager testified that the owner would not accept any payment offered on Hession's behalf. Lastly, Hession claims that the court's decision to cut the trial short—not allowing any redirect examination by her attorney in presenting her counterclaims or closing argument—violated her right to due process of law. Washburn South remains a party to this appeal but did not file a brief.

After carefully reviewing the record and Hession's arguments, we agree that the trial court's ruling was based on incorrect interpretations of K.S.A. 58-2553(a) and K.S.A. 58-2564(b). We thus reverse the judgment for Washburn South and remand for a new trial consistent with this opinion.

1. *The landlord's legal duty to provide habitable housing under K.S.A. 58-2553(a)(1) through (3) may not be waived by a rental agreement.*

The RLTA establishes legal duties of every tenant and landlord in a residential lease, regardless of the terms of the rental

Washburn South Apartments v. Hession

agreement. Relevant here, the RLTA requires a landlord to reasonably maintain any common areas, to provide housing that complies with all material health and safety codes, and to ensure that the housing is generally safe with adequate electricity, plumbing, sanitation, heat, and ventilation. K.S.A. 58-2553(a)(1)-(3); *O'Neill v. Dunham*, 41 Kan. App. 2d 540, Syl. ¶ 6, 203 P.3d 68 (2009).

Although Kansas law permits landlords to contractually shift some of their duties to tenants in limited circumstances, the duties listed in K.S.A. 58-2553(a)(1) through (3) may not be delegated or waived. See K.S.A. 58-2549; *Joe v. Spangler*, 6 Kan. App. 2d 630, 632, 631 P.2d 1243 (1981); see also K.S.A. 58-2553(b) (noting that sections [a][4] and [a][5] may be contractually delegated to the tenant if the landlord acts in good faith and not for the purpose of evading responsibilities under the Act). Courts describe these nondelegable responsibilities as the duty to provide habitable housing. See *Love v. Monarch Apartments*, 13 Kan. App. 2d 341, 345, 771 P.2d 79 (1989).

K.S.A. 58-2559 provides tenants with two remedies when a landlord breaches this legal duty: terminating the rental agreement (K.S.A. 58-2559[a]) and recovering damages caused by the landlord's breach (K.S.A. 58-2559[b]). These remedies may be pursued collectively or individually. See K.S.A. 58-2559(b). A tenant who seeks to end the lease can only do so 30 days after they have provided a written notice to the landlord detailing the deficiencies and the landlord has not made a good-faith effort to repair or otherwise address the situation within 14 days. See K.S.A. 58-2559(a). But these formal notice requirements relating to lease termination do not apply to or otherwise restrict a tenant's ability to seek damages for a landlord's actions under K.S.A. 58-2559(b). See *Love*, 13 Kan. App. 2d at 345.

Hession argued in her answer and counterclaims that Washburn South breached its legal duty by providing an apartment that violated several aspects of the Topeka building code. At the trial, the inspectors for the City and the Shelter Plus Care housing-assistance program described the dismal state of the apartment where Hession had lived. Washburn South did not dispute these accounts, though it pointed out Hession had not provided the 14-30 day notice in K.S.A. 58-2559(a) necessary to terminate the

Washburn South Apartments v. Hession

rental agreement.

In its ultimate ruling, the trial court correctly noted that the absence of a written notice only prevented Hession from terminating the rental agreement, not from pursuing her counterclaim for damages or offsetting any damages claimed by Washburn South. Yet the court found that Hession had waived these code violations and the apartment's other habitability problems when she renewed her lease in June 2022, emphasizing that the lease stated that Hession was accepting the apartment "as is." The court also found that Hession had offered "no admissible evidence" of damages she incurred due to the apartment's condition.

Hession challenges both conclusions. She notes that Kansas law does not permit landlords to delegate their responsibilities to provide housing that meets minimum habitability standards. And she asserts that she offered evidence of compensable damages suffered from the landlord's breach of that duty. We agree.

First, Kansas law does not allow a landlord to delegate or shift its legal duty to provide a residence that meets basic habitability standards. The RLTA unequivocally states that "[a] rental agreement . . . may not permit the receipt of rent free of the obligation to comply with subsection (a) of K.S.A. 58-2553"—the landlord's duty to provide habitable housing. K.S.A. 58-2549. Rental agreements may not waive legal rights of remedies under the RLTA unless that waiver is explicitly permitted by the Act's provisions. K.S.A. 58-2547(a); see, e.g., K.S.A. 58-2553(b) (allowing some landlords to contractually shift obligations in K.S.A. 58-2553[a][4] and [5] in certain circumstances). In other words, the duty to provide habitable housing is not waived even when a tenant "had prior knowledge of the defects" of the residence. *Span- gler*, 6 Kan. App. 2d at 632.

Thus, the trial court erred when it found that Hession had waived any objection to the state of the apartment when she renewed her lease in June 2022. Kansas law does not allow Washburn South to contract away its legal obligations under the RLTA to provide habitable housing. And any effort by Washburn South to shrug that obligation via its rental agreement is void and unenforceable. See K.S.A. 28-2547(b).

Washburn South Apartments v. Hession

This error manifested in at least two ways in the court's ultimate ruling: The court erroneously concluded that Hession was precluded from asserting her defense and counterclaims that Washburn South had breached its duties under the RLTA. And the court erroneously found that it could not consider any evidence of Washburn South's breach of its duty to provide habitable housing before Hession renewed her lease in June 2022. These incorrect conclusions, rooted in a legal error, permeate the court's evaluation of both Washburn South's claim for damages and Hession's counterclaims.

Second, the trial court's alternative conclusion that Hession had not provided *any* evidence of damages is not supported by the record. The court found that Hession had provided "no admissible evidence" of damages, emphasizing at the trial that the court believed it "need[ed] to see money to be able to actually award damages." And it noted that although Hession had provided some receipts for purchases she had made before she renewed her lease, the court would not consider that evidence. In the end, the court explained that K.S.A. 58-2572(a) requires a tenant to show that their landlord retaliated against them "by increasing rent or decreasing services," and found that Hession had not provided any evidence of either action.

Kansas courts have long recognized that a tenant who claims a landlord has breached its duty to provide habitable housing raises a contractual breach-of-warranty claim and may recover damages suffered due to the breach. *Steele v. Latimer*, 214 Kan. 329, Syl. ¶ 9, 521 P.2d 304 (1974); see *Love*, 13 Kan. App. 2d at 345-46. The primary measure of damages is the difference between the fair rental value of the deficient apartment and the amount the tenant actually paid. See 13 Kan. App. 2d at 345-46. The tenant may also recover consequential damages that arose "from the breach itself," or damages that "may reasonably be assumed to have been within the contemplation of both parties as the probable result of the breach." 13 Kan. App. 2d at 346.

Hession offered evidence that she suffered damages from living in the dilapidated apartment. She testified that she believed that her current apartment could only be rented for \$200 per month—\$350 per month under the amount required by her rental

Washburn South Apartments v. Hession

agreement. Cf. *In re Acquisition of Property by Eminent Domain*, 299 Kan. 37, 46, 320 P.3d 955 (2014) (property owner may testify to the fair market value of property if they explain their rationale and demonstrate it is reasonable). Hession also described consequential damages she claimed to have suffered—she was required to purchase multiple rugs and cleaning supplies to try to provide a habitable space for herself and her daughter. And, Hession argues, the landlord's refusal to address the condition of the apartment caused her to lose the housing assistance that had allowed her to afford to live there in the first place.

The trial court did not state that it found this testimony unreliable, nor did it state that it found the evidence unpersuasive. Instead, it ruled that Hession had offered "no admissible evidence" of her damages—a conclusion that is unsupported by the record. Again, this error undermines the trial court's ruling and requires a new trial.

2. *Refusing to accept a rental payment offered on Hession's behalf during the three-day window in K.S.A. 59-2564(b) raises a factual question whether the landlord was carrying out its duties under the RLTA in good faith.*

Hession next argues that the trial court misinterpreted K.S.A. 58-2564(b) when it found Washburn South did not breach its duties under the RLTA by refusing to accept a payment on Hession's behalf before initiating its eviction action. Though we have already concluded that we must reverse and remand the trial court's judgment, consideration of this question is necessary to help constrain the issues and arguments during the next trial.

The facts underlying Hession's argument are largely undisputed. Washburn South posted a notice at Hession's apartment on October 4, indicating she had three days to pay her October rent or an eviction case would be filed against her. On October 6, a representative from Doorstep contacted the property manager about paying Hession's rent. The property manager informed the representative that Washburn South would not accept any payment of Hession's rent. At trial, the court asked the property manager whether she would have accepted any payment of rent during that three-day period; the property manager responded that the

Washburn South Apartments v. Hession

owner of the apartments had instructed her not to accept any payment and to move forward with an eviction action.

Hession asserts that her October rent would have been paid by Doorstep if the property manager had not thwarted Doorstep's payment attempt. In other words, the apartment complex refused an offer of rent—and never intended to accept any rent—on Hession's behalf. Hession asserts that Washburn South was using K.S.A. 58-2564(b)'s notice requirements as a box to be checked rather than a genuine window to allow Hession to cure her missed payment. The trial court found that no payment had been made, and even if it had, whether Washburn South could evict Hession was moot because she had moved out of the apartment by the time of the trial.

K.S.A. 58-2564 establishes when and under what conditions a landlord may terminate a rental agreement—outlining the steps that must be taken before an eviction case is filed. When a tenant has not paid their rent, a landlord may terminate a rental agreement after the landlord provides a written notice to the tenant of the deficiency and allows three days for the tenant to pay the outstanding rent. K.S.A. 58-2564(b). A landlord who unconditionally accepts late rent waives the right to take any action for that breach. See K.S.A. 58-2566. But if a tenant does not pay the rent within three days of receiving the notice, the rental agreement is dissolved, and the landlord may take additional legal action—such as filing a lawsuit to seek possession of the residence or damages from the tenant's breach. See K.S.A. 58-2568; see also K.S.A. 61-3803 (landlord may file an eviction action after providing 72 hours' notice that the tenant must leave the premises).

Hession's rent was not paid between October 4—when Washburn South posted its notice—and October 7. Washburn South correctly pointed out at trial that the language of K.S.A. 58-2564(b) does not include any wiggle room in the payment deadline. But Hession asserts that it would be inequitable to allow a landlord to thwart a genuine effort to make a rent payment and then proceed with an eviction action.

A rental agreement is a contract between the landlord and tenant that includes—either implicitly or explicitly—the require-

Washburn South Apartments v. Hession

ments of the RLTA. See K.S.A. 58-2547(a) (noting a rental agreement may not seek to waive the requirements of the RLTA); see also *Clark v. Walker*, 225 Kan. 359, 363-64, 590 P.2d 1043 (1979) (discussing the origin and broad application of the RLTA). But see K.S.A. 58-2541 (listing specific residential leases to which the RLTA does not apply). Thus, a violation of the RLTA is both a statutory violation and a breach of contract. *Love*, 13 Kan. App. 2d at 345-46.

There is an implicit duty in every contract for each party to perform their contractual obligations in good faith. *Waste Connections of Kansas, Inc. v. Ritchie Corp.*, 296 Kan. 943, 965, 298 P.3d 250 (2013). This duty of good faith means, among other things, that a party will not intentionally or purposely do anything to prevent another party from carrying out their obligations under the agreement. As a corollary, a party to a contract may not refuse to permit another person to perform their obligations and later claim that the person has breached the agreement through that nonperformance. *Bonanza, Inc. v. McLean*, 242 Kan. 209, 222, 747 P.2d 792 (1987). Whether the duty of good faith has been breached and whether that breach caused damage to another contracting party are questions of fact. See *Waste Connections*, 296 Kan. at 965.

The trial court's questions to the property manager during her testimony demonstrated a recognition that parties to residential leases, like other contracts, have a duty to act in good faith. But the court made no findings as to whether Washburn South had breached that duty by refusing Doorstep's offer of rent on October 6, essentially concluding Hession had not been damaged by the filing of the eviction since she later left the premises. But this conclusion failed to appreciate Hession's other arguments—that the eviction action itself was wrongful and pursued as retaliation for the actions taken by the City and Shelter Plus regarding the health and safety concerns at the apartment complex. Hession asserts that Washburn South made the filing of this lawsuit possible when it refused to accept any payment on her behalf in October 2022; before that time, Hession was current on her rent payments.

Our review of the record is consistent with Hession's characterization of these events. The trial court found that Hession had

Washburn South Apartments v. Hession

not been damaged by Washburn South's refusal to accept any October rent payment offered on her behalf while also finding that Hession's retaliation counterclaim was precluded by her failure to pay that rent. Thus, the trial court's judgment was the result of circular analysis—refusing to consider the reason why Hession's October rent was not paid but relying on that nonpayment to deny her retaliation counterclaim—and was based on an incomplete assessment of the law and evidence.

To address these concerns on remand, the trial court should consider (1) whether Washburn South would have accepted any payment made on Hession's behalf before October 7, (2) whether Washburn South prevented Doorstep from making payments on Hession's behalf or refused an offer of payment, and (3) whether Washburn South was retaliating against Hession's complaints to the City and Shelter Plus.

3. *Because we remand this case for a new trial, we need not consider Hession's remaining due-process argument.*

In her final claim on appeal, Hession argues that the way the court concluded the trial violated her constitutional right to due process of law. She points out that the court, realizing it was pressed for time because several other trials were scheduled that day, abruptly cut the hearing short. In doing so, the court did not allow Hession's counsel any redirect examination of Hession—even though she had asserted counterclaims against Washburn South and had the burden to prove and persuade the court as to her assertions. The court also did not allow closing arguments regarding the parties' claims or counterclaims—it merely announced its ruling from the bench once Hession left the stand. According to Hession, these actions collectively deprived her of her right to procedural due process, which requires an opportunity to be heard "at a meaningful time and in a meaningful manner." See *In re J.D.C.*, 284 Kan. 155, 166, 159 P.3d 974 (2007).

When a person's due-process rights have been violated, the appropriate remedy is to reverse the resultant judicial action and remand for a new hearing that provides the appropriate procedural safeguards. See *In re J.O.*, 43 Kan. App. 2d 754, 763, 232 P.3d

Washburn South Apartments v. Hession

880 (2010). Here, we have already determined that we must reverse the trial court's judgment and remand the case for a new trial. Thus, consideration of Hession's procedural challenge is unnecessary and would have no practical effect on the outcome of this appeal.

But before closing, we pause to comment on the consequences of these truncated trial procedures. Regardless of whether the court's trial procedure fell short of the duty to provide a meaningful opportunity to be heard, many of the errors in this case could have been avoided if the trial had not ended in such an abrupt manner and without the benefit of written or oral legal arguments from the parties.

We acknowledge that the court had scheduled several trials on its docket the afternoon that Hession's trial took place, and that this is often a necessary practice to meet aggressive timelines for eviction cases set by Kansas statutes. See, e.g., K.S.A. 61-3805 (summons in an eviction case must provide a date the tenant must file an answer or appear at an answer docket, and this date must be 3 to 14 days after the petition was filed); K.S.A. 2024 Supp. 61-3807(a) (court should conduct the eviction trial within 14 days after the date listed in the summons). The trial court here was in a difficult spot, needing to balance the need for a full evidentiary hearing with other competing considerations.

But this bind was not inevitable. The court recognized at the outset of the trial that these tight deadlines were no longer binding, as Hession had moved to a different residence. The court was aware that this case involved counterclaims and testimony from multiple witnesses. Before the start of trial, the court consulted with the parties, who ultimately opted to proceed rather than continue the case to a different date. But it is clear from the record that the court remained concerned about the other trials scheduled for that day. And it is the court—not the parties—that has ultimate control over its docket. See *Holt v. State*, 290 Kan. 491, 498, 232 P.3d 848 (2010).

A court should, to the extent practicable, schedule time for a trial that allows the court to consider the claims and counterclaims presented. Here, in an effort to conduct the trial in a condensed manner so it could hear other scheduled cases, the court issued a

Washburn South Apartments v. Hession

ruling based on an incorrect interpretation and application of K.S.A. 58-2553(a) and K.S.A. 58-2564(b). And now that case must be retried. We reverse the district court's judgment and remand for a new trial, consistent with the law discussed in this opinion.

Reversed and remanded with directions.

2025 Kansas Statutes

50-623. Kansas consumer protection act; purpose; construction. This act shall be construed liberally to promote the following policies:

- (a) To simplify, clarify and modernize the law governing consumer transactions;
- (b) to protect consumers from suppliers who commit deceptive and unconscionable practices;
- (c) to protect consumers from unbargained for warranty disclaimers; and
- (d) to provide consumers with a three-day cancellation period for door-to-door sales.

History: L. 1973, ch. 217, § 1; L. 1974, ch. 230, § 1; L. 1976, ch. 236, § 1; July 1.

2025 Kansas Statutes

50-624. Definitions. As used in this act:

- (a) "Agricultural purpose" means a purpose related to the production, harvest, exhibition, marketing, transportation, processing or manufacture of agricultural products by a consumer who cultivates, plants, propagates or nurtures the agricultural products. "Agricultural products" includes agricultural, horticultural, viticultural, and dairy products, livestock, wildlife, poultry, bees, forest products, fish and shellfish, and any products thereof, including processed and manufactured products, and any and all products raised or produced on farms and any processed or manufactured products thereof.
- (b) "Consumer" means an individual, husband and wife, sole proprietor, or family partnership who seeks or acquires property or services for personal, family, household, business or agricultural purposes.
- (c) "Consumer transaction" means a sale, lease, assignment or other disposition for value of property or services within this state, except insurance contracts regulated under state law, to a consumer; or a solicitation by a supplier with respect to any of these dispositions. "Consumer transaction" does not include the disposition of repossessed collateral by any supplier that is subject to and compliant with any state or federal law or rules and regulations with regard to disposition of such repossessed collateral.
- (d) "Family partnership" means a partnership in which all of the partners are natural persons related to each other, all of whom have a common ancestor within the third degree of relationship, by blood or by adoption, or the spouses or the stepchildren of any such persons, or persons acting in a fiduciary capacity for persons so related.
- (e) "Final judgment" means a judgment, including any supporting opinion, that determines the rights of the parties and concerning which appellate remedies have been exhausted or the time for appeal has expired.
- (f) "Lender" means a bank, savings and loan association, savings bank, credit union, finance company, mortgage bank, mortgage broker and any affiliate.
- (g) "Merchantable" means, in addition to the qualities prescribed in K.S.A. 84-2-314, and amendments thereto, in conformity in all material respects with applicable state and federal statutes and regulations establishing standards of quality and safety.
- (h) "Mortgage trigger lead" means a consumer report obtained pursuant to section 604(c)(1)(B) of the federal fair credit reporting act, 15 U.S.C. § 1681b, where the issuance of the report is triggered by an inquiry made with a consumer reporting agency in response to an application for credit. Any consumer report on an applicant obtained by a lender with whom the applicant has initially applied for credit or who holds or services an existing extension of credit of the applicant who is the subject of the report is not considered a mortgage trigger lead.
- (i) "Person" means any individual, corporation, government, governmental subdivision or agency, business trust, estate, trust, partnership, association, cooperative or other legal entity.
- (j) "Property" includes real estate, goods and intangible personal property.
- (k) "Services" includes:
 - (1) Work, labor and other personal services;
 - (2) privileges with respect to transportation, hotel and restaurant accommodations,

education, entertainment, recreation, physical culture, hospital accommodations, funerals and cemetery accommodations; and

(3) any other act performed for a consumer by a supplier.

(l) "Supplier" means a manufacturer, distributor, dealer, seller, lessor, assignor, or other person who, in the ordinary course of business, solicits, engages in or enforces consumer transactions, whether or not dealing directly with the consumer.

History: L. 1973, ch. 217, § 2; L. 1974, ch. 230, § 2; L. 1976, ch. 236, § 2; L. 1983, ch. 179, § 1; L. 1991, ch. 159, § 1; L. 2001, ch. 49, § 1; L. 2005, ch. 22, § 1; L. 2009, ch. 67, § 1; L. 2019, ch. 66, § 14; July 1.

2025 Kansas Statutes

50-625. Waiver; agreement to forego rights; settlement of claims. (a) Except as otherwise provided in this act, a consumer may not waive or agree to forego rights or benefits under this act.

(b) A claim, whether or not disputed, by or against a consumer may be settled for less value than the amount claimed.

(c) A settlement in which the consumer waives or agrees to forego rights or benefits under this act is invalid if the court finds the settlement to have been unconscionable at the time it was made. The competence of the consumer, any deception or coercion practiced upon the consumer, the nature and extent of the legal advice received by the consumer, and the value of the consideration are relevant to the issue of unconscionability.

History: L. 1973, ch. 217, § 3; January 1, 1974.

2025 Kansas Statutes

50-626. Deceptive acts and practices. (a) No supplier shall engage in any deceptive act or practice in connection with a consumer transaction.

(b) Deceptive acts and practices include, but are not limited to, the following, each of which is hereby declared to be a violation of this act, whether or not any consumer has in fact been misled:

(1) Representations made knowingly or with reason to know that:

(A) Property or services have sponsorship, approval, accessories, characteristics, ingredients, uses, benefits or quantities that they do not have;

(B) the supplier has a sponsorship, approval, status, affiliation or connection that the supplier does not have;

(C) property is original or new, if such property has been deteriorated, altered, reconditioned, repossessed or is second-hand or otherwise used to an extent that is materially different from the representation;

(D) property or services are of particular standard, quality, grade, style or model, if they are of another which differs materially from the representation;

(E) the consumer will receive a rebate, discount or other benefit as an inducement for entering into a consumer transaction in return for giving the supplier the names of prospective consumers or otherwise helping the supplier to enter into other consumer transactions, if receipt of benefit is contingent on an event occurring after the consumer enters into the transaction;

(F) property or services has uses, benefits or characteristics unless the supplier relied upon and possesses a reasonable basis for making such representation; or

(G) use, benefit or characteristic of property or services has been proven or otherwise substantiated unless the supplier relied upon and possesses the type and amount of proof or substantiation represented to exist;

(2) the willful use, in any oral or written representation, of exaggeration, falsehood, innuendo or ambiguity as to a material fact;

(3) the willful failure to state a material fact, or the willful concealment, suppression or omission of a material fact;

(4) disparaging the property, services or business of another by making, knowingly or with reason to know, false or misleading representations of material facts;

(5) offering property or services without intent to sell them;

(6) offering property or services without intent to supply reasonable, expectable public demand, unless the offer discloses the limitation;

(7) making false or misleading representations, knowingly or with reason to know, of fact concerning the reason for, existence of or amounts of price reductions, or the price in comparison to prices of competitors or one's own price at a past or future time;

(8) falsely stating, knowingly or with reason to know, that a consumer transaction involves consumer rights, remedies or obligations;

(9) falsely stating, knowingly or with reason to know, that services, replacements or repairs are needed;

(10) falsely stating, knowingly or with reason to know, the reasons for offering or supplying property or services at sale or discount prices;

(11) sending or delivering a solicitation for goods or services which could reasonably be interpreted or construed as a bill, invoice or statement of account due, unless:

(A) Such solicitation contains the following notice, on its face, in conspicuous and legible type in contrast by typography, layout or color with other printing on its face: "THIS IS A SOLICITATION FOR THE PURCHASE OF GOODS OR SERVICES AND NOT A BILL, INVOICE OR STATEMENT OF ACCOUNT DUE. YOU ARE UNDER NO OBLIGATION TO MAKE ANY PAYMENTS UNLESS YOU ACCEPT THIS OFFER"; and

(B) such solicitation, if made by any classified telephone directory service not affiliated with a local telephone service in the area of service, contains the following notice, on its face, in a prominent and conspicuous manner:

" _____ IS NOT

(name of telephone directory service)

AFFILIATED WITH ANY LOCAL TELEPHONE COMPANY";

(12) using, in any printed advertisement, an assumed or fictitious name for the conduct of such person's business that includes the name of any municipality, community or region or other description of the municipality, community or region in this state in such a manner as to suggest that such person's business is located in such municipality, community or region unless: (A) Such person's business is, in fact, located in such municipality, community or region; or (B) such person includes in any such printed advertisement the complete street and city address of the location from which such person's business is actually conducted. If located outside of Kansas, the state in which such person's business is located also shall be included. The provisions of this subsection shall not apply to the use of any trademark or service mark registered under the laws of this state or under federal law; any such name that, when applied to the goods or services of such person's business, is merely descriptive of them; or any such name that is merely a surname. Nothing in this subsection shall be construed to impose any liability on any publisher when such publisher had no knowledge the business was not, in fact, located in such municipality, community or region;

(13) (A) making an oral solicitation for products or services based on a mortgage trigger lead unless the solicitation clearly and conspicuously states in the initial phase of the solicitation that the solicitor is not affiliated with the lender or broker with which the consumer initially applied and that the solicitation is based on personal information about the consumer that was purchased, directly or indirectly, from a consumer reporting agency without the knowledge or permission of the lender or broker with which the consumer initially applied;

(B) making a written solicitation for products or services based on a mortgage trigger lead unless the solicitation clearly and conspicuously states on the first page of the solicitation that the solicitor is not affiliated with the lender or broker with which the consumer initially applied and that the solicitation is based on personal information about the consumer that was purchased, directly or indirectly, from a consumer reporting agency without the knowledge or permission of the lender or broker with which the consumer initially applied. Clear and conspicuous shall include legible type in contrast by typography, layout or color with other printing on the first page of the correspondence; and

(C) any solicitor under clause (A) or (B) shall be in compliance with the provisions of the Kansas mortgage business act, unless otherwise exempted from such act, and any other law or regulation; and

(14) failing to release funds representing an insurance settlement payment for damage to real property subject to a mortgage by the mortgage holder to the mortgagor within 30 days after receiving written proof that the damaged property is replaced or

otherwise repaired to the satisfaction of the mortgagor and the mortgage holder. Any person who submits false information regarding the condition of the property shall be liable in damages to the mortgage holder or the mortgage holder's assignee for the amount of the funds together with interest thereon, attorney fees, and any additional damages that the mortgage holder or the mortgage holder's assignee has incurred.

History: L. 1973, ch. 217, § 4; L. 1976, ch. 236, § 3; L. 1991, ch. 159, § 2; L. 1993, ch. 177, § 1; L. 2000, ch. 167, § 1; L. 2009, ch. 67, § 2; L. 2010, ch. 103, § 3; July 1.

2025 Kansas Statutes

50-627. Unconscionable acts and practices. (a) No supplier shall engage in any unconscionable act or practice in connection with a consumer transaction. An unconscionable act or practice violates this act whether it occurs before, during or after the transaction.

(b) The unconscionability of an act or practice is a question for the court. In determining whether an act or practice is unconscionable, the court shall consider circumstances of which the supplier knew or had reason to know, such as, but not limited to the following that:

(1) The supplier took advantage of the inability of the consumer reasonably to protect the consumer's interests because of the consumer's physical infirmity, ignorance, illiteracy, inability to understand the language of an agreement or similar factor;

(2) when the consumer transaction was entered into, the price grossly exceeded the price at which similar property or services were readily obtainable in similar transactions by similar consumers;

(3) the consumer was unable to receive a material benefit from the subject of the transaction;

(4) when the consumer transaction was entered into, there was no reasonable probability of payment of the obligation in full by the consumer;

(5) the transaction the supplier induced the consumer to enter into was excessively onesided in favor of the supplier;

(6) the supplier made a misleading statement of opinion on which the consumer was likely to rely to the consumer's detriment; and

(7) except as provided by K.S.A. 50-639, and amendments thereto, the supplier excluded, modified or otherwise attempted to limit either the implied warranties of merchantability and fitness for a particular purpose or any remedy provided by law for a breach of those warranties.

History: L. 1973, ch. 217, § 5; L. 1976, ch. 236, § 4; L. 1983, ch. 180, § 1; L. 1991, ch. 159, § 3; L. 1998, ch. 99, § 1; April 16.

2025 Kansas Statutes

50-628. Duties of the attorney general. (a) The attorney general shall:

- (1) Enforce this act throughout the state;
 - (2) cooperate with state and local officials, officials of other states and officials of the federal government in the administration of comparable statutes;
 - (3) mail information concerning final judgments to persons who request it, for which the attorney general may charge a reasonable fee to cover the expense;
 - (4) receive and act on complaints;
 - (5) maintain a public file of:
 - (A) Final judgments rendered under this act that have been either reported officially or made available for public dissemination under subsection (a)(3) of K.S.A. 50-630 and amendments thereto; and
 - (B) consent judgments; and
 - (6) report annually on or before January 1 to the governor and legislature on the operations of the attorney general's office and on the acts or practices occurring in this state that violate this act.
- (b) The attorney general's report shall include a statement of the investigatory and enforcement procedures and policies of the attorney general's office, of the number of investigations and enforcement proceedings instituted and of their disposition, and of the other activities of the office and of other persons to carry out the purposes of this act.

History: L. 1973, ch. 217, § 6; L. 1991, ch. 159, § 4; July 1.

2025 Kansas Statutes

50-629. General powers of the attorney general. The attorney general may conduct research, hold public hearings, make inquiries and publish studies relating to consumer sales acts or practices.

History: L. 1973, ch. 217, § 7; January 1, 1974.

2025 Kansas Statutes

50-630. Rule-making requirements. (a) The attorney general may:

- (1) Adopt as a rule a description of the organization of his or her office stating the general course and method of operation of the office and methods whereby the public may obtain information or make submissions or requests;
- (2) adopt rules of practice setting forth the nature and requirements of all formal and informal procedures available, including a description of the forms and instructions used by the attorney general or his or her office; and
- (3) make available for public inspection all rules, written statements of policy, and interpretations formulated, adopted or used by the attorney general in discharging functions.

(b) Rules and regulations adopted by the attorney general pursuant to this section shall be governed by the provisions of article 4 of chapter 77 of the Kansas Statutes Annotated.

History: L. 1973, ch. 217, § 8; January 1, 1974.

2025 Kansas Statutes

50-631. Investigation of violations; remedies. (a) If, by the attorney general's own inquiries or as a result of complaints, the attorney general has reason to believe that a supplier has engaged in, is engaging in or is about to engage in an act or practice that violates this act, the attorney general, or any deputy attorney general or assistant attorney general, may administer oaths and affirmations, subpoena witnesses or matter and collect evidence.

(b) If matter that the attorney general subpoenas is located outside this state, the person subpoenaed may either make it available to the attorney general at a convenient location within the state or pay the reasonable and necessary expenses for the attorney general or the attorney general's representative to examine the matter at the place where it is located. The attorney general may designate representatives, including officials of the state in which the matter is located, to inspect the matter on the attorney general's behalf, and the attorney general may respond to similar requests from officials of other states.

(c) Service by the attorney general of any notice requiring a person to file a statement or report, or of a subpoena upon any person, shall be made by:

(1) the mailing thereof by certified mail to the last known place of business, residence or abode within or without this state; or

(2) in the manner provided in the code of civil procedure as if a petition had been filed.

(d) The attorney general may request that an individual who refuses to comply with a subpoena, on the ground that testimony or matter may incriminate the individual, be ordered by the court to provide the testimony or matter. Except in a prosecution for perjury, an individual who complies with a court order to provide testimony or matter after asserting a privilege against self-incrimination to which the individual is entitled by law, may not be subjected to a criminal proceeding or to a civil penalty to the transaction concerning which the individual is required to testify or produce relevant matter.

(e) If any person willfully fails or refuses to file any statement or report required by this act, or obey any subpoena issued by the attorney general, the attorney general may, after notice, apply to the district court and, after a hearing thereon, the district court may issue an order:

(1) Granting injunctive relief restraining the sale or advertisement of any merchandise by such persons; or

(2) vacating, annulling or suspending the corporate charter of a corporation created by or under the laws of this state or revoking or suspending the certificate of authority to do business in this state of a foreign corporation or revoking or suspending any other licenses, permits or certificates issued pursuant to law to the supplier which are used to further the allegedly unlawful practice; or

(3) granting such other relief as may be required, until the person files the statement or report, or obeys the subpoena.

History: L. 1973, ch. 217, § 9; L. 1989, ch. 159, § 2; L. 1991, ch. 159, § 5; July 1.

2025 Kansas Statutes

50-632. Remedies of the attorney general or any county or district attorney; procedure for sequestration. (a) The attorney general or any county or district attorney may bring an action:

- (1) To obtain a declaratory judgment that an act or practice violates this act;
- (2) to enjoin, or to obtain a restraining order against a supplier who has violated, is violating, or is otherwise likely to violate this act; or
- (3) to recover damages on behalf of consumers by reason of violations of this act; and
- (4) to recover reasonable expenses and investigation fees.

(b) In lieu of instigating or continuing an action or proceeding, the attorney general may accept a consent judgment with respect to any act or practice declared to be a violation of this act. Such a consent judgment shall provide for the discontinuance by the supplier entering the same of any act or practice declared to be a violation of this act, and it may include a stipulation for the payment by such supplier of reasonable expenses and investigation fees incurred by the attorney general. The consent judgment also may include a stipulation for restitution to be made by such supplier to consumers of money, property or other things received from such consumers in connection with a violation of this act and also may include a stipulation for specific performance. Any consent judgment entered into pursuant to this section shall not be deemed to admit the violation, unless it does so by its terms. Before any consent judgment entered into pursuant to this section shall be effective, it must be approved by the district court and an entry made thereof in the manner required for making an entry of judgment. Once such approval is received, any breach of the conditions of such consent judgment shall be treated as a violation of a court order, and shall be subject to all the penalties provided by law therefor.

(c) In any action brought by the attorney general or the county or district attorney, the court may, without requiring bond of the attorney general or the county or district attorney:

- (1) Make such orders or judgments as may be necessary to prevent the use or employment by a supplier of any practices declared to be a violation of this act;
- (2) make such orders or judgments as may be necessary to compensate any consumer for damages sustained;
- (3) make such orders or judgments as may be necessary to carry out a transaction in accordance with consumers' reasonable expectations;
- (4) appoint a master or receiver or order sequestration of property whenever it shall appear that the supplier threatens or is about to remove, conceal or dispose of property to the damage of consumers to whom restoration would be made under this subsection or whenever it shall appear that the property was derived or is commingled with other property derived from transactions involving violations of the act, the court shall assess the expenses of a master or receiver against the supplier;
- (5) revoke any license or certificate authorizing that supplier to engage in business in this state;
- (6) issue a temporary restraining order or enjoin any supplier from engaging in business in this state;
- (7) award reasonable expenses and investigation fees, civil penalties and costs; and
- (8) grant other appropriate relief.

- (d) If an order of sequestration is issued pursuant to paragraph (4) of subsection (c):
- (1) Application for such order shall be by motion verified by an affidavit setting forth facts in support thereof and the court may hear such motion ex parte;
 - (2) such order shall operate as a lien on the sequestered property and may contain other provisions as the court deems appropriate;
 - (3) if such order of sequestration was issued ex parte, such order shall be served upon the supplier whose property is sequestered not later than five days after such order is issued. Service shall be by any manner permitted by the code of civil procedure or by ordinary first class mail to the last known address of the supplier;
 - (4) a supplier whose property is sequestered may file a motion to dissolve the sequestration, verified by affidavit, putting in issue the sufficiency of the proceedings, the supplier's claim of exemption as to any property which has been sequestered, or the truth of the facts alleged in the affidavit on which the sequestration was ordered. The court shall hold a hearing on the motion within five days after the filing; and
 - (5) upon a finding that the party which obtained an ex parte order of sequestration knew or should have known that grounds for sequestration did not exist, the court, upon a motion to dissolve, may allow actual damages for the wrongful sequestration.

History: L. 1973, ch. 217, § 10; L. 1991, ch. 159, § 6; L. 1993, ch. 177, § 2; L. 2001, ch. 187, § 1; July 1.

2025 Kansas Statutes

50-633. Coordination with other supervision. (a) If the attorney general receives a complaint or other information relating to noncompliance with this act by a supplier who is subject to other supervision in this state, the attorney general shall inform the official or agency having that supervision. The attorney general may request information about suppliers from the official or agency.

(b) The attorney general and any other official or agency in this state having supervisory authority over a supplier shall consult and assist each other in maintaining compliance with this act. Within the scope of their authority, they may jointly or separately make investigations, prosecute suits and take other official action they consider appropriate.

(c) The county attorney or district attorney may investigate, institute and commence actions under this act in the same manner as provided for the attorney general. It shall be the duty of the county attorney or district attorney to lend to the attorney general such assistance as the attorney general may request in the investigation, commencement and prosecution of actions in the district court of his or her county pursuant to this act, or the county attorney or district attorney may institute and prosecute actions hereunder in the same manner as provided for the attorney general.

History: L. 1973, ch. 217, § 11; January 1, 1974.

2025 Kansas Statutes

50-634. Private remedies. (a) Whether a consumer seeks or is entitled to damages or otherwise has an adequate remedy at law or in equity, a consumer aggrieved by an alleged violation of this act may bring an action to:

- (1) Obtain a declaratory judgment that an act or practice violates this act; or
- (2) enjoin or obtain a restraining order against a supplier who has violated, is violating or is likely to violate this act.

(b) A consumer who is aggrieved by a violation of this act may recover, but not in a class action, damages or a civil penalty as provided in subsection (a) of K.S.A. 50-636 and amendments thereto, whichever is greater.

(c) Whether a consumer seeks or is entitled to recover damages or has an adequate remedy at law, a consumer may bring a class action for declaratory judgment, an injunction and appropriate ancillary relief, except damages, against an act or practice that violates this act.

(d) A consumer who suffers loss as a result of a violation of this act may bring a class action for the damages caused by an act or practice:

- (1) Violating any of the acts or practices specifically proscribed in K.S.A. 50-626, 50-627 and 50-640, and amendments thereto, or
- (2) declared to violate K.S.A. 50-626 or 50-627, and amendments thereto, by a final judgment of any district court or the supreme court of this state that was either officially reported or made available for public dissemination under subsection (a)(3) of K.S.A. 50-630 and amendments thereto by the attorney general 10 days before the consumer transactions on which the action is based, or
- (3) with respect to a supplier who agreed to it, was prohibited specifically by the terms of a consent judgment which became final before the consumer transactions on which the action is based.

(e) Except for services performed by the office of the attorney general or the office of a county or district attorney, the court may award to the prevailing party reasonable attorney fees, including those on appeal, limited to the work reasonably performed if:

- (1) The consumer complaining of the act or practice that violates this act has brought or maintained an action the consumer knew to be groundless and the prevailing party is the supplier; or a supplier has committed an act or practice that violates this act and the prevailing party is the consumer; and
- (2) an action under this section has been terminated by a judgment, or settled.

(f) Except for consent judgments, a final judgment in favor of the attorney general under K.S.A. 50-632 and amendments thereto is admissible as prima facie evidence of the facts on which it is based in later proceedings under this section against the same supplier or a supplier in privity.

(g) Notice of an action commenced pursuant to subsection (b) or (c), or an appeal of such action, shall be given to the attorney general, but failure to do so shall not provide a defendant a defense in such action.

History: L. 1973, ch. 217, § 12; L. 1974, ch. 230, § 3; L. 1976, ch. 236, § 5; L. 1978, ch. 210, § 1; L. 1991, ch. 159, § 7; July 1.

2025 Kansas Statutes

50-635. **Application of act.** (a) The Kansas consumer protection act does not apply to a publisher, broadcaster, printer or other person engaged in the dissemination of information or the reproduction of printed or pictorial matter so far as the information or matter has been disseminated or reproduced on behalf of others without actual knowledge that it violated the Kansas consumer protection act.

(b) The Kansas consumer protection act does not allow for a private cause of action or remedy against a licensed health care provider for causes of action for personal injury or death resulting, or alleged to have resulted, from medical negligence. For purposes of this subsection, "health care provider" shall have the same meaning as provided in subsection (a)(1) of K.S.A. 65-4915, and amendments thereto.

(c) A supplier alleged to have violated this act has the burden of showing the applicability of this section.

History: L. 1973, ch. 217, § 13; L. 1988, ch. 193, § 1; L. 1991, ch. 159, § 8; L. 2007, ch. 194, § 1; May 24.

2025 Kansas Statutes

50-636. Civil penalties. (a) The commission of any act or practice declared to be a violation of this act shall render the violator liable to the aggrieved consumer, or the state or a county as provided in subsection (c), for the payment of a civil penalty, recoverable in an individual action, including an action brought by the attorney general or county attorney or district attorney, in a sum set by the court of not more than \$10,000 for each violation. An aggrieved consumer is not a required party in actions brought by the attorney general or a county or district attorney pursuant to this section.

(b) Any supplier who willfully violates the terms of any court order issued pursuant to this act shall forfeit and pay a civil penalty of not more than \$20,000 per violation, in addition to other penalties that may be imposed by the court, as the court shall deem necessary and proper. For the purposes of this section, the district court issuing an order shall retain jurisdiction, and in such cases, the attorney general, acting in the name of the state, or the appropriate county attorney or district attorney may petition for recovery of civil penalties.

(c) In administering and pursuing actions under this act, the attorney general and the county attorney or district attorney are authorized to sue for and collect reasonable expenses and investigation fees as determined by the court. Civil penalties or contempt penalties sued for and recovered by the attorney general shall be paid into the general fund of the state. Civil penalties and contempt penalties sued for and recovered by the county attorney or district attorney shall be paid into the general fund of the county where the proceedings were instigated.

(d) Any act or practice declared to be a violation of this act not identified to be in connection with a specific identifiable consumer transaction but which is continuing in nature shall be deemed a separate violation each day such act or practice exists.

History: L. 1973, ch. 217, § 14; L. 1974, ch. 230, § 4; L. 1976, ch. 236, § 6; L. 1978, ch. 210, § 2; L. 1991, ch. 159, § 9; L. 1993, ch. 177, § 3; L. 2001, ch. 105, § 2; July 1.

2025 Kansas Statutes

50-637. Powers of receiver; effect of receivership. (a) When a receiver is appointed by the court pursuant to this act, the receiver shall have the power to sue for, collect, receive and take into the receiver's possession all the property and chattels, rights and credits, moneys and effects, lands and tenements, books, records, documents, papers, choses in action, bills, notes and property of every description, including property with which such property has been commingled, if it cannot be identified in kind because of such commingling, and to sell, convey and assign the same and hold and dispose of the proceeds thereof under the direction of the court. Any person who has suffered damages as a result of the use or employment of any practice declared to be a violation of this act and submits proof to the satisfaction of the court that the person has in fact been damaged, may participate in the distribution of the assets.

(b) Subject to an order of the court terminating the business affairs of any supplier who is the subject of receivership proceedings held pursuant to this act, the provisions of this act shall not bar any claim by a consumer against any person who has acquired any money or property, real or personal, or anything of value by means of any practice herein declared to be a violation of this act.

History: L. 1973, ch. 217, § 15; L. 1976, ch. 236, § 7; L. 1991, ch. 159, § 10; July 1.

2025 Kansas Statutes

50-638. Jurisdiction and venue. (a) *Jurisdiction.* Any supplier, whether or not a resident or citizen of this state, who in person or through an agent or an instrumentality, engages in a consumer transaction in this state, thereby submits the supplier to the jurisdiction of the courts of this state as to any cause of action arising from such consumer transaction.

(b) *Venue.* Every action pursuant to this act shall be brought in the district court of any county in which there occurred an act or practice declared to be a violation of this act, or in which the defendant resides or the defendant's principal place of business is located. If the defendant is a nonresident and has no principal place of business within this state, then the nonresident defendant can be sued either in the district court of Shawnee county or in the district court of any county in which there occurred an act or practice declared to be a violation of this act.

History: L. 1973, ch. 217, § 16; L. 1993, ch. 177, § 4; July 1.

2025 Kansas Statutes

50-639. Disclaimer or limitation of warranties; liabilities; attorney fees, when; section inapplicable to seed for planting, livestock for agricultural purposes or disposal of surplus property by a governmental entity. (a) Notwithstanding any other provisions of law, with respect to property which is the subject of or is intended to become the subject of a consumer transaction in this state, no supplier shall:

(1) Exclude, modify or otherwise attempt to limit the implied warranties of merchantability as defined in K.S.A. 84-2-314, and amendments thereto, and fitness for a particular purpose, as defined in K.S.A. 84-2-315, and amendments thereto; or

(2) exclude, modify or attempt to limit any remedy provided by law, including the measure of damages available, for a breach of implied warranty of merchantability and fitness for a particular purpose.

(b) Notwithstanding any provision of law, no action for breach of warranty with respect to property subject to a consumer transaction shall fail because of a lack of privity between the claimant and the party against whom the claim is made. An action against any supplier for breach of warranty with respect to property subject to a consumer transaction shall not, of itself, constitute a bar to the bringing of an action against another person.

(c) A supplier may limit the supplier's implied warranty of merchantability and fitness for a particular purpose with respect to a defect or defects in the property only if the supplier establishes that the consumer had knowledge of the defect or defects, which became the basis of the bargain between the parties. In neither case shall such limitation apply to liability for personal injury or property damage.

(d) Nothing in this section shall be construed to expand the implied warranty of merchantability as defined in K.S.A. 84-2-314, and amendments thereto, to involve obligations in excess of those which are appropriate to the property.

(e) A disclaimer or limitation in violation of this section is void. If a consumer prevails in an action based upon breach of warranty, and the supplier has violated this section, the court may, in addition to any damages recovered, award reasonable attorney fees and a civil penalty under K.S.A. 50-636, and amendments thereto, to be paid by the supplier who gave the improper disclaimer.

(f) The making of a limited express warranty is not in itself a violation of this section.

(g) This section shall not apply to seed for planting.

(h) This section shall not apply to sales of livestock for agricultural purposes, other than sales of livestock for immediate slaughter, except in cases where the supplier knowingly sells livestock which is diseased.

(i) This section shall not apply to the disposal of surplus property by any governmental entity if the governmental entity has given conspicuous written notice of the warranty limitation, exclusion or disclaimer. In the case of surplus property which is a motor vehicle, a notice of such limitation, exclusion or disclaimer shall be affixed to a side window of the motor vehicle. Such notice shall comply with the buyers guide required by 16 C.F.R. 455.2 and 16 C.F.R. 455.3 (as in effect on the effective date of this act).

History: L. 1973, ch. 217, § 17; L. 1974, ch. 230, § 5; L. 1976, ch. 236, § 8; L. 1981, ch. 215, § 1; L. 1988, ch. 193, § 2; L. 1991, ch. 159, § 11; L. 1998, ch. 99, § 2; April 16.

2025 Kansas Statutes

50-640. Door-to-door sales; cancellation; required disclosures; notice of cancellation; definition. (a) Except as provided in subsection (c)(1)(C), in addition to any right otherwise to revoke, a consumer has the right to cancel a door-to-door sale made within this state until midnight of the third business day after the day on which the consumer signs an agreement or offer to purchase which includes the disclosures required by this section.

(b) In connection with any door-to-door sale made within this state, it constitutes an unfair and deceptive act or practice within the meaning of K.S.A. 50-626, and amendments thereto, for any supplier to:

(1) Fail to furnish the consumer with a fully completed receipt or copy of any contract pertaining to such sale at the time of its execution, which is in the same language, Spanish for example, as that principally used in the oral sales presentation and which shows the date of the transaction and contains the name and address of the supplier, and in immediate proximity to the space reserved in the contract for the signature of the consumer or on the front page of the receipt if a contract is not used and in boldface type of a minimum size of 10 points, a statement in substantially the following form: "YOU THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT." For purposes of the required notices under this section, the term "buyer" shall have the same meaning as the term "consumer."

(2) Fail to furnish each consumer, at the time the consumer signs the door-to-door sales contract or otherwise agrees to buy consumer property or services from the supplier, a completed form in duplicate, captioned "NOTICE OF CANCELLATION," which shall be attached to the contract or receipt and be easily detachable, and which shall contain in 10-point boldface type the following information and statements in the same language, Spanish for example, as that used in the contract:

NOTICE OF CANCELLATION

(Enter date of transaction)

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN 10 BUSINESS DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY PROPERTY DELIVERED TO YOU UNDER THIS CONTRACT OR SALE; OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE PROPERTY AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE PROPERTY AVAILABLE TO THE SELLER, AND IF THE SELLER DOES NOT PICK SUCH PROPERTY UP WITHIN 20 DAYS OF THE DATE OF YOUR NOTICE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE PROPERTY WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE PROPERTY AVAILABLE TO THE

SELLER, OR IF YOU AGREE TO RETURN THE PROPERTY TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE OR ANY OTHER WRITTEN NOTICE, OR SEND A TELEGRAM,
TO

(Name of Seller)

AT

(Address of Seller's Place of Business)

NOT LATER THAN MIDNIGHT OF _____.

(Date)

I HEREBY CANCEL THIS TRANSACTION.

(Date) (Buyer's Signature)

(3) Fail, before furnishing copies of the "notice of cancellation" to the consumer, to complete both copies by entering the name of the supplier, the address of the supplier's place of business, the date of the transaction, and the date, not earlier than the third business day following the date of the transaction, by which the consumer may give notice of cancellation.

(4) Include in any door-to-door sale contract or receipt any confession of judgment or any waiver of any of the rights to which the consumer is entitled under this section including specifically such consumer's right to cancel the sale in accordance with the provisions of this section.

(5) Fail to inform each consumer orally, at the time such consumer signs the contract or purchases the property or services, of such consumer's right to cancel.

(6) Misrepresent in any manner the consumer's right to cancel.

(7) Fail or refuse to honor any valid notice of cancellation by a consumer and within 10 business days after the receipt of such notice, to (i) refund all payments made under the contract or sale; (ii) return any property traded in, in substantially as good condition as when received by the supplier; (iii) cancel and return any negotiable instrument executed by the consumer in connection with the contract or sale and take any action necessary or appropriate to terminate promptly any security interest created in the transaction.

(8) Negotiate, transfer, sell, or assign any note or other evidence of indebtedness to a finance company or other third party prior to midnight of the fifth business day following the day the contract was signed or the property or services were purchased.

(9) Fail, within 10 business days of receipt of the consumer's notice of cancellation, to notify the consumer whether the supplier intends to repossess or to abandon any shipped or delivered property.

(c) For the purposes of this section the following definitions shall apply:

(1) "Door-to-door sale" means a sale, lease or rental of consumer property or services with a purchase price of \$25 or more, whether under single or multiple consumer transactions, in which the supplier or the supplier's representative personally solicits the sale, including those in response to or following an invitation by the consumer, and the consumer's agreement or offer to purchase is made at a place other than the place of business of the supplier. The term "door-to-door sale" does not include a transaction:

(A) Made pursuant to prior negotiations in the course of a visit by the consumer to a retail business establishment having a fixed permanent location where the property is

exhibited or the services are offered for sale on a continuing basis; or

(B) in which the consumer is accorded the right of rescission by the provisions of the consumer credit protection act (15 USCS 1635) or regulations issued pursuant thereto; or

(C) in which the consumer has initiated the consumer transaction and the property or services are needed to meet a bona fide immediate personal emergency of the consumer, and the consumer furnishes the supplier with a separate dated and signed personal statement in the consumer's handwriting describing the situation requiring immediate remedy and expressly acknowledging and waiving the right to cancel the sale within three business days; or

(D) conducted and consummated entirely by mail or telephone; and without any other contact between the consumer and the supplier or its representative prior to delivery of the property or performance of the services; or

(E) in which the consumer has initiated the transaction and specifically requested the supplier to visit the consumer's home for the purpose of repairing or performing maintenance upon the consumer's real or personal property. If in the course of such a visit, the supplier sells the consumer the right to receive additional services or property other than replacement parts necessarily used in performing the maintenance or in making the repairs, the sale of the additional property or services would not fall within this exclusion; or

(F) pertaining to the sale or rental of real property, to the sale of insurance or to the sale of securities or commodities by a broker-dealer registered with the securities and exchange commission; or

(G) that occurs on the state fairgrounds during the annual Kansas state fair between a consumer and a vendor who has been authorized by the state fair management to do business on the state fairgrounds.

(2) "Place of business" means the main or permanent branch office of a supplier.

(3) "Purchase price" means the total price paid or to be paid for the consumer property or services, including all interest and service charges.

(4) "Business day" means any calendar day except Sunday, or any legal holiday as defined by K.S.A. 60-206 and amendments thereto.

History: L. 1973, ch. 217, § 18; L. 1974, ch. 230, § 6; L. 1976, ch. 236, § 9; L. 1991, ch. 159, § 12; L. 1998, ch. 156, § 1; July 1.

2025 Kansas Statutes

50-642. **Citation of act.** This act may be cited as the Kansas consumer protection act.

History: L. 1973, ch. 217, § 20; January 1, 1974.

2025 Kansas Statutes

50-643. Severability. If any provision of this act or the application thereof to any person or circumstances is held invalid, the invalidity does not affect other provisions or applications of this act which can be given effect without the invalid provision or application, and to this end the provisions of this act are severable.

History: L. 1973, ch. 217, § 21; January 1, 1974.

2025 Kansas Statutes

50-6,139b. Requirements for holders of personal information. (a) As used in this section:

(1) "Holder of personal information" or "holder" means a person who, in the ordinary course of business, collects, maintains or possesses, or causes to be collected, maintained or possessed, the personal information of any other person.

(2) "Person" means any individual, partnership, corporation, trust, estate, cooperative, association, government, governmental subdivision or agency or other entity.

(3) "Personal information" means personal information as defined by K.S.A. 50-7a01(g), and amendments thereto, and any other information which identifies an individual for which an information security obligation is imposed by federal or state statute or regulation.

(4) "Record" has the meaning provided by K.S.A. 84-1-201, and amendments thereto.

(b) A holder of personal information shall:

(1) Implement and maintain reasonable procedures and practices appropriate to the nature of the information, and exercise reasonable care to protect the personal information from unauthorized access, use, modification or disclosure. If federal or state law or regulation governs the procedures and practices of the holder of personal information for such protection of personal information, then compliance with such federal or state law or regulation shall be deemed compliance with this paragraph and failure to comply with such federal or state law or regulation shall be prima facie evidence of a violation of this paragraph; and

(2) unless otherwise required by federal law or regulation, take reasonable steps to destroy or arrange for the destruction of any records within such holder's custody or control containing any person's personal information when such holder no longer intends to maintain or possess such records. Such destruction shall be by shredding, erasing or otherwise modifying the personal identifying information in the records to make it unreadable or undecipherable through any means.

(c) A holder of personal information shall have an affirmative defense to a violation of subsection (b)(2) if such holder proves by clear and convincing evidence that:

(1) The violation resulted from a failure of the method of destruction of records to make personal information contained in such records unreadable or undecipherable through any means, and such failure could not reasonably have been foreseen despite the holder's exercise of reasonable care in selecting and employing a method of destruction; or

(2) the holder of personal information had in effect at the time of the violation a bona fide written or electronic records management policy, including practices and procedures reasonably designed, maintained, and expected to prevent a violation of subsection (b)(2), and that the records involved in the violation of subsection (b)(2) were destroyed or disposed of in violation of such policy. No affirmative defense under this paragraph shall be available unless such holder proves:

(A) The employees or other persons involved in the violation received training in the holder's written or electronic records management policy;

(B) the violation resulted from a good faith error; and

(C) no reasonable likelihood exists that the violation may cause, enable or contribute to identity theft or identity fraud as defined by K.S.A. 21-6107, and amendments thereto, or to a violation of an information security obligation imposed by federal or state statute or

regulation.

(d) Each violation of this section shall be an unconscionable act or practice in violation of K.S.A. 50-627, and amendments thereto. Each record that is not destroyed in compliance with subsection (b)(2) shall constitute a separate unconscionable act within the meaning of K.S.A. 50-627, and amendments thereto.

(e) Notwithstanding any other provision of law to the contrary, the exclusive authority to bring an action for any violation of this section shall be with the attorney general. Nothing in this section shall be construed to create or permit a private cause of action for any violation of this section.

(f) Nothing in this section relieves a holder of personal information from any duty to comply with other requirements of state and federal law regarding the protection of such information.

(g) This section shall be part of and supplemental to the Kansas consumer protection act.

History: L. 2016, ch. 103, § 2; July 1.

**Ad Hoc Committee on Best Practices for Eviction Proceedings
Initial Report**

Prepared under
Supreme Court Administrative Order 2021-CM-154

For Consideration on April 20, 2022

Ad Hoc Committee on Best Practices in Eviction Proceedings

Hon. Sarah Warner, judge, Kansas Court of Appeals, chair
Hon. Courtney Mikesic, district court judge, 29th Judicial District
Hon. Christopher Velez, district magistrate judge, 25th Judicial District
Hon. Daniel Vokins, district magistrate judge, 10th Judicial District
Hon. Rodger Woods, district court judge, 18th Judicial District
Amber Ballard, trial court clerk IV, 7th Judicial District
Tracy Hays, trial court clerk V, 18th Judicial District
Jessica Albers, president, Apartment Association of Greater Wichita, Wichita
Erin Beckerman, attorney, Topeka
Michelle Ewert, associate professor, Washburn School of Law, Topeka
L. Donald Huelson, attorney, Olathe
Casey Johnson, attorney, Kansas City
Kerry Kinkade, attorney, Lenexa
Bobbie Lee Riling, attorney, Lawrence
Sue Rouse, member, Hays Housing Authority Board, Hays
Paul Shipp, attorney, Manhattan

*With significant and excellent support from Sarah Hoskinson,
Director of Access to Justice, Office of Judicial Administration*

Executive Summary

Eviction is rarely anyone's first choice, and with good reason. Housing stability benefits the tenant by providing a steady home, and it benefits the property owner by providing constant income and a consistent resident to monitor the owner's investment. But when an eviction petition is filed, everyone involved—property owners, tenants, and the courts—benefits from accurate, understandable, and fair eviction procedures.

This crucial need for housing stability was on full display during the COVID-19 pandemic. Homes became multipurpose spaces, serving as workplaces, schools, and dwellings. Thus, the risk posed by evictions from rental properties became all the more dire. In an effort to help people remain in their rented housing, the federal government provided billions of dollars in aid, to be administered by states. In Kansas alone, over \$300 million in emergency rental assistance funds are available for this purpose. And both the Kansas and federal governments prohibited evictions for unpaid rent.

When the last eviction moratorium expired in October 2021, the Kansas Supreme Court—motivated in part by news of national spikes in eviction filings—established the Supreme Court Ad Hoc Committee on Best Practices in Eviction Proceedings. Over the course of four months, the committee examined all aspects of Kansas eviction procedures and courtroom practices.

This report summarizes the committee's initial observations and recommendations. The report is divided into three parts.

Part 1 describes the Kansas eviction process and the number of evictions filed in Kansas, as well as the effect of the pandemic on eviction filings.

Part 2 discusses the challenges and barriers that cause parties to file evictions instead of taking advantage of Kansas emergency rental assistance funds or seeking other out-of-court solutions. It also identifies three opportunities to address these challenges.

Part 3 summarizes the committee's recommendations and proposed timeline for addressing these challenges over the next 18 months.

Committee's Charge and Methods

On October 18, 2021, Chief Justice Marla Luckert signed Supreme Court Administrative Order 2021-CM-154, which established the Ad Hoc Committee on Best Practices in Eviction Proceedings. The committee was broadly charged with studying all aspects of eviction proceedings, with the goal of "reducing court filings, expeditiously resolving pending cases, and enhancing housing stability." Order 2021-CM-154, at 1. To achieve this goal, appointed committee members represented all the populations related to the eviction process:

- District judges and district magistrate judges who routinely handle eviction proceedings, as well as court clerks who shepherd those dockets.
- Attorneys from Kansas Legal Services and the Washburn Law Clinic, who routinely represent tenants involved in eviction proceedings.
- Property managers and attorneys who routinely represent property owners in eviction cases.
- Community and nonprofit groups that provide housing assistance.
- The Kansas Housing Resources Corporation, which reviews applications for and distributes the emergency rental assistance funds made available in response to the COVID-19 pandemic.

The committee met most Tuesdays from late October through February. At its first meeting, the committee discussed its charge as well as pressing evictions issues, particularly with the recent end of the Center for Disease Control and Prevention's moratorium on evictions. At the end of the first meeting, committee members established four workgroups for the initial stages of its discussion, aiming to provide recommendations in the following areas:

- Immediate needs brought to light by the pandemic.
- Data identification and collection relating to eviction filings throughout the state.
- Education and outreach efforts.
- Long-term, structural improvements (through adopting Supreme Court rules, amending statutes, or effecting other systemic change).

The committee's weekly meetings were structured to allow a general discussion of any matters members had encountered relating to evictions, followed by a series of breakout sessions to allow the workgroups to develop their recommendations and time for the workgroups to discuss their progress with the whole committee.

In February, each workgroup submitted a written report to the committee's chairperson, detailing specific recommendations the members believed the Kansas Supreme Court should consider. These recommendations were collected and shared with all committee members for their consideration and comment. In late February, the committee met to discuss which recommendations they would present to the court in this initial report. The committee also prioritized these recommendations by placing them on a timeline.

On the whole, the members of the committee were able to agree on most recommendations in most areas. In fact, several committee members have commented throughout the process how refreshing it was that, despite different backgrounds and constituencies, the committee developed trust in one another and achieved common ground.

After all, everyone—property owners, tenants, the courts, and the community at large—benefits from access to accurate educational resources, alternatives to eviction when appropriate, and fair and consistent court procedures.

Part 1: The Kansas Eviction Process—in Law and in Practice

Before examining the current state of evictions in Kansas, it is helpful to consider a summary of Kansas eviction laws. Residential evictions in Kansas are primarily governed by three articles in the Kansas statutes:

- The Residential Landlord and Tenant Act (RLTA), found in Article 25 of Chapter 58, sets forth the substantive rights and responsibilities of property owners and tenants, including the circumstances when a property owner may evict a tenant from the housing unit.
- The procedures governing the physical eviction process—the action to remove the tenant from the housing unit and restore possession to the property owner—are included in Article 38 of Chapter 61.
- Any related claims for damages (such as actions for unpaid rent) are generally governed by the Code of Civil Procedure for Limited Actions, K.S.A. 61-2801 *et seq.*, unless the relief sought requires a Chapter 60 action.

As a starting point, the RLTA enumerates several legal duties of the property owner and the tenant. See K.S.A. 58-2553 (responsibilities of the property owner); K.S.A. 58-2555 (responsibilities of the tenant). For example, the property owner must provide a housing unit that complies with all material health and safety codes, must reasonably maintain any common areas, and must make sure that the housing unit is generally safe with adequate electricity, plumbing, sanitation, heat, ventilation, and water. See K.S.A. 58-2553(a). Similarly, the tenant must keep the premises that he or she occupies clean and safe, use the utilities reasonably, and carry on in such a way that neighbors and other tenants can peacefully conduct their lives. See K.S.A. 58-2555.

To enforce those duties, amend or cancel the rental agreement, or pursue relief in court, the RLTA requires the aggrieved person to provide written notice of the deficiency to the offending party, as well as some opportunity for the responsible person to cure the problem. The timeframe for that notice and curative period varies based on the type of dispute:

- **Tenant's 14-30 Day Notice to the Property Owner.**

If the property owner has failed to materially comply with the rental agreement or K.S.A. 58-2553, the tenant can serve a "14-30 Notice" on the property owner. This notice identifies any breach and informs the property owner that the rental agreement will terminate in 30 days. If the breach is remedied within 14 days of the notice, the rental agreement continues. K.S.A. 58-2559(a)(1). The tenant can also recover damages, including return of the security deposit, or obtain injunctive relief to address the noncompliance. K.S.A. 58-2559(b), (c).

- **Tenant's 5-Day Notice to the Property Owner.**

If the property owner fails to deliver possession of the housing unit to the tenant on the date promised, the rental obligation abates until possession transfers. If the tenant provides a written notice to the property owner of noncompliance, the tenant may terminate the rental agreement after 5 days and the property owner must return the security deposit. The tenant may also demand specific performance of the property owner and recover actual damages, with damages escalated for willful noncompliance or bad faith. See K.S.A. 58-2560.

- **Property Owner's 14-30 Day Notice to the Tenant.**

If the tenant has failed to materially comply with the rental agreement or K.S.A. 58-2555, the property owner can serve a "14-30 Notice" on the tenant. This notice identifies any breach and informs the tenant that the rental agreement will terminate in 30 days if the deficiency is not cured. If the breach is remedied within 14 days of the notice, the rental agreement continues without further action. K.S.A. 58-2564(a).

- **Property Owner's 3-Day Notice to Tenant for Nonpayment of Rent.**

If the tenant fails to pay rent when the rent is due, the property owner can provide a written notice of his or her intention to terminate the rental agreement in 3 days if the rent is not paid during that time. K.S.A. 58-2564(b).

As this report discusses in more detail later in this section, most residential evictions that are filed in Kansas are precipitated by this last circumstance—the

tenant's failure to pay the rent. K.S.A. 58-2568 permits property owners to file a petition for possession of the property, for rent, or for both, as well as a claim for damage to the property. As with any other case, the defendant tenant may file any counterclaims against the plaintiff property owner; the failure to timely raise any counterclaims constitutes a waiver of those claims. See K.S.A. 58-2561.

Petitions in eviction cases often include at least two categories of claims: claims for possession of the property (and removal of the tenant, previously called forcible detainer actions) and claims for unpaid rent and damages (generally breach-of-contract claims and other related requests). Different procedures govern each of these two categories.

Claims for Possession—the Eviction Itself

The procedures covering the eviction of the tenant from the property—and restoration of possession to the property owner—are found in K.S.A. 61-3801 *et seq.* Before a property owner may evict a tenant, the owner must provide notice of the intention to evict, served at least 3 days before any eviction petition is filed. (The 3 days are 3 natural days, including weekends and holidays.) As a practical matter, these notices are often combined with the Property Owner's 3-Day Notice described in the previous section. See K.S.A. 61-3803. But they are distinct requirements, and each must be satisfied.

Once this notice has been given and the three days have passed, the property owner may file the eviction petition. The petition must "describe the premises for which possession is sought and why the plaintiff is seeking possession." K.S.A. 61-3804. The statute does not require any other specific information (such as the rental agreement or the 3-Day Notice) to be included or attached. But the statute does clarify that the property owner may include in the petition a request for any rent due, or the owner "may bring a subsequent lawsuit for that amount." K.S.A. 61-3804.

Note: Though Kansas law generally requires plaintiffs to bring all their claims arising out of one transaction in one suit, K.S.A. 61-3802 specifically contemplates multiple cases being filed. That statute indicates that "[a] judgment in a lawsuit brought under K.S.A. 61-3801 through 61-3808 . . . shall not be a bar to any subsequent

lawsuit brought by either party for claims not included in such judgment." K.S.A. 61-3802. The committee discussed this section at some length. Some members did not feel it was fair to allow property owners to file claims for damages months or years after a tenant was removed from the property. Other members countered that the extent of a property owner's damages may not be known for some time and noted that Kansas statutes allow claims for breach of written leases to be brought within 5 years.

Once a property owner has filed an eviction petition, Kansas statutes contemplate an accelerated process to determine whether the tenant should be removed from the property.

- Once a petition is filed, a summons issues to the tenant, including the date at which the tenant must appear or file an answer. K.S.A. 61-3805 allows the district court some discretion in setting this date, but the statute states this deadline must be between 3 and 14 days after the issuance of the summons.
- Kansas law also allows a district court flexibility to determine how best to handle the answer date. K.S.A. 61-3806 requires a tenant to "appear in person or by counsel at the time and date set forth in the summons" or to file a written answer by that same date.

Note: The way this is carried out in practice differs from district to district, largely based on historical practice or the preference of the judge hearing the eviction docket. Some judicial districts, like Johnson County, require attorneys representing property owners to be present at the "answer docket" so they can meet with any tenants who appear. Other districts, like Douglas County, do not require an attorney to appear but rather note whether the tenants appear at the docket or otherwise file an answer.

- If the tenant appears and disputes the allegations in the petition relating to possess, K.S.A. 61-3807(a) requires that a "trial shall be conducted within 14 days after the appearance date stated in the summons." K.S.A. 61-3807(b) states the tenant may not be granted a continuance unless the tenant files

a bond that is both "approved by the court" and "conditioned for the payment of all damages and rent that may accrue is judgment is entered" against the tenant.

- If judgment is entered against the tenant for the possession of the property, the court issues a writ of restitution to remove the tenant. The writ "shall be executed within 14 days after the person named in the writ receives it." K.S.A. 61-3808(b).

As this timeline demonstrates, the entire eviction process from filing to transfer of possession—excluding any agreed-upon continuances—is designed to take no more than 6 weeks. Under current practice, the members of our committee agreed that property owners can waive this accelerated schedule by agreeing to a continuance of the eviction trial or otherwise agreeing to a stay of the proceedings while the parties pursue settlement options. Under K.S.A. 61-3807, the statutory deadlines cannot be stayed or otherwise continued solely on the tenant's request.

Eviction Filings in Kansas—Before and After the CDC Eviction Moratorium

As this report previously indicated, a combination of state and federal orders suspended residential evictions based on the nonpayment of rent in response to the COVID-19 pandemic. The Kansas Supreme Court issued its Administrative Orders suspending non-essential hearings in light of the COVID-19 pandemic in March 2020. Shortly thereafter, Governor Laura Kelly and the CDC ordered moratoria on residential evictions due to the nonpayment of rent.

The CDC's moratorium only applied to residential evictions for nonpayment of rent, not to residential evictions for other reasons, such as an expired lease term or violations of other lease terms. Congress codified the CDC's moratorium through legislation through January 31, 2021, but the governor's order and the CDC's moratorium lasted significantly longer—through May 28, 2021, and October 3, 2021.

From the outset, the committee understood that before it could make meaningful recommendations regarding best practices for evictions in the wake of the pandemic, it needed a baseline for comparison. The committee thus

reviewed and compared data from pre-pandemic eviction filings (Fiscal Years 2017, 2018, and 2019) with filings during the pandemic (Fiscal Year 2021) and new cases after October 3, 2021.

Note: The committee also gathered information relating to filings in Fiscal Year 2020. This information, however, was less helpful, as it included three quarters before and one quarter during the pandemic. Given the mixed nature of those 12 months, this report largely disregards the data collected for FY2020.

As this court is aware, Kansas judicial districts currently use three different case management systems—Full Court, Odyssey, and Justice Information Management System (JIMS). The Judicial Branch is in the process of converting all courts to the Odyssey system. The committee requested information from all three programs, but for obvious reasons all collected data came from Full Court and JIMS. The committee was able to obtain the statistics for the number of total limited action cases filed compared to the number of eviction cases filed, and to review the disposition of those eviction cases. In general, the case management systems were consistent in their treatment of default judgments and dismissals, but not for other dispositions. In other words, the systems did not uniformly capture information regarding whether a case was settled or tried.

Turning to the data collected, an average of 108,915 limited-action cases were filed each year for Fiscal Years 2017, 2018, and 2019. During the pandemic Fiscal Year 2021, there were 79,530 new limited actions, a 27% decline in filings.

Similarly, before the pandemic, there was an average of 14,560 eviction cases per year filed annually. During Fiscal Year 2021, there were 9,110 new eviction cases filed, or 5,450 fewer cases—a 37% decline.

Statewide limited actions filed, FY2017 – FY2021

FY2017	99,248
FY2018	114,457
FY2019	113,041
FY2020	90,863
FY2021	79,530

Statewide eviction cases filed, FY2017 – FY2021

FY2017	14,455
FY2018	14,555
FY2019	14,671
FY2020	12,347
FY2021	9,110

This is not surprising, given the combination of the eviction moratorium and the reduced filings overall during that period. Though none of the case management systems presently captures information relating to the reason for filing an eviction petition, the committee agreed that **most residential evictions—approximately 90%—are filed when the tenant fails to pay his or her rent.**

Since CDC's moratorium expired on October 3, 2021, eviction filings have returned to pre-pandemic levels in most parts of the state. Before the pandemic, there were on average 280 new eviction cases filed each week. During Fiscal Year 2021, this weekly average dropped to about 175 new cases. And though there was an initial spike in filings immediately after the moratorium expired, the weekly filings leveled out over the next six weeks—averaging 277 cases per week.

Statewide eviction petitions filed by week

October 4, 2021	219
October 11, 2021	401
October 18, 2021	353
October 25, 2021	227
November 1, 2021	224
November 8, 2021	240

The committee also examined eviction dispositions within the same period. In the committee's experience, roughly half of eviction petitions result in a default judgment, as the tenants do not appear at the answer docket and do not file a written answer. The collected data is consistent with this anecdotal experience. Before the pandemic, there were about 14,560 eviction cases filed each year in Kansas and 7,303 default judgments. Another 25% of eviction petitions (an average of 3,568 cases per year) were dismissed due to some procedural default by the property owner—usually failure to provide the correct notice to the tenant. Thus, about 75% of eviction petitions are not decided on the merits.

Statewide eviction dispositions, FY2017 – FY2021

	FY2017	FY2018	FY2019	FY2020	FY2021
Default Judgment	7,242	7,395	7,273	5,600	3,872
Dismissed	3,567	3,707	3,430	2,881	2,300
Contested/Settled	2,651	2,512	2,477	1,907	1,179
Trial	150	150	97	144	191
Other	843	782	1,316	1,120	498

Most of the remaining 25% of the cases are resolved through settlement; very few cases are tried. It is not clear how trials are reported in the different case management systems. But in the committee's experience, less than 10% of eviction cases are set on a trial docket (meaning, are scheduled for trial). Most of those cases result in either a default judgment (if the tenant does appear) or dismissal (if the property owner is absent). In many other cases, the parties reach a settlement. The committee members estimate that only about 1% of new eviction cases go to trial.

By contrast, during Fiscal Year 2021, there were 9,110 eviction petitions filed and 3,872 default judgments—or 43%—entered, a 7% decrease from pre-pandemic levels. The same percentage of cases (25%) resulted in dismissal. And about 2% of the cases were tried. Though it is impossible to know for certain, the committee believes that the decrease in default judgments and increase in trials during the pandemic was due to the eviction moratorium and the availability of the rental assistance funds (the KERA Program discussed in more detail in Part 2). During the pandemic, many eviction cases were being continued to allow property owners and tenants to work together to obtain the rental assistance funds. If the parties' efforts were successful, those cases would be dismissed.

The committee also compared the eviction filings between urban and rural judicial districts to see whether these trends were consistent across the state. The committee thus compared filings in the 7th Judicial District (Douglas County), the 10th Judicial District (Johnson County), the 18th Judicial District (Sedgwick County), and the 25th Judicial District (Finney, Greeley, Hamilton, Kearny, Scott, and Wichita Counties). A few interesting trends in this data are worthy of note.

Pre-pandemic eviction cases and dispositions

	Pre-Pandemic Average (Fiscal Years 2017-2019)			
	District 7	District 10	District 18	District 25
Eviction Petitions Filed	636	2320	5016	80
% Kansas Evictions	4%	16%	34%	.5%
Default Judgment	287	1029	2688	42
Dismissed	218	393	1311	10
Contested/Settled	122	671	995	25
Trial	0	211	14	1
Other	5	15	5	2

Pandemic eviction cases and dispositions

	Fiscal Year 2021			
	District 7	District 10	District 18	District 25
Eviction Petitions Filed				
Default Judgment	162	346	1786	38
Dismissed	111	101	1212	14
Contested/Settled	88	281	500	29
Trial	0	185	117	0
Other	1	4	7	0

New eviction petitions filed each week after end of CDC moratorium

Week starting	District 7	District 10	District 18	District 25
October 4, 2021	14	27	108	1
October 11, 2021	25	53	168	0
October 18, 2021	9	50	131	1
October 25, 2021	5	46	108	0
November 1, 2021	7	30	117	0
November 8, 2021	11	26	97	0

10th Judicial District (Johnson County)

The 10th Judicial District has a population of 609,863. Before the pandemic, Johnson County had an average of 2,320 eviction petitions filed each year—16% of all Kansas eviction cases. During Fiscal Year 2021, there were 937 new eviction cases—1,383 fewer cases, a 60% decline. This 60% decline in eviction filings far exceeded the 37% State average decline during the pandemic.

After the CDC moratorium expired, Johnson County eviction filings generally returned to pre-pandemic levels.

Before the pandemic, roughly 44% of Johnson County eviction petitions resulted in a default judgment, a little less than the statewide average of 50%. About 17% of cases were dismissed, under the statewide average of 25%. Thus, 61% of Johnson County cases—compared with 75% of cases statewide—resulted in default judgments or dismissals.

18th Judicial District (Sedgwick County)

The 18th Judicial District has a population of 523,824. Before the pandemic, Sedgwick County averaged 5,016 eviction filings annually, or 34% of the total eviction cases filed in Kansas—more than twice as many as were filed in Johnson County. During Fiscal Year 2021, there was a 27% decline in new eviction petitions. This 27% decline was less than the 37% State average and far less the 60% decline in Johnson County.

Unlike other areas of the state, eviction filings in Sedgwick County significantly increased after the CDC's moratorium expired on October 3, 2021. Before the pandemic, there were 96 new eviction cases filed every week in Sedgwick County. During the pandemic, that number dropped to 70. But after the moratorium expired, Sedgwick County averaged 121 cases each week—about a 25% increase over pre-pandemic eviction filings.

In Sedgwick County, about 54% of eviction petitions result in a default judgment, slightly higher than the State average of 50%. About 26% of eviction petitions are dismissed. So about 80% of evictions—compared to the statewide average of 75%—are resolved through some procedural default. And far fewer cases—less than 0.2% evictions filed—go

to trial. (During the pandemic, the number of trials increased dramatically, with 3% of Sedgwick County evictions being resolved through a trial.)

7th Judicial District (Douglas County)

The 7th Judicial District has a population of 118,785. Douglas County hears about 4% of Kansas eviction cases. During the pandemic, 35% fewer evictions were filed than in previous years—fairly consistent with the statewide decrease of 37%. After the CDC moratorium expired, Douglas County filings returned pre-pandemic levels.

In Douglas County, 45% of eviction petitions result in default judgments, slightly less than the statewide average of 50%. About 34% of eviction petitions are dismissed, significantly higher than the 25% average across the state. This means that 79% of petitions result in a default judgment or a dismissal—close to the 75% statewide average. Very few cases are reported as going to trial.

25th Judicial District (Finney, Greeley, Hamilton, Kearny, Scott, and Wichita Counties)

The 25th Judicial District has a total population of 53,558. This district hears about .5% of Kansas eviction cases. Interestingly, the 25th Judicial District saw no change in the annual number of eviction petitions filed before, during, or after the pandemic.

About 52.5% of eviction petitions in the 25th Judicial District result in a default judgment, while about 12.5% are dismissed—meaning about 65% are resolved on procedural defaults rather than on the merits. Almost no cases are tried.

With this background, the report now turns to the challenges and immediate opportunities for the committee identified within the eviction process.

Part 2: Challenges and Opportunities for Resolving Evictions out of Court

As the previous discussion indicated, about 75% of eviction petitions are resolved based on some procedural default by the tenant or property owner. Most notably, in about 50% of cases, the tenant does not appear at the answer docket or otherwise file an answer.

Practically speaking, several considerations might inform a tenant's decision not to contest the eviction. A tenant may decide that he or she is ready to leave the premises (for financial reasons or some other reason). A tenant may know he or she is unable to pay rent (though the tenant may or may not qualify for rental assistance). Or a tenant may feel overwhelmed by the situation or may not understand that he or she can contest the eviction.

In some cases, such as in the first example listed, a tenant's default is the result of a conscious decision. In others, it may be due to confusion or a lack of understanding. The same is true for the 25% of cases that result in dismissal; some of those cases are dismissed because the property owners consciously decide to no longer pursue the eviction, but others are rooted in ignorance of or misunderstanding about the eviction notices and procedures.

Regardless of the reason for the procedural default, Kansas eviction dockets are currently able to shoulder the high caseloads and short statutory timeframes because about 75% of the cases filed are never litigated beyond the petition. The committee questions the wisdom and equity of this judicial model, which relies, at least in part, on litigants' ignorance to stay afloat. Should litigants instead have access to accurate information about the eviction process so property owners and tenants can make informed decisions during an eviction? And should the Judicial Branch develop alternative channels for resolving evictions to allow courts to continue to function while parties are able to make better informed decisions?

The answer to these questions, in the committee's view, is **yes**. This section focuses on three opportunities to effect these goals during the next 18 months.

Opportunity 1—Kansas Emergency Rental Assistance Funds

Two federal laws enacted in 2021—the Coronavirus Response and Relief Supplemental Appropriations Act of 2021 and the American Rescue Plan Act of 2021—provided significant federal funding to help tenants who were behind on rent due to the pandemic remain in their homes. These funds must be used to cover costs incurred between March 3, 2021, and December 31, 2024. The funds must be disbursed by December 31, 2026.

Governor Kelly designated the Kansas Housing Resource Center as the administrator of these emergency funds—called the Kansas Emergency Rental Assistance (KERA) program—in our state. To date, more than \$150 million has been disbursed under the KERA program. Tenants and property owners must jointly apply for KERA funding. To receive KERA funds, property owners must agree they will not pursue evict the tenant for nonpayment of rent. Up to 18 months of rental assistance may be available.

The Kansas Judicial Branch website includes general information about KERA funds, including a link to a YouTube video and links to information sheets published by the KHRC (one for property owners and one for tenants). But in the committee's experience, there remains widespread misunderstanding about how KERA works and confusion about what assistance may be available. For example, committee members observed anecdotally that tenants often believe that KERA funds are no longer available once an eviction petition is filed, but this is not true. Or property owners and their counsel have expressed the belief that the KERA application process is unwieldy and will not result in timely relief; in reality, however, KERA applications are expedited in several circumstances, including when an eviction petition is pending.

Judges across the state have taken varying approaches to KERA funds. Some judges will take the opportunity when an eviction case goes to trial to ask the parties whether they have considered applying for KERA funds. The attorney committee members found this approach to be helpful but agreed that the information should come earlier in the process—especially since so few eviction cases are tried. The committee members unanimously agreed that the sooner this information can be provided in the process, the more effective it will be.

One judge member of the committee questioned whether it was appropriate for a judge to provide KERA information or whether it crossed into the realm of legal advice. In general, the other members of the committee believed merely providing information about resources where tenants and property owners alike might learn about the KERA funds and process—similar to what already exists on the Judicial Branch website—was appropriate. This information could have a significant impact on eviction filings while those funds are available.

Opportunity 2—Kansas Eviction Forms and Other Educational Resources

Evictions proceedings almost always involve at least one self-represented litigant. Tenants who cannot afford rent also cannot afford an attorney, and they still may not qualify for assistance from Kansas Legal Services and other organizations. During the pandemic, it has become increasingly common for both the tenant and the property owner to appear without counsel. Given the relative complexity of the eviction procedure, it is no wonder that so few proceedings are resolved on their merits.

Faced with this challenge—on top of the societal disruption caused by evictions generally and the sheer number of eviction petitions filed—Kansas courts would benefit significantly from educational resources explaining the Kansas eviction process. The Kansas Judicial Branch is in a unique position to provide those resources.

The committee envisioned two types of resources the Judicial Branch could develop: (1) resources educating property owners, tenants, and the public about the eviction process and (2) accessible forms for each stage in the eviction proceedings to assist parties and the courts navigate the proceedings in accordance with Kansas law.

As to the first category of information, the Kansas Judicial Branch website maintains a page (<https://www.kscourts.org/Public/Eviction-resources>) entitled "Eviction Resources." Currently, that website includes a link to a YouTube video about KERA funds, two brochures about KERA, an eviction pamphlet published by the Kansas Bar Association, and various lawyer-referral resources. The page also

includes a link to the current eviction forms published by the Kansas Judicial Council. It does not include any information describing the eviction process.

In the committee's view, there is great potential here for growth—for education and outreach. Courts across the country have taken varied approaches to developing educational materials for evictions. After reviewing other jurisdictions' resources, the committee agreed that the Baltimore City District Court's informational video was particularly effective. This video, which can be viewed at https://www.publicjustice.org/en/legal_help/housing/, provides information for tenants and property owners relating to tenancies, rental agreements, and the eviction process. A similar resource could be incredibly effective in Kansas courts.

The committee also suggests encouraging bar associations and other interested groups to develop educational programs for high-school students to explain the landlord-tenant relationship and the rental process before the students sign their first lease.

Turning to forms, the Kansas Judicial Council currently maintains the following forms relating to eviction proceedings:

- Notice to Leave (different forms for In-Person and by Mail)
- Petition for Eviction
- Summons
- Answer to Petition for Eviction
- Journal Entry
- Writ of Restitution for Immediate Possession

The Judicial Council, in coordination with the Kansas Supreme Court's Access to Justice Committee, has conducted a plain-language revision of the petition and answer within the last two years. And the Access to Justice Committee is in the process of drafting two information sheets—one for property owners and one for tenants—to explain the information requested in the petition and answer.

These steps are important. But the committee overwhelmingly agrees that a more substantive revision of all these documents, handled by people more familiar with the eviction process, would be helpful. The same group of people could also make recommendations regarding several other forms that would be helpful throughout the proceedings.

Opportunity 3—Alternative Dispute Resolution

From the outset of the committee's discussion, committee members expressed an interest in exploring whether any of the Pre-Eviction Diversion Initiatives—which seek to resolve evictions before a petition is filed—that had been adopted in other parts of the country would be compatible with Kansas eviction practice. The committee recognized that alternative dispute resolution could be particularly effective in eviction proceedings, especially given the availability of KERA funds over the course of the next two years. As one committee member who manages rental properties observed, it is in everyone's best interest if a tenant continues to live in the property and a property owner continues to be paid under the lease.

At the same time, however, the Kansas statutes governing evictions provide several limitations on extrajudicial resolution of these cases. One of these limitations is rooted in the expedited nature of the eviction proceeding. Kansas law requires that trials for the possession of property in eviction cases be held within 14 days of the answer date. See K.S.A. 61-3807(a). The committee members agreed that this timing provision could be waived by the property owner, but likely not by the court. This means that any alternative dispute resolution program must be **voluntary**.

Another limitation is more practical. Kansas courts' first contact with an eviction occurs when the eviction petition is filed, which starts the expedited process. Pre-filing initiatives are thus unworkable.

Moreover, though many alternative dispute resolution programs in eviction cases across the country are phrased as "diversion" initiatives, the committee members questioned whether the Kansas eviction process lent itself to a true "diversion." Others suggested that a "diversion" program might lead to procedural complications, such as what would occur if a tenant later violated an

eviction diversion agreement. And several committee members who routinely represent property owners indicated that they believed a voluntary program that focused on dispute resolution, rather than "diversion," would have more buy-in from those litigants.

The committee members thus focused on voluntary templates for alternative eviction resolution through court-facilitated mediation, rather than true diversion. After reviewing and discussing several courts' approaches, the committee found that the program adopted by the Monroe County, Indiana, court was promising and could be compatible with Kansas eviction law.

The Monroe County program is a district-centered approach. A local judicial district employs an evictions facilitator who performs several functions. The facilitator is present at the answer docket to answer any questions property owners and tenants may have about the eviction process and provide information regarding the KERA application. The facilitator also is available to act as a mediator, should the litigants agree to attempt to resolve the case outside of court.

Inspired by this approach, the committee worked with the Office of Judicial Administration to assist in applying for a grant through the National Center for State Courts to establish a similar program in Sedgwick County. The committee felt that Sedgwick County—which handles one-third of all Kansas evictions—would provide the greatest opportunity for impact. The program and resources developed for Sedgwick County, which serves more diverse populations than other urban areas, could also serve as a toolkit across the state.

We now turn to the committee's recommendations for addressing each of these opportunities and the recommended timeline for implementation.

Part 3:
Committee's Immediate Recommendations
and Proposed Timeline for Implementation

1. Recommendations Requiring Immediate Action
(0-6 months)

- 1.1. **Continuing the Committee's Work.** The Ad Hoc Committee for Best Practices in Eviction Proceedings should continue its work, with replacement members appointed as needed, to oversee the implementation of these recommendations and provide expertise and stability throughout the process—at least for the next 18 months.
- 1.2. **Kansas Emergency Rental Assistance Information.** Kansas courts should uniformly provide information about KERA funds early in the eviction process.
 - 1.2.1. In all residential eviction case for nonpayment of rent, judges should remind the parties about the availability of rental assistance funds at the answer docket. This information can be provided via a bench card for judges who preside over eviction proceedings and can be updated by the Office of Judicial Administration as necessary. Judges should grant continuances if both parties are interested in pursuing rental assistance.
 - 1.2.2. In districts where the answer docket is not conducted as a traditional hearing, the same statement can be made in a handout for all tenants or property owners who appear.
 - 1.2.3. The summons for residential evictions for nonpayment of rent should contain the following statement in both English and Spanish, either in the summons itself or as an attachment to the summons:

"You may be able to have some of the rent you owe paid and stop your eviction. Find out more about available rental assistance programs in your area at <https://kshousingcorp.org/emergency-rental-assistance/>."

- 1.3. **Development of Voluntary Eviction Resolution Program.** The Kansas Supreme Court, through this committee and in association with the Office of Judicial Administration's Alternative Dispute Resolution director, should develop a model Voluntary Eviction Resolution Program that district courts may implement to provide an alternative to eviction.
 - 1.3.1. To maximize impact, a pilot program for dispute resolution should be developed for Sedgwick County, in accordance with the recent grant application to the Eviction Diversion Initiative by the National Center for State Courts. This committee should act as a resource as Sedgwick County works to implement a voluntary pilot program to resolve evictions outside of court.
 - 1.3.2. Based on the Sedgwick County model, the Judiciary should expand opportunities for resolving eviction cases before trial by establishing a Voluntary Eviction Resolution Program (VERP). The VERP would a court-employed facilitator who would be present at the answer docket to answer questions about the eviction process for tenants and property owners. The facilitator would also be equipped to conduct mediation to assist in resolving the eviction claims.

2. Recommendations Regarding Education, Outreach, and Data Collection (0-12 months)

2.1. **Creating Educational Reference Videos.** The Office of Judicial Administration, Kansas Supreme Court Access to Justice Committee, or other appropriate entity should coordinate the creation of a series of informational videos that would help unrepresented property owners and tenants understand their rights and obligations in a tenancy and explain the steps in the eviction process. These videos could be posted on court websites. The script for the videos should be created by a committee of legal professionals, including advocates for property owners and tenants alike. The videos should cover:

- Pre-tenancy and early-tenancy issues like initial walk-through;
- Issues that arise during tenancy like notices to property owners and tenants for non-compliance;
- Issues related to termination of a tenancy like providing notice to the property owner of the tenant's new address.

2.2. **Development of Bench Book.** The Office of Judicial Administration, Kansas Supreme Court Judicial Education Committee, or other appropriate entity should develop a desktop reference for judges (a bench book) to establish uniform baseline standards for eviction proceedings and to disseminate statewide best practices in eviction matters. The bench book should include the following:

- 2.2.1. A summary of Kansas landlord-tenant law for reference.
- 2.2.2. A decision-tree reflecting a model initial hearing for contested eviction proceedings covering the most common decisions a judge might make and their consequences.
- 2.2.3. A model script for initial eviction hearings to apprise the parties of their rights in the proceeding and their responsibilities to one another as well as the court.

- 2.2.4. A Lawful Alternative Resolutions Catalog detailing non-trial resolutions to common landlord-tenant issues.
- 2.2.5. A model process for applying for and adjudicating motions for stays from Writs of Restitution.
- 2.2.6. A supplement discussing and promoting best practices in establishing bonds in eviction matters and a model process for the posting of them with the clerk of the district court.
- 2.3. **Educating Young Adults Before They Sign a Lease.** The Kansas Supreme Court should encourage attorneys, bar associations, and nonprofit legal service providers to develop and present landlord-tenant seminars in high schools across Kansas.
- 2.4. **Odyssey.** The Office of Judicial Administration should work with the Odyssey developers to ensure the case management program captures meaningful data relating to evictions. This data might include:
 - distinguishing cases by general eviction category (residential and commercial) and reason for filing (nonpayment of rent, other violations of the lease, expired leases, and return of property).
 - case disposition, to capture information about whether a case went to judgment after a trial, was settled, or had some other outcome.
 - zip codes of the rental properties in question, as there may be different socio-economic factors in different areas of a county or judicial district, to allow for more effective use of resources and outreach efforts.
 - whether parties opted to seek alternative resolution of the dispute and whether mediation was successful.

3. Recommendations Regarding Judicial Council Forms (6-18 months)

3.1. The Judicial Council, in collaboration with the Kansas Supreme Court Access to Justice Committee and attorneys who regularly represent clients in eviction proceedings, should amend the following existing forms:

3.1.1. **3-day notice to pay rent or quit**. This notice should be amended to specifically state that property owner reserves right to evict the tenant even if the owner accepts payment for a portion of rent owed. The form should also be amended to allow a property owner to inform a tenant of his or her right to cure any deficiencies to reduce unintentional procedural defaults by property owners.

3.1.2. **Summons**. The summons should be amended to incorporate clear instructions to the defendant tenant on how to update their address with the court. The summons should also include a copy of the Judicial Council's answer form (similar to current process in small claims and garnishment cases).

3.1.3. **Petition**. The petition should be amended to state how many days the tenant was given to cure any deficiency and when notice was served.

3.1.4. **Answer**. The answer should be amended to provide a reference to where tenants may find affirmative defenses or counterclaims available in an eviction proceeding.

3.1.5. **Journal entry**. The journal entry form should be amended to make clear whether property owner reserves right to pursue damages after he or she obtains possession of the premises.

- 3.2. The Judicial Council, in collaboration with the Kansas Supreme Court Access to Justice Committee and attorneys who regularly represent clients in eviction proceedings, should develop additional forms for eviction proceedings:
- 3.2.1. **14-30 day notice of landlord noncompliance**. A new form should be created so a tenant can indicate whether a property owner's breach is material noncompliance, noncompliance affecting health and safety, or both; allow a space for the tenant to describe the issue; and state the deadline for compliance.
 - 3.2.2. **14-30 day notice of tenant noncompliance**. A new form should be created so a property owner can indicate whether a tenant's breach is material noncompliance, noncompliance affecting health and safety, or both; allow a space for the property owner to describe the issue; and state the deadline for compliance.
 - 3.2.3. **Tenant notice of payment of rent under protest due to (1) landlord's failure to maintain and/or (2) destruction by fire &/or casualty**. A new form should be created so a tenant can explain any problems with the conditions of the property, damage to the unit, description of part of unit that is no longer usable, and why reduction of rent in requested amount is reasonable.
 - 3.2.4. **Accounting form**. A new form should be created that a property owner can use to explain security deposit withholding or return after a tenant vacates a unit.

4. Long-Term Structural Recommendations for Future Consideration (18+ months)

4.1. The Kansas Supreme Court should consider adopting a court rule (or rules) governing eviction procedures to achieve greater uniformity among the judicial districts. Such a rule might

- Require a property owner to attach a copy of the rental agreement (if in writing) and applicable notice to the petition.
- Require a property owner to submit a Landlord Case Information Statement that would capture pertinent information and would support case management and allow for an efficient, early review of the case by judges and court staff.
- Require a tenant to submit a Tenant Case Information Statement that would use plain language to capture key information, including the tenant's contact information.

4.2. The Kansas Supreme Court, in coordination with the Judicial Council, should consider recommending updates to Kansas statutes to clarify the law relating to evictions and modernize the process. Such amendments might include, among other clarifications:

- Requiring all petitions to affirmatively plead the jurisdictional basis of the petition and attach proof of compliance with key statutory mandates.
- Eliminating newspaper publication requirements for property owners who are disposing of abandoned property.
- Establishing a list of the tenant's and property owner's respective rights and responsibilities, and requiring property owners to include this information with every rental agreement.

2025 Kansas Statutes

50-7a01. Consumer information; security breach; definitions. As used in K.S.A. 50-7a01 and 50-7a02, and amendments thereto:

- (a) "Consumer" means an individual who is a resident of this state.
- (b) "Encrypted" means transformation of data through the use of algorithmic process into a form in which there is a low probability of assigning meaning without the use of a confidential process or key, or securing the information by another method that renders the data elements unreadable or unusable.
- (c) "Notice" means:
 - (1) Written notice;
 - (2) electronic notice, if the notice provided is consistent with the provisions regarding electronic records and signatures set forth in 15 U.S.C. § 7001; or
 - (3) substitute notice, if the individual or the commercial entity required to provide notice demonstrates that the cost of providing notice will exceed \$100,000, or that the affected class of consumers to be notified exceeds 5,000, or that the individual or the commercial entity does not have sufficient contact information to provide notice.
- (d) "Redact" means alteration or truncation of data such that no more than the following are accessible as part of the personal information:
 - (1) Five digits of a social security number; or
 - (2) the last four digits of a driver's license number, state identification card number or account number.
- (e) "Substitute notice" means:
 - (1) E-mail notice if the individual or the commercial entity has e-mail addresses for the affected class of consumers;
 - (2) conspicuous posting of the notice on the web site page of the individual or the commercial entity if the individual or the commercial entity maintains a web site; and
 - (3) notification to major statewide media.
- (f) "Person" means any individual, partnership, corporation, trust, estate, cooperative, association, government, or governmental subdivision or agency or other entity.
- (g) "Personal information" means a consumer's first name or first initial and last name linked to any one or more of the following data elements that relate to the consumer, when the data elements are neither encrypted nor redacted:
 - (1) Social security number;
 - (2) driver's license number or state identification card number; or
 - (3) financial account number, or credit or debit card number, alone or in combination with any required security code, access code or password that would permit access to a consumer's financial account. The term "personal information" does not include publicly available information that is lawfully made available to the general public from federal, state or local government records.
- (h) "Security breach" means the unauthorized access and acquisition of unencrypted or unredacted computerized data that compromises the security, confidentiality or integrity of personal information maintained by an individual or a commercial entity and that causes, or such individual or entity reasonably believes has caused or will cause, identity theft to any consumer. Good faith acquisition of personal information by an employee or agent of an individual or a commercial entity for the purposes of the individual or the commercial entity is not a breach of the security of the system,

provided that the personal information is not used for or is not subject to further unauthorized disclosure.

History: L. 2006, ch. 149, § 3; July 1.

2025 Kansas Statutes

50-7a02. Security breach; requirements. (a) A person that conducts business in this state, or a government, governmental subdivision or agency that owns or licenses computerized data that includes personal information shall, when it becomes aware of any breach of the security of the system, conduct in good faith a reasonable and prompt investigation to determine the likelihood that personal information has been or will be misused. If the investigation determines that the misuse of information has occurred or is reasonably likely to occur, the person or government, governmental subdivision or agency shall give notice as soon as possible to the affected Kansas resident. Notice must be made in the most expedient time possible and without unreasonable delay, consistent with the legitimate needs of law enforcement and consistent with any measures necessary to determine the scope of the breach and to restore the reasonable integrity of the computerized data system.

(b) An individual or a commercial entity that maintains computerized data that includes personal information that the individual or the commercial entity does not own or license shall give notice to the owner or licensee of the information of any breach of the security of the data following discovery of a breach, if the personal information was, or is reasonably believed to have been, accessed and acquired by an unauthorized person.

(c) Notice required by this section may be delayed if a law enforcement agency determines that the notice will impede a criminal investigation. Notice required by this section shall be made in good faith, without unreasonable delay and as soon as possible after the law enforcement agency determines that notification will no longer impede the investigation.

(d) Notwithstanding any other provision in this section, an individual or a commercial entity that maintains its own notification procedures as part of an information security policy for the treatment of personal information, and whose procedures are otherwise consistent with the timing requirements of this section, is deemed to be in compliance with the notice requirements of this section if the individual or the commercial entity notifies affected consumers in accordance with its policies in the event of a breach of security of the system.

(e) An individual or a commercial entity that is regulated by state or federal law and that maintains procedures for a breach of the security of the system pursuant to the laws, rules, regulations, guidances or guidelines established by its primary or functional state or federal regulator is deemed to be in compliance with this section. This section does not relieve an individual or a commercial entity from a duty to comply with other requirements of state and federal law regarding the protection and privacy of personal information.

(f) In the event that a person discovers circumstances requiring notification pursuant to this section of more than 1,000 consumers at one time, the person shall also notify, without unreasonable delay, all consumer reporting agencies that compile and maintain files on consumers on a nationwide basis, as defined by 15 U.S.C. § 1681a(p), of the timing, distribution and content of the notices.

(g) For violations of this section, except as to insurance companies licensed to do business in this state, the attorney general is empowered to bring an action in law or equity to address violations of this section and for other relief that may be appropriate.

The provisions of this section are not exclusive and do not relieve an individual or a commercial entity subject to this section from compliance with all other applicable provisions of law.

(h) For violations of this section by an insurance company licensed to do business in this state, the insurance commissioner shall have the sole authority to enforce the provisions of this section.

History: L. 2006, ch. 149, § 4; July 1.

2025 Kansas Statutes

50-7a04. Severability clause. If any provision of this act or its application to any person or circumstance is held invalid, the invalidity shall not affect any other provision or application of the act which can be given effect without the invalid provision or application. To this end the provisions of this act are severable.

History: L. 2006, ch. 149, § 15; July 1.

2025 Kansas Statutes

16-1601. Short title. This act shall be known and may be cited as the uniform electronic transactions act.

History: L. 2000, ch. 120, § 1; July 1.

2025 Kansas Statutes

16-1602. Definitions. In this act:

- (a) "Agreement" means the bargain of the parties in fact, as found in their language or inferred from other circumstances and from rules, regulations, and procedures given the effect of agreements under laws otherwise applicable to a particular transaction.
- (b) "Automated transaction" means a transaction conducted or performed, in whole or in part, by electronic means or electronic records, in which the acts or records of one or both parties are not reviewed by an individual in the ordinary course in forming a contract, performing under an existing contract or fulfilling an obligation required by the transaction.
- (c) "Computer program" means a set of statements or instructions to be used directly or indirectly in an information processing system in order to bring about a certain result.
- (d) "Contract" means the total legal obligation resulting from the parties' agreement as affected by this act and other applicable law.
- (e) "Digital signature" means a type of electronic signature consisting of a transformation of an electronic message using an asymmetric crypto system such that a person having the initial message and the signer's public key can accurately determine whether:
 - (1) The transformation was created using the private key that corresponds to the signer's public key; and
 - (2) the initial message has not been altered since the transformation was made.
- (f) "Electronic" means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic or similar capabilities.
- (g) "Electronic agent" means a computer program or an electronic or other automated means used independently to initiate an action or respond to electronic records or performances in whole or in part, without review or action by an individual.
- (h) "Electronic record" means a record created, generated, sent, communicated, received or stored by electronic means.
- (i) "Electronic signature" means an electronic sound, symbol or process attached to or logically associated with a record and executed or adopted by a person with the intent to sign the record.
- (j) "Governmental agency" means an executive, legislative, or judicial agency, department, board, commission, authority, institution or instrumentality of the federal government or of a state or of a county, municipality or other political subdivision of a state.
- (k) "Information" means data, text, images, sounds, codes, computer programs, software, databases or the like.
- (l) "Information processing system" means an electronic system for creating, generating, sending, receiving, storing, displaying or processing information.
- (m) "Message" means a digital representation of information.
- (n) "Person" means an individual, corporation, business trust, estate, trust, partnership, limited liability company, association, joint venture, governmental agency, public corporation or any other legal or commercial entity.
- (o) "Record" means information that is inscribed on a tangible medium or that is stored in an electronic or other medium and is retrievable in perceivable form.

(p) "Registered certification authority" means a person providing certification of a digital signature who is, or is certified by, a member of the group of certification authorities approved by and registered with the secretary.

(q) "Secretary" means the Kansas secretary of state.

(r) "Security procedure" means a procedure employed for the purpose of verifying that an electronic signature, record or performance is that of a specific person or for detecting changes or errors in the information in an electronic record. The term includes a procedure that requires the use of algorithms or other codes, identifying words or numbers, encryption, callback or other acknowledgment procedures.

(s) "State" means a state of the United States, the District of Columbia, Puerto Rico, the United States Virgin Islands or any territory or insular possession subject to the jurisdiction of the United States.

(t) "Transaction" means an action or set of actions occurring between two or more persons relating to the conduct of business, insurance, health care, commercial or governmental affairs.

History: L. 2000, ch. 120, § 2; L. 2011, ch. 114, § 35; L. 2012, ch. 166, § 2; July 1.

2025 Kansas Statutes

16-1603. Scope. (a) Except as otherwise provided in subsection (b), this act applies to electronic records and electronic signatures relating to a transaction.

(b) This act does not apply to a transaction to the extent it is governed by:

(1) A law governing the creation and execution of wills, codicils or testamentary trusts; and

(2) the uniform commercial code, other than K.S.A. 2025 Supp. 84-1-306 and articles 2 and 2a of chapter 84 of the Kansas Statutes Annotated, and amendments thereto.

(c) This act applies to an electronic record or electronic signature otherwise excluded from the application of this act under subsection (b) to the extent it is governed by a law other than those specified in subsection (b).

(d) A transaction subject to this act is also subject to other applicable substantive law.

History: L. 2000, ch. 120, § 3; L. 2007, ch. 89, § 26; July 1, 2008.

2025 Kansas Statutes

16-1604. Prospective application. This act applies to any electronic record or electronic signature created, generated, sent, communicated, received or stored on or after the effective date of this act.

History: L. 2000, ch. 120, § 4; July 1.

2025 Kansas Statutes

16-1605. Use of electronic records and electronic signatures; state agency written standards governing use of electronic signatures; rules and regulations governing use of digital signatures by state agencies. (a) This act does not require a record or signature to be created, generated, sent, communicated, received, stored or otherwise processed or used by electronic means or in electronic form.

(b) This act applies only to transactions between parties each of which has agreed to conduct transactions by electronic means. Whether the parties agree to conduct a transaction by electronic means is determined from the context and surrounding circumstances, including the parties' conduct.

(c) A party that agrees to conduct a transaction by electronic means may refuse to conduct other transactions by electronic means. The right granted by this subsection may not be waived by agreement.

(d) Except as otherwise provided in this act, the effect of any of its provisions may be varied by agreement. The presence in certain provisions of this act of the words "unless otherwise agreed", or words of similar import, does not imply that the effect of other provisions may not be varied by agreement.

(e) Whether an electronic record or electronic signature has legal consequences is determined by this act and other applicable law.

(f) The uniform electronic transactions act does not require any person to use electronic signatures.

(g) Any state agency that offers or provides the option of using an electronic signature to persons doing business with that state agency shall establish written standards governing the use of those electronic signatures as follows:

(1) On or before December 31, 2002, for electronic signature applications that are in use by the state agency before July 1, 2002; or

(2) before offering or providing the option of using an electronic signature for any applications implemented on or after July 1, 2002.

(h) The uniform electronic transactions act does not require any person to use or permit the use of digital signatures.

(i) The secretary of state shall adopt rules and regulations governing the use of digital signatures by state agencies. Each state agency offering or providing the option of using a digital signature to persons doing business with that state agency shall implement digital signatures in a manner consistent with the regulations of the secretary of state, except that the state agency may adopt rules and regulations governing that agency's use of digital signatures that exceed the minimum standards established by the rules and regulations of the secretary of state.

History: L. 2000, ch. 120, § 5; L. 2002, ch. 183, § 4; July 1.

2025 Kansas Statutes

16-1606. Construction and application. This act must be construed and applied:

- (a) To facilitate electronic transactions consistent with other applicable law;
- (b) to be consistent with reasonable practices concerning electronic transactions and with the continued expansion of those practices; and
- (c) to effectuate its general purpose to make uniform the law with respect to the subject of this act among states enacting it.

History: L. 2000, ch. 120, § 6; July 1.

2025 Kansas Statutes

16-1607. Legal recognition of electronic records, electronic signatures and electronic contracts. (a) A record or signature may not be denied legal effect or enforceability solely because it is in electronic form.

(b) A contract may not be denied legal effect or enforceability solely because an electronic record was used in its formation.

(c) If a law requires a record to be in writing, an electronic record satisfies the law.

(d) If a law requires a signature, an electronic signature satisfies the law.

History: L. 2000, ch. 120, § 7; July 1.

2025 Kansas Statutes

16-1608. Provision of information in writing; presentation of records. (a) If parties have agreed to conduct a transaction by electronic means and a law requires a person to provide, send or deliver information in writing to another person, the requirements is satisfied if the information is provided, sent or delivered, as the case may be, in an electronic record capable of retention by the recipient at the time of receipt. An electronic record is not capable of retention by the recipient if the sender or its information processing system inhibits the ability of the recipient to print or store the electronic record.

(b) If a law other than this act requires a record (1) to be posted or displayed in a certain manner, (2) to be sent, communicated or transmitted by a specified method, or (3) to contain information that is formatted in a certain manner, the following rules apply:

(A) The record must be posted or displayed in the manner specified in the other law.

(B) Except as otherwise provided in subsection (d)(2), the record must be sent, communicated or transmitted by the method specified in the other law.

(C) The record must contain the information formatted in the manner specified in the other law.

(c) If a sender inhibits the ability of a recipient to store or print an electronic record, the electronic record is not enforceable against the recipient.

(d) The requirements of this section may not be varied by agreement, but:

(1) To the extent a law other than this act requires information to be provided, sent or delivered in writing but permits that requirement to be varied by agreement, the requirement under subsection (a) that the information be in the form of an electronic record capable of retention also may be varied by agreement; and

(2) a requirement under a law other than this act to send, communicate or transmit a record by first-class mail, may be varied by agreement to the extent permitted by the other law.

History: L. 2000, ch. 120, § 8; July 1.

2025 Kansas Statutes

16-1609. Attribution and effect of electronic records and electronic signatures. (a) An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.

(b) The effect of an electronic record or electronic signature attributed to a person under subsection (a) is determined from the context and surrounding circumstances at the time of its creation, execution or adoption, including the parties' agreement, if any, and otherwise as provided by law.

History: L. 2000, ch. 120, § 9; July 1.

2025 Kansas Statutes

16-1610. Effect of change or error. If a change or error in an electronic record occurs in a transmission between parties to a transaction, the following rules apply:

(a) If the parties have agreed to use a security procedure to detect changes or errors and one party has conformed to the procedure, but the other party has not, and the nonconforming party would have detected the change or error had that party also conformed, the conforming party may avoid the effect of the changed or erroneous electronic record.

(b) In an automated transaction involving an individual, the individual may avoid the effect of an electronic record that resulted from an error made by the individual in dealing with the electronic agent of another person if the electronic agent did not provide an opportunity for the prevention or correction of the error and, at the time the individual learns of the error, the individual:

(1) Promptly notifies the other person of the error and that the individual did not intend to be bound by the electronic record received by the other person;

(2) takes reasonable steps, including steps that conform to the other person's reasonable instruction, to return to the other person or, if instructed by the other person, to destroy the consideration received, if any, as a result of the erroneous electronic record; and

(3) has not used or received any benefit or value from the consideration, if any, received from the other person.

(c) If neither paragraph (a) nor paragraph (b) applies, the change or error has the effect provided by other law, including the law of mistake, and the parties' contract, if any.

(d) Subsections (b) and (c) may not be varied by agreement.

History: L. 2000, ch. 120, § 10; July 1.

2025 Kansas Statutes

16-1611. Notarization and acknowledgment; electronic notarization. If a law requires a signature or record to be notarized, acknowledged, verified or made under oath, the requirement is satisfied if the electronic signature of the person authorized to perform those acts, together with all other information required to be included by other applicable law, is attached to or logically associated with the signature or record.

History: L. 2000, ch. 120, § 11; L. 2004, ch. 126, § 2; L. 2021, ch. 64, § 32; January 1, 2022.

2025 Kansas Statutes

16-1612. Retention of electronic records; originals. (a) If a law requires that a record be retained, the requirement is satisfied by retaining an electronic record of the information in the record which:

- (1) Accurately reflects the information set forth in the record after it was first generated in its final form as an electronic record or otherwise; and
 - (2) remains accessible for later reference.
- (b) A requirement to retain a record in accordance with subsection (a) does not apply to any information the sole purpose of which is to enable the record to be sent, communicated or received.
- (c) A person may satisfy subsection (a) by using the services of another person if the requirements of that subsection are satisfied.
- (d) If a law requires a record to be presented or retained in its original form, or provides consequences if the record is not presented or retained in its original form, that law is satisfied by an electronic record retained in accordance with subsection (a).
- (e) If a law requires retention of a check, that requirement is satisfied by retention of an electronic record of the information on the front and back of the check in accordance with subsection (a).
- (f) A record retained as an electronic record in accordance with subsection (a) satisfies a law requiring a person to retain a record for evidentiary, audit or like purposes, unless a law enacted after the effective date of this act specifically prohibits the use of an electronic record for the specified purpose.
- (g) This section does not preclude a governmental agency of this state from specifying additional requirements for the retention of a record subject to the agency's jurisdiction.

History: L. 2000, ch. 120, § 12; July 1.

2025 Kansas Statutes

16-1613. Admissibility in evidence. In a proceeding, evidence of a record or signature may not be excluded solely because it is in electronic form.

History: L. 2000, ch. 120, § 13; July 1.

2025 Kansas Statutes

16-1614. Automated transactions. In an automated transaction, the following rules apply:

- (a) A contract may be formed by the interaction of electronic agents of the parties, even if no individual was aware of or reviewed the electronic agents' actions or the resulting terms and agreements.
- (b) A contract may be formed by the interaction of an electronic agent and an individual, acting on the individual's own behalf or for another person, including by an interaction in which the individual performs actions that the individual is free to refuse to perform and which the individual knows or has reason to know will cause the electronic agent to complete the transaction or performance.
- (c) The terms of the contract are determined by the substantive law applicable to it.

History: L. 2000, ch. 120, § 14; July 1.

2025 Kansas Statutes

16-1615. Time and place of sending and receipt. (a) Unless otherwise agreed between the sender and the recipient, an electronic record is sent when it:

- (1) Is addressed properly or otherwise directed properly to an information processing system that the recipient has designated or uses for the purpose of receiving electronic records or information of the type sent and from which the recipient is able to retrieve the electronic record;
- (2) is in a form capable of being processed by that system; and
- (3) enters an information processing system outside the control of the sender or of a person that sent the electronic record on behalf of the sender or enters a region of the information processing system designated or used by the recipient which is under the control of the recipient.

(b) Unless otherwise agreed between a sender and the recipient, an electronic record is received when:

- (1) It enters an information processing system that the recipient has designated or uses for the purpose of receiving electronic records or information of the type sent and from which the recipient is able to retrieve the electronic record; and
- (2) it is in a form capable of being processed by that system.

(c) Subsection (b) applies even if the place the information processing system is located is different from the place the electronic record is deemed to be received under subsection (d).

(d) Unless otherwise expressly provided in the electronic record or agreed between the sender and the recipient, an electronic record is deemed to be sent from the sender's place of business and to be received at the recipient's place of business. For purposes of this subsection, the following rules apply:

- (1) If the sender or recipient has more than one place of business, the place of business of that person is the place having the closest relationship to the underlying transaction.
- (2) If the sender or the recipient does not have a place of business, the place of business is the sender's or recipient's residence, as the case may be.

(e) An electronic record is received under subsection (b) even if no individual is aware of its receipt.

(f) Receipt of an electronic acknowledgment from an information processing system described in subsection (b) establishes that a record was received but, by itself, does not establish that the content sent corresponds to the content received.

(g) If a person is aware that an electronic record purportedly sent under subsection (a), or purportedly received under subsection (b), was not actually sent or received, the legal effect of the sending or receipt is determined by other applicable law. Except to the extent permitted by the other law, the requirements of this subsection may not be varied by agreement.

History: L. 2000, ch. 120, § 15; July 1.

2025 Kansas Statutes

16-1616. Transferable records. (a) In this section, "transferable record" means an electronic record that:

- (1) Would be a note under article 3 of chapter 84 of the Kansas Statutes Annotated, and amendments thereto, or a document under article 7 of chapter 84 of the Kansas Statutes Annotated, and amendments thereto, if the electronic record were in writing; and
- (2) the issuer of the electronic record expressly has agreed is a transferable record.

(b) A person has control of a transferable record if a system employed for evidencing the transfer of interests in the transferable record reliably establishes that person as the person to which the transferable record was issued or transferred.

(c) A system satisfies subsection (b), and a person is deemed to have control of a transferable record, if the transferable record is created, stored and assigned in such a manner that:

- (1) A single authoritative copy of the transferable record exists which is unique, identifiable, and, except as otherwise provided in paragraphs (4), (5) and (6), unalterable;
- (2) the authoritative copy identifies the person asserting control as:
 - (A) The person to which the transferable record was issued; or
 - (B) if the authoritative copy indicates that the transferable record has been transferred, the person to which the transferable record was most recently transferred;
- (3) the authoritative copy is communicated to and maintained by the person asserting control or its designated custodian;
- (4) copies or revisions that add or change an identified assignee of the authoritative copy can be made only with the consent of the person asserting control;
- (5) each copy of the authoritative copy and any copy of a copy is readily identifiable as a copy that is not the authoritative copy; and
- (6) any revision of the authoritative copy is readily identifiable as authorized or unauthorized.

(d) Except as otherwise agreed, a person having control of a transferable record is the holder, as defined in K.S.A. 2025 Supp. 84-1-201(b)(21), and amendments thereto, of the transferable record and has the same rights and defenses as a holder of an equivalent record or writing under the uniform commercial code, including, if the applicable statutory requirements under K.S.A. 84-3-302(a), or 84-9-308, or K.S.A. 2025 Supp. 84-7-501, and amendments thereto, are satisfied, the rights and defenses of a holder in due course, a holder to which a negotiable document of title has been duly negotiated, or a purchaser, respectively. Delivery, possession, and indorsement are not required to obtain or exercise any of the rights under this subsection.

(e) Except as otherwise agreed, an obligor under a transferable record has the same rights and defenses as an equivalent obligor under equivalent records or writings under the uniform commercial code.

(f) If requested by a person against which enforcement is sought, the person seeking to enforce the transferable record shall provide reasonable proof that the person is in control of the transferable record. Proof may include access to the authoritative copy of the transferable record and related business records sufficient to review the terms of the transferable record and to establish the identity of the person having control of the transferable record.

History: L. 2000, ch. 120, § 16; L. 2007, ch. 89, § 27; L. 2007, ch. 195, § 8; July 1, 2008.

2025 Kansas Statutes

16-1617. Registered certification authorities. (a) Any person, before entering upon the duties of a registered certification authority, shall:

- (1) Register with the secretary on forms approved and provided by the secretary;
- (2) pay to the secretary an annual filing fee of \$1,000;
- (3) file with the secretary a good and sufficient surety bond, certificate of insurance or other evidence of financial security in the amount of \$100,000; and
- (4) be approved by the secretary as meeting the requirements of any rules and regulations adopted by the secretary, as the secretary determines appropriate, to ensure the person's financial responsibility and condition, character, qualifications and fitness to be a registered certification authority.

(b) A registered certification authority shall create, maintain and preserve all records that are necessary to demonstrate compliance with rules and regulations adopted by the secretary.

(c) If any person who is approved and registered with the secretary as a registered certification authority fails to maintain any of the qualifications listed in subsection (a) and (b) or otherwise required by rules and regulations of the secretary, the person's registration shall be deemed lapsed.

(d) Any person who violates or fails to comply with this section and any provision related to registered certification authority and the rules and regulations of the secretary promulgated pursuant to K.S.A. 16-1618, and amendments thereto, upon notice and hearing, shall be subject to a civil penalty not to exceed \$10,000 per failure or violation.

History: L. 2000, ch. 120, § 17; July 1.

2025 Kansas Statutes

16-1618. Rules and regulations. The secretary may adopt rules and regulations to implement the provisions of K.S.A. 16-1617 and 16-1619, and amendments thereto, and related provisions thereto.

History: L. 2000, ch. 120, § 18; July 1.

2025 Kansas Statutes

16-1619. Reciprocity with other jurisdictions. The secretary shall have the authority to establish reciprocity with other states and nations for purposes of K.S.A. 16-1617 and 16-1618, and amendments thereto, and related provisions thereto.

History: L. 2000, ch. 120, § 19; July 1.

2025 Kansas Statutes

16-1620. Severability. If any provision of this act or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this act which can be given effect without the invalid provision or application, and to this end the provisions of this act are severable.

History: L. 2000, ch. 120, § 20; July 1.

2025 Kansas Statutes

61-2801. Citation of act. This act shall be known and may be cited as the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 1; January 1, 2001.

2025 Kansas Statutes

61-2802. Application of code. (a) This act may be used to govern the procedure for a civil lawsuit filed in the district court which:

- (1) Seeks judgment for a debt which is not secured by a lien and arises out of a contract for the providing of goods, services or money, without limitation as to the amount claimed in the lawsuit;
- (2) seeks judgment for a debt which is secured by a lien and arises out of a contract for the providing of goods, services or money, where the amount claimed in the lawsuit, not counting costs, interest and fees, does not exceed \$25,000; or
- (3) seeks judgment where the claim does not arise out of a contract and the amount claimed in the lawsuit, not counting costs, interest and fees, does not exceed \$25,000.

(b) The following types of lawsuits may not be filed under this act:

- (1) Actions against any officers of the state, or any subdivisions thereof, for misconduct in office, except as authorized by the Kansas tort claims act, K.S.A. 75-6101 et seq., and amendments thereto;
- (2) actions for specific performance of contracts for real estate;
- (3) actions in which title to real estate is sought to be recovered or in which an interest in real estate, either legal or equitable, is sought to be established, except that nothing in this paragraph shall be construed as limiting the right to bring an action for forcible detainer as provided in K.S.A. 61-3801 through 61-3808, and amendments thereto;
- (4) actions to foreclose real estate mortgages or to establish and foreclose liens on real estate as provided in article 11 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto;
- (5) actions for divorce, separate maintenance or custody of minor children;
- (6) habeas corpus;
- (7) receiverships;
- (8) change of name;
- (9) declaratory judgments;
- (10) mandamus and quo warranto;
- (11) injunctions;
- (12) class actions;
- (13) rights of majority; and
- (14) any appeal from an order or ruling of an administrative officer or body.

History: L. 2000, ch. 161, § 2; January 1, 2001.

2025 Kansas Statutes

61-2803. Supreme court rules. The supreme court of this state shall adopt rules to govern the electronic filing of court matters and the storage of and access by the public to the same and such other matters as is necessary under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 3; L. 2002, ch. 157, § 2; July 1.

2025 Kansas Statutes

61-2804. Filings. Judicial districts in this state may accept for filing under this act lawsuits filed in the same method in which lawsuits are filed prior to the adoption of this act, or filed pursuant to an electronic filing procedure, or a combination of the two, as long as any such filings comply with the rules of the supreme court of this state.

History: L. 2000, ch. 161, § 4; January 1, 2001.

2025 Kansas Statutes

61-2805. Acts by court or judge. Without regard to whether the word "court" or the word "judge" is used in any provisions of this act, all trials upon the merits shall be conducted in open court and in a regular courtroom within the county if reasonably possible. All other acts or proceedings, including the entry of a ruling or judgment, may be done or conducted by a judge or judge pro tem in chambers, or at such other place within the county as is designated by the judge for the conduct of court business, without the attendance of the clerk or other court officials.

History: L. 2000, ch. 161, § 5; January 1, 2001.

2025 Kansas Statutes

61-2806. Construction. The provisions of this act shall be liberally construed to secure the just, speedy and inexpensive determination of every action or proceeding.

History: L. 2000, ch. 161, § 6; January 1, 2001.

2025 Kansas Statutes

61-2901. Name of parties. The party who files a lawsuit shall be called the plaintiff and the adverse party shall be called the defendant.

History: L. 2000, ch. 161, § 7; January 1, 2001.

2025 Kansas Statutes

61-2902. Commencement of actions, limitations of actions. (a) An action pursuant to the code of civil procedure for limited actions is commenced at the time of:

(1) Filing a petition with the clerk of the district court, if service of process is obtained or the first publication is made for service by publication, within 90 days after the petition is filed, except that the court may extend that time an additional 30 days upon a showing of good cause by the plaintiff; or

(2) service of process or first publication, if service of process or first publication is not made within the time specified by provision (1).

(b) If service of process or first publication purports to have been made but is later adjudicated to have been invalid due to any irregularity in form or procedure or any defect in making service, the action shall nevertheless be deemed to have been commenced at the applicable time under subsection (a) if valid service is obtained or first publication is made within 90 days after that adjudication, except that the court may extend that time an additional 30 days upon a showing of good cause by the plaintiff.

(c) An entry of appearance by the defendant shall have the same effect as service of process on the defendant.

(d) The limitation of time for commencing lawsuits pursuant to the code of civil procedure for limited actions shall be as provided in article 5 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto, except where a different limitation is specifically provided by statute.

History: L. 2000, ch. 161, § 8; January 1, 2001.

2025 Kansas Statutes

61-2903. Pleadings and other papers allowed. (a) Pleadings. Only the pleadings set forth in K.S.A. 60-207, and amendments thereto, shall be allowed in an action commenced pursuant to the code of civil procedure for limited actions, but the only pleading required is a petition. Third-party practice in the manner prescribed by K.S.A. 60-214, and amendments thereto, shall be permitted.

(b) Petitions. A petition shall state the claim or claims which the plaintiff has against the defendant. It shall set forth the current address, phone number, fax phone number and electronic mail address for the plaintiff. If the plaintiff is not represented by an attorney, the petition shall be signed by the plaintiff.

(c) Motions and other papers. An application to the court or judge for an order shall be by motion which, unless made during a hearing or trial, shall be made in writing, shall state the particular grounds for the motion, shall set forth the relief or order sought, and shall contain a notice of when the motion is to be heard by the court.

History: L. 2000, ch. 161, § 9; January 1, 2001.

2025 Kansas Statutes

61-2904. Appearance; answer; counter-claim; affirmative defenses. (a) A defendant shall either appear, in person or by counsel, at the time and date set forth in the summons or file on or before such date a written answer. If the defendant appears and disputes the petition, the defendant shall file an answer not later than 14 days after the appearance date. The defendant shall promptly send a copy of the answer after filing to the plaintiff's attorney or the plaintiff, if no attorney. If the defendant is not represented by an attorney, the answer shall be signed by the defendant.

(b) The answer when filed shall state the following:

- (1) What the dispute is;
- (2) any affirmative defenses the defendant has to the claim; and
- (3) the current address, phone number, fax phone number and electronic mail address for the defendant.

(c) If the defendant asserts a counterclaim against the plaintiff in the answer, the plaintiff may file a reply disputing the defendant's counterclaim not later than 14 days after service of the defendant's answer. The plaintiff's reply shall comply with the requirements set forth in subsection (b). If the plaintiff does not file a reply, the plaintiff waives the right to present any dispute to the defendant's counterclaim.

(d) Affirmative defenses are those listed in subsection (c) of K.S.A. 60-208, and amendments thereto.

(e) The date the defendant is required to appear as set forth in the summons may be continued by the court upon request of either party in such manner as the court shall prescribe.

History: L. 2000, ch. 161, § 10; L. 2010, ch. 135, § 198; July 1.

2025 Kansas Statutes

61-2905. Counterclaims and cross-claims. (a) (1) Upon timely application of the plaintiff and in the discretion of the court, a defendant may be required to plead any counterclaim which such party has against the plaintiff, if it arises out of the transaction or occurrence that is the subject matter of the plaintiff's claim and does not require for its adjudication the presence of third parties of whom the court cannot acquire jurisdiction, except that the defendant shall not be required to plead any such claim if: (A) At the time the action was commenced the claim was the subject of another pending action; or (B) the plaintiff brought suit upon such plaintiff's claim by attachment or other process by which the court did not acquire jurisdiction to render a personal judgment on that claim, and the defendant is not pleading any other counterclaim.

(2) A defendant shall not be estopped from asserting in a subsequent action any claim which such defendant may have against the plaintiff, if such defendant is not required to plead such claim pursuant to this section. Except as provided in subsections (a) and (k), the provisions of K.S.A. 60-213, and amendments thereto, relating to counterclaims and cross-claims, shall apply to proceedings pursuant to the code of civil procedure for limited actions, subject to the provisions of K.S.A. 61-2911, and amendments thereto.

(b) Notwithstanding the provisions of subsection (a), in an action involving a claim governed by K.S.A. 60-258a, and amendments thereto, a party shall state as a counterclaim any claim that party has against any opposing party arising out of the transaction or occurrence that is the subject matter of the claim governed by K.S.A. 60-258a, and amendments thereto.

History: L. 2000, ch. 161, § 11; January 1, 2001.

2025 Kansas Statutes

61-2907. Service and filing of pleadings and other papers. (a) The petition shall be served on the defendant in accordance with the provisions of K.S.A. 61-3001 through 61-3006, and amendments thereto.

(b) All pleadings other than the petition, motions which cannot be heard ex parte, notices, and orders which are required by their terms to be served, shall be served upon the party's attorney of record, if the party is represented by an attorney, or upon the party if not represented by an attorney, in the following manner:

(1) By delivering a copy;

(2) by mailing a copy by first-class mail, certified mail or registered mail to the last known address; or

(3) if no address is known, by leaving a copy with the clerk of the court. For the purposes of this subsection, delivering a copy means: Handing it to the attorney or to the party; leaving it at the attorney's or party's office with the person in charge thereof or, if there is no one in charge, leaving it in a conspicuous place therein; or, if the attorney's or party's office is closed or the person to be served has no office, leaving it at the attorney's or party's dwelling house or usual place of abode with some person of suitable age and discretion then residing therein. Service by mail is complete upon mailing. All such pleadings, motions, notices and orders covered by this subsection shall be filed with the court either before service or within a reasonable time thereafter.

(c) The filing of pleadings and other papers with the court as required or permitted by this act shall be done in accordance with rules or orders of the supreme court.

History: L. 2000, ch. 161, § 13; L. 2002, ch. 157, § 3; July 1.

2025 Kansas Statutes

61-2908. Special matters. The provisions of K.S.A. 60-209, 60-210 and 60-211, and amendments thereto, shall apply to pleadings filed under K.S.A. 61-2901 through 61-2912, and amendments thereto.

History: L. 2000, ch. 161, § 14; January 1, 2001.

2025 Kansas Statutes

61-2909. Computation and extension of time. The provisions of K.S.A. 60-206, and amendments thereto, governing the computation and extension of time, shall govern actions pursuant to the code of civil procedure for limited actions, except where provisions to the contrary are specifically included in the code.

History: L. 2000, ch. 161, § 15; January 1, 2001.

2025 Kansas Statutes

61-2910. Application of chapter 60, when. Upon motion of any party and for good cause shown, the court may order that an action filed under the code of civil procedure for limited actions, except an action filed pursuant to the small claims procedure act, article 27 of chapter 61 of the Kansas Statutes Annotated, and amendments thereto, shall thereafter be governed by the provisions of chapter 60 of the Kansas Statutes Annotated, and amendments thereto. The party obtaining an order under this section shall pay any additional docket fee required had the action been filed under chapter 60 of the Kansas Statutes Annotated, and amendments thereto. Upon such order of the court and payment of any additional docket fee, the clerk of the district court shall renumber the case as a case filed under chapter 60 of the Kansas Statutes Annotated, and amendments thereto, in the same manner as required by K.S.A. 60-2418, and amendments thereto.

History: L. 2000, ch. 161, § 16; L. 2002, ch. 66, § 1; April 25.

2025 Kansas Statutes

61-2911. Claims beyond the scope of actions authorized by K.S.A. 61-2802. (a) Whenever a plaintiff demands judgment beyond the scope of actions authorized by the provisions of K.S.A. 61-2802, and amendments thereto, the court shall either:

(1) Transfer the action to the chief judge of the judicial district for assignment and hearing pursuant to chapter 60 of the Kansas Statutes Annotated, and amendments thereto, assessing the increased docket fee to the plaintiff; or (2) allow the plaintiff to amend the pleadings and service of process to bring the demand for judgment within the scope of actions authorized by the provisions of K.S.A. 61-2802, and amendments thereto, assessing the costs accrued to the plaintiff.

(b) If a defendant asserts a counterclaim or cross-claim beyond the scope of the code of civil procedure for limited actions, the case shall be referred by the chief judge for assignment and hearing pursuant to chapter 60 of the Kansas Statutes Annotated, and amendments thereto, assessing the increased docket fee to the defendant.

History: L. 2000, ch. 161, § 17; January 1, 2001.

2025 Kansas Statutes

61-2912. Adoption by reference of certain provisions of article 2 of chapter 60. The following provisions of article 2 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto, are hereby adopted by reference and made a part of this act as if fully set forth herein, insofar as such provisions are not inconsistent or in conflict with the provisions of this act:

- (a) K.S.A. 60-215, and amendments thereto, relating to amended and supplemental pleadings, except that the time for filing amended pleadings and for responding thereto shall be 14 instead of 21 days;
- (b) K.S.A. 60-217, and amendments thereto, relating to capacity of parties;
- (c) K.S.A. 60-218, and amendments thereto, providing for joinder of claims and remedies, K.S.A. 60-219 and 60-220, and amendments thereto, providing for joinder of parties, and K.S.A. 60-221, and amendments thereto, relating to misjoinder of parties and claims;
- (d) K.S.A. 60-224, and amendments thereto, relating to intervention, and K.S.A. 60-225, and amendments thereto, providing for substitution of parties;
- (e) K.S.A. 60-234, and amendments thereto, relating to production of documents and things for inspection;
- (f) K.S.A. 60-241, and amendments thereto, providing for dismissal of actions;
- (g) K.S.A. 60-244, and amendments thereto, providing for proof of records;
- (h) K.S.A. 60-252, and amendments thereto, concerning findings and conclusions by the court, except that when the findings and conclusions are made by a district magistrate judge, the time to file a motion for amended or additional findings is 14 instead of 28 days;
- (i) K.S.A. 60-256, and amendments thereto, relating to summary judgment;
- (j) K.S.A. 60-259, and amendments thereto, concerning new trial, except that the time to file a motion for new trial or to alter or amend judgment when a judgment is rendered by a district magistrate judge is 14 instead of 28 days;
- (k) K.S.A. 60-260, and amendments thereto, concerning relief from judgment or order;
- (l) K.S.A. 60-261 and 60-263, and amendments thereto, relating respectively to harmless error and disability of a judge; and
- (m) K.S.A. 60-264, and amendments thereto, relating to process in behalf of and against persons not parties.

History: L. 2000, ch. 161, § 18; L. 2010, ch. 135, § 199; July 1.

2025 Kansas Statutes

61-3001. Summons; issuance. Upon the filing of the petition pursuant to the code of civil procedure for limited actions, the clerk of the district court shall issue a summons for service upon each defendant in accordance with this act. Additional summonses may be issued as requested.

History: L. 2000, ch. 161, § 19; January 1, 2001.

2025 Kansas Statutes

61-3002. Summons; time for appearance; form. (a) The summons shall be issued by the clerk and dated the day it is issued. The summons shall state the time when the law requires the defendant to appear or file an answer in response to the petition, and shall notify such defendant that in case of such defendant's failure to appear or file an answer, judgment by default will be rendered against such defendant for the relief demanded in the petition.

(b) The time stated in the summons requiring the defendant to appear in response to the petition shall be determined by the court. Such time shall be not less than 14 nor more than 50 days after the date the summons is issued.

History: L. 2000, ch. 161, § 20; L. 2002, ch. 157, § 4; L. 2010, ch. 135, § 200; July 1.

2025 Kansas Statutes

61-3003. Methods of service of process. (a) Methods of service of process within this state, except service by publication, are described in this section. Service of process outside the state shall be made in substantial compliance with the applicable provisions of K.S.A. 60-308, and amendments thereto.

(b) Who serves process. The sheriff of the county in which the action is filed shall serve any process by any method authorized by this section, or as otherwise provided by law, unless a party, either personally or through an attorney, elects to undertake responsibility for service and so notifies the clerk.

(c) Service by return receipt delivery.

(1) Service of process by return receipt delivery shall include service effected by certified mail, priority mail, commercial courier service, overnight delivery service, or other reliable personal delivery service to the party addressed, in each instance evidenced by a written or electronic receipt showing to whom delivered, date of delivery, address where delivered, and person or entity effecting delivery.

(2) The sheriff, party or party's attorney shall cause a copy of the process and petition or other document to be placed in a sealed envelope addressed to the person to be served in accordance with K.S.A. 61-3004, and amendments thereto, with postage or other delivery fees prepaid, and the sealed envelope placed in the custody of the person or entity effecting delivery.

(3) Service of process shall be considered obtained under K.S.A. 61-2902, and amendments thereto, upon the delivery of the sealed envelope.

(4) After service and return of the receipt, the sheriff, party, or party's attorney shall execute a return on service stating the nature of the process, to whom delivered, the date of delivery, the address where delivered, and the person or entity effecting delivery. The original return of service shall be filed with the clerk, along with a copy of the return receipt evidencing such delivery.

(5) If the sealed envelope is returned with an endorsement showing refusal to accept delivery, the sheriff, party or the party's attorney may send a copy of the process and petition or other document by first-class mail addressed to the party to be served, or may elect other methods of service. If mailed, service shall be considered obtained three days after the mailing by first-class mail, postage prepaid, which shall be evidenced by a certificate of service filed with the clerk. If the unopened envelope sent first-class mail is returned as undelivered for any reason, the sheriff, party or party's attorney shall file an amended certificate of service with the clerk indicating nondelivery, and service by such mailing shall not be considered obtained. Mere failure to claim return receipt delivery is not refusal of service within the meaning of this subsection.

(d) Personal and residence service.

(1) The party may file a written request with the clerk for personal or residence service. Personal service shall be made by delivering or offering to deliver a copy of the process and accompanying documents to the person to be served. Residence service shall be made by leaving a copy of the process and petition, or other document to be served, at the dwelling house or usual place of abode of the person to be served with some person of suitable age and discretion residing therein. If service cannot be made upon an individual, other than a minor or a disabled person, by personal or residence service, service may be made by leaving a copy of the process and petition, or other

document to be served, at the defendant's dwelling house or usual place of abode and mailing a notice that such copy has been left at such house or place of abode to the individual by first-class mail.

(2) When process is to be served under this subsection, the clerk of the court shall deliver the process and sufficient copies of the process and petition, or other document to be served, to the sheriff of the county where the process is to be served or, if requested, to a person appointed to serve process or to the plaintiff's attorney.

(3) Service, levy and execution of all process under this subsection, including, but not limited to, writs of execution, orders of attachment, replevin orders, orders for delivery, writs of restitution and writs of assistance, shall be made by a sheriff within the sheriff's county, by the sheriff's deputy, by an attorney admitted to the practice of law before the supreme court of Kansas, by a person licensed as a private detective pursuant to K.S.A. 75-7b01 et seq., and amendments thereto, or by some person appointed as a process server by a judge or clerk of the district court, except that a subpoena may also be served by any other person who is not a party and is not less than 18 years of age. Process servers shall be appointed freely and may be authorized either to serve process in a single case or in cases generally during a fixed period of time. A process server, authorized attorney or licensed private detective may make the service anywhere in or out of the state and shall be allowed the fees prescribed in K.S.A. 28-110, and amendments thereto, for the sheriff and such other fees and costs as the court shall allow. All persons authorized under this subsection to serve, levy and execute process shall be considered an "officer" as used in K.S.A. 60-706 and 60-2401, and amendments thereto.

(4) In all cases when the person to be served, or an agent authorized by the person to accept service of process, refuses to receive copies thereof, the offer of the duly authorized process server to deliver copies thereof, and the refusal, shall be a sufficient service of the process.

(e) Publication service. Service of process by publication may be made pursuant to the provisions of K.S.A. 60-307, and amendments thereto, which are not inconsistent or in conflict with this act.

(f) Acknowledgment or appearance. An acknowledgment of service on the summons is equivalent to service. The voluntary appearance by a defendant is equivalent to service as of the date of appearance.

(g) In addition to other methods listed in this section, the person serving process may serve a garnishment process in any of the following methods:

(1) First class mail. Process may be sent to a person by first-class mail by placing a copy of the process and petition or other document to be served in an envelope addressed to the person to be served in accordance with K.S.A. 61-3004, and amendments thereto, at such person's last known address. The envelope used for such service shall be addressed to the person in accordance with K.S.A. 61-3004, and amendments thereto, and shall contain adequate postage. Such envelope shall be sealed and placed in the United States mail. Service by first-class mail shall be complete when the envelope is placed in the mail unless returned undelivered. Service shall be considered obtained upon the mailing by first-class mail unless returned undelivered.

(2) Telefacsimile communication. Process may be sent to a person by telefacsimile communication at a telefacsimile number designated by the garnishee. Service is complete upon receipt of a confirmation generated by the transmitting machine.

(3) Internet electronic mail. Process may be sent to a person by internet electronic mail

at an internet electronic mail address designated by the garnishee and as provided in the rules to be adopted hereunder by the supreme court. Service is complete upon receipt of a reply generated by the garnishee.

History: L. 2000, ch. 161, § 21; L. 2002, ch. 198, § 1; L. 2009, ch. 43, § 2; July 1.

2025 Kansas Statutes

61-3004. Service of process; time limits; on whom service made. (a) Service shall be made promptly and, in any event, in time to make a timely return of service as required by K.S.A. 61-3005, and amendments thereto.

(b) If the defendant is a nonresident who is employed in this state, or if the place of residence of the defendant is unknown, the plaintiff may direct that the service of summons or other process shall be made by directing an officer, partner, managing or general agent, or the person having charge of the office or place of employment at which the defendant is employed, to make the defendant available for the purpose of permitting the summons or other process to be served on the defendant at the defendant's place of employment.

(c) As used in this section, "serving" means making service by any of the methods described in K.S.A. 61-3003, and amendments thereto, unless a specific method of making service is prescribed in this section. Except for service by publication, service of process shall be made as follows:

(1) Service upon an individual other than a minor or disabled person shall be made by serving the individual or by serving an agent authorized by appointment or by law to receive service of process, but if the agent is one designated by statute to receive service, such further notice as the statute requires shall be given. Service by certified mail or first-class mail shall be addressed to an individual at the individual's dwelling house or usual place of abode and to an authorized agent at the agent's usual or designated address.

(2) Service upon a minor, disabled person as defined by K.S.A. 77-201, and amendments thereto, foreign or domestic corporations, partnerships, insurance companies or associations shall be made in accordance with the applicable provisions of K.S.A. 60-304, and amendments thereto.

(3) Service upon a governmental entity shall be made in accordance with the applicable provisions of K.S.A. 60-304, and amendments thereto.

History: L. 2000, ch. 161, § 22; L. 2002, ch. 114, § 73; July 1.

2025 Kansas Statutes

61-3005. Proof of service. Proof of service shall be made as follows:

- (a) Personal and residence service. (1) Every officer to whom summons or other process shall be delivered for service within or without the state, shall make return thereof in writing stating the time, place and manner of service of such writ, and shall sign such officer's name to such return.
- (2) If such process is directed to and delivered to a person other than by an officer for service, such person shall make affidavit as to the time, place and manner of such person's service thereof.
- (b) Service by return receipt delivery. Service by return receipt delivery shall be proven in the manner provided by subsection (e) of K.S.A. 60-308 or subsection (c) of K.S.A. 61-3003, and amendments thereto.
- (c) Publication service. Service by publication shall be proven by an affidavit showing the dates upon, and the newspaper in which the notice of publication was published. A copy of the notice shall be attached to the affidavit which shall be filed in the cause. When mailing of copies of the publication notice is required in accordance with subsection (e) of K.S.A. 60-307, and amendments thereto, the proof of such mailing shall be by affidavit of the person who mailed such copies and such affidavit shall be filed with the clerk of the court in which the action has been filed. Any return receipt shall be made a part of the affidavit and filed therewith.
- (d) Time for return. The officer or other person receiving a summons or other process in forcible detainer cases shall make return of service promptly and, in any event, no later than three days before the date stated in the summons for the defendant to either appear or plead to the petition. In all other cases return of service shall be made promptly and, in any event, no later than five days before the date stated in the summons for the defendant to either appear or plead to the petition. If the process cannot be served as directed, it shall be returned to the court forthwith with a statement of the reason for the failure to serve the same.
- (e) Amendment of return. At any time in the judge's discretion and upon such terms as the judge deems just, the judge may allow any process, return or proof of service thereof to be amended, unless it clearly appears that material prejudice would result to the substantial rights of the party against whom the process issued.
- (f) Garnishment service of process. (1) First class mail. The return shall show the nature of the process, the date on which the process was mailed and the name and address on the envelope containing the process.
- (2) Telefacsimile communication. The return shall show the nature of the process, the time and date on which the process was transmitted by telefacsimile, the telephone number of the transmitting machine and the telephone number of the receiving machine.
- (3) Internet electronic mail. The return shall show the nature of the process, the time and date on which the process was transmitted by internet electronic mail, the internet electronic mail address of the transmitting person and the internet electronic mail address of the receiving person.

History: L. 2000, ch. 161, § 23; January 1, 2001.

2025 Kansas Statutes

61-3006. Service of process outside the state. (a) (1) Service of process may be made upon any party outside the state. If upon a person domiciled in this state or upon a person who has submitted to the jurisdiction of the courts of this state, it shall have the force and effect of service of process within this state; otherwise it shall have the force and effect of service by publication.

(2) The service of process shall be made in the same manner as service within this state, by any officer authorized to make service of process in this state or in the state where the defendant is served. No order of a court is required. An affidavit, or any other competent proofs, of the server shall be filed stating the time, manner and place of service. The court may consider the affidavit, or any other competent proofs, in determining whether service has been properly made.

(3) The time stated in the summons requiring the defendant to appear in response to the petition shall be determined by the court. Such time shall be not less than 14 nor more than 50 days after the date the summons is issued, except as provided in subsection (a)(3) of K.S.A. 60-308, and amendments thereto.

(b) The provisions of subsection (b) of K.S.A. 60-308, and amendments thereto, shall be used to determine whether a person has submitted to the jurisdiction of this state.

(c) Service of process upon any person who is subject to the jurisdiction of the courts of this state, as provided in subsection (b), may be made by serving the process upon the defendant outside this state, as provided in subsection (a)(2), with the same force and effect as though process had been served within this state, but only causes of action arising from acts enumerated in subsection (b) may be asserted against a defendant in an action in which jurisdiction over the defendant is based upon this subsection.

(d) Nothing contained in this section limits or affects the right to serve any process in any other manner provided by law.

History: L. 2000, ch. 161, § 24; L. 2010, ch. 135, § 201; July 1.

2025 Kansas Statutes

61-3101. Admission of facts and genuineness of documents; withdrawal or amendment of admission.

(a) When an answer has been filed in an action or if the defendant appears and disputes the claims in the petition commenced pursuant to the provisions of the code of civil procedure for limited actions, any party may submit to any other party a written request for that party to admit:

- (1) The genuineness of any relevant document described in and attached to the request; or
- (2) the truth of any relevant matter of fact set forth in the request. The request shall be in a form which will permit the party to whom it is submitted to answer the questions on the request form under oath. A request for admissions may not contain more than 10 requests unless permission of the court is obtained to increase the number.

(b) Each of the matters requested shall be deemed to be admitted for purposes of the pending lawsuit, unless within 14 days after the request is served, the party to whom the request is directed submits to the party propounding the request either:

- (1) A sworn statement denying specifically the matters requested; or
- (2) written objections on the ground that some or all of the requested admissions are privileged or irrelevant or that the request is otherwise improper in whole or in part.

(c) If the answering party cannot truthfully admit or deny a request, the party shall set forth in detail the reasons why. If the answering party denies a request, the denial shall be in good faith and shall fairly address the substance of the request. If in good faith the answering party can deny only a part of the request or qualify a request, the party shall specify which part is admitted and qualify or deny the remaining part. If the answering party objects to a request, the party shall notify the court and the party propounding the request and schedule a hearing on the objection to be held within 14 days after making the objection.

(d) The judge may permit withdrawal or amendment of any admission made by nonresponse when the party to whom the admissions were sent shows good cause for failure to respond and shows evidence that the admission is not true and the party who obtained the admission fails to satisfy the judge that withdrawal or amendment will prejudice such party in maintaining such party's action or defense on the merits. In the event such withdrawal or amendment is made by the party to whom the admissions were sent at trial, the party who obtained the admissions shall be allowed a continuance of the trial setting. Any admission made by a party under this section is for the purpose of the pending action only and is not an admission by such party for any other purpose nor may it be used against such party in any other proceeding.

History: L. 2000, ch. 161, § 25; L. 2004, ch. 176, § 4; L. 2010, ch. 135, § 202; July 1.

2025 Kansas Statutes

61-3102. Expenses on refusal to admit truth of matter requested. If a party to whom a request for admission has been submitted denies under oath any matter requested, and the party submitting the request later proves the genuineness of any document or the truth of any matter of fact denied by the answering party, the party submitting the request may ask the court for an order requiring the answering party to pay the reasonable expenses incurred in making such proof, including reasonable attorney fees. The court shall enter the order unless the court finds that there were good reasons for the denial or that the admissions sought were of no substantial importance.

History: L. 2000, ch. 161, § 26; January 1, 2001.

2025 Kansas Statutes

61-3103. Interrogatories. (a) Any party may submit to any other party up to 10 interrogatories. The party receiving the interrogatories shall submit answers or objections, if any, to the party submitting the same within 14 days after the interrogatories are submitted to the receiving party. On motion, the court may allow a longer time to answer or may permit a greater number of interrogatories to be submitted.

(b) The provisions of K.S.A. 60-233, and amendments thereto, shall be applicable to interrogatories pursuant to this section, except that the provisions of this section relating to the time when interrogatories are to be answered shall be applicable. The general discovery provisions of subsections (b), (c) and (e) of K.S.A. 60-226, and amendments thereto, and the sanction provisions of K.S.A. 60-237, and amendments thereto, as such sections relate to interrogatories, shall be applicable to interrogatories pursuant to this section.

History: L. 2000, ch. 161, § 27; L. 2010, ch. 135, § 203; July 1.

2025 Kansas Statutes

61-3104. Subpoenas. Subpoenas may be issued by the clerk of the district court under the seal of such court or by the judge to compel the attendance of witnesses or for the production of documentary evidence in the manner provided in K.S.A. 60-245, and K.S.A. 60-245a, and amendments thereto. Subpoenas shall be served in accordance with K.S.A. 61-3001 through 61-3006, and amendments thereto, and shall be accompanied by the fees for one day's attendance and the mileage allowed by law.

History: L. 2000, ch. 161, § 28; January 1, 2001.

2025 Kansas Statutes

61-3105. Depositions. (a) Any party to an action pursuant to the code of civil procedure for limited actions may take the testimony of any person, including a party, either within or without the state, by deposition upon oral examination or written questions but only for use as evidence in the action. Unless the court orders otherwise, the parties may by written stipulation provide that depositions may be taken before any person, at any time or place, upon any notice, and in any manner and when so taken may be used like other depositions. The taking of such depositions shall be governed by the provisions of K.S.A. 60-228, subsections (b) through (h) of K.S.A. 60-230, 60-231 and subsection (d) of K.S.A. 60-232, and amendments thereto, except that any party desiring to take a deposition shall first file with the court, and serve on all other parties to the action, a motion that the taking of such deposition be allowed due to the existence of at least one of the conditions prescribed in subsection (b) for the use of depositions as evidence. Within seven days after any such motion has been made, any other party to the action may file an objection to such motion, and in such event, the court shall hold a hearing within seven days thereof to determine the issue. No deposition shall be taken unless and until the court shall have granted the motion requesting permission therefor.

(b) At the trial, or upon the hearing of a motion or an interlocutory proceeding, any part or all of a deposition of a witness, whether or not a party, so far as it is admissible under the rules of evidence, may be used for any purpose against any party who was present or represented at the taking of the deposition, or who had due notice thereof, if the court finds that:

- (1) The witness is dead;
- (2) the witness is outside of the county of the place of trial or hearing, unless it appears that the absence of the witness was procured by the party offering the deposition;
- (3) the witness is unable to attend or testify because of age, sickness, infirmity or imprisonment;
- (4) the party offering the deposition has been unable to procure the attendance of the witness by subpoena; or
- (5) upon application and notice, that such exceptional circumstances exist as to make it desirable, in the interest of justice and with due regard to the importance of presenting the testimony of witnesses orally in open court, to allow the deposition to be used.

(c) In addition to the uses of depositions enumerated in subsection (b), the court on motion may permit the use of depositions as provided in subsections (b)*(1), (2) and (4) of K.S.A. 60-232, and amendments thereto, in the interest of justice and on such terms and conditions as will fairly protect the parties.

History: L. 2000, ch. 161, § 29; L. 2010, ch. 135, § 204; July 1.

2025 Kansas Statutes

61-3106. Production of documents. Production of documents and things for inspection shall be allowed in accordance with K.S.A. 60-234, and amendments thereto.

History: L. 2000, ch. 161, § 30; January 1, 2001.

2025 Kansas Statutes

61-3201. Pretrial hearing. (a) If the defendant appears on the date specified in the summons and disputes the petition, or on or before such date files an answer, the court may set the case for a pretrial hearing. Such hearing shall be held at least 14 days after the date of the defendant's appearance. All parties shall be notified of the date, time and place for the pretrial hearing.

(b) After a case has been set for pretrial, each of the parties shall submit to the other party before the date scheduled for the pretrial hearing, copies of all documents which support the petition or answer and an identification of all witnesses who will testify at trial to support the same.

(c) If the defendant fails to appear at the pretrial hearing, the court may enter default judgment against the defendant for the relief demanded in the petition without further notice. If the plaintiff fails to appear at the pretrial hearing, the court may dismiss the lawsuit upon such terms and conditions as the court deems proper.

(d) If both parties appear at the pretrial hearing, the court shall conduct a conference with the parties to clarify the issues for trial and explore the possibilities of settlement. If the defendant does not have a legal defense to the petition, the court may enter judgment against the defendant for the relief demanded in the petition or for such other relief that the court believes is fair and just. If the plaintiff has not stated a claim upon which relief can be granted, the court may dismiss the petition.

History: L. 2000, ch. 161, § 31; L. 2010, ch. 135, § 205; July 1.

2025 Kansas Statutes

61-3202. Trial of actions by court or jury; evidence. (a) If a case is not settled or otherwise disposed of at the pretrial hearing, the case shall be set for trial by the court.

(b) All lawsuits filed under this act shall be tried by the court, unless a trial by jury is demanded by one of the parties. Demand for jury trial shall be made on or before the date of the pretrial conference.

(c) A lawsuit tried by jury pursuant to the code of civil procedure for limited actions shall be tried to a jury composed of six persons having the same qualifications of jurors as other jurors in district court, unless the parties agree on a lesser number. The court shall summon not less than 12 prospective jurors from the source and in the manner provided for the summoning of petit jurors in the district court. When there is more than one plaintiff or more than one defendant in such action, the court shall summon three additional prospective jurors for each such additional plaintiff or defendant. Each juror shall be paid as specified in K.S.A. 43-171, and amendments thereto, for each day of attendance and shall receive mileage at the rate prescribed in K.S.A. 75-3203, and amendments thereto. Such jury fees shall be paid by the county. The provisions of K.S.A. 60-247, subsections (b) through (h) of K.S.A. 60-248, K.S.A. 60-250 and 60-251, and amendments thereto, shall be applicable to actions pursuant to the code of civil procedure for limited actions insofar as they are not inconsistent with the provisions of this act.

(d) In all trials pursuant to the code of civil procedure for limited actions, the testimony of witnesses shall be taken orally in open court, unless otherwise provided by this act. All matters relating to witnesses and the admission of evidence shall be governed by article 4 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto.

History: L. 2000, ch. 161, § 32; January 1, 2001.

2025 Kansas Statutes

61-3301. Default judgment. (a) The court may enter a default judgment in the following situations:

(1) If a defendant fails to either appear or file a written answer on or before the time specified in the summons, judgment may be entered against the defendant upon proof of service and at such time as the plaintiff requests same, without further notice to the defendant.

(2) If a defendant fails to appear at the time set for a pretrial or trial hereunder, judgment may be entered against the defendant at the request of the plaintiff without further notice to the defendant.

(3) If the defendant has filed a counterclaim against the plaintiff and the plaintiff fails to appear at the time set for a pretrial or trial hereunder, judgment may be entered against the plaintiff at the request of the defendant without further notice to the plaintiff.

(b) A default judgment shall not be different in kind from or exceed the amount of the relief sought in the demand for judgment.

(c) If a defendant seeks to set aside a default judgment for failure to appear at the time specified in the summons, the defendant shall file a motion not more than 14 days from the date of such judgment in a lawsuit where the defendant was personally served with summons within the state, or not more than 45 days where service of summons was by other than personal service within the state. If any party seeks to set aside any other default judgment, that party shall file a motion not more than 14 days from the date of such judgment. Any motion to set aside a default judgment, except for the time limits set forth above, shall be in accordance with the applicable provisions of subsection (b) of K.S.A. 60-260, and amendments thereto.

(d) In cases where no service is had, for good cause shown, the court may set aside a default judgment pursuant to the applicable provisions of subsection (b) of K.S.A. 60-260, and amendments thereto.

History: L. 2000, ch. 161, § 33; L. 2010, ch. 135, § 206; July 1.

2025 Kansas Statutes

61-3302. Judgments. (a) A judgment may be entered by master or other journal entry or judgment form approved by a judge. The judgment shall be effective from the date the journal entry or judgment form is filed with the clerk of the court.

(b) One or more cases may be shown on a master journal entry or judgment form.

(c) When more than one claim for relief is presented in a lawsuit, the court may direct the entry of a final judgment upon one or more but less than all of the claims upon such terms and conditions as set forth in the judgment of the court.

(d) Except as to a party against whom a judgment is entered by default, every final judgment shall grant the relief to which the party in whose favor it is rendered is entitled, regardless of whether the party has demanded such relief in such party's pleadings. Upon entry of such judgment, the party in whose favor judgment is entered shall be deemed to have waived such party's right to recover any amount due in excess of such judgment, and such party may not recover in a subsequent lawsuit any amount in excess of such judgment.

(e) Whenever a party has commenced postjudgment proceedings for the enforcement of a judgment, and such judgment is subsequently set aside, reversed on appeal or otherwise nullified, such party shall not be liable for damages as a result of such postjudgment proceedings, unless it can be proven that the judgment upon which such proceedings were based was fraudulently obtained.

History: L. 2000, ch. 161, § 34; L. 2002, ch. 157, § 6; July 1.

2025 Kansas Statutes

61-3303. Interest on judgments. The provisions of K.S.A. 16-201, 16-204 and 16-205, and amendments thereto, shall apply to judgments entered under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 35; January 1, 2001.

2025 Kansas Statutes

61-3304. Modification of judgment. Except as modified by subsections (h) and (j) of K.S.A. 61-2912, and amendments thereto, the provisions of K.S.A. 60-252, 60-259 and 60-260, and amendments thereto, shall apply to judgments entered under the code of civil procedure for limited actions where such provisions are not inconsistent with other provisions of the code.

History: L. 2000, ch. 161, § 36; L. 2010, ch. 135, § 207; July 1.

2025 Kansas Statutes

61-3402. Actions against residents. An action against a resident of this state, other than an action for which venue is otherwise specifically prescribed by law, may be brought in the county in which:

- (a) The defendant resides;
- (b) the plaintiff resides if the defendant is served therein;
- (c) the cause of action arose;
- (d) the defendant has a place of business or of employment if the defendant is served therein;
- (e) the estate of a deceased person is being probated if such deceased person was jointly liable with the defendant and a demand to enforce such liability has been duly exhibited in the probate proceedings of such decedent's estate; or
- (f) there is located tangible personal property which is the subject of an action for the possession thereof if immediate possession is sought in accordance with K.S.A. 61-3701, and amendments thereto, at the time of the filing of the action.

History: L. 2000, ch. 161, § 38; January 1, 2001.

2025 Kansas Statutes

61-3403. Actions against corporations. An action against a domestic corporation, or against a foreign corporation which is qualified to do business in this state, other than an action for which venue is otherwise specifically prescribed by law, may be brought in the county in which:

- (a) Its registered office is located;
- (b) the cause of action arose;
- (c) the defendant is transacting business at the time of the filing of the petition; or
- (d) there is located tangible personal property which is the subject of an action for the possession thereof if immediate possession is sought in accordance with K.S.A. 61-3701, and amendments thereto, at the time of the filing of the action.

History: L. 2000, ch. 161, § 39; January 1, 2001.

2025 Kansas Statutes

61-3404. Actions against nonresidents and nonqualified corporations. An action against a nonresident of this state, or against a corporation which is not qualified to do business in this state, other than an action for which venue is otherwise specifically prescribed by law, may be brought in the county in which:

- (a) The plaintiff resides, or if the plaintiff is a corporation, in the county of its registered office or in which it maintains a place of business;
- (b) the defendant is served;
- (c) the cause of action arose;
- (d) the defendant is transacting business at the time of the filing of the petition;
- (e) there is property of the defendant, or debts owing to the defendant; or
- (f) there is located tangible personal property which is the subject of an action for the possession thereof if immediate possession is sought in accordance with K.S.A. 61-3701, and amendments thereto, at the time of the filing of the action.

History: L. 2000, ch. 161, § 40; January 1, 2001.

2025 Kansas Statutes

61-3405. Actions against public utility, common carrier or transportation system. Any action brought against a public utility, common carrier or transportation system for any liability or penalty or forfeiture, may be brought in any county into or through which such public utility, common carrier or transportation system operates regularly.

History: L. 2000, ch. 161, § 41; January 1, 2001.

2025 Kansas Statutes

61-3406. Multiple parties. If there are several plaintiffs properly joined and venue is determined by the residence of one of them, it shall be necessary that such plaintiff's claim is a substantial part of the action. If there are several defendants properly joined, venue of the action may be determined at the election of the plaintiff as to any one of the defendants against whom a substantial claim exists. If, before trial of an action on the merits is commenced, a party with reference to whom venue was determined ceases to be a party and venue would no longer be proper as to the remaining parties, on the application of any remaining party promptly made, the cause shall be transferred to a court of a county of proper jurisdiction and venue. If there is more than one such county, the transfer shall be to a county selected by the plaintiff.

History: L. 2000, ch. 161, § 42; January 1, 2001.

2025 Kansas Statutes

61-3407. Change of venue. In all cases pursuant to the provisions of the code of civil procedure for limited actions in which it shall be made to appear that a fair and impartial trial cannot be had in the county where the suit is pending, for reasons other than the disqualification of the judge, the court, upon application of either party, may change the place of trial to the district court of some county where the objection does not exist.

History: L. 2000, ch. 161, § 43; January 1, 2001.

2025 Kansas Statutes

61-3408. Time for objection to venue. Objection to the venue of an action shall not be allowed except on timely motion made and for grounds established before trial of the action is commenced on the merits.

History: L. 2000, ch. 161, § 44; January 1, 2001.

2025 Kansas Statutes

61-3409. Effect of improper venue. If an action is commenced in good faith and a subsequent timely objection to the venue is sustained, or if before trial on the merit commences, it is found that no cause of action exists in favor of or against a party upon whom venue was dependent, the action shall be transferred to a court of proper jurisdiction of any county of proper venue. If there is more than one such county, the transfer shall be to the court of a county selected by the plaintiff. In accordance with K.S.A. 61-4001, and amendments thereto, the receiving district court shall require the payment of an appropriate docket fee from the movant.

History: L. 2000, ch. 161, § 45; January 1, 2001.

2025 Kansas Statutes

61-3501. Attachment. The provisions of article 7 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto, relating to attachment shall govern attachment proceedings for actions pursuant to the code of civil procedure for limited actions, except the provisions of K.S.A. 60-711, and amendments thereto, relating to the appointment of a receiver, and the provisions of article 7 of chapter 60 of the Kansas Statutes Annotated relating to the attachment of real property, shall not be applicable in lawsuits filed under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 46; January 1, 2001.

2025 Kansas Statutes

61-3502. Nature of garnishment. Garnishment is a procedure whereby the wages, money or intangible property of a person can be seized or attached pursuant to an order of garnishment issued by the court under the conditions set forth in the order.

History: L. 2000, ch. 161, § 47; January 1, 2001.

2025 Kansas Statutes

61-3503. When garnishment available before judgment. An order of garnishment before judgment may be obtained only upon order of a judge of the district court pursuant to the procedure to obtain an order of attachment. No order of garnishment may be obtained before judgment where the property sought to be attached is wages earned by the person being garnished.

History: L. 2000, ch. 161, § 48; January 1, 2001.

2025 Kansas Statutes

61-3504. When garnishment available after judgment. (a) As an aid to the collection of a judgment, an order of garnishment may be obtained at any time after 14 days following judgment. There is no requirement that an execution first be issued and returned unsatisfied.

(b) The party requesting a garnishment shall file a request in an individual case or by a master request covering more than one case asking the court to issue an order of garnishment. The request shall designate whether the order of garnishment is to be issued to attach earnings or to attach other property of the judgment debtor. If such party seeks to attach earnings of the judgment debtor to enforce:

- (1) An order of any court for the support of any person;
- (2) an order of any court of bankruptcy under chapter 13 of the United States bankruptcy code; or
- (3) a debt due for any state or federal tax, the direction of the party shall so indicate.

No bond is required for an order of garnishment issued after judgment.

History: L. 2000, ch. 161, § 49; L. 2010, ch. 135, § 208; July 1.

2025 Kansas Statutes

61-3505. Order of garnishment, other than earnings. This section shall apply if the garnishment is to attach intangible property other than earnings of the judgment debtor.

(a) The order of garnishment and the appropriate form for the garnishee's answer shall be served on the garnishee in the same manner as process is to be served pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto, except that the garnishee may be served by any means provided under K.S.A. 61-3001 through 61-3006, and amendments thereto, at the garnishee's business or office location and this shall be considered proper service. A copy of the answer form shall be served if the garnishment order is not served electronically. If the order is served prior to a judgment, the order shall also be served on the judgment debtor, if the judgment debtor can be found, except that the order shall not be served on the judgment debtor until after service has been made on the garnishee. Failure to serve the judgment debtor shall not relieve the garnishee from liability under the order.

(b) The order of garnishment shall have the effect of attaching:

(1) All intangible property, funds, credits or other indebtedness belonging to or owing the judgment debtor, other than earnings, which is in the possession or under the control of the garnishee, and all such credits and indebtedness due from the garnishee to the judgment debtor at the time of service of the order; and

(2) all such personal property coming into the possession or control of the garnishee and belonging to the judgment debtor, and all such credits and indebtedness becoming due to the judgment debtor between the time the order is served on the garnishee and the time the garnishee makes the answer of the garnishee. Where the garnishee is an executor or administrator of an estate in which the judgment debtor is or may become a legatee or distributee thereof, the order of garnishment shall have the effect of attaching and creating a first and prior lien upon any property or funds of such estate to which the judgment debtor is entitled upon distribution of the estate, and such garnishee shall be prohibited from paying over to the judgment debtor any of such property or funds until so ordered by the court from which the order of garnishment was issued.

(c) The garnishee, without prior agreement, may withhold and retain to defray the garnishee's costs, an administrative fee of \$10 for each order of garnishment that attaches funds, credits or indebtedness. Such administrative fee shall be in addition to the amount required to be withheld under the order for garnishment, except that if the amount required to be withheld under the order for garnishment is greater than the amount of the funds, credits or indebtedness held by the garnishee, the fee shall be deducted from the amount withheld.

History: L. 2000, ch. 161, § 50; L. 2002, ch. 157, § 7; July 1.

2025 Kansas Statutes

61-3506. Garnishment of funds held by financial institution; administrative fee; order of garnishment requirements. (a) The written direction of a party seeking an order of garnishment attaching funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company shall state the amount to be withheld, which shall be 110% of the amount of the judgment creditor's claim, in the case of prejudgment garnishment, or 110% of the amount of the current balance due under the judgment, in the case of postjudgment garnishment. The garnishee, without prior agreement, may withhold and retain to defray the garnishee's costs, an administrative fee of \$15 for each order of garnishment that attaches funds, credits or indebtedness. Such administrative fee shall be in addition to the amount required to be withheld under the order for garnishment, except that if the amount required to be withheld under the order for garnishment is greater than the amount of the funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company, the fee shall be deducted from the amount withheld.

(b) All orders of garnishment issued in this state for the purpose of attaching funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company shall include the judgment debtor's address and tax identification number, if known, and shall specify the amount of funds, credits or indebtedness to be withheld by the garnishee, which shall be 110% of the amount of the judgment creditor's claim or 110% of the amount of the current balance due under the judgment, as stated in the written direction of the party seeking the order.

(c) The forms provided by law for an order of garnishment attaching funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company shall include the following statement:

"If you hold any funds, credits or indebtedness belonging to or owing the judgment debtor, the amount to be withheld by you pursuant to this order of garnishment is not to exceed

\$."

(amount stated in direction)

(d) (1) The forms provided by law for the answer to an order of garnishment attaching funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company shall include the following statement:

"The amount of the funds, credits or indebtedness belonging to or owing the judgment debtor which I shall hold shall not exceed

\$."

(amount stated in order)

(2) The answer shall further include information that such account is owned in joint tenancy with one or more individuals who are not subject to the garnishment, if applicable.

(e) If an order of garnishment attaches funds, credits or indebtedness held by a bank, savings and loan association, credit union or finance company and the garnishee holds funds or credits or is indebted to the judgment debtor in two or more accounts, the garnishee may withhold payment of the amount attached from any one or more of such accounts.

(f) If an order of garnishment attaches funds, credits or indebtedness held by a bank,

savings and loan association, credit union or finance company and the garnishee holds funds or credits or is indebted to the judgment debtor in an account which judgment debtor owns in joint tenancy with one or more individuals who are not subject to the garnishment, the garnishee shall withhold the entire amount sought by the garnishment. Neither the garnishor nor the garnishee shall be liable to the joint owners if the ownership of the funds is later proven not to be the judgment debtor's.

(g) No party shall seek an order of garnishment attaching funds, credits or indebtedness held by a bank, savings and loan association, savings bank, credit union or finance company except on good faith belief of the party seeking garnishment that the party to be served with the garnishment order has, or will have, assets of the judgment debtor. Except as provided further, not more than two garnishments shall be issued by a party seeking an order of garnishment applicable to the same claim or claims and against the same judgment debtor in any 30-day period. A judge may order an exception to this subsection in any case in which the party seeking the garnishment shall in person or by attorney: (1) Certify that the garnishment is not for the purpose of harassment of the debtor, and (2) state facts demonstrating to the satisfaction of the judge that there is reason to believe that the garnishee has property or credits of the debtor which are not exempt from execution.

History: L. 2000, ch. 161, § 51; L. 2012, ch. 68, § 5; July 1.

2025 Kansas Statutes

61-3507. Order of garnishment, earnings. This section must apply if the garnishment is to attach earnings of the judgment debtor.

(a) The order of garnishment and the appropriate form for the garnishee's answer must be served on the garnishee in the same manner as process is to be served pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto, at the garnishee's business or office location and this must be considered proper service. A copy of the answer form must be served if the garnishment order is not served electronically. If the party having requested the garnishment is notified by the garnishee that the judgment debtor has never been employed by the garnishee or the judgment debtor's employment has been terminated, the party seeking the garnishment must forthwith file a release with the clerk of the court of such garnishment.

(b) The order of garnishment must have the effect of attaching the nonexempt portion of the judgment debtor's earnings for all pay periods which end while the order is in effect. The order must remain in effect until either of the following occur, whichever is sooner: (1) The judgment is paid; or (2) the garnishment is released. The party for whom the garnishment is issued must file a release with the clerk of the court upon satisfaction of the judgment and provide a copy thereof to the defendant and garnishee. Nonexempt earnings are earnings which are not exempt from wage garnishment pursuant to K.S.A. 60-2310, and amendments thereto. Computation of the nonexempt portion of the judgment debtor's wages for the pay period or periods covered by the order must be made in accordance with the directions accompanying the garnishee's answer form pursuant to the order of garnishment. The order of garnishment must also constitute an order of the court directing the garnishee to pay to the judgment creditor all earnings which are to be withheld by the garnishee under the order of garnishment as more particularly provided in the answer of the garnishee. A party or the court may request a written explanation of the garnishee's computations of earnings withheld during any pay period and the explanation must be submitted by affidavit to all parties and the court within 14 days after such request. Service of the request must be in the same manner as process is to be served pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto.

(c) From income due the judgment debtor, the garnishee may withhold and retain to defray the garnishee's costs, an administrative fee of \$10 for each pay period for which income is withheld, not to exceed \$20 for each 30 day period for which income is withheld, whichever is less. Such administrative fee must be in addition to the amount required to be withheld under the order for garnishment. If the addition of this fee causes the total amount withheld to exceed the restrictions imposed by subsection (b) of K.S.A. 60-2310, and amendments thereto, the fee must be deducted from the amount withheld.

(d) The party having requested the garnishment must provide the garnishee the unsatisfied balance of the judgment at the time of issuance of the order of garnishment.

(e) For any continuing garnishment, the party having requested the garnishment must maintain an accounting and record of the judgment reflecting thereon all garnishment proceeds received and applied, all interest accrued thereon, and any and all credits applied in satisfaction thereof, and the remaining unsatisfied balance of such judgment. The party requesting the garnishment must produce a copy of such accounting and

record upon request of the court. The garnishee may request, in writing by first class mail, an unsatisfied balance from the judgment creditor or, if represented by an attorney, such request may also be by facsimile or electronic mail with read receipt confirmation. If the garnishee fails to receive a response, within seven days following the request, the garnishee may submit a written statement to the judgment creditor or, if represented, to the judgment creditor's attorney in the same fashion as the original request, advising that the garnishee intends to stop withholding earnings pursuant to the garnishment order 14 days following the date of the statement unless the garnishee receives written notice of objection from the judgment creditor or judgment creditor's attorney as well as the requested unsatisfied balance. If no objection is timely received by the garnishee, the garnishee will thereafter have no duty to withhold earnings.

History: L. 2000, ch. 161, § 52; L. 2002, ch. 157, § 8; L. 2010, ch. 85, § 4; July 1.

2025 Kansas Statutes

61-3508. Notice to judgment debtor; hearing on claim of exemption. (a) Immediately following the time the order of garnishment is served on the garnishee, the party seeking the garnishment shall send a notice to the judgment debtor in any reasonable manner, notifying the judgment debtor:

(1) That a garnishment order has been issued against the judgment debtor and the effect of such order;

(2) of the judgment debtor's right to assert any claim of exemption allowed under the law with respect to a garnishment against property other than earnings or of the judgment debtor's right to object to the calculation of exempt and nonexempt earnings with respect to a garnishment against the earnings of the debtor; and

(3) of the judgment debtor's right to a hearing on such claim or objection. The notice shall contain a description of the exemptions that are applicable to garnishments and the procedure by which the judgment debtor can assert any claim of exemption.

(b) If the judgment debtor requests a hearing to assert any claim of exemption, the request shall be filed no later than 14 days following the date the notice is served on the judgment debtor. If a hearing is requested, the hearing shall be held by the court no sooner than seven days nor later than 14 days after the request is filed. At the time the request for hearing is filed, the judgment debtor shall obtain from the clerk or court the date and time for the hearing which shall be noted on the request form. Immediately after the request for hearing is filed, the judgment debtor shall hand-deliver to the party seeking the garnishment or such party's attorney, if the party is represented by an attorney, or mail to the party seeking the garnishment or such party's attorney, if the party is represented by an attorney, by first-class mail at the party seeking the garnishment or such party's attorney's last known address, a copy of the request for hearing.

(c) If a hearing is held, the judgment debtor shall have the burden of proof to show that some or all of the property subject to the garnishment is exempt, and the court shall enter an order determining the exemption and such other order or orders as is appropriate.

History: L. 2000, ch. 161, § 53; L. 2002, ch. 157, § 9; L. 2010, ch. 135, § 209; July 1.

2025 Kansas Statutes

61-3509. Answer of garnishee; attachment of intangible property other than earnings. This section shall apply if the garnishment is to attach intangible property other than earnings of the judgment debtor.

(a) Within 14 days after service upon a garnishee of an order of garnishment the garnishee shall complete the answer in accordance with the instructions accompanying the answer form stating the facts with respect to the demands of the order.

(b) (1) Except as otherwise provided in subsection (b)(2), the garnishee shall send the completed answer to the judgment creditor's attorney at the address listed on the answer form or, if the judgment creditor does not have an attorney, to the judgment creditor and judgment debtor at the addresses listed on the answer form. The answer shall be supported by unsworn declaration in the manner set forth on the answer form.

(2) If the garnishee does not have assets of the judgment debtor, the garnishee shall send the completed answer to the judgment creditor's attorney at the address listed on the answer form or, if the judgment creditor does not have an attorney, to the judgment creditor at the address listed on the answer form. The answer shall be supported by unsworn declaration in the manner set forth on the answer form.

History: L. 2000, ch. 161, § 54; L. 2002, ch. 157, § 10; L. 2010, ch. 135, § 210; L. 2012, ch. 68, § 6; L. 2013, ch. 31, § 2; July 1.

2025 Kansas Statutes

61-3510. Attaching earnings. This section must apply if the garnishment is to attach earnings of the judgment debtor.

(a) Within 14 days following the date of service upon a garnishee of an initial order of garnishment, the garnishee must complete the answer in accordance with the instructions accompanying the answer form and send the completed answer to each judgment creditor and judgment debtor at the addresses listed on the answer form. The garnishee must designate on the answer in the space provided on the answer form the name and case number for each judgment creditor who has a garnishment order in effect for the same debtor and the amount that is due each judgment creditor under the garnishment in accordance with the instructions accompanying the answer form. Only one answer needs to be completed for each judgment debtor by the garnishee and the garnishee may duplicate the completed answer in any manner the garnishee desires for distribution to each judgment creditor and judgment debtor. The answer must be supported by unsworn declaration in the manner set forth on the answer form. Once the garnishee has distributed the answer to the initial order of garnishment, no further answer is required. A party or the court may request a written explanation of the garnishee's computations of earnings withheld during any pay period and the explanation must be submitted by affidavit to all parties and the court within 14 days after such request. Service of the request must be in the same manner as process is to be served pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto.

(b) If there are other liens against the judgment debtor's earnings which by law have priority over garnishments, the garnishee must so indicate on the answer. In such event, the garnishment must remain in effect but no earnings of the debtor must be withheld under the garnishment order unless and until all liens having priority are released or satisfied or the earnings being withheld under all of such liens are less than the amount which is exempt under K.S.A. 60-2310, and amendments thereto.

History: L. 2000, ch. 161, § 55; L. 2002, ch. 157, § 11; L. 2010, ch. 85, § 5; July 1.

2025 Kansas Statutes

61-3511. Reply by judgment creditor or judgment debtor; notification and hearing; burden of proof.

(a) No later than 14 days after the garnishee makes the answer and sends it to the judgment creditor and judgment debtor, the judgment creditor or judgment debtor, or both, may file a reply disputing any statement in the answer of the garnishee. A copy of the reply shall be sent by the party filing same to the other party, to any other judgment creditors affected and to the garnishee. The party filing the reply shall notify the court and schedule a hearing on the reply to be held within 30 days after filing of the reply.

(b) At the hearing, the court shall determine and rule on all issues related to the reply. The burden of proof shall be upon the party filing the reply to disprove the statements of the answer, except that the garnishee shall have the burden of proving offsets or indebtedness claimed to be due from the judgment debtor to the garnishee, or liens asserted by the garnishee against personal property of the judgment debtor. The provisions of K.S.A. 60-719, and amendments thereto, relating to offsets claimed by the garnishee shall be applicable to lawsuits filed pursuant to the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 56; L. 2010, ch. 135, § 211; L. 2012, ch. 68, § 7; July 1.

2025 Kansas Statutes

61-3512. Garnishee's payment to the judgment creditor; refund of overpayment; release of funds; nonliability of garnishee. (a) The court shall direct the garnishee to pay to the judgment creditor such amount that the garnishee is holding, as indicated by the answer, or such lesser amount as warranted, if:

(1) The garnishment has attached to intangible property other than earnings of the judgment debtor;

(2) fourteen days have passed since receipt of the answer of the garnishee by the judgment creditor; and

(3) no reply to the answer has been filed.

(b) The judgment creditor shall promptly refund to the judgment debtor any overpayment of the claim. The garnishee may release the funds, credits or indebtedness that have been attached pursuant to the order of garnishment if no order to pay the judgment creditor has been received within 60 days following the receipt of the answer of the garnishee by the judgment creditor.

(c) The garnishee shall not be liable to any judgment creditor or judgment debtor and shall not be assessed any penalty by reason of any action taken in good faith by the garnishee in accordance with the provisions of article 35 of chapter 61 of the Kansas Statutes Annotated, and amendments thereto.

History: L. 2000, ch. 161, § 57; L. 2003, ch. 131, § 2; L. 2010, ch. 135, § 212; L. 2012, ch. 68, § 8; July 1.

2025 Kansas Statutes

61-3513. Payment of earnings withheld by garnishee. This section shall apply if the garnishment is to attach earnings of the judgment debtor. If no reply is made to the answer of garnishee within 14 days following the date the garnishee has sent the completed answer to the judgment creditor and judgment debtor, the garnishee shall promptly thereafter pay the earnings withheld as indicated on the answer to all judgment creditors designated on the answer in the amount due each as indicated on the answer, unless the garnishee receives prior to such payment an order of the court to the contrary. If any judgment creditor receives more than they are entitled to, that judgment creditor shall promptly pay the excess amount pro-rata to the other judgment creditors designated on the answer, or if no such other judgment creditors are designated, the judgment creditor shall promptly pay the excess amount to the judgment debtor.

History: L. 2000, ch. 161, § 58; L. 2002, ch. 157, § 12; L. 2010, ch. 135, § 213; July 1.

2025 Kansas Statutes

61-3514. Failure of garnishee to answer. If the garnishee fails to answer within the time and manner specified in the order of garnishment, the judgment creditor may file a motion and shall send a copy of the motion to the garnishee and the judgment debtor in the manner allowed under K.S.A. 61-2907, and amendments thereto. At the hearing on the motion, the court may grant judgment against the garnishee for the amount of the judgment creditor's judgment or claim against the judgment debtor or for such other amount as the court deems reasonable and proper, and for the expenses and attorney fees of the judgment creditor. If the claim of the plaintiff has not been reduced to judgment, the liability of the garnishee shall be limited to the judgment ultimately rendered against the judgment debtor.

History: L. 2000, ch. 161, § 59; January 1, 2001.

2025 Kansas Statutes

61-3515. Failure of garnishee to pay. If after the time the garnishee is to make payment of funds or property held under a garnishment, the garnishee fails or refuses to pay or deliver property to the judgment creditor, the judgment creditor may file a motion and shall send a copy of the motion to the garnishee and the judgment debtor in the manner allowed under K.S.A. 61-2907, and amendments thereto. At the hearing on the motion, the court may find the garnishee in contempt and punish the garnishee by a fine or may enter judgment against the garnishee for such amount as the court deems reasonable and proper, including the expenses and attorney fees of the judgment creditor.

History: L. 2000, ch. 161, § 60; January 1, 2001.

2025 Kansas Statutes

61-3516. Miscellaneous garnishment provisions. The provisions of K.S.A. 60-721, 60-722, 60-723 and 60-724, and amendment thereto, shall be applicable to lawsuits filed pursuant to the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 61; January 1, 2001.

2025 Kansas Statutes

61-3601. Stay of proceedings to enforce judgments. The provisions of K.S.A. 60-262, and amendments thereto, shall apply to judgments entered under the code of civil procedure for limited actions, except as to judgments entered in eviction lawsuits under sections K.S.A. 61-3801 through 61-3808, and amendments thereto. A judgment entered in an eviction lawsuit may be enforced as soon as it is entered.

History: L. 2000, ch. 161, § 62; January 1, 2001.

2025 Kansas Statutes

61-3602. Procedure. General and special executions or orders of sale upon judgments entered under the code of civil procedure for limited actions shall be taken in the manner provided in article 24 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto. The provisions of K.S.A. 60-2410, 60-2414 and 60-2416, and amendments thereto, shall not be applicable to post-judgment proceedings pursuant to the code of civil procedure for limited actions, nor shall execution and orders of sale issued pursuant to the code of civil procedure for limited actions be levied upon real property of the judgment debtor except as provided in K.S.A. 60-2418, and amendments thereto.

History: L. 2000, ch. 161, § 63; January 1, 2001.

2025 Kansas Statutes

61-3603. Exemption from seizure and sale. The provisions of article 23 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto, relating to exemptions from seizure and sale, shall apply to attachments, executions and other process issued from any court in this state pursuant to the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 64; January 1, 2001.

2025 Kansas Statutes

61-3604. Hearing in aid of execution. (a) As an aid to the collection of a judgment, the judgment creditor is entitled to have an order for a hearing in aid of execution issued by the court at any time after 14 days after judgment. There is no requirement that an execution first be issued and returned unsatisfied. No application for such order needs to be filed except as specially required in this section.

(b) An order for a hearing in aid of execution may be issued at the request of a judgment creditor in an individual case or by a master request covering more than one case, and shall require the judgment debtor to either: (1) Contact the judgment creditor or attorney prior to the date set for the hearing to furnish information under oath or penalty of perjury concerning the judgment debtor's property and income; or (2) appear and furnish information under oath or penalty of perjury when required by the court concerning the debtor's property and income before the court at a time and place specified in the order within the county where the court is situated. The court may cancel the hearing if the judgment debtor has furnished to the judgment creditor satisfactory information concerning the debtor's property and income prior to the date and time for the hearing. Witnesses may also be subpoenaed to testify at the hearing.

(c) If the judgment debtor resides in another county in this state or outside of this state, the court can order such judgment debtor to appear if the court finds that it will not cause undue hardship on the judgment debtor to appear.

(d) It shall be the duty of the judge to assist in the enforcement of the judgments of the court. To this end, at any hearing in aid of execution, when the existence of any nonexempt property of the judgment debtor is disclosed, the court shall order the judgment debtor to deliver the property to the sheriff or a duly appointed process server. If the property is other than currency, the property shall be sold in the same manner as other property taken under execution is sold and the proceeds from the sale shall be applied to the judgment and costs.

History: L. 2000, ch. 161, § 65; L. 2002, ch. 157, § 13; L. 2010, ch. 135, § 214; July 1.

2025 Kansas Statutes

61-3605. Order back procedure. If a judgment debtor appears pursuant to an order for a hearing in aid of execution, the court may order the debtor to return to court from time to time to furnish current information under the procedure set forth in K.S.A. 61-3604, and amendments thereto. To avoid unnecessary filings, the court shall adopt a policy limiting the frequency with which the judgment debtor may be ordered to return to court. Such policy shall provide that a judgment debtor who has made regular payments as agreed between the parties, or who is found to be disabled and otherwise unable to pay, shall not be required to return to court more frequently than yearly.

History: L. 2000, ch. 161, § 66; January 1, 2001.

2025 Kansas Statutes

61-3606. Contempt. If a person fails to appear in response to an order for a hearing in aid of execution, or if a person who has been subpoenaed to testify at the hearing fails to appear or to testify concerning anything about which the person can lawfully be questioned, the court shall issue a citation for contempt to that person providing that the person must appear in court at a date and time specified to show cause why the debtor should not be held in contempt and punished for contempt. The citation for contempt does not need to be supported by affidavit or other verification.

History: L. 2000, ch. 161, § 67; L. 2002, ch. 157, § 14; July 1.

2025 Kansas Statutes

61-3607. Hearing; penalty. If on hearing, the court determines that a judgment debtor is guilty of contempt, the court may punish the person by a fine in an amount to be set by the court or by imprisonment in the county jail for a period of not to exceed 30 days, or both. The court may also order the person guilty of contempt to pay the reasonable attorney fees incurred by the judgment creditor in the filing of the contempt citation and the hearing thereon.

History: L. 2000, ch. 161, § 68; January 1, 2001.

2025 Kansas Statutes

61-3608. Bench warrant; hearing; penalty. (a) If a person fails to comply with the requirements of K.S.A. 61-3606, and amendments thereto, or if it appears to the court that the person is hiding to avoid the process of the court or is about to leave the county for that purpose, the court may issue a bench warrant commanding the sheriff to whom it is directed to bring such person before the court to answer for contempt. The bench warrant does not need to be supported by affidavit or other verification. The court may make such orders concerning the release of the person pending the hearing as the court deems proper.

(b) When such person is brought before the court, a hearing shall be held to determine if the person should be punished for contempt. If the court determines that the person is guilty of contempt, the court may punish the person by a fine in an amount to be set by the court or by imprisonment in the county jail for a period of not to exceed 30 days, or both. The court may also order the person guilty of contempt to pay the reasonable attorney fees incurred by the judgment creditor in the filing of the bench warrant and the hearing thereon.

History: L. 2000, ch. 161, § 69; L. 2002, ch. 157, § 15; July 1.

2025 Kansas Statutes

61-3609. Service at place of employment. If the judgment debtor is employed in this state and either the debtor is a nonresident of this state or the place of residence is unknown, the order for a hearing in aid of execution and citation for contempt may be served on the judgment debtor at the place of employment. An employer shall not unreasonably impede or impair the service of process on an employee who is a judgment debtor.

History: L. 2000, ch. 161, § 70; January 1, 2001.

2025 Kansas Statutes

61-3610. Dormant judgment; revivor. The provisions of K.S.A. 60-2403 and 60-2404, and amendments thereto, shall apply to judgments entered under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 71; January 1, 2001.

2025 Kansas Statutes

61-3611. Substitution of judgment creditor. Any person who claims to have succeeded to the interest of the holder of a judgment by appointment as personal representative for a judgment holder, by assignment, by operation of law, or otherwise, shall file a notice setting forth the basis for their claim, and thereafter such successor in interest shall be entitled to all the rights and remedies available to such successor's predecessor and may proceed to enforce the same in such successor's own name as such successor. It shall not be necessary to file with the clerk the documents which form the basis for the claim. If the validity of any such transfer is disputed by any party affected thereby, the court shall on reasonable notice to all interested parties whose whereabouts are known, determine the respective rights and liabilities of all the parties.

History: L. 2000, ch. 161, § 72; January 1, 2001.

2025 Kansas Statutes

61-3701. Replevin; procedure; orders; execution; judgment. Upon the commencement of an action, the plaintiff may recover possession of specific personal property before or after judgment.

(a) Claim for possession of property. A plaintiff may seek an order to obtain possession of specific personal property as follows: Petition. The plaintiff shall file a petition stating:

- (1) Plaintiff is the owner or the person lawfully entitled to the possession, the specific property and the factual basis for the claim;
- (2) a description of the property;
- (3) the property is wrongfully detained by the defendant, or is held by an officer under legal process who has refused delivery on demand; and
- (4) the estimated value of the property.

(b) Prejudgment possession of property. A plaintiff may seek an order to obtain immediate possession of specific personal property, before judgment as follows:

Petition. The plaintiff shall file a petition signed under penalty of perjury stating:

- (1) Plaintiff is the owner or the person lawfully entitled to the possession, the specific property, and the factual basis for the claim;
- (2) a description of the property;
- (3) the property is wrongfully detained by the defendant, or is held by an officer under legal process who has refused delivery on demand; and
- (4) the estimated value of the property.

(c) Hearing; notice, bond. After filing the petition, the plaintiff may apply to the court for an order for the delivery of the property prior to judgment on the merits of the case.

- (1) The application to the court for an order shall be by motion which, unless made during a hearing or trial, shall be made in writing, state with particularity the grounds therefor and set forth the relief or order sought.
 - (2) The petition and application shall be served upon the defendant pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto.
 - (3) After a hearing and presentation of evidence on plaintiff's motion, and if the judge is satisfied as to the probable validity of plaintiff's claim and that delivery of the property to the plaintiff is in the interest of justice and will properly protect the interests of all the parties, the judge may enter or cause to be entered an order for the delivery of the property to the plaintiff.
 - (4) Prior to the issuance of the order for delivery of the property, the plaintiff shall file a bond with the clerk of the court.
- (d) Bond; contents, insufficiency.
- (1) The bond shall be executed by the plaintiff and one or more sufficient sureties in a sum double the amount of the fair market value of the property, as determined by the judge, or such lesser amount as shall be approved by an order of the judge.
 - (2) The bond shall be to the effect that the plaintiff shall duly prosecute the action, and pay all costs and damages that may be awarded against the plaintiff, and that if the plaintiff is given possession of the property the plaintiff will return it to the defendant if it be so adjudged. If the bond shall be found to be sufficient, the judge shall approve the same and note approval thereon.
 - (3) The defendant may challenge the sufficiency of the bond as provided in subsection (b) of K.S.A. 60-705, and amendments thereto.

- (4) The court shall release the bond, if the plaintiff abandons the right to take possession of the property, prior to taking possession of the property.
- (e) Replevin; without hearing, notice. Notwithstanding the foregoing provisions of this section, the judge may enter or cause to be entered the order for delivery of property after an ex parte hearing and without notice to and the opportunity for a hearing by the defendant, if the judge is satisfied as to the probable validity of the following additional allegations to be contained in plaintiff's petition:
- (1) Possession of the property by the plaintiff is directly necessary to secure an important governmental or general public interest; and
 - (2) there is a special need for very prompt action due to the immediate danger that the defendant will destroy or conceal the property.
- (f) Property in custodia legis. If the property is in the custody of an officer under any legal process, it shall nevertheless be subject to replevin under this section, but if the same is in the custody of any officer under any process issued out of a judicial proceeding, the petition and bond shall be filed in the same proceeding out of which such process issued.
- (g) Order for delivery of property. The order for the delivery of the property to the plaintiff shall be delivered to the appropriate officer or person authorized to serve process of any county in the state in which the property is located. The order shall state the names of the parties, the description of the property and the value as set out in plaintiff's petition, or as found by the court at the hearing on plaintiff's application pursuant to subsection (c). The order shall command the appropriate officer to take immediate possession of the property and deliver it to the plaintiff and make return of the order on the day named therein.
- (h) Execution of order, return. (1) In the execution of the order the officer may break open any building or enclosure in which the property is located, if the officer cannot otherwise obtain possession of the property or entrance to the building on demand. (2) The appropriate officer shall execute the order by taking possession of the property described therein, and serving a copy on the person charged with the order of delivery in the same manner as for personal or resident service if the person can be found in the county. (3) The return day of the order of delivery shall be 14 days after it is issued, if the order is executed within the county where the court is situated. In all other cases, the return day shall be 21 days after the order is issued. (4) The plaintiff shall have the right to attend execution of the order. Upon inspection of the property the plaintiff may abandon their right to prejudgment possession and shall so advise the appropriate officer and the court.
- (i) Perishable goods. When property shall be actually seized which is likely to perish or to materially depreciate in value or threatens to decline speedily in value before the probable termination of the suit, or the keeping of which would be attended with unreasonable loss or expense, the court may order the same to be sold on such terms and conditions as the judge may direct, by the person having charge of the property, and a return of the proceedings thereon shall be made by the person at a time to be fixed by the judge.
- (j) Redelivery, bond. The defendant, after service of a copy of the delivery order, may apply to the court for redelivery of the property. The court shall order return of the property to the defendant when the defendant files a bond with the clerk of the court, in an amount equal to the plaintiff's bond, executed by the defendant with one or more

sufficient sureties. The bond shall be to the effect that the defendant will deliver the property to the plaintiff if so adjudged, and will pay all costs and damages that may be adjudged against the defendant. If the bond shall be found to be sufficient, the judge shall approve the same and note approval thereon. If the defendant is a public officer, board or government agency, such officer, board or agency, in lieu of giving a redelivery bond, may retain possession of the property seized by filing with the clerk a response certifying that the public health, safety or welfare would be jeopardized or impaired if the plaintiff acquired possession of the property prior to final judgment, in which case hearing may be had on the issue of public interest at the instance of any party.

(k) Judgment in action. (1) In an action to recover the possession of personal property, judgment for the plaintiff may be for possession or for the recovery of possession, or the value thereof in case a delivery cannot be had, and for damages for the detention. If the property has been delivered to the plaintiff and the defendant claims a return thereof, judgment for the defendant may be for a return of the property, or the value thereof in case a return cannot be had, and damages for taking and withholding the same.

(2) In addition to other orders, the court may direct an appropriate officer to put the party entitled to possession in possession of the property.

History: L. 2000, ch. 161, § 73; L. 2010, ch. 135, § 215; July 1.

2025 Kansas Statutes

61-3702. Foreclosure of security interest; procedure; orders; execution; judgment. A plaintiff may bring an action to reduce an indebtedness to a money judgment and to foreclose the security interest in specific personal property given to secure such indebtedness. The plaintiff, at any time before judgment is rendered, may obtain immediate possession of the specified property as follows:

- (a) Petition. The plaintiff shall file a petition signed under penalty of perjury stating:
 - (1) The plaintiff is the secured creditor of the defendant;
 - (2) the instrument of indebtedness or the terms thereof;
 - (3) the amount of the indebtedness owed;
 - (4) the security agreement or the terms thereof;
 - (5) a description of the personal property;
 - (6) that plaintiff is lawfully entitled to the foreclosure of the specific personal property;
 - (7) the estimated value of each item of personal property; and
 - (8) the defendant is no longer entitled to possess the property.
- (b) Prejudgment possession; hearing, notice, bond. After filing the petition, the plaintiff may apply to the court for an order for the delivery of the property before judgment.
 - (1) The application to the court for an order of delivery shall be by motion which, unless made during a hearing or trial, shall be made in writing, state with particularity the grounds therefor and set forth the relief or order sought.
 - (2) The petition and application shall be served upon the defendant pursuant to K.S.A. 61-3001 through 61-3006, and amendments thereto.
 - (3) After a hearing and presentation of evidence on the plaintiff's motion, if the judge is satisfied as to the probable validity of the plaintiff's claim and that delivery of the property to the plaintiff is in the interest of justice and will properly protect the interests of all the parties, the judge may enter or cause to be entered an order for the delivery of the property to the plaintiff.
 - (4) Prior to the issuance of the order for delivery of the property, the plaintiff shall file a bond with the clerk of the court.
- (c) Bond, contents, insufficiency. (1) The bond shall be executed by the plaintiff and one or more sufficient sureties in a sum double the amount of the fair market value of the property, as determined by the judge, or such lesser amount as shall be approved by an order of the judge.
 - (2) The bond shall be to the effect that plaintiff shall duly prosecute the action, and pay all costs and damages that may be awarded against the plaintiff, and that if the plaintiff is given possession of the property the plaintiff will return it to the defendant if it be so adjudged. If the bond shall be found to be sufficient, the judge shall approve the same and note approval thereon.
 - (3) The defendant may challenge the sufficiency of the bond as provided in subsection (b) of K.S.A. 60-705, and amendments thereto.
 - (4) The court shall release the bond, if the plaintiff abandons the right to take possession of the property, prior to taking possession of the property.
- (d) Execution of order, return. (1) In the execution of the order the officer may break open any building or enclosure in which the property is located, if the officer cannot otherwise obtain possession of the property or entrance to the building on demand.
 - (2) The appropriate officer shall execute the order by taking possession of the property

described therein, and serving a copy on the person charged with the order of delivery in the same manner as for personal or resident service if the person can be found in the county.

(3) The return day of the order of delivery shall be 14 days after it is issued, if the order is executed within the county where the court is situated. In all other cases, the return day shall be 21 days after the order is issued.

(4) The plaintiff shall have the right to attend execution of the order. Upon inspection of the property the plaintiff may abandon their right to prejudgment possession and shall so advise the appropriate officer and the court.

(e) Perishable goods. When property shall be actually seized which is likely to perish or to materially depreciate in value or threatens to decline speedily in value before the probable termination of the suit, or the keeping of which would be attended with unreasonable loss or expense, the court may order the same to be sold on such terms and conditions as the judge may direct, by the person having charge of the property, and a return of the proceedings thereon shall be made by the person at a time to be fixed by the judge.

(f) Redelivery, bond. The defendant, after service of a copy of the delivery order, may apply to the court for redelivery of the property. The court shall order return of the property to the defendant when the defendant files a bond with the clerk of the court, in an amount equal to the plaintiff's bond, executed by the defendant with one or more sufficient sureties. The bond shall be to the effect that the defendant will deliver the property to the plaintiff if so adjudged, and will pay all costs and damages that may be adjudged against the defendant. If the bond shall be found to be sufficient, the judge shall approve the same and note approval thereon. If the defendant is a public officer, board or government agency, such officer, board or agency, in lieu of giving a redelivery bond, may retain possession of the property seized by filing with the clerk a response certifying that the public health, safety or welfare would be jeopardized or impaired if the plaintiff acquired possession of the property prior to final judgment, in which case a hearing may be had on the issue of public interest at the instance of any party.

(g) Possession in third party. When the officer finds the property in possession of a person other than a defendant and deems it advisable to leave such person in possession, the officer shall declare to the person in possession that such person shall hold such property in such person's possession, subject to the further order of the court, and shall summon such person as a garnishee by serving upon such person a copy of the order which directs the officer to take immediate possession of the property. The court may require of such person in possession an undertaking with good and sufficient sureties in such sum as the court deems sufficient. The undertaking shall be to the effect that such person will deliver the property to the officer at the time and place fixed for sale, if such be ordered by the court. The officer shall give such person written notice of the time and place fixed for the sale by delivery in person or by restricted mail.

(h) Property claimed by third person. If the officer, before proceeding, may require the possession of, or be requested by the plaintiff to take possession of, personal property claimed by any person other than a defendant, the court may require the plaintiff to give the court an undertaking with good and sufficient sureties to pay all costs and damages that the officer may sustain by reason of the execution of such order.

(i) Judgment. Judgment for the plaintiff shall be for a money judgment and foreclosure of the security interest, and the plaintiff may proceed to foreclose the security interest in accordance with the terms of the security agreement covering the property, as governed

by the provisions of the uniform commercial code, unless the court otherwise directs. If the court directs the plaintiff to proceed to enforce such plaintiff's judgment other than pursuant to the security agreement, and if the judgment is not satisfied within 14 days thereafter, then the clerk shall issue an order of special execution directed to the appropriate officer to sell the property in accordance with K.S.A. 61-3703, and amendments thereto. If the property is not then in the possession of the officer, the order shall also direct the person having possession to deliver such property to the officer. If the property has been delivered to the officer, and the defendant claims a return thereof, judgment shall be for the defendant or a return of the property and damages for the taking and withholding of same.

History: L. 2000, ch. 161, § 74; L. 2010, ch. 135, § 216; July 1.

2025 Kansas Statutes

61-3703. Sale of property to satisfy judgment. (a) Any sale conducted under the provisions of this section shall be subject to the provisions of K.S.A. 60-2406, and amendments thereto, except that the disposition of proceeds after the satisfaction of senior security interests or liens shall be made in accordance with the provisions of K.S.A. 61-3705, and amendments thereto. The officer who shall be directed to sell the personal property, before the officer proceeds to sell the same, shall cause public notice to be given of the time and place of sale, at least 14 days before the day of sale. The notice shall be given by publication at least once each week for two consecutive weeks in any newspaper published in the county, and which is qualified to carry legal publications, or, in the discretion of the court, by posting notices in five public places in the county, one of which shall be on a bulletin board established for public notices in the county courthouse. Within seven days of the date of first publication or posting of notice, plaintiff shall send by restricted mail a copy of such notice to the defendant and to those persons known by the plaintiff to have a security interest in the property. Such notice shall be sent to the last known address of the person to whom sent and shall be in compliance with K.S.A. 2025 Supp. 84-1-202(d) and (e), and amendments thereto. If the personal property cannot be sold at the special execution sale for want of bidders, the plaintiff may direct the officer to return the special execution showing that fact or, at the plaintiff's option, may report the same to the judge and obtain an order permitting a second sale under the same special execution and an extension of the return day of the special execution if that be necessary.

(b) If the personal property to be sold shall consist of more than one item of property, the appropriate officer conducting such sale shall sell only so much of the personal property in the officer's custody as is necessary to satisfy the judgment, interest and costs, and shall return the balance of any property remaining unsold to the defendant by notifying the defendant of the time and place when same may be obtained.

(c) Neither the officer conducting the sale nor any other member of the officer's staff may bid at any such sale.

(d) The provisions of K.S.A. 60-2411, and amendments thereto, relating to advancement of printer's fees shall apply to this section.

History: L. 2000, ch. 161, § 75; L. 2007, ch. 89, § 32; L. 2010, ch. 135, § 217; July 1.

2025 Kansas Statutes

61-3704. Return; confirmation of sale. Upon sale of such property, the appropriate officer shall make a return of such sale to the clerk of the court, together with an itemization of the officer's expenses of sale. The court, upon finding the proceedings regular and in conformity with law, shall confirm the same, and order the officer to make to the purchaser a certificate of sale. The certificate of sale shall accurately describe the property sold, name the purchaser and recite the facts of the sale. If a certificate of title is obtainable for such property under the laws of this state, the description of the property shall include the year, make, style and identification number of such property. A certificate of sale shall vest title to the property in the purchaser.

History: L. 2000, ch. 161, § 76; January 1, 2001.

2025 Kansas Statutes

61-3705. Application of proceeds. (a) Upon the sale of personal property by the appropriate officer, the clerk of the court shall apply the proceeds of sale in the following priority:

- (1) To the court costs of the action including the officer's expenses and cost of publication;
 - (2) in accordance with the provisions of K.S.A. 60-2406, and amendments thereto;
 - (3) in satisfaction of all judgments rendered in the action against the defendant or the property in accordance with the priority determined by the court;
 - (4) any surplus shall be paid to the defendant, except that if any other security interest holder, subsequent to the entering of the judgment of foreclosure, files with the clerk of the court a written notification of demand furnishing reasonable proof of the security interest holder's interest, the clerk shall withhold any payment to the defendant. Such security interest holder shall serve the defendant with notice of the demand within 14 days after such filing and furnish proof of such notice to the court.
- (b) If the defendant does not, within 14 days, notify the clerk in writing that the defendant takes exception to the demand of such security interest holder, the clerk shall apply the surplus to the demand and pay any balance to the defendant.
- (c) If the defendant, within 14 days, notifies the clerk in writing that the defendant takes exception to the demand, the clerk shall withhold all surplus in the clerk's possession for a period of 30 days. If the security interest holder has not commenced a separate action to recover the security interest holder's claim and garnished the clerk within the time, the clerk shall pay the surplus to the defendant.

History: L. 2000, ch. 161, § 77; L. 2010, ch. 135, § 218; July 1.

2025 Kansas Statutes

61-3801. Scope. K.S.A. 61-3801 through 61-3808, and amendments thereto, shall govern lawsuits brought to evict a person from possession of real property or of an interest in real property.

History: L. 2000, ch. 161, § 78; January 1, 2001.

2025 Kansas Statutes

61-3802. Judgment not bar to other actions. A judgment in a lawsuit brought under K.S.A. 61-3801 through 61-3808, and amendments thereto, shall not be a bar to any subsequent lawsuit brought by either party for claims not included in such judgment.

History: L. 2000, ch. 161, § 79; January 1, 2001.

2025 Kansas Statutes

61-3803. Notice to leave premises. Before a lawsuit to evict a person pursuant to K.S.A. 61-3801 through 61-3808, and amendments thereto, is filed, the party desiring to file such lawsuit shall deliver to the other party a notice to leave the premises for which possession is sought. The notice shall be delivered at least three days before commencing the lawsuit, by leaving a written copy with the other party or by leaving a copy thereof with any person over the age of 12 years residing on the premises described in such notice, or if no such person is found upon the premises, by posting a copy of such notice in a conspicuous place thereon, or by mailing a copy of the notice to the other party at the address of the premises described in the notice. The three day notice period provided for in this section shall be computed as three consecutive 24-hour periods to commence at the time the notice is delivered, posted or mailed. If the notice is mailed, an additional two days from the date of mailing shall be allowed for the person to leave the premises before the lawsuit is filed. Intermediate Saturdays, Sundays, legal holidays, and days on which the office of the clerk of the court is not accessible shall be included in the computation of the notice period. The notice may be combined with any notice provided for in K.S.A. 58-2540 et seq., and amendments thereto.

History: L. 2000, ch. 161, § 80; L. 2002, ch. 157, § 16; L. 2010, ch. 11, § 18; April 1.

2025 Kansas Statutes

61-3804. Petition for claim. The petition shall describe the premises for which possession is sought and why the plaintiff is seeking possession. If there is rent due for possession of the premises, the petition may include a request for judgment for that amount or the plaintiff may bring a subsequent lawsuit for that amount.

History: L. 2000, ch. 161, § 81; L. 2002, ch. 157, § 17; July 1.

2025 Kansas Statutes

61-3805. Summons; time for appearance. The time stated in the summons requiring the defendant to appear in response to the petition shall be determined by the court. Such time shall be not less than three nor more than 14 days after the date the summons is issued.

History: L. 2000, ch. 161, § 82; L. 2002, ch. 157, § 18; July 1.

2025 Kansas Statutes

61-3806. Appearance; answer. A defendant shall either appear in person or by counsel at the time and date set forth in the summons or file on or before such date a written answer. The answer, when filed, shall contain the information as required under subsection (b) of K.S.A. 61-2904, and amendments thereto.

History: L. 2000, ch. 161, § 83; January 1, 2001.

2025 Kansas Statutes

61-3807. Trial. (a) If a trial is necessary, the trial shall be conducted within 14 days after the appearance date stated in the summons.

(b) No continuance shall be granted unless the defendant requesting a continuance shall file a bond with good and sufficient security approved by the court, conditioned for the payment of all damages and rent that may accrue if judgment is entered against the defendant.

History: L. 2000, ch. 161, § 84; L. 2010, ch. 135, § 219; July 1.

2025 Kansas Statutes

61-3808. Writ of restitution. (a) If judgment is entered against the defendant for possession of the subject premises, the court shall issue, at the request of the plaintiff, a writ of restitution which shall direct anyone who is authorized to serve process and who is named in the writ to place the plaintiff in possession of the premises described in the writ.

(b) The writ of restitution shall be executed within 14 days after the person named in the writ receives it, and that person shall file a return as with other writs under the code of civil procedure for limited actions. The person serving the writ may use such reasonable force as is necessary to execute the writ.

(c) If the person named in the writ receives a notice from the court that the proceedings have been stayed by appeal, that person shall immediately delay all further proceedings upon the execution. If the premises have been restored to the plaintiff, the person named in the writ shall immediately place the defendant in the possession thereof.

History: L. 2000, ch. 161, § 85; L. 2002, ch. 157, § 19; L. 2010, ch. 135, § 220; July 1.

2025 Kansas Statutes

61-3901. Grounds for appeal. Any party to a civil action pursuant to the code of civil procedure for limited actions may appeal from:

- (a) A final judgment, except a judgment rendered on confession;
- (b) any order, ruling or decision which determines the action at any stage of the proceedings;
- (c) any order, ruling or decision that sustains or overrules a motion to dissolve an attachment or to discharge a garnishment; or
- (d) any order, ruling or decision that sustains or overrules a motion to vacate the levy under an execution on property claimed to be exempt under the laws of this state.

History: L. 2000, ch. 161, § 86; January 1, 2001.

2025 Kansas Statutes

61-3902. Appeals; procedure. (a) All appeals from orders, rulings, decisions or judgments of district magistrate judges who are not regularly admitted to practice law in Kansas under the code of civil procedure for limited actions shall be taken in the manner provided in subsection (a) of K.S.A. 60-2103a, and amendments thereto. All appeals from orders, rulings, decisions or judgments of district judges, or district magistrate judges who are regularly admitted to practice law in Kansas, under the code of civil procedure for limited actions shall be taken in the manner provided in subsections (a) and (b) of K.S.A. 60-2103, and amendments thereto. Notwithstanding the foregoing provisions of this subsection, if judgment has been rendered in an action for forcible detainer and the defendant desires to appeal from that portion of the judgment granting restitution of the premises, notice of appeal shall be filed within seven days after entry of judgment. The notice of appeal shall specify the party or parties taking the appeal; the order, ruling, decision or judgment appealed from; and the court to which the appeal is taken.

(b) The provisions of K.S.A. 60-2001, and amendments thereto, shall apply to appeals pursuant to this section.

(c) An appeal from an action heard by a district magistrate judge who is not regularly admitted to practice law in Kansas shall be taken to a district judge of the county. An appeal from an action heard by a district judge, or a district magistrate judge who is regularly admitted to practice law in Kansas, shall be taken to the court of appeals.

History: L. 2000, ch. 161, § 87; L. 2010, ch. 135, § 221; L. 2014, ch. 71, § 9; July 1.

2025 Kansas Statutes

61-3903. Appeals from district magistrate judge not regularly admitted to practice law; notice; assignment. Subject to the rules of the supreme court of this state, once an appeal is perfected, if the judge from whom such appeal is taken is a district magistrate judge who is not regularly admitted to practice law in Kansas, such judge shall notify the chief judge of the judicial district that the appeal has been perfected. The chief judge then shall assign the case to a district judge to hear the appeal.

History: L. 2000, ch. 161, § 88; L. 2014, ch. 71, § 10; July 1.

2025 Kansas Statutes

61-3904. Execution on judgment pending appeal without bond. No execution shall issue upon a judgment, nor shall proceedings be taken for its enforcement, until the expiration of 14 days after its entry. If an appellant does not file a supersedeas bond as provided in the code of civil procedure for limited actions, the taking of an appeal shall not operate to stay proceedings for the enforcement of a final judgment or to take execution thereon. Nothing in this section shall be construed as limiting any power of a judge hearing such appeal to stay proceedings during the pendency of an appeal, to grant an injunction during the pendency of such appeal or to make any other appropriate order to preserve the status quo or the effectiveness of the judgment subsequently to be rendered.

History: L. 2000, ch. 161, § 89; L. 2010, ch. 135, § 222; July 1.

2025 Kansas Statutes

61-3905. Stay of proceedings on appeal; bond. (a) Whenever an appellant entitled thereto desires a stay on appeal from an action pursuant to the code of civil procedure for limited actions, such appellant may present to the judge from which the appeal is taken, for the judge's approval, a supersedeas bond which shall have such surety or sureties as the judge requires. The bond may be given at or after the time of filing the notice of appeal, and the stay is effective when the supersedeas bond is approved by the judge. Such bond shall be conditioned for the satisfaction of the judgment in full together with costs, interest and damages for delay, if for any reason the appeal is dismissed, or if the judgment is affirmed; and to satisfy in full any modification of the judgment and such costs, interests and damages as the appellate court may adjudge and award.

(b) When the judgment is for the recovery of money not otherwise secured, the amount of the bond shall be fixed at such sum as will cover the whole amount of the judgment remaining unsatisfied, costs on the appeal, interest and damages for delay, unless the court after notice and hearing and for good cause shown fixes a different amount or orders security other than the bond. When the judgment determines the disposition of the property in controversy as in replevin, or when such property is in the custody of the sheriff or when the proceeds of such property or a bond for its value is in the custody or control of the court, the amount of the supersedeas bond shall be fixed after notice and hearing at such sum only as will secure the amount recovered for the use and detention of the property, the costs of the action, costs on appeal, interest and damages for delay. When an order is made discharging, vacating or modifying a provisional remedy, a party aggrieved thereby shall be entitled, upon application to the judge, to have the operation of such order suspended for a period of not to exceed 14 days on condition that, within the period of 14 days, such party shall file notice of appeal and obtain the approval of such supersedeas bond as is required under this section.

(c) In lieu of a supersedeas bond, the court may condition a stay of proceedings pending appeal upon the timely payment into court of the periodic rent otherwise due from the defendant to the plaintiff under the rental agreement pertaining to the real property in issue.

History: L. 2000, ch. 161, § 90; L. 2010, ch. 135, § 223; July 1.

2025 Kansas Statutes

61-3906. Forcible detainer. In appeals taken by the defendant in actions for the forcible detention of real property, the supersedeas bond filed on appeal shall be conditioned that the appellant will not commit or suffer waste to be committed on the premises in controversy, and if upon appeal the court judgment be rendered against the appellant, the appellant will pay the value of the use and occupation of the property, from the date such bond was filed until the delivery of the property pursuant to the judgment, and all damages and costs that may be awarded against the appellant.

History: L. 2000, ch. 161, § 91; January 1, 2001.

2025 Kansas Statutes

61-3907. Insufficiency of bond. If a supersedeas bond was not filed with the notice of appeal, and if the action is not yet docketed on appeal, a bond may be filed with the court from which the appeal is taken. After the action is so docketed, application for leave to file a bond may be made only in the appellate court. When the surety for a supersedeas bond shall be insufficient, or such bond is insufficient in form or amount, the appellate court may on motion order a change or renewal of such bond, and direct that it be filed in such court.

History: L. 2000, ch. 161, § 92; January 1, 2001.

2025 Kansas Statutes

61-3908. Judgment against surety. By entering into a supersedeas bond given pursuant to K.S.A. 61-3905 and 61-3906, and amendments thereto, the surety submits to the jurisdiction of the court wherein the judgment becomes final, and irrevocably appoints the clerk of such court as the surety's agent upon whom any papers affecting the surety's liability on the bond may be served. The surety's liability may be enforced on motion without the necessity of an independent action. The motion and such notice of the motion as the judge prescribes may be served on the clerk of the court who shall forthwith mail copies to the surety if the surety's address is known.

History: L. 2000, ch. 161, § 93; January 1, 2001.

2025 Kansas Statutes

61-3909. Dismissal of appeal. If the appeal is dismissed by the judge hearing such appeal, the action shall be remanded to the judge from which such appeal was taken.

History: L. 2000, ch. 161, § 94; January 1, 2001.

2025 Kansas Statutes

61-4001. Docket fee; authorized only by legislative enactment; poverty affidavit; additional court costs; exemptions. (a) Docket fee. (1) No case shall be filed or docketed pursuant to the code of civil procedure for limited actions without the payment of a docket fee in the amount of \$35 if the amount in controversy or claimed does not exceed \$500; \$55 if the amount in controversy or claimed exceeds \$500 but does not exceed \$5,000; or \$101 if the amount in controversy or claimed exceeds \$5,000. If judgment is rendered for the plaintiff, the court also may enter judgment for the plaintiff for the amount of the docket fee paid by the plaintiff.

(2) Except as provided further, the docket fee established in this section shall be the only fee collected or moneys in the nature of a fee collected for the docket fee. Such fee shall only be established by an act of the legislature and no other authority is established by law or otherwise to collect a fee. On and after July 1, 2019, through June 30, 2025, the supreme court may impose an additional charge, not to exceed \$19 per docket fee, to fund the costs of non-judicial personnel.

(b) Poverty affidavit; additional court costs; exemptions for the state and municipalities. The provisions of K.S.A. 60-2001(b), (c) and (d) and 60-2005, and amendments thereto, shall be applicable to lawsuits brought under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 95; L. 2001, ch. 211, § 15; L. 2006, ch. 195, § 20; L. 2007, ch. 195, § 33; L. 2008, ch. 95, § 16; L. 2009, ch. 116, § 26; L. 2009, ch. 143, § 23; L. 2010, ch. 62, § 18; L. 2011, ch. 87, § 18; L. 2012, ch. 66, § 19; L. 2013, ch. 125, § 19; L. 2015, ch. 81, § 27; L. 2017, ch. 80, § 22; L. 2019, ch. 58, § 23; July 1.

2025 Kansas Statutes

61-4002. Items allowable as costs. The provisions of K.S.A. 60-2002, 60-2003, 60-2006, 60-2610 and 60-2611, and amendments thereto, shall be applicable to lawsuits brought under the code of civil procedure for limited actions.

History: L. 2000, ch. 161, § 96; January 1, 2001.

2025 Kansas Statutes

61-4101. Lost or destroyed court files. The applicable provisions of article 25 of chapter 60 of the Kansas Statutes Annotated, and amendments thereto, relating to lost or destroyed court files and records, shall govern lost court files and records in actions pursuant to the code of civil procedure for limited actions, except as otherwise provided in the rules of the supreme court of this state.

History: L. 2000, ch. 161, § 97; January 1, 2001.

2025 Kansas Statutes

61-4102. Affirmation in lieu of oath. Whenever an oath is required by the code of civil procedure for limited actions, the affirmation of a person conscientiously opposed to taking an oath shall have the same effect.

History: L. 2000, ch. 161, § 98; January 1, 2001.

2025 Kansas Statutes

61-4103. Availability of other relief. If a case arises in which an action or proceeding for the enforcement or protection of a substantive right, or the redress or prevention of a wrong, cannot be had under any specific provisions of the code of civil procedure for limited actions or other statutes, then the court shall proceed as nearly in conformity with the provisions of the code of civil procedure for limited actions as the circumstances permit to do whatever law and justice require for the protection of the parties.

History: L. 2000, ch. 161, § 99; January 1, 2001.

2025 Kansas Statutes

61-4104. Effect on pending actions. The procedures prescribed by the code of civil procedure for limited actions shall apply to any actions or proceedings commenced, or judgments entered, prior to the enactment of this act.

History: L. 2000, ch. 161, § 100; January 1, 2001.

2025 Kansas Statutes

44-1001. Title of act; declaration of state policy and purpose. This act shall be known as the Kansas act against discrimination. It shall be deemed an exercise of the police power of the state for the protection of the public welfare, safety, health and peace of the people of this state. The practice or policy of discrimination against individuals in employment relations, in relation to free and public accommodations, in housing by reason of race, religion, color, sex, disability, national origin or ancestry or in housing by reason of familial status is a matter of concern to the state, since such discrimination threatens not only the rights and privileges of the inhabitants of the state of Kansas but menaces the institutions and foundations of a free democratic state. It is hereby declared to be the policy of the state of Kansas to eliminate and prevent discrimination in all employment relations, to eliminate and prevent discrimination, segregation, or separation in all places of public accommodations covered by this act, and to eliminate and prevent discrimination, segregation or separation in housing.

It is also declared to be the policy of this state to assure equal opportunities and encouragement to every citizen regardless of race, religion, color, sex, disability, national origin or ancestry, in securing and holding, without discrimination, employment in any field of work or labor for which a person is properly qualified, to assure equal opportunities to all persons within this state to full and equal public accommodations, and to assure equal opportunities in housing without distinction on account of race, religion, color, sex, disability, familial status, national origin or ancestry. It is further declared that the opportunity to secure and to hold employment, the opportunity for full and equal public accommodations as covered by this act and the opportunity for full and equal housing are civil rights of every citizen.

To protect these rights, it is hereby declared to be the purpose of this act to establish and to provide a state commission having power to eliminate and prevent segregation and discrimination, or separation in employment, in all places of public accommodations covered by this act, in housing because of race, religion, color, sex, disability, national origin or ancestry and in housing because of familial status, either by employers, labor organizations, employment agencies, realtors, financial institutions or other persons as hereinafter provided.

History: L. 1953, ch. 249, § 1; L. 1961, ch. 248, § 1; L. 1963, ch. 279, § 1; L. 1965, ch. 323, § 1; L. 1972, ch. 194, § 1; L. 1974, ch. 209, § 1; L. 1991, ch. 147, § 1; July 1.

2025 Kansas Statutes

44-1002. Definitions. When used in this act:

- (a) "Person" includes one or more individuals, partnerships, associations, organizations, corporations, legal representatives, trustees, trustees in bankruptcy or receivers.
- (b) "Employer" includes any person in this state employing four or more persons and any person acting directly or indirectly for an employer, labor organizations, nonsectarian corporations, organizations engaged in social service work and the state of Kansas and all political and municipal subdivisions thereof, but shall not include a nonprofit fraternal or social association or corporation.
- (c) "Employee" does not include any individual employed by such individual's parents, spouse or child or in the domestic service of any person.
- (d) "Labor organization" includes any organization which exists for the purpose, in whole or in part, of collective bargaining, of dealing with employers concerning grievances, terms or conditions of employment or of other mutual aid or protection in relation to employment.
- (e) "Employment agency" includes any person or governmental agency undertaking, with or without compensation, to procure opportunities to work or to procure, recruit, refer or place employees.
- (f) "Commission" means the Kansas human rights commission created by this act.
- (g) "Unlawful employment practice" includes only those unlawful practices and acts specified in K.S.A. 44-1009, and amendments thereto, and includes segregate or separate.
- (h) "Public accommodations" means any person who caters or offers goods, services, facilities and accommodations to the public. Public accommodations include, but are not limited to, any lodging establishment or food service establishment, as defined by K.S.A. 36-501, and amendments thereto; any bar, tavern, barbershop, beauty parlor, theater, skating rink, bowling alley, billiard parlor, amusement park, recreation park, swimming pool, lake, gymnasium, mortuary or cemetery which is open to the public; or any public transportation facility. Public accommodations do not include a religious or nonprofit fraternal or social association or corporation.
- (i) "Unlawful discriminatory practice" means: (1) Any discrimination against persons, by reason of their race, religion, color, sex, disability, national origin or ancestry:
 - (A) In any place of public accommodations; or
 - (B) in the full and equal use and enjoyment of the services, facilities, privileges and advantages of any institution, department or agency of the state of Kansas or any political subdivision or municipality thereof; and(2) any discrimination against persons in regard to membership in a nonprofit recreational or social association or corporation by reason of race, religion, sex, color, disability, national origin or ancestry if such association or corporation has 100 or more members and: (A) Provides regular meal service; and (B) receives payment for dues, fees, use of space, use of facility, services, meals or beverages, directly or indirectly, from or on behalf of nonmembers.

This term shall not apply to a religious or private fraternal and benevolent association or corporation.
- (j) "Disability" means, with respect to an individual:
 - (1) A physical or mental impairment that substantially limits one or more of the major

life activities of such individual;

(2) a record of such an impairment; or

(3) being regarded as having such an impairment.

Disability does not include current, illegal use of a controlled substance as defined in section 102 of the federal controlled substance act (21 U.S.C. § 802), in housing discrimination. In employment and public accommodation discrimination, "disability" does not include an individual who is currently engaging in the illegal use of drugs where possession or distribution of such drugs is unlawful under the controlled substance act (21 U.S.C. § 812), when the covered entity acts on the basis of such use.

(k) (1) "Reasonable accommodation" means:

(A) Making existing facilities used by employees readily accessible to and usable by individuals with disabilities; and

(B) job restructuring; part-time or modified work schedules; reassignment to a vacant position; acquisition or modification of equipment or devices; appropriate adjustment or modifications of examinations, training materials or policies; provision of qualified readers or interpreters; and other similar accommodations for individuals with disabilities.

(2) A reasonable accommodation or a reasonable modification to policies, practices or procedures need not be provided to an individual who meets the definition of disability in K.S.A. 44-1002(j)(3), and amendments thereto.

(l) "Regarded as having such an impairment" means the absence of a physical or mental impairment but regarding or treating an individual as though such an impairment exists. An individual meets the requirement of "being regarded as having such an impairment" if the individual establishes that such individual has been subjected to an action prohibited under this act because of an actual or perceived physical or mental impairment whether or not the impairment limits or is perceived to limit a major life activity. Subsection (j)(3) shall not apply to impairments that are transitory or minor. A transitory impairment is an impairment with an actual or expected duration of six months or less.

(m) "Major life activities" means:

(1) Major life activities include, but are not limited to, caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working.

(2) It also includes the operation of a major bodily function, including, but not limited to, functions of the immune system, normal cell growth, digestive, bowel, bladder, neurological, brain, respiratory, circulatory, endocrine and reproductive functions.

(n) "Genetic screening or testing" means a laboratory test of a person's genes or chromosomes for abnormalities, defects or deficiencies, including carrier status, that are linked to physical or mental disorders or impairments, or that indicate a susceptibility to illness, disease or other disorders, whether physical or mental, which test is a direct test for abnormalities, defects or deficiencies, and not an indirect manifestation of genetic disorders.

History: L. 1953, ch. 249, § 2; L. 1961, ch. 248, § 2; L. 1963, ch. 279, § 2; L. 1965, ch. 323, § 2; L. 1970, ch. 192, § 1; L. 1972, ch. 194, § 2; L. 1974, ch. 209, § 2; L. 1975, ch. 264, § 1; L. 1991, ch. 147, § 2; L. 1992, ch. 91, § 1; L. 1999, ch. 32, § 1; L. 2012, ch. 48, § 1; July 1.

2025 Kansas Statutes

44-1003. Human rights commission; membership; organization compensation and expenses staff. (a)

There is hereby created the Kansas human rights commission. The commission shall consist of seven members, two of whom shall be representative of industry, two of whom shall be representative of labor, one of whom shall be a person authorized to practice law in this state, one of whom shall be a representative of the real estate industry, and one of whom shall be appointed at large, to be known as commissioners. No more than four members of the commission shall be from the same political party. Members of the commission shall be appointed by the governor, subject to confirmation by the senate as provided in K.S.A. 75-4315b and amendments thereto. Except as provided by K.S.A. 46-2601 and amendments thereto, no person appointed to the commission shall exercise any power, duty or function as a member of the commission until confirmed by the senate. One member shall be designated by the governor as chairperson and shall preside at all meetings of the commission and perform all the duties and functions of chairperson.

(b) The commission may designate one member to act as chairperson during the absence or incapacity of the chairperson, and, when so acting, the member designated shall have and perform all the duties and functions of the chairperson of the commission.

(c) Except as provided by subsection (d), the term of office of each member of the commission shall be four years and until a successor is confirmed. Any member chosen to fill a vacancy occurring other than by expiration of term shall be appointed for the unexpired term of the member's predecessor.

(d) The terms of members who are serving on the commission on the effective date of this act shall expire on January 15, of the year on which such member's term would have expired under the provisions of this section prior to amendment by this act. Thereafter, members shall be appointed for terms of four years and until their successors are appointed and confirmed.

(e) A majority of the current members of the commission shall constitute a quorum for the purpose of conducting the business of the commission, except as otherwise provided in this section. Vacancies on the commission shall not impair the right of the remaining members to exercise all the powers of the commission.

(f) Members of the Kansas human rights commission attending meetings of the commission, or attending a subcommittee meeting thereof authorized by the commission, shall be paid compensation, subsistence allowances, mileage and other expenses as provided in K.S.A. 75-3223 and amendments thereto.

(g) The commission shall employ a full-time executive director who shall be in the unclassified service under the Kansas civil service act and who shall receive an annual salary fixed by the commission, with the approval of the governor. The commission shall employ such professional staff and full or part-time legal, stenographic and clerical assistants as necessary to carry out the provisions of this act and shall fix the amount of their compensation. The commission also may employ or may contract for the services of qualified hearing examiners to conduct hearings. In addition, the commission may employ or may contract for the services of qualified hearing examiners pro tem when necessitated by the incapacity or disqualification of the other hearing examiners. All hearing examiners shall be admitted to practice law before the supreme court of

Kansas. The appointment and compensation of legal counsel, except those members of the legal staff serving as hearing examiners, shall be approved by the attorney general.

(h) On July 1, 1991, the commission on civil rights shall become the Kansas human rights commission. The Kansas human rights commission shall be a continuation of the commission on civil rights and members and employees of the commission on civil rights shall continue as members and employees of the Kansas human rights commission. All rules and regulations and orders of the commission on civil rights shall be deemed rules and regulations and orders of the Kansas human rights commission. All properties, moneys, appropriations, rights and authorities vested in the commission on civil rights shall be vested in the Kansas human rights commission. Whenever the commission on civil rights, or words of like effect, is referred to or designated by any statute, contract or other document, such reference or designation shall be deemed to apply to the Kansas human rights commission.

History: L. 1953, ch. 249, § 3; L. 1961, ch. 248, § 3; L. 1965, ch. 323, § 3; L. 1967, ch. 284, § 1; L. 1970, ch. 192, § 8; L. 1972, ch. 194, § 3; L. 1974, ch. 348, § 18; L. 1975, ch. 264, § 2; L. 1978, ch. 198, § 1; L. 1978, ch. 308, § 49; L. 1982, ch. 347, § 20; L. 1991, ch. 148, § 3; L. 1992, ch. 116, § 28; L. 1995, ch. 247, § 1; L. 1996, ch. 250, § 1; July 1.

2025 Kansas Statutes

44-1004. Powers and duties of commission. The commission shall have the following functions, powers and duties:

- (1) To establish and maintain its principal office in the city of Topeka, and such other offices elsewhere within the state as it may deem necessary.
- (2) To meet and function at any place within the state.
- (3) To adopt, promulgate, amend and rescind suitable rules and regulations to carry out the provisions of this act, and the policies and practices of the commission in connection therewith.
- (4) To receive, initiate, investigate and pass upon complaints alleging discrimination in employment, public accommodations and housing because of race, religion, color, sex, disability, national origin or ancestry and complaints alleging discrimination in housing because of familial status.
- (5) To subpoena witnesses, compel their appearance and require the production for examination of records, documents and other evidence or possible sources of evidence and to examine, record and copy such materials and take and record the testimony or statements of such persons. The commission may issue subpoenas to compel access to or the production of such materials, or the appearance of such persons, and may issue interrogatories to a respondent to the same extent and subject to the same limitations as would apply if the subpoena or interrogatories were issued or served in aid of a civil action in the district court. The commission shall have access at all reasonable times to premises and may compel such access by application to a court of competent jurisdiction provided that the commission first complies with the provisions of article 15 of the Kansas bill of rights and the fourth amendment to the United States constitution relating to unreasonable searches and seizures. The commission may administer oaths and take depositions to the same extent and subject to the same limitations as would apply if the deposition was taken in aid of a civil action in the district court. In case of the refusal of any person to comply with any subpoena, interrogatory or search warrant issued hereunder, or to testify to any matter regarding which such person may be lawfully questioned, the district court of any county may, upon application of the commission, order such person to comply with such subpoena or interrogatory and to testify. Failure to obey the court's order may be punished by the court as contempt. No person shall be prosecuted or subjected to any penalty or forfeiture for or on account of any transaction, matter or thing concerning which such person testifies or produces evidence, except that such person so testifying shall not be exempt from prosecution and punishment for perjury committed in so testifying. The immunity herein provided shall extend only to natural persons.
- (6) To act in concert with other parties in interest in order to eliminate and prevent discrimination and segregation, prohibited by this act, by including any term in a conciliation agreement as could be included in a final order under this act.
- (7) To apply to the district court of the county where the respondent resides or transacts business for enforcement of any conciliation agreement by seeking specific performance of such agreement.
- (8) To issue such final orders after a public hearing as may remedy any existing situation found to violate this act and prevent its recurrence.
- (9) To endeavor to eliminate prejudice among the various ethnic groups and people

with disabilities in this state and to further good will among such groups. The commission in cooperation with the state department of education shall prepare a comprehensive educational program designed for the students of the public schools of this state and for all other residents thereof, calculated to emphasize the origin of prejudice against such groups, its harmful effects and its incompatibility with American principles of equality and fair play.

(10) To create such advisory agencies and conciliation councils, local, regional or statewide, as in its judgment will aid in effectuating the purposes of this act; to study the problem of discrimination in all or specific fields or instances of discrimination because of race, religion, color, sex, disability, national origin or ancestry; to foster, through community effort or otherwise, good will, cooperation and conciliation among the groups and elements of the population of this state; and to make recommendations to the commission for the development of policies and procedures, and for programs of formal and informal education, which the commission may recommend to the appropriate state agency. Such advisory agencies and conciliation councils shall be composed of representative citizens serving without pay. The commission may itself make the studies and perform the acts authorized by this paragraph. It may, by voluntary conferences with parties in interest, endeavor by conciliation and persuasion to eliminate discrimination in all the stated fields and to foster good will and cooperation among all elements of the population of the state.

(11) To accept contributions from any person to assist in the effectuation of this section and to seek and enlist the cooperation of private, charitable, religious, labor, civic and benevolent organizations for the purposes of this section.

(12) To issue such publications and such results of investigation and research as in its judgment will tend to promote good will and minimize or eliminate discrimination because of race, religion, color, sex, disability, national origin or ancestry.

(13) To render each year to the governor and to the state legislature a full written report of all of its activities and of its recommendations.

(14) To adopt an official seal.

(15) To receive and accept federal funds to effectuate the purposes of the act and to enter into agreements with any federal agency for such purpose.

History: L. 1953, ch. 249, § 4; L. 1961, ch. 248, § 4; L. 1963, ch. 279, § 3; L. 1965, ch. 323, § 4; L. 1967, ch. 285, § 1; L. 1970, ch. 192, § 2; L. 1972, ch. 194, § 4; L. 1974, ch. 209, § 3; L. 1975, ch. 264, § 3; L. 1991, ch. 147, § 3; July 1.

2025 Kansas Statutes

44-1005. Complaints; investigation; proceedings; remedial orders; dismissal of certain complaints, when, procedure and effect. (a) Any person claiming to be aggrieved by an alleged unlawful employment practice or by an alleged unlawful discriminatory practice, and who can articulate a prima facie case pursuant to a recognized legal theory of discrimination, may, personally or by an attorney-at-law, make, sign and file with the commission a verified complaint in writing, articulating the prima facie case, which shall also state the name and address of the person, employer, labor organization or employment agency alleged to have committed the unlawful employment practice complained of or the name and address of the person alleged to have committed the unlawful discriminatory practice complained of, and which shall set forth the particulars thereof and contain such other information as may be required by the commission.

(b) The commission upon its own initiative or the attorney general may, in like manner, make, sign and file such complaint. Whenever the attorney general has sufficient reason to believe that any person as herein defined is engaged in a practice of discrimination, segregation or separation in violation of this act, the attorney general may make, sign and file a complaint. Any employer whose employees or some of whom, refuse or threaten to refuse to cooperate with the provisions of this act, may file with the commission a verified complaint asking for assistance by conciliation or other remedial action.

(c) Whenever any problem of discrimination because of race, religion, color, sex, disability, national origin or ancestry arises, or whenever the commission has, in its own judgment, reason to believe that any person has engaged in an unlawful employment practice or an unlawful discriminatory practice in violation of this act, or has engaged in a pattern or practice of discrimination, the commission may conduct an investigation without filing a complaint and shall have the same powers during such investigation as provided for the investigation of complaints. The person to be investigated shall be advised of the nature and scope of such investigation prior to its commencement. The purpose of the investigation shall be to resolve any such problems promptly. In the event such problems cannot be resolved within a reasonable time, the commission may issue a complaint whenever the investigation has revealed a violation of the Kansas act against discrimination has occurred. The information gathered in the course of the first investigation may be used in processing the complaint.

(d) After the filing of any complaint by an aggrieved individual, by the commission, or by the attorney general, the commission shall, within seven days after the filing of the complaint, serve a copy on each of the parties alleged to have violated this act, and shall designate one of the commissioners to make, with the assistance of the commission's staff, prompt investigation of the alleged act of discrimination. If the commissioner shall determine after such investigation that no probable cause exists for crediting the allegations of the complaint, such commissioner, within 10 business days from such determination, shall cause to be issued and served upon the complainant and respondent written notice of such determination.

(e) If such commissioner after such investigation, shall determine that probable cause exists for crediting the allegations for the complaint, the commissioner or such other commissioner as the commission may designate, shall immediately endeavor to eliminate the unlawful employment practice or the unlawful discriminatory practice

complained of by conference and conciliation. The complainant, respondent and commission shall have 45 days from the date respondent is notified in writing of a finding of probable cause to enter into a conciliation agreement signed by all parties in interest. The parties may amend a conciliation agreement at any time prior to the date of entering into such agreement. Upon agreement by the parties the time for entering into such agreement may be extended. The members of the commission and its staff shall not disclose what has transpired in the course of such endeavors.

(f) In case of failure to eliminate such practices by conference and conciliation, or in advance thereof, if in the judgment of the commissioner or the commission circumstances so warrant, the commissioner or the commission shall commence a hearing in accordance with the provisions of the Kansas administrative procedure act naming as parties the complainant and the person, employer, labor organization, employment agency, realtor or financial institution named in such complaint, hereinafter referred to as respondent. A copy of the complaint shall be served on the respondent. At least four commissioners or a presiding officer from the office of administrative hearings shall be designated as the presiding officer. The place of such hearing shall be in the county where respondent is doing business and the acts complained of occurred.

(g) The complainant or respondent may apply to the presiding officer for the issuance of a subpoena for the attendance of any person or the production or examination of any books, records or documents pertinent to the proceeding at the hearing. Upon such application the presiding officer shall issue such subpoena.

(h) The case in support of the complaint shall be presented before the presiding officer by one of the commission's attorneys or agents, or by private counsel, if any, of the complainant, and the commissioner who shall have previously made the investigation shall not participate in the hearing except as a witness. Any endeavors at conciliation shall not be received in evidence.

(i) Any complaint filed pursuant to this act must be so filed within six months after the alleged act of discrimination, unless the act complained of constitutes a continuing pattern or practice of discrimination in which event it will be from the last act of discrimination. Complaints filed with the commission may be dismissed by the commission on its own initiative, and shall be dismissed by the commission upon the written request of the complainant, if the commission has not issued a finding of probable cause or no probable cause or taken other administrative action dismissing the complaint within 300 days of the filing of the complaint. The commission shall mail written notice to all parties of dismissal of a complaint within five days of dismissal. Any such dismissal of a complaint in accordance with this section shall constitute final action by the commission which shall be deemed to exhaust all administrative remedies under the Kansas act against discrimination for the purpose of allowing subsequent filing of the matter in court by the complainant, without the requirement of filing a petition for reconsideration pursuant to K.S.A. 44-1010, and amendments thereto. Dismissal of a complaint in accordance with this section shall not be subject to appeal or judicial review by any court under the provisions of K.S.A. 44-1011, and amendments thereto. The provisions of this section shall not apply to complaints alleging discriminatory housing practices filed with the commission pursuant to K.S.A. 44-1015 et seq., and amendments thereto.

(j) The respondent may file a written verified answer to the complaint and appear at such hearing in person or otherwise, with or without counsel, and submit testimony.

The complainant shall appear at such hearing in person, with or without counsel, and submit testimony. The presiding officer or the complainant shall have the power reasonably and fairly to amend any complaint, and the respondent shall have like power to amend such respondent's answer. The presiding officer shall be bound by the rules of evidence prevailing in courts of law or equity, and only relevant evidence of reasonable probative value shall be received.

(k) If the presiding officer finds a respondent has engaged in or is engaging in any unlawful employment practice or unlawful discriminatory practice as defined in this act, the presiding officer shall render an order requiring such respondent to cease and desist from such unlawful employment practice or such unlawful discriminatory practice and to take such affirmative action, including but not limited to the hiring, reinstatement, or upgrading of employees, with or without back pay, and the admission or restoration to membership in any respondent labor organizations; the admission to and full and equal enjoyment of the goods, services, facilities, and accommodations offered by any respondent place of public accommodation denied in violation of this act, as, in the judgment of the presiding officer, will effectuate the purposes of this act, and including a requirement for report of the manner of compliance. Such order may also include an award of damages for pain, suffering and humiliation which are incidental to the act of discrimination, except that an award for such pain, suffering and humiliation shall in no event exceed the sum of \$2,000.

(l) Any state, county or municipal agency may pay a complainant back pay if it has entered into a conciliation agreement for such purposes with the commission, and may pay such back pay if it is ordered to do so by the commission.

(m) If the presiding officer finds that a respondent has not engaged in any such unlawful employment practice, or any such unlawful discriminatory practice, the presiding officer shall render an order dismissing the complaint as to such respondent.

(n) The commission shall review an initial order rendered under subsection (k) or (m). In addition to the parties, a copy of any final order shall be served on the attorney general and such other public officers as the commission may deem proper.

(o) The commission shall, except as otherwise provided, establish rules of practice to govern, expedite and effectuate the foregoing procedure and its own actions thereunder. The rules of practice shall be available, upon written request, within 30 days after the date of adoption.

History: L. 1953, ch. 249, § 5; L. 1961, ch. 248, § 6; L. 1963, ch. 279, § 4; L. 1965, ch. 323, § 5; L. 1967, ch. 285, § 2; L. 1970, ch. 192, § 3; L. 1972, ch. 194, § 5; L. 1974, ch. 209, § 4; L. 1975, ch. 264, § 4; L. 1984, ch. 186, § 1; L. 1988, ch. 356 § 149; L. 1989, ch. 283, § 9; L. 1991, ch. 147, § 4; L. 1995, ch. 247, § 2; L. 2004, ch. 145, § 15; July 1, 2007.

2025 Kansas Statutes

44-1006. Construction of act. (a) The provisions of this act shall be construed liberally for the accomplishment of the purposes thereof. Nothing contained in this act shall be deemed to repeal any of the provisions of any other law of this state relating to discrimination because of race, religion, color, sex, disability, national origin or ancestry, unless the same is specifically repealed by this act.

(b) Nothing in this act shall be construed to mean that an employer shall be forced to hire unqualified or incompetent personnel, or discharge qualified or competent personnel.

(c) The definition of "disability" in K.S.A. 44-1002(j), and amendments thereto, shall be construed in accordance with the following:

(1) The definition of disability in this act shall be construed in favor of broad coverage of individuals under this act, to the maximum extent permitted by the terms of this act;

(2) an impairment that substantially limits one major life activity need not limit other major life activities in order to be considered a disability;

(3) an impairment that is episodic or in remission is a disability if it would substantially limit a major life activity when active; and

(4) (A) The determination of whether an impairment substantially limits a major life activity shall be made without regard to the ameliorative effects of mitigating measures such as the following:

(i) Medication, medical supplies, equipment, or appliances, low-vision devices (which do not include ordinary eye glasses or contact lenses), prosthetics including limbs and devices, hearing aids and cochlear implants or other implantable hearing devices, mobility devices, or oxygen therapy equipment and supplies;

(ii) use of assistive technology;

(iii) reasonable accommodations or auxiliary aides or services; or

(iv) learned behavioral or adaptive neurological modifications.

(B) The ameliorative effects of the mitigating measures of ordinary eyeglasses or contact lenses shall be considered in determining whether an impairment substantially limits a major life activity.

(C) As used in this subparagraph:

(i) "Ordinary eyeglasses or contact lenses" means lenses that are intended to fully correct visual acuity or eliminate refractive error; and

(ii) "low-vision devices" means devices that magnify, enhance, or otherwise augment a visual image.

History: L. 1953, ch. 249, § 6; L. 1963, ch. 279, § 5; L. 1970, ch. 192, § 4; L. 1972, ch. 194, § 6; L. 1974, ch. 209, § 5; L. 1991, ch. 147, § 5; L. 2012, ch. 48, § 2; July 1.

2025 Kansas Statutes

44-1007. Invalidity of part. If any clause, sentence, paragraph or part of this act or the application thereof to any person or circumstances shall for any reason be adjudged by a court of competent jurisdiction to be invalid such judgment shall not affect, impair or invalidate the remainder of this act and the application thereof to other persons or circumstances but shall be confined in its operation to the clause, sentence, paragraph or part thereof directly involved in the controversy in which such judgment shall have been rendered and the persons or circumstances involved. It is hereby declared to be the legislative intent that this act would have been adopted had such provisions not been included.

History: L. 1953, ch. 249, § 7; June 30.

2025 Kansas Statutes

44-1009. Unlawful employment practices; unlawful discriminatory practices. (a) It shall be an unlawful employment practice:

- (1) For an employer, because of the race, religion, color, sex, disability, national origin or ancestry of any person to refuse to hire or employ such person to bar or discharge such person from employment or to otherwise discriminate against such person in compensation or in terms, conditions or privileges of employment; to limit, segregate, separate, classify or make any distinction in regards to employees; or to follow any employment procedure or practice which, in fact, results in discrimination, segregation or separation without a valid business necessity.
- (2) For a labor organization, because of the race, religion, color, sex, disability, national origin or ancestry of any person, to exclude or to expel from its membership such person or to discriminate in any way against any of its members or against any employer or any person employed by an employer.
- (3) For any employer, employment agency or labor organization to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or membership or to make any inquiry in connection with prospective employment or membership, which expresses, directly or indirectly, any limitation, specification or discrimination as to race, religion, color, sex, disability, national origin or ancestry, or any intent to make any such limitation, specification or discrimination, unless based on a bona fide occupational qualification.
- (4) For any employer, employment agency or labor organization to discharge, expel or otherwise discriminate against any person because such person has opposed any practices or acts forbidden under this act or because such person has filed a complaint, testified or assisted in any proceeding under this act.
- (5) For an employment agency to refuse to list and properly classify for employment or to refuse to refer any person for employment or otherwise discriminate against any person because of such person's race, religion, color, sex, disability, national origin or ancestry; or to comply with a request from an employer for a referral of applicants for employment if the request expresses, either directly or indirectly, any limitation, specification or discrimination as to race, religion, color, sex, disability, national origin or ancestry.
- (6) For an employer, labor organization, employment agency, or school which provides, coordinates or controls apprenticeship, on-the-job, or other training or retraining program, to maintain a practice of discrimination, segregation or separation because of race, religion, color, sex, disability, national origin or ancestry, in admission, hiring, assignments, upgrading, transfers, promotion, layoff, dismissal, apprenticeship or other training or retraining program, or in any other terms, conditions or privileges of employment, membership, apprenticeship or training; or to follow any policy or procedure which, in fact, results in such practices without a valid business motive.
- (7) For any person, whether an employer or an employee or not, to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this act, or attempt to do so.
- (8) For an employer, labor organization, employment agency or joint labor-management committee to: (A) Limit, segregate or classify a job applicant or employee in a way that adversely affects the opportunities or status of such applicant or employee

because of the disability of such applicant or employee; (B) participate in a contractual or other arrangement or relationship, including a relationship with an employment or referral agency, labor union, an organization providing fringe benefits to an employee or an organization providing training and apprenticeship programs that has the effect of subjecting a qualified applicant or employee with a disability to the discrimination prohibited by this act; (C) utilize standards criteria, or methods of administration that have the effect of discrimination on the basis of disability or that perpetuate the discrimination of others who are subject to common administrative control; (D) exclude or otherwise deny equal jobs or benefits to a qualified individual because of the known disability of an individual with whom the qualified individual is known to have a relationship or association; (E) not make reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or employee, unless such employer, labor organization, employment agency or joint labor-management committee can demonstrate that the accommodation would impose an undue hardship on the operation of the business thereof; (F) deny employment opportunities to a job applicant or employee who is an otherwise qualified individual with a disability, if such denial is based on the need to make reasonable accommodation to the physical or mental impairments of the employee or applicant; (G) use qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual with a disability or a class of individuals with disabilities unless the standard, test or other selection criteria, as used, is shown to be job-related for the position in question and is consistent with business necessity; or (H) fail to select and administer tests concerning employment in the most effective manner to ensure that, when such test is administered to a job applicant or employee who has a disability that impairs sensory, manual or speaking skills, the test results accurately reflect the skills, aptitude or whatever other factor of such applicant or employee that such test purports to measure, rather than reflecting the impaired sensory, manual or speaking skills of such employee or applicant (except where such skills are the factors that the test purports to measure).

(9) For any employer to:

(A) Seek to obtain, to obtain or to use genetic screening or testing information of an employee or a prospective employee to distinguish between or discriminate against or restrict any right or benefit otherwise due or available to an employee or a prospective employee; or

(B) subject, directly or indirectly, any employee or prospective employee to any genetic screening or test.

(b) It shall not be an unlawful employment practice to fill vacancies in such way as to eliminate or reduce imbalance with respect to race, religion, color, sex, disability, national origin or ancestry.

(c) It shall be an unlawful discriminatory practice:

(1) For any person, as defined herein being the owner, operator, lessee, manager, agent or employee of any place of public accommodation to refuse, deny or make a distinction, directly or indirectly, in offering its goods, services, facilities, and accommodations to any person as covered by this act because of race, religion, color, sex, disability, national origin or ancestry, except where a distinction because of sex is necessary because of the intrinsic nature of such accommodation.

(2) For any person, whether or not specifically enjoined from discriminating under any provisions of this act, to aid, abet, incite, compel or coerce the doing of any of the

acts forbidden under this act, or to attempt to do so.

(3) For any person, to refuse, deny, make a distinction, directly or indirectly, or discriminate in any way against persons because of the race, religion, color, sex, disability, national origin or ancestry of such persons in the full and equal use and enjoyment of the services, facilities, privileges and advantages of any institution, department or agency of the state of Kansas or any political subdivision or municipality thereof.

History: L. 1961, ch. 248, § 5; L. 1965, ch. 323, § 6; L. 1970, ch. 192, § 5; L. 1972, ch. 194, § 7; L. 1974, ch. 209, § 6; L. 1991, ch. 147, § 6; L. 1999, ch. 32, § 2; July 1.

2025 Kansas Statutes

44-1010. Petition for reconsideration of orders of commission. Any party being dissatisfied with any order or decision of the commission may petition for reconsideration in accordance with the provisions of K.S.A. 77-529 and amendments thereto. No cause of action arising out of any order or decision of the commission shall accrue in any court to any party unless such party shall petition for reconsideration as herein provided. No party shall, in any court, urge or rely upon any ground not set forth in the petition for reconsideration.

History: L. 1961, ch. 248, § 7; L. 1988, ch. 356, § 150; July 1, 1989.

2025 Kansas Statutes

44-1011. Enforcement of commission orders; judicial review; procedure. (a) The commission, attorney general or county or district attorney, at the request of the commission, may secure enforcement of any final order of the commission in accordance with the Kansas judicial review act. The evidence presented to the commission, together with its findings and the order issued thereon, shall be certified by the commission to the district court as its return. No order of the commission shall be superseded or stayed during the proceeding on review unless the district court shall so direct.

(b) Any action of the commission pursuant to the Kansas act against discrimination is subject to review in accordance with the Kansas judicial review act except: (1) As provided by K.S.A. 44-1044, and amendments thereto; (2) the attorney general or county or district attorney, in addition to those persons specified by K.S.A. 77-611, and amendments thereto, shall have standing to bring an action for review; and (3) on review, the court shall hear the action by trial de novo with or without a jury in accordance with the provisions of K.S.A. 60-238, and amendments thereto, and the court, in its discretion, may permit any party or the commission to submit additional evidence on any issue. The review shall be heard and determined by the court as expeditiously as possible. After hearing, the court may affirm the adjudication. If the adjudication by the commission is not affirmed, the court may set aside or modify it, in whole or in part, or may remand the proceedings to the commission for further disposition in accordance with the order of the court.

The commission's copy of the testimony shall be available at all reasonable times to all parties for examination without cost, and for the purpose of judicial review of the order. The review shall be heard on the record without requirement of printing.

The commission shall be deemed a party to the review of any order by the court.

History: L. 1961, ch. 248, § 8; L. 1963, ch. 279, § 6; L. 1965, ch. 323, § 7; L. 1967, ch. 285, § 3; L. 1970, ch. 192, § 6; L. 1979, ch. 161, § 3; L. 1986, ch. 318, § 64; L. 2010, ch. 17, § 79; July 1.

2025 Kansas Statutes

44-1012. Posting of law and information. Every person, as defined herein, employer, employment agency and labor union subject to this act, shall keep posted in a conspicuous place or places on his premises a notice or notices to be prepared or approved by the commission, which shall set forth excerpts of this act and such other relevant information which the commission shall deem necessary to explain the act.

History: L. 1961, ch. 248, § 9; L. 1963, ch. 279, § 7; L. 1965, ch. 323, § 8; June 30.

2025 Kansas Statutes

44-1013. Unlawful acts; penalties. Any person, as defined herein, employer, labor organization or employment agency, who or which shall willfully resist, prevent, impede or interfere with the commission or any of its members or representatives in the performance of duty under this act, or shall willfully violate an order of the commission, shall be guilty of a misdemeanor and upon conviction shall be punished by imprisonment for not more than one (1) year, or by a fine of not more than five hundred dollars (\$500), or by both such fine and imprisonment; but procedure for the review of the order shall not be deemed to be such willful conduct.

History: L. 1961, ch. 248, § 10; L. 1965, ch. 323, § 9; L. 1970, ch. 192, § 7; July 1.

2025 Kansas Statutes

44-1015. Discrimination in housing; definitions. As used in this act, unless the context otherwise requires:

- (a) "Commission" means the Kansas human rights commission.
- (b) "Real property" means and includes:
 - (1) All vacant or unimproved land; and
 - (2) any building or structure which is occupied or designed or intended for occupancy, or any building or structure having a portion thereof which is occupied or designed or intended for occupancy.
- (c) "Family" includes a single individual.
- (d) "Person" means an individual, corporation, partnership, association, labor organization, legal representative, mutual company, joint-stock company, trust, unincorporated organization, trustee, trustee in bankruptcy, receiver and fiduciary.
- (e) "To rent" means to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant.
- (f) "Discriminatory housing practice" means any act that is unlawful under K.S.A. 44-1016, 44-1017 or 44-1026, and amendments thereto.
- (g) "Person aggrieved" means any person who claims to have been injured by a discriminatory housing practice or believes that such person will be injured by a discriminatory housing practice that is about to occur.
- (h) "Disability" has the meaning provided by K.S.A. 44-1002 and amendments thereto.
- (i) "Familial status" means having one or more individuals less than 18 years of age domiciled with:
 - (1) A parent or another person having legal custody of such individual or individuals; or
 - (2) the designee of such parent or other person having such custody, with the written permission of such parent or other person.

History: L. 1970, ch. 193, § 1; L. 1991, ch. 147, § 7; L. 1992, ch. 91, § 2; April 23.

2025 Kansas Statutes

44-1016. Same; unlawful acts in connection with sale or rental of real property. Subject to the provisions of K.S.A. 44-1018 and amendments thereto, it shall be unlawful for any person:

- (a) To refuse to sell or rent after the making of a bona fide offer, to fail to transmit a bona fide offer or refuse to negotiate in good faith for the sale or rental of, or otherwise make unavailable or deny, real property to any person because of race, religion, color, sex, disability, familial status, national origin or ancestry.
- (b) To discriminate against any person in the terms, conditions or privileges of sale or rental of real property, or in the provision of services or facilities in connection therewith, because of race, religion, color, sex, disability, familial status, national origin or ancestry.
- (c) To make, print, publish, disseminate or use, or cause to be made, printed, published, disseminated or used, any notice, statement, advertisement or application, with respect to the sale or rental of real property that indicates any preference, limitation, specification or discrimination based on race, religion, color, sex, disability, familial status, national origin or ancestry, or an intention to make any such preference, limitation, specification or discrimination.
- (d) To represent to any person because of race, religion, color, sex, disability, familial status, national origin or ancestry that any real property is not available for inspection, sale or rental when such real property is in fact so available.
- (e) For profit, to induce or attempt to induce any person to sell or rent any real property by representation regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, religion, color, sex, disability, familial status, national origin or ancestry.
- (f) To deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting real property, or to discriminate against such person in the terms or conditions of such access, membership or participation, because of race, religion, color, sex, disability, familial status, national origin or ancestry.
- (g) To discriminate against any person in such person's use or occupancy of real property because of the race, religion, color, sex, disability, familial status, national origin or ancestry of the people with whom such person associates.
- (h) (1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, residential real property to any buyer or renter because of a disability of:
 - (A) That buyer or renter;
 - (B) a person residing in or intending to reside in such real property after it is sold, rented or made available; or
 - (C) any person associated with that buyer or renter.
- (2) To discriminate against any person in the terms, conditions or privileges of sale or rental of residential real property or in the provision of services or facilities in connection with such real property because of a disability of:
 - (A) That person;
 - (B) a person residing in or intending to reside in that real property after it is so sold, rented or made available; or

- (C) any person associated with that person.
- (3) For purposes of this subsection (h), discrimination includes:
 - (A) A refusal to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises;
 - (B) a refusal to make reasonable accommodations in rules, policies, practices or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy residential real property; or
 - (C) in connection with the design and construction of covered multifamily residential real property for first occupancy on and after January 1, 1992, a failure to design and construct such residential real property in such a manner that:
 - (i) The public use and common use portions of such residential real property are readily accessible to and usable by persons with disabilities;
 - (ii) all the doors designed to allow passage into and within all premises within such residential real property are sufficiently wide to allow passage by persons with disabilities who are in wheelchairs; and
 - (iii) all premises within such residential real property contain the following features of adaptive design: An accessible route into and through the residential real property; light switches, electrical outlets, thermostats and other environmental controls in accessible locations; reinforcements in bathroom walls to allow later installation of grab bars; and usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.
- (4) Compliance with the appropriate requirements of the American national standard for buildings and facilities providing accessibility and usability for physically handicapped people, commonly cited as "ANSI A 117.1," suffices to satisfy the requirements of subsection (h)(3)(C)(iii).
- (5) As used in this subsection (h), "covered multifamily residential real property" means:
 - (A) Buildings consisting of four or more units if such buildings have one or more elevators; and
 - (B) ground floor units in other buildings consisting of four or more units.
- (6) Nothing in this act shall be construed to invalidate or limit any state law or ordinance that requires residential real property to be designed and constructed in a manner that affords persons with disabilities greater access than is required by this act.
- (7) Nothing in this subsection (h) requires that residential real property be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

History: L. 1970, ch. 193, § 2; L. 1972, ch. 194, § 8; L. 1991, ch. 147, § 8; L. 1992, ch. 142, § 1; July 1.

2025 Kansas Statutes

44-1017. Same; unlawful acts as to real estate loans. (a) It shall be unlawful for any person or other entity whose business includes engaging in real estate related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of the race, religion, color, sex, disability, familial status, national origin or ancestry of such person or of any person associated with such person in connection with any real estate related transaction.

(b) As used in this section, "real estate related transaction" means any of the following:

(1) The making or purchasing of loans or providing other financial assistance:

- (A) For purchasing, constructing, improving, repairing or maintaining a dwelling; or
- (B) secured by real property.

(2) The selling, brokering or appraising of real property.

(c) Nothing in this section prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, religion, color, sex, disability, familial status, national origin or ancestry.

History: L. 1970, ch. 193, § 3; L. 1972, ch. 194, § 9; L. 1991, ch. 147, § 9; January 1, 1992.

2025 Kansas Statutes

44-1017a. Homeowners association; removal of certain restrictive covenants; penalties. (a) No declaration or other governing document of an association shall include a restrictive covenant in violation of K.S.A. 44-1016 and 44-1017, and amendments thereto.

(b) Within 60 days of the effective date of this act, the board of directors of an association shall amend any declaration or other governing document that includes a restrictive covenant in violation of K.S.A. 44-1016 and 44-1017, and amendments thereto, by removing such restrictive covenant. Such amendment shall not require the approval of the members of the association. No other change shall be required to be made to the declaration or other governing document of the association pursuant to this section. Within 10 days of the adoption of the amendment, the amended declaration or other governing document shall be recorded in the same manner as the original declaration or other governing document and shall be subject to recording fees pursuant to K.S.A. 28-115, and amendments thereto.

(c) If the commission, a city or county where the association is located provides written notice to an association requesting that the association delete a restrictive covenant in violation of K.S.A. 44-1016 and 44-1017, and amendments thereto, the association shall delete the restrictive covenant within 30 days of receiving the notice. If the association fails to delete the restrictive covenant in violation of K.S.A. 44-1016 and 44-1017, and amendments thereto, the commission, a city or county where the association is located, or any person adversely affected by such restrictive covenant may bring an action against the homeowners association for injunctive relief to enforce the provisions of subsections (a) and (b). The court may award attorney's fees to the prevailing party.

(d) If a city or county determines that the association is no longer active such that the written notice described in subsection (c) cannot be provided to the association, then the city or county, upon adoption of a resolution by the governing body of such city or county, may remove such restrictive covenant that is in violation of K.S.A. 44-1016 or 44-1017, and amendments thereto, by recording a certificate of release of prohibited covenants in accordance with K.S.A. 58-2274, and amendments thereto. A resolution may authorize the removal of more than one restrictive covenant that is in violation of K.S.A. 44-1016 or 44-1017, and amendments thereto. No signature or other consent of any property owner affected by such recording shall be required to record any certificate of release of prohibited covenants pursuant to this subsection. Any such certificate recorded pursuant to this subsection shall not affect the validity of any property interest recorded within the original or redacted plat. No city or county shall incur any liability arising from the recording of any certificate of release of prohibited covenants pursuant to this subsection. No fee shall be charged for any recording filed pursuant to this subsection. Any such recording shall be exempt from the survey requirements of K.S.A. 58-2001 et seq., and amendments thereto.

(e) For the purposes of this section:

(1) "Association" means a non-profit homeowners association as defined in K.S.A. 60-3611, and amendments thereto.

(2) "Commission" means the Kansas human rights commission as defined in K.S.A. 44-1002, and amendments thereto.

(f) This section shall be a part of and supplemental to the Kansas act against discrimination.

History: L. 2006, ch. 144, § 1; L. 2024, ch. 63, § 16; July 1.

2025 Kansas Statutes

44-1018. Same; application of act. (a) Nothing in this act shall prohibit a religious organization, association or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association or society, from limiting the sale, rental or occupancy of real property which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, national origin or ancestry. Nor shall anything in this act prohibit a nonprofit private club in fact not open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(b) Nothing in this act, other than the prohibitions against discriminatory advertising as provided in subsection (c) of K.S.A. 44-1016 and amendments thereto, shall apply to:

(1) The sale or rental of any single family house by an owner, provided the following conditions are met:

(A) The owner does not own or have any interest in more than three single family houses at any one time; and

(B) the house is sold or rented without the use of a real estate broker, agent or salesperson or the facilities of any person in the business of selling or renting dwellings. If the owner selling the house does not reside in it at the time of the sale or was not the most recent resident of the house prior to such sale, the exemption in this subsection applies to only one such sale in any 24-month period; or

(2) rooms or units in buildings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as the owner's residence.

(c) (1) Nothing in this act limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling. Nor does any provision in this act regarding familial status apply with respect to dwellings provided under any state or federal program specifically designed and operated to assist elderly persons, as defined in the state or federal program, or to housing for older persons.

(2) As used in this subsection (c), "housing for older persons" means housing communities:

(A) Intended for, and at least 80% occupied by, at least one person 55 years of age or older per unit and providing significant facilities and services specifically designed to meet the physical or social needs of such persons; or

(B) intended for and occupied solely by persons 62 years of age or older.

(d) Nothing in this act prohibits conduct against a person because such person has been convicted two or more times by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in section 102 of the federal controlled substances act (21 U.S.C. 802).

History: L. 1970, ch. 193, § 4; L. 1991, ch. 147, § 10; L. 1992, ch. 142, § 2; July 1.

2025 Kansas Statutes

44-1019. Same; complaints; referral to local authority, when; investigation; administrative proceedings; election to file action in court; administrative remedial orders. (a) The authority and responsibility for administering this act shall be in the commission. Any person aggrieved may file a verified complaint with the commission. Such complaints shall be in writing, shall state the facts upon which the allegations of a discriminatory housing practice are based and shall contain such other information and be in such form as the commission may require. Complaints must be filed within one year after the alleged discriminatory housing practice occurred, but may be reasonably and fairly amended at any time. The commission upon its own initiative or the attorney general may, in like manner, make, sign and file such complaint. A respondent may file a verified answer to the complaint against the respondent and with the leave of the commission, which shall be granted whenever it would be reasonable and fair to do so, may amend the answer filed by the respondent at any time.

(b) Upon receipt of any such complaint the commission shall serve notice upon the aggrieved person acknowledging such filing and advising the aggrieved person of the time limits and choice of forums provided under this act; and the commission shall within 10 days thereof serve on the respondent a notice identifying the alleged discriminatory housing practice and advising such respondent of the procedural rights and obligations of respondents under this act, together with a copy of the original complaint. Service of the notice shall be made in the manner prescribed by the code of civil procedure.

(c) Whenever a local fair housing ordinance provides rights and remedies for alleged discriminatory housing practices which are, in the judgment of the commission, substantially equivalent to the rights and remedies provided in this act, the commission shall refer to the appropriate local agency any complaint filed under this act which appears to constitute a violation of such local fair housing ordinance. The commission shall take no further action with respect to such complaint until 30 days have elapsed since the complaint was referred to the local agency, or the local agency has completed its investigation, or the local agency requests the commission to assume jurisdiction or to assist it, whichever occurs first. The local agency shall inform the commission in writing of the status of the referred complaint at the end of the referral period or when the local agency has completed its investigation, whichever occurs first. The commission may take further action on the complaint if in its judgment the protection of the rights of the parties or the interests of justice require such action.

(d) A person who is not named as a respondent in a complaint, but who is identified as a respondent in the course of investigation, may be joined as an additional or substitute respondent upon written notice, under subsections (a) and (b), to such person, from the commission.

(e) (1) If a complaint is not referred to a local agency as provided in subsection (b), or after the commission assumes jurisdiction of a complaint following such referral, the commission shall promptly commence an investigation thereof, in the manner provided in K.S.A. 44-1005, and amendments thereto, for investigating complaints of violations of the Kansas act against discrimination, and complete such investigation, including conciliation, within 100 days after the filing of the complaint or, when the commission takes further action under subsection (c), within 100 days after the commission assumes

jurisdiction of a complaint, unless it is impracticable to do so.

(2) If the commission is unable to complete the investigation within 100 days, or when the commission takes further action under subsection (c), within 100 days after the commission assumes jurisdiction of a complaint, the commission shall inform the parties in writing of the reasons for not doing so.

(3) The commission shall make final administrative disposition within one year after the filing of the complaint or, when the commission takes further action under subsection (c), within one year after the commission assumes jurisdiction of a complaint, unless it is impracticable to do so.

(4) If the commission is unable to make final administrative disposition of the complaint within one year of the date of filing, or when the commission takes further action under subsection (c), within one year after the commission assumes jurisdiction of a complaint, the commission shall inform the parties in writing of the reasons for not doing so.

(f) (1) If it is determined that probable cause exists for crediting the allegations of the complaint, the commission shall serve written notice of such determination on the person aggrieved. The commission shall proceed to try to eliminate or correct the alleged discriminatory housing practice by informal methods of conference, conciliation and persuasion which shall be held, insofar as possible, in the cities or other localities where the alleged discriminatory housing practices have occurred or are about to occur. The commission is hereby authorized to enter into formal conciliation agreement which shall include the person aggrieved and the respondent as signatories. Such agreements may include in the provisions thereof any term or condition which may be included in a final order of the commission. Each conciliation agreement shall be made public unless the person aggrieved and respondent otherwise agree and the commission determines that disclosure is not required to further the purposes of this act.

(2) Any of the parties to a conciliation agreement may apply to the district court of the county where the alleged discriminatory housing practice occurred, or was about to occur, for specific performance of any such agreement.

(g) If the commission is unable to eliminate or correct the alleged discriminatory housing practice by informal methods of conference, conciliation and persuasion, a hearing may be held before the commission in the manner provided in K.S.A. 44-1005, and amendments thereto, for holding hearings under the Kansas act against discrimination. In any such hearing, the burden of proof shall be on the complainant.

(h) In lieu of a hearing under subsection (g), a complainant, a respondent or an aggrieved person on whose behalf the complaint was filed may elect to have the claims asserted in the complaint decided in a civil action as provided in subsection (d) of K.S.A. 44-1021, and amendments thereto. The election must be made not later than 20 days after the receipt by the electing person of service in the manner provided in K.S.A. 44-1005, and amendments thereto, or, in the case of an election by the commission, not later than 20 days after such service. The person making the election shall give notice to the commission and to all other complainants and respondents to whom the complaint relates. If a timely election is made under this subsection, the commission shall file, not later than 30 days after the election is made, a civil action as provided in subsection (d) of K.S.A. 44-1021, and amendments thereto.

(i) If an election is not made under subsection (h) and the commission finds that a respondent has engaged in or is engaging in any discriminatory housing practice, the commission shall render an order requiring the respondent to cease and desist from

such discriminatory housing practice, and such order may direct a respondent to take such affirmative action as the commission deems necessary to effectuate the intent and purposes of this act, including, but not limited to, the selling or renting of specified real property and the lending of money for the acquisition, construction, rehabilitation, repair or maintenance of real property. Such order may also include an award of actual damages, including damages caused by pain, suffering and humiliation. Such order may also, to vindicate the public interest, assess a civil penalty against the respondent:

- (1) In an amount not exceeding \$10,000, if the respondent has not been adjudged to have committed any prior discriminatory housing practice;
- (2) subject to the provisions of subsection (i)(4), in an amount not exceeding \$25,000, if the respondent has been adjudged to have committed one other discriminatory housing practice during the five-year period ending on the date of the filing of the complaint;
- (3) subject to the provisions of subsection (i)(4), in an amount not exceeding \$50,000, if the respondent has been adjudged to have committed two or more discriminatory housing practices during the seven-year period ending on the date of the filing of the complaint; and
- (4) if the acts constituting the discriminatory housing practice that is the object of the complaint are committed by the same natural person who has been previously adjudged to have committed acts constituting a discriminatory housing practice in the amounts provided by subsections (i)(2) and (i)(3) without regard to the period of time within which any subsequent discriminatory housing practice occurred.

Any such civil penalty shall be remitted to the state treasurer in accordance with the provisions of K.S.A. 75-4215, and amendments thereto. Upon receipt of each such remittance, the state treasurer shall deposit the entire amount in the state treasury to the credit of the state general fund.

(j) Within 15 days after an order is served by the commission requiring or prohibiting action by a respondent, the respondent shall notify the commission in writing of the manner in which the respondent has complied with the order.

(k) In the case of an order with respect to a discriminatory housing practice that occurred in the course of a business subject to a licensing or regulation by a state agency, the commission shall, not later than 30 days after the respondent has complied with the order, or, if such order is judicially reviewed under K.S.A. 44-1021, and amendments thereto, 30 days after such order is in substance affirmed upon such review:

- (1) Send copies of the findings of fact, conclusions of law, and the order, to that state agency; and
- (2) recommend to the state agency appropriate disciplinary action, including, where appropriate, the suspension or revocation of the license of the respondent.

History: L. 1970, ch. 193, § 5; L. 1972, ch. 194, § 10; L. 1984, ch. 186, § 2; L. 1988, ch. 356, § 151; L. 1991, ch. 147, § 11; L. 1992, ch. 142, § 3; L. 2001, ch. 5, § 146; July 1.

2025 Kansas Statutes

44-1020. Same; subpoenas; witness fees and mileage; interim judicial relief; criminal enforcement of subpoenas. (a) Upon written application to the commission, a respondent shall be entitled to the issuance of a reasonable number of subpoenas by and in the name of the commission to the same extent and subject to the same limitations as subpoenas issued by the commission. Subpoenas issued at the request of a respondent shall show on their face the name and address of such respondent and shall state that they were issued at respondent's request.

(b) Witnesses summoned by subpoena of the commission shall be entitled to the same witness and mileage fees as are allowed witnesses in proceedings in district courts. Fees payable to a witness summoned by a subpoena issued at the request of a respondent shall be paid by the respondent.

(c) If the commission concludes at any time following the filing of a complaint that prompt judicial action is necessary to carry out the purposes of this act, the commission may bring a civil action in the district court of the county in which the alleged discriminatory housing practice is alleged to have occurred, for appropriate temporary or preliminary relief pending final disposition of the complaint under this section. The commission shall promptly notify the attorney general of the filing of any action pursuant to this subsection. Any temporary restraining order or other order granting preliminary or temporary relief shall be issued in accordance with the rules of civil procedure. The commencement of a civil action under this subsection does not affect the initiation or continuation of administrative proceedings under this act.

(d) Any person who willfully fails or neglects to attend and testify or to answer any lawful inquiry or to produce records, documents or other evidence, if in such person's power to do so in obedience to the subpoena or lawful order of the commission, shall, upon conviction, be fined not more than \$1,000 or imprisoned for not more than one year, or both such fine and imprisonment. Any person who, with intent thereby to mislead the commission, shall make or cause to be made any false entry or statement of fact in any report, account, record or other document, submitted to the commission pursuant to subpoena or other order of the commission, or who shall willfully neglect or fail to make or cause to be made full, true and correct entries in such reports, accounts, records or other documents, or who shall willfully mutilate, alter or by any other means falsify any documentary evidence, shall, upon conviction, be fined not more than \$1,000 or imprisoned for not more than one year, or both such fine and imprisonment.

History: L. 1970, ch. 193, § 6; L. 1972, ch. 194, § 11; L. 1991, ch. 147, § 12; January 1, 1992.

2025 Kansas Statutes

44-1021. Same; judicial review of commission action; civil enforcement of act. (a) Within 45 days after the entry of an order by the commission pursuant to K.S.A. 44-1019 and amendments thereto or within 30 days after the commission has received written notification of the manner in which a respondent has complied with the commission's order, the commission or a person aggrieved may bring a civil action in the district court of the county in which the alleged discriminatory housing practice is alleged to have occurred or in which the respondent resides or transacts business, but upon application by the person aggrieved and the commission, the attorney general or the appropriate district or county attorney may provide the attorney necessary to bring the action authorized herein. Such action may be brought to enforce the order of the commission, or to enforce any of the rights granted or protected by K.S.A. 44-1016, 44-1017 and 44-1026, and amendments thereto, insofar as such rights relate to the subject of the complaint with respect to which the order was issued. All such actions shall be heard by the court in a trial de novo. Upon application of any party to such action, the commission shall make available to all parties the records and information gathered during any investigation or hearing conducted pursuant to the authority granted by this act, except that any records or information concerning the commission's efforts to eliminate or correct the alleged discriminatory housing practice by informal methods of conference, conciliation and persuasion shall not be admissible as evidence in such action. If the respondent shall request a copy of the transcript of the hearing, the respondent shall pay for the cost of its preparation.

(b) If the court finds that a discriminatory housing practice has occurred, or is about to occur, the court may, in its discretion, grant as relief any permanent, temporary or mandatory injunction, temporary restraining order or other proper order, but any sale, encumbrance or rental consummated prior to the issuance of any court order issued under the authority of this act, and involving a bona fide purchaser, encumbrancer or tenant without actual notice of the existence of the filing of a complaint or civil action under the provisions of this act, shall not be affected.

(c) Whenever a complaint is filed, or a civil action commenced, under the provisions of this act, the commission may post notice thereof on any real property which is the subject of such complaint or action.

(d) (1) An aggrieved person may commence a civil action in a district court of the county in which the alleged discriminatory housing practice is alleged to have occurred or in which the respondent resides or transacts business not later than two years after the occurrence or the termination of an alleged discriminatory housing practice, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice. Except in the case of an action arising from a breach of a conciliation agreement, the computation of the two-year period shall not include any time during which an administrative proceeding under this act was pending with respect to a complaint under this act based on such discriminatory housing practice.

(2) If the United States department of housing and urban development, the commission or a local agency has obtained a conciliation agreement with the consent of an aggrieved person, no action may be filed under this subsection by such aggrieved person with respect to the alleged discriminatory housing practice which forms the basis for such complaint except for the purpose of enforcing the terms of such an

agreement.

(3) An aggrieved person may not commence a civil action under this subsection with respect to an alleged discriminatory housing practice which forms the basis of a hearing under K.S.A. 44-1019 and amendments thereto.

(4) In a civil action under this subsection, if the court finds that a discriminatory housing practice has occurred or is about to occur, the court may award to the plaintiff actual and punitive damages and, subject to subsection (d)(5), may grant as relief, as the court deems appropriate, any permanent or temporary injunction, temporary restraining order or other order, including an order enjoining the defendant from engaging in such practice or ordering such affirmative action as may be appropriate. The court, in its discretion, may allow the prevailing party, other than the state of Kansas, reasonable attorney fees and costs. The state of Kansas shall be liable for such fees and costs to the same extent as a private person.

(5) Relief granted under this subsection shall not affect any contract, sale, encumbrance or lease consummated before the granting of such relief and involving a bona fide purchaser, encumbrancer or tenant, without actual notice of the filing of a complaint with the commission or civil action under this act.

History: L. 1970, ch. 193, § 7; L. 1972, ch. 194, § 12; L. 1991, ch. 147, § 13; L. 1992, ch. 142, § 4; July 1.

2025 Kansas Statutes

44-1022. Same; civil action by attorney general, when. Whenever the attorney general or any district or county attorney, within the appropriate county, has reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of resistance to the full enjoyment of any of the rights granted by this act, or that any group of persons has been denied any of the rights granted by this act and such denial raises an issue of general public importance, the attorney general or district or county attorney may bring a civil action, within one year after the alleged discriminatory housing practice occurred, in the district court where an action may be commenced pursuant to K.S.A. 44-1021 and amendments thereto, requesting such preventive relief, including an application for a permanent or temporary injunction, restraining order or other order against the person or persons responsible for such pattern or practice or denial of rights, as the attorney general or district or county attorney deems necessary to insure the full enjoyment of the rights granted by this act.

History: L. 1970, ch. 193, § 8; L. 1991, ch. 147, § 14; January 1, 1992.

2025 Kansas Statutes

44-1023. ~~Same; assignment of case; expedition.~~ Any court in which a proceeding is instituted under K.S.A. 44-1021 or 44-1022 shall assign the case for hearing at the earliest practicable date and cause the case to be in every way expedited.

History: L. 1970, ch. 193, § 9; July 1.

2025 Kansas Statutes

44-1024. Same; effect of city ordinances governing housing practices. Nothing in this act shall be construed to invalidate or limit any ordinance of any city in this state that grants, guarantees or protects the same rights as are granted by this act; but any ordinance of a city that purports to require or permit any action that would be a discriminatory housing practice under this act shall, to that extent, be invalid.

History: L. 1970, ch. 193, § 10; July 1.

2025 Kansas Statutes

44-1025. Same; cooperation of commission with local agencies; agreements. The commission may cooperate with local agencies charged with the administration of local fair housing ordinances and, with the consent of such agencies, utilize the services of such agencies and their employees and, notwithstanding any other provision of law, may reimburse such agencies and their employees for services rendered to assist the commission in carrying out this act. In furtherance of such cooperative efforts, the commission may enter into written agreements with such local agencies. All such agreements and terminations thereof shall be made available to the public by the commission.

History: L. 1970, ch. 193, § 11; July 1.

2025 Kansas Statutes

44-1026. Same; unlawful acts; enforcement of section. It shall be unlawful to coerce, intimidate, threaten or interfere with any person in the exercise or enjoyment of, or on account of such person's having exercised or enjoyed, or on account of such person's having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by K.S.A. 44-1016 or 44-1017, and amendments thereto.

History: L. 1970, ch. 193, § 12; L. 1991, ch. 147, § 15; January 1, 1992.

2025 Kansas Statutes

44-1027. Same; unlawful act; penalties. (a) No person, whether or not acting under color of law, shall by force or threat of force willfully injure, intimidate or interfere with, or attempt to injure, intimidate or interfere with:

(1) Any person because of such person's race, religion, color, sex, disability, familial status, national origin or ancestry and because such person is or has been selling, purchasing, renting, financing, occupying or contracting or negotiating for the sale, purchase, rental, financing or occupation of any real property, or applying for or participating in any service, organization or facility relating to the business of selling or renting real property;

(2) any person because such person is or has been, or in order to intimidate such person or any other person or any class of persons from:

(A) Participating, without discrimination on account of race, religion, color, sex, disability, familial status, national origin or ancestry, in any of the activities, services, organizations or facilities described in subsection (a)(1); or

(B) affording another person or class of persons opportunity or protection so to participate; or

(3) any citizen because such citizen is or has been, or in order to discourage such citizen or any other citizen from lawfully aiding or encouraging other persons to participate, without discrimination on account of race, religion, color, sex, disability, familial status, national origin or ancestry, in any of the activities, services, organizations or facilities described in subsection (a)(1), or participating lawfully in speech or peaceful assembly opposing any denial of the opportunity to so participate.

(b) Violation of this section is punishable by a fine of not more than \$1,000 or imprisonment for not more than one year, or both such fine and imprisonment, except that:

(1) If bodily injury results, such violation shall be punishable by a fine of not more than \$10,000 or imprisonment for not more than 10 years, or both such fine and imprisonment; and

(2) if death results, such violation shall be punishable by imprisonment for any term of years or for life.

History: L. 1970, ch. 193, § 13; L. 1972, ch. 194, § 13; L. 1991, ch. 147, § 16; January 1, 1992.

2025 Kansas Statutes

44-1028. Same; severability. If any provision of this act or the application thereof to any person or circumstances is held invalid, the remainder of the act and the application of the provision to other persons not similarly situated or to other circumstances shall not be affected thereby.

History: L. 1970, ch. 193, § 14; July 1.

2025 Kansas Statutes

44-1029. Same; act supplemental. This act shall be supplemental to and a part of the Kansas act against discrimination.

History: L. 1970, ch. 193, § 15; July 1.

2025 Kansas Statutes

44-1030. State and local government contracts; mandatory provisions. (a) Except as provided by subsection (c), every contract for or on behalf of the state or any county or municipality or other political subdivision of the state, or any agency of or authority created by any of the foregoing, for the construction, alteration or repair of any public building or public work or for the acquisition of materials, equipment, supplies or services shall contain provisions by which the contractor agrees that:

(1) The contractor shall observe the provisions of the Kansas act against discrimination and shall not discriminate against any person in the performance of work under the present contract because of race, religion, color, sex, disability, national origin or ancestry;

(2) in all solicitations or advertisements for employees, the contractor shall include the phrase, "equal opportunity employer," or a similar phrase to be approved by the commission;

(3) if the contractor fails to comply with the manner in which the contractor reports to the commission in accordance with the provisions of K.S.A. 44-1031 and amendments thereto, the contractor shall be deemed to have breached the present contract and it may be canceled, terminated or suspended, in whole or in part, by the contracting agency;

(4) if the contractor is found guilty of a violation of the Kansas act against discrimination under a decision or order of the commission which has become final, the contractor shall be deemed to have breached the present contract and it may be canceled, terminated or suspended, in whole or in part, by the contracting agency; and

(5) the contractor shall include the provisions of subsections (a)(1) through (4) in every subcontract or purchase order so that such provisions will be binding upon such subcontractor or vendor.

(b) The Kansas human rights commission shall not be prevented hereby from requiring reports of contractors found to be not in compliance with the Kansas act against discrimination.

(c) The provisions of this section shall not apply to a contract entered into by a contractor:

(1) Who employs fewer than four employees during the term of such contract; or

(2) whose contracts with the governmental entity letting such contract cumulatively total \$5,000 or less during the fiscal year of such governmental entity.

History: L. 1972, ch. 194, § 14; L. 1977, ch. 183, § 1; L. 1991, ch. 147, § 17; L. 1992, ch. 91, § 3; April 23.

2025 Kansas Statutes

44-1031. Same; personnel to be used in performing contracts; reports; nonapplication to certain contractors. Every person, as defined in subsection (a) of K.S.A. 44-1002, who wishes to enter into a contract which is covered by the provisions of K.S.A. 44-1030 shall, upon request of the commission, inform the commission in writing of the manner in which such person shall recruit and screen personnel to be used in performing the contract. The report shall be made on forms to be supplied by the commission. The provisions of K.S.A. 44-1030 and of this section shall not apply to any contractor who has already complied with the provisions of such sections by reason of holding a contract with the federal government or a contract involving federal funds.

History: L. 1972, ch. 194, § 15; L. 1975, ch. 264, § 8; L. 1977, ch. 183, § 2; July 1.

2025 Kansas Statutes

44-1032. Responsibility for and review of compliance with act; subpoenas; access to premises; oaths and depositions; failure to obey court order, effect; immunity of witnesses from prosecution; perjury. The contracting agency shall be responsible for assuring compliance with the provisions of K.S.A. 44-1030. The commission, on its own motion or at the request of the contracting agency, may review compliance with the provisions of this act. In conducting such reviews, the commission may subpoena witnesses, compel their appearance, require the production for examination of records, documents and other evidence or possible sources of evidence and may examine, record and copy such materials and take and record the testimony or statements of such persons. The commission may issue subpoenas to compel access to or the production of such materials, or the appearance of such persons, and may issue interrogatories to a respondent, to the same extent and subject to the same limitations as would apply if the subpoena or interrogatories were issued or served in aid of a civil action in the district court. The commission shall have access at all reasonable times to premises and may compel such access by application to a court of competent jurisdiction: Provided, however, That the commission first complies with the provisions of article 15 of the Kansas bill of rights and the fourth amendment to the United States constitution relating to unreasonable searches and seizures. The commission may administer oaths and take depositions to the same extent and subject to the same limitations as would apply if the deposition was taken in aid of a civil action in the district court. In case of the refusal of any person to comply with any subpoena, interrogatory or search warrant issued hereunder, or to testify to any matter regarding which he may be lawfully questioned, the district court of any county may, upon application of the commission, order such person to comply with such subpoena or interrogatory and to testify; and failure to obey the court's order may be punished by the court as contempt. No person shall be prosecuted or subjected to any penalty or forfeiture for or on account of any transaction, matter or thing concerning which he testifies or produces evidence, except that such person so testifying shall not be exempt from prosecution and punishment for perjury committed in so testifying. The immunity herein provided shall extend only to natural persons.

History: L. 1972, ch. 194, § 16; July 1.

2025 Kansas Statutes

44-1033. Initiation and processing complaints; use of information. If the compliance review conducted by the commission reveals any violation of the Kansas act against discrimination, the commission may initiate a complaint and process such complaint in the manner provided for processing complaints of unlawful employment practices. The information gathered in the course of the compliance review may be used in processing the complaint.

History: L. 1972, ch. 194, § 17; July 1.

2025 Kansas Statutes

44-1034. Rules and regulations. The commission may adopt, promulgate, amend and rescind suitable rules and regulations to carry out the provisions of this supplemental act.

History: L. 1972, ch. 194, § 18; July 1.

2025 Kansas Statutes

44-1035. Information on racial identification maintained solely on payroll tapes; retrieval restricted.

Information concerning the racial identification of state employees shall be permanently maintained solely on the payroll tapes in custody of the state department of administration. Such information shall be retrieved from the payroll tapes only upon the written authorization of the commission or the equal employment opportunity office of the department of administration. The department of administration may provide such information to the director of personnel services in statistical form without the identification of specific individuals if the director of personnel services shall make such request.

History: L. 1972, ch. 194, § 19; L. 1978, ch. 345, § 7; July 1.

2025 Kansas Statutes

44-1036. Severability. If any provision of this act or the application thereof to any person or circumstances is held invalid, the remainder of the act and the application of the provision to other persons not similarly situated or to other circumstances shall not be affected thereby.

History: L. 1972, ch. 194, § 20; July 1.

2025 Kansas Statutes

44-1037. Liberal construction. The provisions of this act shall be construed liberally for the accomplishment of the purposes thereof.

History: L. 1972, ch. 194, § 21; July 1.

2025 Kansas Statutes

44-1038. Provisions of K.S.A. 44-1031 through 44-1037 supplemental to act against discrimination. The provisions of K.S.A. 44-1031 to 44-1037, inclusive, shall be supplemental to and a part of the Kansas act against discrimination.

History: L. 1972, ch. 194, § 22; July 1.

2025 Kansas Statutes

44-1039. Unlawful act; perjury. Any person intentionally and falsely swearing, testifying, affirming, declaring or subscribing to any material fact upon any oath or affirmation required by the Kansas act against discrimination shall be deemed guilty of perjury as defined in K.S.A. 21-5903, and amendments thereto.

History: L. 1975, ch. 264, § 5; L. 2011, ch. 30, § 189; July 1.

2025 Kansas Statutes

44-1041. Unlawful acts; penalty. Any person (a) destroying any employment records required to be kept under the laws of the state of Kansas for the purpose of hindering any proceeding commenced pursuant to the provisions of the Kansas act against discrimination or (b) destroying any records or other information involved in any proceeding brought pursuant to the provisions of the Kansas act against discrimination for the purpose of hindering such proceedings, shall be guilty of a class B misdemeanor.

History: L. 1975, ch. 264, § 7; July 1.

2025 Kansas Statutes

44-1042. Award of compensatory damages; reduction. If the commission includes an award of compensatory damages in any final order entered against a respondent after a hearing or if an award of compensatory damages against a respondent is included in a conciliation agreement, the total amount of such damages awarded shall be reduced by the amount of any compensation received by the complainant as a direct result of the alleged act of discrimination from the time the alleged act of discrimination occurred until the time such order is entered or agreement is entered into.

History: L. 1975, ch. 264, § 9; July 1.

2025 Kansas Statutes

44-1043. Provisions of K.S.A. 44-1039 through 44-1042 supplemental to act against discrimination. The provisions of K.S.A. 44-1039 to 44-1042, inclusive, shall be supplemental to and a part of the Kansas act against discrimination.

History: L. 1975, ch. 264, § 10; July 1.

2025 Kansas Statutes

44-1044. Probable cause determinations under K.S.A. 44-1005 or 44-1019; exempt from judicial review and civil enforcement of agency actions act. Determinations under K.S.A. 44-1005 or 44-1019, and amendments thereto, by the Kansas human rights commission that no probable cause exists for crediting the allegations of a complaint under the Kansas act against discrimination or the Kansas age discrimination in employment act are hereby specifically exempted from the Kansas judicial review act (K.S.A. 77-601 through 77-627, and amendments thereto).

History: L. 1985, ch. 308, § 1; L. 1991, ch. 148, § 6; L. 2010, ch. 17, § 80; July 1.

Agency 21

Kansas Human Rights Commission

Editor's Note:

Effective July 1, 1991, the commission on civil rights became the Kansas human rights commission. All properties, moneys, appropriations, rights and authorities vested in the commission on civil rights were vested in the Kansas human rights commission. See K.S.A. 44-1003.

Articles

- 21-1 to 21-12. REVOKED.
21-13 and 21-14. RESERVED.
21-15 to 21-29. REVOKED.
21-30. GUIDELINES ON EMPLOYEE SELECTION PROCEDURES AND RECRUITMENT.
21-31. GUIDELINES ON DISCRIMINATION BECAUSE OF NATIONAL ORIGIN OR ANCESTRY.
21-32. GUIDELINES ON DISCRIMINATION BECAUSE OF SEX.
21-33. GUIDELINES ON DISCRIMINATION BECAUSE OF RELIGION.
21-34. GUIDELINES ON DISCRIMINATION BECAUSE OF DISABILITY.
21-35 to 21-39. RESERVED.
21-40. GENERAL PROVISIONS.
21-41. COMPLAINTS.
21-42. INVESTIGATION.
21-43. CONFERENCE AND CONCILIATION.
21-44. COMPLIANCE.
21-45. PROCEEDINGS.
21-46. MISCELLANEOUS SUBSTANTIVE PROVISIONS.
21-47 to 21-49. RESERVED.
21-50. CONTRACT COMPLIANCE.
21-51 to 21-59. RESERVED.
21-60. DISCRIMINATORY HOUSING PRACTICES.
21-61 to 21-69. RESERVED.
21-70. NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS.
21-71 to 21-79. RESERVED.
21-80. GUIDELINES ON AGE DISCRIMINATION IN EMPLOYMENT.

Articles 1 to 12.—REVOKED

21-1-1 to 21-12-1. (Authorized by K.S.A. 1965 Supp. 44-1004; effective Jan. 1, 1966; revoked Jan. 1, 1968.)

Articles 13 and 14.—RESERVED

Articles 15 to 29.—REVOKED

21-15-1 to 21-15-3. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-15-4. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-15-5. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-15-6 to 21-15-11. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-15-12. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-1. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-2 to 21-16-4. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-5. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1968; amended, E-7-5, Jan. 1, 1971; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-6. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-7. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-8. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-9. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-16-10. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-17-1. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended, E-71-5, Jan. 1, 1971; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-17-2 and 21-17-3. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1970; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-17-4. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-17-5. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-18-1. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-18-2. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-19-1 and 21-19-2. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-19-3 to 21-19-7. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-19-8 to 21-19-10. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-20-1. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-21-1 and 21-21-2. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-21-3 and 21-21-4. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-21-5. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; revoked Jan. 1, 1970.)

21-21-6 to 21-21-10. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-1 to 21-22-3. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-4. (Authorized by K.S.A. 1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended

Jan. 1, 1970; amended, E-71-36, Sep. 8, 1971; amended Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-5 to 21-22-7. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-8. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-9 to 21-22-11. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-12. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-22-13 to 21-22-19. (Authorized by K.S.A. 1969 Supp. 44-1004; effective Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-23-1. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-24-1. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-25-1 and 21-25-2. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-25-3 and 21-25-4. (Authorized by K.S.A. 1969 Supp. 44-1004, 44-1005; effective Jan. 1, 1968; amended Jan. 1, 1970; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-26-1 to 21-28-1. (Authorized by K.S.A. 1967 Supp. 44-1001; effective Jan. 1, 1968; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-29-1 to 21-29-4. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

Article 30.—GUIDELINES ON EMPLOYEE SELECTION PROCEDURES AND RECRUITMENT

21-30-1. (Authorized by K.S.A. 44-1004 (3); effective Jan. 1, 1972; revoked, E-74-14, Dec. 28, 1973; revoked May 1, 1975.)

21-30-2. “Test” defined. For the purpose of the guidelines in this part, the term “test” is defined as any paper-and-pencil or performance measure used as a basis for any employment decision. The guidelines in this part apply, for example, to ability tests which are designed to measure eligibility for hire, transfer, promotion, membership, training, referral or retention. This definition includes, but is not restricted to, measure of general intelligence, mental ability and learning ability; specific intellectual abilities; mechanical, clerical and other aptitudes; dexterity and coordination; knowledge and proficiency; occupational and other interests; and attitudes, personality or temperament. The term “test” includes all formal, scored, quantified or standardized techniques of assessing job suitability including, in addition to the above specific qualifying or disqualifying personal history or background requirements, specific educational or work history requirements, scored interviews, biographical information blanks, interviewers’ rating scales, scored application forms, etc. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-3. Discrimination defined. The use of any test which adversely affects hiring, promotion, transfer or any other employment or membership opportunity of classes protected by the Kansas act against discrimination constitutes discrimination unless:

(a) The test has been validated and evidences a high degree of utility as hereinafter described, and

(b) the person giving or acting upon the results of the particular test can demonstrate that alternative suitable hiring, transfer or promotion procedures are unavailable for his use. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-4. Evidence of validity. (a) Each person using tests to select from among candidates for a position or for membership shall have available for inspection evidence that the tests are being used in a manner which does not violate 21-

30-3. Such evidence shall be examined for indications of possible discrimination, such as instances of higher rejection rates for minority candidates than nonminority candidates. Furthermore, where technically feasible, a test should be validated for each minority group with which it is used; that is, any differential rejection rates that may exist, based on a test, must be relevant to performance on the jobs in question.

(b) The term “technically feasible” as used in these guidelines means having or obtaining a sufficient number of minority individuals to achieve findings of statistical and practical significance, the opportunity to obtain unbiased job performance criteria, etc. It is the responsibility of the person claiming absence of technical feasibility to positively demonstrate evidence of this absence.

(c) Evidence of a test’s validity should consist of empirical data demonstrating that the test is predictive of or significantly correlated with important elements of work behavior which comprise or are relevant to the job or jobs for which candidates are being evaluated.

(1) If job progression structures and seniority provisions are so established that new employees will probably, within a reasonable period of time and in a great majority of cases, progress to a higher level, it may be considered that candidates are being evaluated for jobs at that higher level. However, where job progression is not so nearly automatic, or the time span is such that higher level jobs or employees’ potential may be expected to change in significant ways, it shall be considered that candidates are being evaluated for a job at or near the entry level. This point is made to underscore the principle that attainment of or performance at a higher level job is a relevant criterion in validating employment tests only when there is a high probability that persons employed will in fact attain that higher level job within a reasonable period of time.

(2) Where a test is to be used in different units of a multiunit organization and no significant differences exist between units, jobs, and applicant populations, evidence obtained in one unit may suffice for the others. Similarly, where the validation process requires the collection of data throughout a multiunit organization, evidence of validity specific to each unit may not be required. There may also be instances where evidence of validity is appropriately obtained from more than one company in the same industry. Both in this instance and in the use of data collected through-

out a multiunit organization, evidence of validity specific to each unit may not be required: *Provided*, That no significant differences exist between units, jobs and applicant populations. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-5. Minimum standards for validation. (a) For the purpose of satisfying the requirements of this part, empirical evidence in support of a test’s validity must be based on studies employing generally accepted procedures for determining criterion-related validity, such as those described in “standards for educational and psychological tests and manuals” published by American Psychological Association, 1200 17th Street N. W., Washington, D. C. 20036. Evidence of content or construct validity, as defined in that publication, may also be appropriate where criterion-related validity is not feasible. However, evidence for content or construct validity should be accompanied by sufficient information from job analyses to demonstrate the relevance of the content (in the case of job knowledge or proficiency tests) or the construct (in the case of trait measures). Evidence of content validity alone may be acceptable for well-developed tests that consist of suitable samples of the essential knowledge, skills or behaviors composing the job in question. The types of knowledge, skills, or behaviors contemplated here do not include those which can be acquired in a brief orientation to the job.

(b) Although any appropriate validation strategy may be used to develop such empirical evidence, the following minimum standards, as applicable, must be met in the research approach and in the presentation of results which constitute evidence of validity:

(1) Where a validity study is conducted in which tests are administered to applicants, with criterion data collected later, the sample of subjects must be representative of the normal or typical candidate group for the job or jobs in question. This further assumes that the applicant sample is representative of the minority population available for the job or jobs in question in the local labor market. Where a validity study is conducted in which tests are administered to present employees, the sample must be representative of the minority groups currently included in the applicant population. If it is not technically feasible to include minority employees in validation studies conducted on the present work force, the con-

duct of a validation study without minority candidates does not relieve any person of his subsequent obligation for validation when inclusion of minority candidates becomes technically feasible.

(2) Tests must be administered and scored under controlled and standardized conditions, with proper safeguards to protect the security of test scores and to insure that scores do not enter into any judgments of employee adequacy that are to be used as criterion measures. Copies of tests and test manuals, including instructions for administration, scoring, and interpretation of tests results, that are privately developed and/or are not available through normal commercial channels, must be included as a part of the validation evidence.

(3) The work behaviors or other criteria of employee adequacy which the test is intended to predict or identify must be fully described; and, additionally, in the case of rating techniques, the appraisal form(s) and instructions to the rater(s) must be included as a part of the validation evidence. Such criteria may include measures other than actual work proficiency, such as training time, supervisory ratings, regularity of attendance and tenure. Whatever criteria are used they must represent major or critical work behaviors as revealed by careful job analyses.

(4) In view of the possibility of bias inherent in subjective evaluations, supervisory rating techniques should be carefully developed, and the ratings should be closely examined for evidence of bias. In addition, minorities might obtain unfairly low performance criterion scores for reasons other than supervisors' prejudice, as, when, as new employees, they have had less opportunity to learn job skills. The general point is that all criteria need to be examined to insure freedom from factors which would unfairly depress the scores of minority groups.

(5) Differential validity. Data must be generated and results separately reported for minority and nonminority groups whenever technically feasible. Where a minority group is sufficiently large to constitute an identifiable factor in the local labor market, but validation data have not been developed and presented separately for that group, evidence of satisfactory validity based on other groups will be regarded as only provisional compliance with these guidelines pending separate validation of the test for the minority group in question. (See 21-30-9.) A test which is differentially valid may be used in groups for which it is

valid but not for those in which it is not valid. In this regard, where a test is valid for two groups but one group characteristically obtains higher test scores than the other without a corresponding difference in job performance, cutoff scores must be set so as to predict the same probability of job success in both groups.

(c) In assessing the utility of a test the following considerations will be applicable:

(1) The relationship between the test and at least one relevant criterion must be statistically significant. This ordinarily means that the relationship should be sufficiently high as to have a probability of no more than 1 to 20 to have occurred by chance. However, the use of a single test as the sole selection device will be scrutinized closely when that test is valid against only one component of job performance.

(2) In addition to statistical significance, the relationship between the test and criterion should have practical significance. The magnitude of the relationship needed for practical significance or usefulness is affected by several factors, including: (a) The larger the proportion of applicants who are hired for or placed on the job, the higher the relationship needs to be in order to be practically useful. Conversely, a relatively low relationship may prove useful when proportionately few job vacancies are available. (b) The larger the proportion of applicants who become satisfactory employees when not selected on the basis of the test, the higher the relationship needs to be between the test and a criterion of job success for the test to be practically useful. Conversely, a relatively low relationship may prove useful when proportionately few applicants turn out to be satisfactory. (c) The smaller the economic and human risks involved in hiring an unqualified applicant relative to the risks entailed in rejecting a qualified applicant, the greater the relationship needs to be in order to be practically useful. Conversely, a relatively low relationship may prove useful when the former risks are relatively high. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-6. Presentation of validity evidence. The presentation of the results of a validation study must include graphical and statistical representations of the relationships between the test and the criteria, permitting judgments of the test's utility in making predictions of future work behavior. [See 21-30-5 (c) concerning assessing

utility of a test.] Average scores for all tests and criteria must be reported for all relevant subgroups, including minority and nonminority groups where differential validation is required. Whenever statistical adjustments are made in validity results for less than perfect reliability or for restriction of score range in the test or the criterion, or both, the supporting evidence from the validation study must be presented in detail. Furthermore, for each test that is to be established or continued as an operational employee selection instrument, as a result of the validation study, the minimum acceptable cutoff (passing) score on the test must be reported. It is expected that each operational cutoff score will be reasonable and consistent with normal expectations of proficiency within the work force or group on which the study was conducted. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-7. Use of other validity studies. In cases where the validity of a test cannot be determined pursuant to 21-30-4 and 21-30-5 (*e.g.*, the number of subjects is less than that required for a technically adequate validation study, or an appropriate criterion measure cannot be developed), evidence from validity studies conducted in other organizations, such as that reported in test manuals and professional literature, may be considered acceptable when:

(a) The studies pertain to jobs which are comparable (*i.e.*, have basically the same task elements), and

(b) there are no major differences in contextual variables or sample composition which are likely to significantly affect validity. Any person citing evidence from other validity studies as evidence of test validity for his own jobs must substantiate in detail job comparability and must demonstrate the absence of contextual or sample differences cited in paragraphs (a) and (b) of this section. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-8. Assumption of validity. (a) Under no circumstances will the general reputation of a test, its author or its publisher, or casual reports of test utility be accepted in lieu of evidence of validity. Specifically ruled out are: assumptions of validity based on test names or descriptive labels; all forms of promotional literature; data bearing on the frequency of a test's usage; testimonial statements of sellers, users, or consultants; and

other nonempirical or anecdotal accounts of testing practices or testing outcomes.

(b) Although professional supervision of testing activities may help greatly to insure technically sound and nondiscriminatory test usage, such involvement alone shall not be regarded as constituting satisfactory evidence of test validity. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-9. Continued use of tests. Under certain conditions, a person may be permitted to continue the use of a test which is not at the moment fully supported by the required evidence of validity. If, for example, determination of criterion-related validity in a specific setting is practicable and required but not yet obtained, the use of the test may continue: *Provided:* (a) The person can cite substantial evidence of validity as described in 21-30-7 (a) and (b); and

(b) He has in progress validation procedures which are designed to produce, within a reasonable time, the additional data required. It is expected also that the person may have to alter or suspend test cutoff scores so that score ranges broad enough to permit the identification of criterion-related validity will be obtained. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-10. Employment agencies and employment services. (a) An employment service, including private employment agencies, and state employment agencies, as defined in K.S.A. 44-1002 (e), shall not make applicant or employee appraisals or referrals based on the results obtained from any psychological test or other selection standard not validated in accordance with these guidelines.

(b) An employment agency or service which is requested by an employer or union to devise a testing program is required to follow the standards for test validation as set forth in these guidelines. An employment service is not relieved of its obligation herein because the test user did not request such validation or has requested the use of some lesser standard than is provided in these guidelines.

(c) Where an employment agency or service is requested only to administer a testing program which has been elsewhere devised, the employment agency or service shall request evidence of validation, as described in the guidelines in this part, before it administers the testing program

and/or makes referral pursuant to the test results. The employment agency must furnish on request such evidence of validation. An employment agency or service will be expected to refuse to administer a test where the employer or union does not supply satisfactory evidence of validation. Reliance by the user on the reputation of the test, its author, or the name of the test shall not be deemed sufficient evidence of validity [see 21-30-8 (a)]. An employment agency or service may administer a testing program where the evidence of validity comports with the standards provided in 21-30-7. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-11. Disparate treatment. The principle of disparate or unequal treatment must be distinguished from the concepts of test validation. A test or other employee selection standard—even though validated against job performance in accordance with the guidelines in this part—cannot be imposed upon any individual or class protected by the Kansas act against discrimination where other employees, applicants or members have not been subjected to that standard. Disparate treatment, for example, occurs where members of a minority group have been denied the same employment, promotion, transfer or membership opportunities as have been made available to other employees or applicants. Those employees or applicants who have been denied equal treatment, because of prior discriminatory practices or policies, must at least be afforded the same opportunities as had existed for other employees or applicants during the period of discrimination. Thus, no new test or other employee selection standard can be imposed upon a class of individuals protected by the Kansas act against discrimination who, but for prior discrimination, would have been granted the opportunity to qualify under less stringent selection standards previously in force. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-12. Retesting. Employers, unions, and employment agencies should provide an opportunity for retesting and reconsideration to earlier “failure” candidates who have availed themselves of more training or experience. In particular, if any applicant or employee during the course of an interview or other employment procedure claims more education or experience, that individual should be retested. (Authorized by

K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-13. Other selection techniques. Selection techniques other than tests, as defined in 21-30-2, may be improperly used so as to have the effect of discriminating against minority groups. Such techniques include, but are not restricted to, unscored or casual interviews and unscored application forms. Where there are data suggesting employment discrimination, the person may be called upon to present evidence concerning the validity of his unscored procedures as well as of any tests which may be used, the evidence of validity being of the same types referred to in 21-30-4 and 21-30-5. Data suggesting the possibility of discrimination exist, for example, when there are differential rates of applicant rejection from various minority and nonminority groups for the same job or group of jobs or when there are disproportionate representations of minority and nonminority groups among present employees in different types of jobs. If the person is unable or unwilling to perform such validation studies, he has the option of adjusting employment procedures so as to eliminate the conditions suggestive of employment discrimination. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-14. Affirmative action. Nothing in these guidelines shall be interpreted as diminishing a person’s obligation under the Kansas act against discrimination to undertake affirmative action to ensure that applicants or employees are treated without regards to race, religion, color, national origin or ancestry. Specifically, the use of tests which have been validated pursuant to these guidelines does not relieve employers, unions or employment agencies of their obligations to take positive action in affording employment and training to members of classes protected by the Kansas act against discrimination. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-15. Word-of-mouth recruiting. Employers and/or labor organizations whose workforces or memberships do not bear a reasonable relationship to the racial and/or ethnic pattern of the general population in their recruiting areas, may not recruit exclusively or even primarily by means of word-of-mouth referrals from present employees or present members. (Authorized by K.S.A.

1971 Supp. 44-1004, 44-1005; effective Jan. 1, 1972.)

21-30-16. Preference to relatives, friends or neighbors of present employees or members. Employers and/or labor organizations whose workforces or memberships do not bear a reasonable relationship to the racial and/or ethnic pattern of the general population in their recruiting areas, may not give preference in hiring or in admission to membership to relatives, friends or neighbors of present employees or present members by reason of such relationships. (Authorized by K.S.A. 1974 Supp. 44-1004, 44-1005; effective Jan. 1, 1972; amended, E-74-14, Dec. 28, 1973; amended May 1, 1975.)

21-30-17. Pre-employment inquiries and practices. K.S.A. 44-1009 (a) (3) prohibits, among others, the following pre-employment or pre-membership inquiries and practices:

(a) Inquiry into the birthplace of an applicant, the applicant's spouse or parents or any other close relative.

(b) Any requirement that an applicant submit a birth certificate, naturalization or baptismal record with his application.

(c) Any requirement or suggestion that an applicant submit a photograph with his application or at any time before he is hired.

(d) Inquiry into the name and address of any relative of an adult applicant other than applicant's spouse or children.

(e) Any inquiry into organization memberships, the name or character of which could indicate the race, religion, color, national origin or ancestry of the applicant. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-30-18. Affirmative action file. (a) Affirmative action file, need and use. Where affirmative action to increase the opportunity of minority groups for employment appears necessary to eliminate the effects of past pattern or individual discriminatory practices on the part of certain respondents and to assure future compliance with the Kansas act against discrimination, the commission may require and order per K.A.R. 21-45-21 an employer to maintain and utilize the application of potentially qualified minority group members in an "affirmative action file" when the commission has determined that such affirmative action is necessary to effectuate the purposes of the law. Before consulting other sources for ap-

plicants the commission may require that the respondent will give every consideration to the hiring of applicants from this file.

(b) Minority. "Minority" as used here means any person against whom an employer has been or is discriminating based on race, color, religion, sex, national origin or ancestry.

(c) Provisions. The affirmative action file provision in any conciliation agreement or commission order may provide, but is not limited to, the following provisions: "Affirmative action file: "1. Applications of members of minority groups which are not accepted or rejected per subpart (c) (4) hereof, shall be placed in a file, to be known as an affirmative action file. This file shall consist of all minority group applicants who are qualified for any position with the respondent, and those applicants whose qualifications have not been established.

"2. As job vacancies occur, the respondent shall consult the affirmative action file to determine if qualified applicants are available from the minority group members listed therein.

"3. Before consulting other sources for applicants, the respondent will give every consideration to the hiring of applicants from this file.

"4. If, after further review at the time a vacancy is available, the respondent concludes that the applicant is not qualified and cannot become qualified for any job within respondent's employ, he should remove his name from the file and notify him and the appropriate organization and agencies as identified in the commission order or conciliation agreement. If the applicant is still considered qualified, the respondent shall note on the file the date of each review and the reason for rejection. If the respondent is of the view that certain steps taken by the applicant could qualify him for employment, it shall so inform the applicant and the referring and sending institution, in writing, maintaining a copy in his file.

"5. The operation of the file shall be reported as provided by the commission." (Authorized by K.S.A. 1974 Supp. 44-1003, 1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-30-19. Recruitment and referral agencies. (a) Public and private services. Where necessary to eliminate the continuing effects of prior discrimination, the commission may require employers "to establish continuing relationships with referral sources which may include, but is not

limited to, (1) Public referral services and agencies; and

(2) Private referral agencies and services, including those operated for profit.”

(b) Recruitment. To the extent where necessary to eliminate the continuing effects or prior discrimination the commission may require employers to advertise vacancies and non-discriminatory hiring practices. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-30-20. Temporary employment. Where necessary to eliminate the continuing effects of prior discrimination, the commission may require employers to hire its summer, seasonal or any other temporary employees on the same basis as permanent employees. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 31.—GUIDELINES ON DISCRIMINATION BECAUSE OF NATIONAL ORIGIN OR ANCESTRY

21-31-1. Construction of BFOQ Exemption. The bona fide occupational qualification exemption of K.S.A. 44-1009 (a) (3) shall be strictly construed as it pertains to cases of national origin or ancestry. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-31-2. Covert and overt discrimination. The Kansas act against discrimination is intended to eliminate covert as well as the overt practices of discrimination, and the commission will, therefore, examine with particular concern cases where persons within the jurisdiction of the commission have been denied equal opportunities for reasons which are grounded in national origin or ancestry considerations. Examples of cases of this character include: The use of tests in the English language where the individual tested came from circumstances where English was not that person's first language or mother tongue, and where English language skill is not a requirement of the task to be performed; denial of equal opportunity to persons married to or associated with persons of a specific national origin or ancestry; denial of equal opportunity because of membership in lawful organizations identified with or seeking to promote the interests of national groups; denial of equal opportunity because of attendance at schools or churches commonly utilized

by persons of a given national origin or ancestry; denial of equal opportunity because their name or that of their spouse reflects a certain national origin or ancestry; and denial of equal opportunity to persons who as a class of persons tend to fall outside national norms for height and weight where such height and weight specifications are not necessary for the performance of the work involved. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-31-3. Protection of noncitizens. The Kansas act against discrimination protects all individuals, both citizens and noncitizens, domiciled, residing or transient in the state of Kansas, against discrimination in employment, public accommodations and housing because of race, religion, color, national origin or ancestry. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

21-31-4. Protection of national security. Because discrimination of the basis of citizenship has the effect of discriminating on the basis of national origin, a lawfully immigrated alien who is domiciled, residing or transient in the state of Kansas may not be discriminated against on the basis of his citizenship, except that it is not an unlawful practice for an employer to refuse to employ any person who does not fulfill the requirements imposed in the interest of federal or state security pursuant to any statute of the United States or the state of Kansas or pursuant to any executive order of the president or the governor respecting the particular position or the particular premises in question. (Authorized by K.S.A. 1971 Supp. 44-1004; effective Jan. 1, 1972.)

Article 32.—GUIDELINES ON DISCRIMINATION BECAUSE OF SEX

21-32-1. Sex as a bona fide occupational qualification. (a) The bona fide occupational qualification exceptions as to sex should be interpreted narrowly. Labels—“men's jobs” and “women's jobs”—tend to deny employment opportunities unnecessarily to one sex or the other.

(1) The commission will find that the following situations do not warrant the application of the bona fide occupational qualification exceptions: (a) The refusal to hire a woman because of her sex, based on assumptions of the comparative employment characteristics of women in general. For

example, the assumption that the turnover rate among women is higher than among men.

(2) The refusal to hire an individual based on stereotyped characterizations of the sexes. Such stereotypes include, for example, that men are less capable of assembling intricate equipment; that women are less capable of aggressive salesmanship. The principle of nondiscrimination requires that individuals be considered on the basis of individual capacities and not on the basis of any characteristics generally attributed to the group.

(3) The refusal to hire an individual because of the preference of co-workers, the employer, clients or customers.

(4) The fact that the employer may have to provide separate facilities for a person of the opposite sex will not justify discrimination under the bona fide occupational qualification unless the expense would be clearly unreasonable.

(b) The employer must not make any distinction based upon sex in employment opportunities, wages, hours, or other conditions of employment. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; regulation modified by 1975 HB 2633, May 6, 1975.)

21-32-2. Fringe benefits. “Fringe benefits,” as used herein includes medical, hospital, accident, life insurance and retirement benefits; profit sharing and bonus plans; leave and other terms, conditions and privileges of employment. (a) It shall be an unlawful employment practice for an employer to discriminate between men and women with regard to fringe benefits.

(b) Where an employer conditions benefits available to employees and their spouses and families on whether the employee is the “head of the household” or “principle wage earner” in the family unit, the benefits tend to be available only to male employees and their families. Due to the fact that such conditioning discriminatorily affects the rights of women employees, and that “head of the household” or “principle wage earner” status bears no relationship to job performance, benefits which are so conditioned will be found a prima facie violation of the prohibitions against sex discrimination contained in the act.

(c) It shall be an unlawful employment practice for an employer to make available benefits for the wives and families of male employees where the same benefits are not made available for the husbands and families of female employees; or to

make available benefits for the wives of male employees which are not made available for female employees; or to make available benefits to the husbands of female employees which are not made available for male employees. An example of such an unlawful employment practice is the situation in which wives of male employees receive maternity benefits while female employees receive no such benefits.

(d) It shall not be a defense to a charge of sex discrimination in benefits that the cost of such benefits is greater with respect to one sex than the other.

(e) It shall be an unlawful employment practice for an employer to have a pension or retirement plan which establishes different optional or compulsory retirement ages on the basis of sex, or which differentiates in benefits on the basis of sex. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-3. Separate lines of progression and seniority systems. (a) It is an unlawful employment practice to classify a job as “male” or “female” or to maintain separate lines of progression or separate seniority lists based on sex where this would adversely affect any employee unless sex is a bona fide occupational qualification for that job. Accordingly, employment practices are unlawful which arbitrarily classify jobs so that: (1) A female is prohibited from applying for a job labeled “male” or for a job in a “male” line of progression; and vice versa.

(2) A male scheduled for layoff is prohibited from displacing a less senior female on a “female” seniority list; and vice versa.

(b) A seniority system or line of progression which distinguishes between “light” and “heavy” jobs constitutes an unlawful employment practice if it operates as a disguised form of classification by sex, or creates unreasonable obstacles to the advancement by members of either sex into jobs which members of that sex could reasonably be expected to perform. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-4. Discrimination against married women. (a) The commission has determined that an employer’s rule which forbids or restricts the employment of married women and which is not applicable to married men is a discrimination

based on sex prohibited by the Kansas act against discrimination. It does not seem to us relevant that the rule is not directed against all females, but only against married females, for so long as sex is a factor in the application of the rule, such application involves a discrimination based on sex. This rule also applies to unmarried women who happen to be mothers for example; in many instances women who have small children in the home are denied employment. Such discrimination usually takes place at the initial employer's screening process through the asking of such questions as "How old are your children? How many children do you have? What are your plans for providing care for your children?"

(b) An employed woman should not have her employment terminated when she marries a man who works for the same business or institution by whom she is employed. At the same time, a woman should not be denied employment by an employer due to rules against nepotism if she is otherwise qualified to perform the required work. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-5. Pre-employment inquiries as to sex. Pre-employment inquiry may ask "Male . . . , Female . . . ," provided that the inquiry is made in good faith for a non-discriminatory purpose. Any pre-employment inquiry in connection with prospective employment which expresses directly or indirectly any limitation, specification or discrimination as to sex shall be unlawful unless based upon a bona fide occupational qualification. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-6. Pregnancy and childbirth. (a) A written or unwritten employment policy or practice which excludes from employment applicants or employees because of pregnancy is prima facie discrimination.

(b) Disabilities caused or contributed to by pregnancy, miscarriage, abortion, childbirth and recovery therefrom, are for all job related purposes, temporary disabilities and should be treated as such under any health or temporary disability insurance or sick leave plan available in connection with employment. Written or unwritten employment policies and practices involving matters such as the commencement and duration of leave, the availability of extensions, the accrual

of seniority and other benefits and privileges, reinstatement, and payment under any health or temporary disability insurance or sick leave plan, formal or informal, shall be applied to disability due to pregnancy or childbirth on the same terms and conditions as they are applied to other temporary disabilities.

(c) Where the termination of an employee who is temporarily disabled is caused by an employment policy under which insufficient or no leave is available, such termination is discriminatory if it has a disparate impact on employees of one sex and is not justified by business necessity.

(d) Childbearing must be considered by the employer to be a justification for a leave of absence for female employees for a reasonable period of time. Following childbearing, and upon signifying her intent to return within a reasonable time, such female employee shall be reinstated to her original job or to a position of like status and pay without loss of service, credits, seniority or other benefits. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-7. Affirmative action. The employer shall take affirmative action to recruit women to apply for those jobs where they have been previously excluded. Such affirmative action may include but is not limited to notifying employment referral agencies that women are welcome to apply for all positions, recruiting at women's colleges and the use of advertising which is not classified by sex. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-32-8. Job opportunities advertising. It is a violation of the Kansas act against discrimination for a help wanted advertisement to indicate a preference, limitation, specification or discrimination based on sex unless sex is a bona fide occupational qualification for the particular job involved. The placement of an advertisement in columns classified by publishers on the basis of sex, such columns headed "male" or "female," will be considered as an expression of preference, limitation, specification or discrimination based on sex. (Authorized by K.S.A. 1974 Supp. 44-1004(3), 44-1009; effective, E-73-5, Nov. 16, 1972; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

**Article 33.—GUIDELINES ON
DISCRIMINATION BECAUSE OF
RELIGION**

21-33-1. Statement of purpose. (a) The guidelines in this part have been adopted to contribute to the implementation of non-discriminatory personnel policies with respect to employee religious beliefs as required by the Kansas act against discrimination. The guidelines in this part are designed to serve as a workable set of standards for employers, unions and employment agencies in determining whether their policies concerning employee religious beliefs conform with the basic purposes of the elimination of discrimination in employment as defined by the act.

(b) Observance of sabbath and other religious holidays. Regarding whether it is discrimination on account of religion to discharge or refuse to hire employees who regularly observe Friday evening and Saturday, or some other day of the week, as the Sabbath or who observe certain special religious holidays during the year and, as a consequence, do not work on such days, the commission finds that the duty not to discriminate on religious grounds, under the act, includes an obligation on the part of the employer to make reasonable accommodations to the religious needs of employees and prospective employees where such accommodations can be made without undue hardship on the conduct of the employer's business. Such undue hardship, for example, may exist where the employee's needed work cannot be performed by another employee of substantially similar qualifications during the period of absence of the Sabbath observer. Because of the particularly sensitive nature of discharging or refusing to hire an employee or applicant on account of his religious beliefs, the employer has the burden of proving that an undue hardship renders the required accommodations to the religious needs of the employee unreasonable. The commission will review each case in an effort to seek an equitable application of these guidelines to the variety of situations which arise due to the varied religious practices of the people of Kansas. (Authorized by K.S.A. 1974 Supp. 44-1004, 44-1005; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

**Article 34.—GUIDELINES ON
DISCRIMINATION BECAUSE OF
DISABILITY**

21-34-1. Definitions. (a) "Covered entity" means an employer, labor organization, employ-

ment agency, or joint labor-management committee.

(b) "Direct threat" means a significant risk of substantial harm to the health or safety of the individual or others that cannot be eliminated or reduced by reasonable accommodation.

(c) "Essential function" means the fundamental job duties of the employment position the individual with a disability holds or desires. The term "essential function" does not include the marginal functions of the position.

(d) "Has a record of such impairment" means has a history of, or has been misclassified as having, a mental or physical impairment that substantially limits one or more major life activities.

(e) "Is regarded as having such an impairment" means:

(1) Has a physical or mental impairment that does not substantially limit major life activities but is treated by a covered entity as constituting a limitation;

(2) Has a physical or mental impairment that substantially limits major life activities only as a result of the attitudes of others toward the impairment; or

(3) Has none of the impairments defined in subsections (h)(1) or (2) of this section but is treated by a covered entity as having an impairment.

(f) "Illegal use of drugs" means the use of drugs, the possession or distribution of which is unlawful under the Controlled Substances Act (21 U.S.C. 812). This term does not include the use of a drug taken under the supervision of a licensed health care professional, or other uses authorized by Controlled Substances Act or other provisions of Federal or Kansas law.

(g) "Major life activities" means functions such as caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, and working.

(h) "Physical or mental impairment" means:

(1) any physiological disorder or condition, cosmetic disfigurement, or anatomical loss affecting one or more of the following body systems: neurological, musculoskeletal, special sense organs, respiratory (including speech organs), cardiovascular, reproductive, digestive, genitourinary, hemic and lymphatic, skin, and endocrine; or

(2) any mental or psychological disorder, such as mental retardation, organic brain syndrome, emotional or mental illness, and specific learning disabilities.

(i) "Qualified individual with a disability" means an individual with a disability who satisfies the requisite skill, experience, education and other job-related requirements of the employment position the person holds or desires, and who, with or without reasonable accommodation, can perform the essential functions of the position.

(j) "Qualification standards" means the personal and professional attributes including the skill, experience, education, physical, medical, safety and other requirements established by a covered entity as requirements which an individual must meet in order to be eligible for the position held or desired.

(k) "Substantially limits" means:

(1) unable to perform a major life activity that the average person in the general population can perform; or

(2) significantly restricted as to the condition, manner or duration under which an individual can perform a particular major life activity as compared to the condition, manner, or duration under which the average person in the general population can perform the same major life activity. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-2. Medical examinations and inquiries; general prohibition. The prohibition against discrimination as referred to in K.S.A. 44-1009(a)(1) and 44-1009(a)(8) shall include medical examinations and inquiries. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-3. Preemployment medical examinations and inquiries. (a) Prohibited examination or inquiry. A covered entity shall not conduct a medical examination or make inquiries of a job applicant as to whether the applicant is an individual with a disability or as to the nature or severity of the applicant's disability, except as provided in 21-34-4.

(b) Acceptable inquiry. A covered entity may make preemployment inquiries into the ability of an applicant to perform job-related functions. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter

147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-4. Employment entrance examinations and inquiries; exception. A covered entity may require a medical examination, inquiry, or both after an offer of employment has been made to a job applicant and prior to the commencement of the employment duties of the applicant, and may condition an offer of employment on the results of the examination, inquiry, or both if:

(a) all entering employees in the same job category are subjected to an examination, inquiry, or both regardless of disability;

(b) information obtained regarding the medical condition or history of the applicant is collected and maintained on separate forms and in separate medical files and is treated as a confidential medical record, except that:

(1) supervisors and managers may be informed regarding necessary restrictions on the work or duties of the employee and necessary accommodations;

(2) first aid and safety personnel may be informed, when appropriate, if the disability might require emergency treatment; and

(3) government officials investigating compliance with this act shall be provided relevant information on request; and

(c) the results of such physical examination, inquiry, or both are used only in accordance with these regulations. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-5. Prohibited medical examinations and inquiries. A covered entity shall not require a medical examination and shall not make inquiries of an employee as to whether such employee is an individual with a disability or as to the nature or severity of the disability, unless such examination or inquiry is shown to be job-related and consistent with business necessity. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-6. Acceptable medical examinations and inquiries. (a) A covered entity may conduct voluntary medical examinations, including voluntary medical histories, which are part of

an employee health program available to employees at the work site. A covered entity may make inquiries into the ability of an employee to perform job-related functions.

(b) Information obtained under subsection (a) regarding the medical condition or history of any employee is subject to the requirements of subsections (b) and (c) of 21-34-4. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-7. Regulation of alcohol and drugs. These regulations do not prohibit a covered entity from:

(a) prohibiting the illegal use of drugs and the use of alcohol at the workplace by all employees;

(b) requiring that employees not be under the influence of alcohol or drugs at the workplace;

(c) requiring that employees behave in conformance with the requirements established pursuant to the Drug-Free Workplace Act of 1988 (41 U.S.C. 701 et seq.);

(d) holding an employee who engages in the illegal use of drugs or who is an alcoholic to the same qualification standards for employment or job performance and behavior that the entity holds other employees, even if any unsatisfactory performance or behavior is related to the employee's drug use or alcoholism;

(e) requiring that its employees employed in an industry subject to federal regulations comply with the standards established in those regulations, if any, regarding alcohol and the illegal use of drugs; and

(f) requiring that employees employed in sensitive positions in an industry subject to federal regulations comply with those regulations, if any, that apply to employment in sensitive positions. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-8. Drug testing. (a) A test to determine the illegal use of drugs shall not be considered a medical examination.

(b) Nothing in this paragraph shall be construed to encourage, prohibit, or authorize the conducting of drug tests for the illegal use of drugs by job applicants or employees or making employment decisions based on the test results. (Authorized by K.S.A. 44-1004; implementing K.S.A.

44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-9. Transportation employees. Nothing in these regulations should be construed to encourage, prohibit, restrict or authorize the otherwise lawful exercise by entities subject to the jurisdiction of the United States Department of Transportation of authority to:

(a) test employees of entities in, and applicants for, positions involving safety sensitive duties for the illegal use of drugs and/or for on-duty impairment by alcohol; and

(b) remove persons who test positive for illegal use of drugs or on-duty impairment by alcohol pursuant to subsection (b)(1) of this regulation from safety-sensitive positions. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-10. Information from a drug test.

Any information regarding the medical condition or history of any employee or applicant obtained from a drug test, except information regarding illegal use of drugs, is subject to the requirements of subsections (b) and (c) of 21-34-4. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-11. Illegal use of drugs and alcohol; exception to the definition of "qualified individuals with a disability"; policies and procedures. (a) The term "qualified individual with a disability" shall not include any employee or applicant who is engaging in the illegal use of drugs, when the covered entity acts on the basis of the illegal use of drugs.

(b) Nothing in subsection (a) of this regulation shall be construed to exclude as a "qualified individual with a disability" an individual who:

(1) has successfully completed a supervised drug rehabilitation program and is no longer engaging in the illegal use of drugs, or has otherwise been rehabilitated successfully and is no longer engaging in the illegal use of drugs; or

(2) is participating in a supervised rehabilitation program and is no longer engaging in the illegal use of drugs; or

(3) is erroneously regarded as engaging in the

illegal use of drugs, but is not engaging in the illegal use of drugs.

(c) It shall not be a violation of this act for a covered entity to adopt or administer reasonable policies or procedures, including but not limited to drug testing, designed to ensure that an individual described in paragraph (b)(1) or (2) of this section is no longer engaging in the illegal use of drugs. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-12. Regulation of smoking. A covered entity may prohibit or impose restrictions on smoking in places of employment. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-13. Direct threat; criteria for determination. (a) The determination that an individual with a disability poses a “direct threat” shall be based on an individualized assessment of the individual’s present ability to safely perform the essential functions of the job. This assessment shall be based on a reasonable medical judgment that relies on the most current medical knowledge, on the best available objective evidence, or both.

(b) In determining whether an individual would pose a direct threat, the factors to be considered include:

- (1) the duration of the risk;
- (2) the nature and severity of the potential harm;
- (3) the likelihood that the potential harm will occur; and
- (4) the imminence of the potential harm. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-14. Essential function; criteria for determination. (a) A job function may be considered essential for any of several reasons, including but not limited to the following:

- (1) the function may be essential because the reason the position exists is to perform that function;
- (2) the function may be essential because of the limited number of employees available among

whom the performance of that job function can be distributed; and

(3) the function may be highly specialized so that the incumbent in the position is hired for his or her expertise or ability to perform the particular function.

(b) Evidence of whether a particular function is essential includes, but is not limited to:

- (1) the employer’s judgment as to which functions are essential;
- (2) written job descriptions prepared before advertising or interviewing applicants for the job;
- (3) the amount of time spent on the job performing the function;
- (4) the consequences of not requiring the incumbent to perform the function;
- (5) the terms of a collective bargaining agreement;
- (6) the work experience of past incumbents in the job; and
- (7) the current work experience of incumbents in similar jobs. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-15. Direct threat as qualification standard. The term “qualification standards” may include a requirement that an individual shall not pose a direct threat to the health or safety of that individual or others in the workplace. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-16. Infectious and communicable diseases; food handling jobs. (a) If an individual with a disability is disabled by an infectious or communicable disease and if the risk of transmitting the disease associated with the handling of food cannot be eliminated by reasonable accommodation, a covered entity may refuse to assign or continue to assign the individual to a job involving food handling. However, if the individual with a disability is a current employee, the employer must consider whether he or she can be accommodated by reassignment to a vacant position not involving food handling.

(b) This regulation does not preempt, modify, or amend any State, county, or local law, ordinance or regulation applicable to food handling which:

- (1) provide greater or equal protection for the

rights of individuals with disabilities disabled by an infectious or communicable disease that are afforded by the Americans with Disabilities Act of 1990; and

(2) is designed to protect the public from individuals who pose a significant health risk to the health and safety of others, where that risk cannot be eliminated by reasonable accommodation. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-17. Substantially limit; criteria for determination. (a) The following factors should be considered in determining whether an individual is substantially limited in a major life activity:

(1) the nature and severity of the impairment;

(2) the duration or expected duration of the impairment; and

(3) the permanent or long term impact of the impairment, or the expected permanent or long term impact of the impairment. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-18. Substantially limit; definition with respect to the major life activity of “working”; criteria for determination. (a) With respect to the major life activity of “working,” the term “substantially limits” means significantly restricted in the ability to perform either a class of jobs or a broad range of jobs in various classes as compared to the average person having comparable training, skills and abilities. The inability to perform a single, particular job does not constitute a substantial limitation in the major life activity of working.

(b) In addition to the factors listed in paragraph (a) of 21-34-17, the following factors may be considered in determining whether an individual is substantially limited in the major life activity of “working”:

(1) the geographical area to which the individual has reasonable access;

(2) the job from which the individual has been disqualified because of an impairment, and the number and types of jobs utilizing similar training, knowledge, skills or abilities, within that geographical area, from which the individual is also

disqualified because of the impairment (class of jobs); and

(3) the job from which the individual has been disqualified because of an impairment, and the number and types of other jobs not utilizing similar training, knowledge, skill or abilities, within that geographical area, from which the individual is also disqualified because of the impairment (broad range of jobs in various classes). (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-19. Undue hardship; definition; criteria for determination. (a) “Undue hardship” means an action requiring significant difficulty or expense.

(b) Criteria for determination. In determining whether an accommodation would impose an undue hardship on a covered entity, factors to be considered include:

(1) the nature and net cost of the accommodation needed under this act, taking into consideration the availability of tax credits and deductions, outside funding, or both;

(2)(A) the overall financial resources of the facility or facilities involved in the provision of the reasonable accommodation;

(B) the number of persons employed at the facility;

(C) the effect on expenses and resources, or any other impact of the accommodation upon the operation, of the facility;

(3)(A) the overall financial resources of the covered entity;

(B) the overall size of the business of a covered entity with respect to the number of its employees;

(C) the number, type, and location of its facilities; and

(4)(A) the type of operation or operations of the covered entity, including the composition, structure, and functions of the workforce of the entity;

(B) the geographic separateness, administrative, or fiscal relationship of the facility or facilities in question to the covered entity. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-20. Exceptions to the definitions

of “disability.” (a) The term “disability” does not include:

(1) transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, gender identity disorders not resulting from physical impairments, or other sexual behavior disorders;

(2) compulsive gambling, kleptomania, or pyromania; or

(3) psychoactive substance use disorders resulting from current illegal use of drugs.

(b) Homosexuality and bisexuality are not impairments and so are not disabilities as defined in this act. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

21-34-21. Health insurance, life insurance, and other benefit plans. (a) An insurer, hospital, or medical service company, health maintenance organization, or any agent or entity that administers benefit plans, or similar organizations, may underwrite risks, classify risks, or administer risks that are based on or not inconsistent with State law.

(b) A covered entity may establish, sponsor, observe or administer the terms of a bona fide benefit plan that are based on underwriting risks, classifying risks, or administering such risks that are based on or not inconsistent with State law.

(c) A covered entity may establish, sponsor, observe, or administer the terms of a bona fide benefit plan that is not subject to State laws that regulate insurance.

(d) The activities described in paragraphs (a), (b), and (c) are permitted unless these activities are a subterfuge to evade the purposes of this act. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009, as amended by L. 1991, Chapter 147, Section 6; effective, T-21-3-27-92, March 27, 1992; effective April 27, 1992.)

Articles 35 to 39.—RESERVED

Article 40.—GENERAL PROVISIONS

21-40-1. Definitions. Incorporated by reference are the definitions of K.S.A. 44-1002. In addition, the following words and terms shall have the following meaning: (a) “Acting executive director” means the person appointed by the commission to perform the functions, powers and duties of the executive director, or the person appointed to perform the functions, powers and

duties of the executive director per rule K.A.R. 21-40-6.

(b) “Adjudication” means any order, decree, decision, determination or ruling affecting personal or property rights, privileges, immunities, duties, liabilities or obligations of any or all of the parties to the proceeding in which the adjudication is made.

(c) “Attorney” means any licensed attorney currently admitted to practice before the supreme court of the state of Kansas or any attorney at law authorized to enter his appearance per rule K.A.R. 21-40-13.

(d) “Chairman” shall mean the chairman of the commission on civil rights duly designated by the governor pursuant to K.S.A. 44-1003, or, in the event of his absence, the acting chairman designated by the remaining members of the commission.

(e) “Commission” means the commission on civil rights created and amended by the Kansas act against discrimination, or as the context indicates, any member thereof.

(f) “Commissioner” shall mean one of the duly appointed members of the commission on civil rights.

(g) “Commission’s attorney” shall mean an attorney designated to assist the commission to carry out the provisions of this act subject to approval by the attorney general.

(h) “Complainant” shall mean any person filing a complaint with the commission.

(i) “Complaint” shall mean a written statement made under oath and filed with the commission alleging any violation of any statutory or other authority, orders, rules or regulations over which the commission may have jurisdiction or which the commission may enforce.

(j) “Discrimination” means any direct or indirect exclusion, distinction, segregation, limitation, refusal, denial, or any other differentiation or preference in the treatment of a person or persons on account of race, religion, color, sex, physical handicap, national origin or ancestry, and/or any denial of any right, privilege, or immunity, secured or protected by the constitution or laws of Kansas or the United States. Discrimination shall include but not be limited to any practice which produces a demonstrable racial or ethnic effect without a valid business motive.

(k) “Executive director” means the executive director employed by the commission.

(l) “Formal record” means all the filings and

submittals in a matter or proceeding, any notice or agency order initiating the matter or proceeding, and if a hearing is held, the following: the designation of the presiding officer, transcript of hearing, all exhibits received in evidence, all exhibits offered but not received in evidence, offers of proof, motions, stipulations, subpoenas, proofs of service, references to the commission, and determinations made by the commission thereon, certifications to the commission, and anything else upon which action of the presiding officer or the agency head may be based; but not including any proposed testimony or exhibits not offered or received in evidence.

(m) "Hearing commissioners" shall mean the commissioners designated by the chairman to conduct a pre-hearing, hearing, rehearing, reopen a hearing, or to proceed with any matter before the commission.

(n) "Interveners" means persons intervening or petitioning to intervene when admitted as a participant to a proceeding. Admission as an intervener shall not be construed as recognition by the commission that such intervener has a direct interest in the proceeding or might be aggrieved by any order of the commission in such proceeding.

(o) "Investigating commissioner" shall mean the commissioner duly designated by the commission to make investigation of a verified complaint filed with this commission, or to conduct any investigation initiated by the commission without the filing of a verified complaint.

(p) "Issue" means to prescribe or promulgate.

(q) "Matter or proceeding" means the elucidation of the relevant facts and applicable law, consideration thereof, and action thereupon by the commission with respect to a particular subject by the commission, initiated by a filing or submittal or commission notice or order.

(r) "Party" means the complainant, the respondent, and any other person authorized by the commission to intervene in any proceeding.

(s) "Petitioners" means persons seeking relief, not otherwise designated in this section.

(t) "Pleading" means any application, complaint, petition, answer, protest, reply or other similar document filed in an adjudicatory proceeding.

(u) "Presiding officer" means any member of the commission, or one or more hearing examiners appointed according to law and duly designated to preside at hearings or conferences, or

other officers duly designated to conduct specified classes of proceedings.

(v) "Probable cause" means the presence of a reasonable ground for belief in the existence of the alleged facts of a violation of any statutory or other authority, orders, rules or regulations over which the commission may have jurisdiction or which the commission may enforce.

(w) "Proposed report" means the written statement of the issues, the facts, and the findings that a hearing examiner or other subordinate officer proposes the commission should make, with the reasons therefor, whether or not including a recommended order.

(x) "Respondent" shall mean any person against whom a complaint has been filed alleging an unlawful employment practice or unlawful discriminatory practice within the meaning of this act.

(y) "Segregation" shall include but not be limited to any practice which results in any discriminatory grouping.

(z) "Submittal" means any document filed in a nonadversary proceeding. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-2. Construction. These rules shall be liberally construed to accomplish the purposes of the act and the policies of the commission including the just, speedy, and inexpensive determination of the issues presented. (Authorized by K.S.A. 1974 Supp. 44-1001; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-3. Rules of order. Meetings of the commission shall be governed by Roberts rules of order, with the exception that the chairman may make motions, second motions already made and vote upon any matters. (Authorized by K.S.A. 1974 Supp. 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-4. Cooperation with local agencies. The commission may cooperate with and utilize the services of local human relations commissions in fulfilling its responsibilities under the Kansas act against discrimination. The commission may enter into written agreements with local human relations commissions for such purposes. (Authorized by K.S.A. 1974 Supp. 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-5. Exercise of executive func-

tions. The commission may use the executive director as its agent in exercising its executive functions, powers and duties. The commission shall annually compile a written evaluation of the executive director to be signed by the chairman or the designated acting chairman. The form used shall contain those items listed on form DA-226-7 (Rev. 72) as authorized by the department of administration of the state of Kansas. (Authorized by K.S.A. 1974 Supp. 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-6. Death, disability or absence of executive director. Whenever, in the event of the death, disability or absence from the state of the executive director, it shall be necessary to appoint an acting executive director without delay, the chairman may make such appointment, subject to the ratification or rejection of the commission at the next meeting; *Provided, however,* That rejection of such appointment shall have no effect on any of the actions of the acting executive director in the interim. In the event of any temporary absence of the executive director, the assistant director is authorized to exercise the functions, powers and duties of the executive director until the executive director returns. (Authorized by K.S.A. 1974 Supp. 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-7. Communications and filings generally. (a) All communications, submittals and pleadings should be addressed to the commission at the office of the commission unless otherwise specifically directed. All communication and filings should clearly designate the file number, docket number, or similar identifying symbols, if any, employed by the commission and should set forth a short title. The person communicating shall state his address, the party he represents, and how response should be sent to him if not by first class mail.

(b) In any proceeding when, upon inspection, the commission is of the opinion that a pleading or other matter tendered for filing does not comply with these rules or is otherwise insufficient, the commission may decline to accept the document for filing and may return it unfiled, or the commission may accept it for filing and advise the person tendering it of the deficiency and require that the deficiency be corrected.

(c) The commission may order any redundant, immaterial, impertinent, or scandalous matter stricken from any document filed with it.

(d) Except as may be otherwise ordered, the original copy of each pleading, submittal or other document shall be signed by the party in interest, or by his or its attorney, as required by subsection (e) of this section, and shall show the office and post office address of such party or attorney. All other copies filed shall be fully conformed thereto.

(e) Pleadings, submittals and other documents filed shall be subscribed: (i) by the person filing such documents, and severally if there is more than one person so filing; or

(ii) by an officer thereof if it is a corporation, trust, association, or other organized group; or

(iii) by an officer or employee thereof if it is another public agency or a political subdivision; or

(iv) by an attorney having authority with respect thereto.

(f) Documents filed by any corporation, trust, association, or other organized group, may be required to be supplemented by appropriate evidence of the authority of the officer or attorney subscribing such documents.

(g) The signature of the person subscribing any document filed constitutes a certificate by such individual that he had read the document being subscribed and filed, and knows the contents thereof; that if executed in any representative capacity, the document has been subscribed and executed in the capacity specified upon the document with full power and authority so to do; that the contents are true as stated, except as to matters and things, if any, stated on information and belief, and that as to those matters and things, he believes them to be true. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-8. Copies of pleadings. Upon filing any application, complaint, pleading, brief or other submittal, the party filing the same must file an original and nine copies thereof for the commission and furnish additional copies to the commission for each party who may be expected to participate in the proceeding. The commission may require the filing of such additional copies as it may need or desire. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-9. Commencement of a proceeding. A proceeding is commenced either by the filing of a complaint or other document or an order of the commission initiating an investigation

or complaint on its own motion. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-10. Docket. The commission shall maintain a docket of all proceedings, and each proceeding as initiated shall be assigned an appropriate designation. The docket shall be available for inspection and copying by the public during the office hours of the agency insofar as consistent with the proper discharge of the duties of the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-11. Service. (a) Service by the commission. Orders, notices and other documents originating with the commission shall be served by the office of the commission by mail, except when service by another method shall be specifically designated by the commission, by mailing a copy thereof to the person to be served, addressed to the person or persons designated in the initial pleading or submittal at the person's principal office or place of business. When service is not accomplished by mail, it may be effected in person or as otherwise ordered by any one duly authorized by the commission.

(b) Service by a participant. All pleadings, submittals, briefs and other documents, filed in proceedings when filed or tendered to the commission for filing, shall be served upon all participants in the proceeding. Such service shall be made by delivering in person or by mailing, properly addressed with postage prepaid, the requisite number of copies to each participant.

(c) Effect of service upon an attorney. When any participant has appeared by attorney, service upon such attorney shall be deemed service upon the participant and separate service on the party may be omitted.

(d) Date of service. The date of service shall be the day when the document served is deposited in the United States mail, or is delivered in person, as the case may be.

(e) Proof of service. There shall accompany and be attached to the original of each pleading, submittal or other document filed with an agency when service is required to be made by the parties, a certificate of service. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-12. Time. (a) Timely filing required.

Pleadings, submittals or other documents required or permitted to be filed under these rules or any other provision of law must be received for filing at the commission's office within the time limits, if any, for such filing. The date of receipt at the office of the agency and not the date of deposit in the mails is determinative.

(b) Computation of time. Except as otherwise provided by law, in computing any period of time prescribed or allowed, the date of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is Saturday, Sunday, or a "legal holiday" as defined in K.S.A. 60-206, in which event the period shall run until the end of the next day which is neither a Saturday, Sunday, nor a legal holiday. A part-day holiday shall be considered as other days and not as a holiday. Intermediate Saturdays, Sundays, and legal holidays shall be included in the computation.

(c) Issuance of orders. In computing any period of time involving the date of the issuance of an order the day of issuance of an order shall be the day the commission mails or delivers copies of the order to the parties, or if such delivery is not otherwise required by law, the day the commission makes such copies public. Orders will not be made public prior to the mailing or delivery to the parties, except where, in the judgment of the commission, the public interest so requires. The day of issuance of an order may or may not be the day of its adoption by the commission. In any event, the office of the agency shall clearly indicate on each order the day of its issuance.

(d) Extensions of time. (1) Except as otherwise provided by law, whenever an act is required or allowed to be done at or within a specified time, the time fixed or the period of time prescribed may by the commission or the presiding officer, for good cause be extended upon motion made before expiration of the period originally prescribed or as previously extended; and upon motion made after the expiration of the specified period, the act may be permitted to be done where reasonable grounds are shown for the failure to act. Requests for the extension of time in which to file briefs shall be filed at least five days before the time fixed for filing such briefs.

(2) Except as otherwise provided by law, requests for continuance of hearings or for extension of time in which to perform any act required or allowed to be done at or within a specified time

by these rules or any order, shall be by motion in writing, timely filed with the agency, stating the facts on which the application rests, except that during the course of a hearing in a proceeding, such requests may be made by oral motion in the hearing before the commission or the presiding officer. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-13. Representation. (a) Appearance in person. An individual may appear in his own behalf. A member of a partnership may represent the partnership, a bona fide officer of a corporation, trust or association may represent the corporation, trust or association, and an officer or employee of another public agency or of a political subdivision may represent the public agency or political subdivision in presenting any submittal to an agency subject to these rules.

(b) Appearance by attorney. A person may be represented in any proceeding by an attorney-at-law who is a resident of Kansas and regularly admitted to practice before the supreme court of Kansas; or a person may appear and be represented by any regularly admitted practicing attorney in the courts of record of another state of the United States, who has filed a verified application to the effect that he has associated and personally appearing with him, in the proceeding before the commission, an attorney who is a resident of Kansas and duly qualified to practice law therein, as his local counsel. Said local counsel shall first enter his own appearance and then move for the admission of the non-resident attorney with whom he is associated.

(c) Other representation prohibited at hearings. A person shall not be represented at any hearing except: (1) as stated in K.A.R. 21-40-13 (a) (relating to appearance in person) or K.A.R. 21-40-13 (b) (relating to appearance by attorney); or

(2) as otherwise permitted by the commission in a specific case.

(d) Notice of appearance. (1) When an individual appears in his own behalf in a proceeding which involves a hearing or an opportunity for hearing, he shall file with the commission or otherwise state on the record an address at which any notice or other written communication required to be served upon the person or furnished to the person may be sent.

(2) When an attorney appears before the com-

mission in a representative capacity in a proceeding which involves a hearing or an opportunity for hearing, he shall file with the commission a written notice of such appearance, which shall state the attorney's name, address and telephone number and the name and address of the person or persons on whose behalf the attorney appears. Any additional notice or other written communication required to be served on or furnished to a person may be sent to the attorney of record for such person at the stated address of the attorney.

(3) Any person appearing or practicing before the commission in a representative capacity may be required to file a power of attorney with the agency showing his authority to act in such capacity.

(e) Suspension. The commission may deny, temporarily or permanently, the privilege of appearing or practicing before it in any way to any person who is found to have engaged in unethical or improper conduct before the commission. Practicing before the commission shall include, but shall not be limited to: (1) Transacting any business with the agency.

(2) The preparation of any statement, opinion or other paper by an attorney, accountant, or other expert, filed with the commission in any pleading, submittal or other document with the consent of such attorney, accountant or other expert.

(f) Contemptuous conduct. Contemptuous conduct at any hearing shall be ground for exclusion from such hearing and for summary suspension without a hearing for the duration of the hearing. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-14. Order issuance. All orders issued by the commission shall be reviewed by the chairman and signed by him or as otherwise designated by the chairman. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-15. Effective date of orders. Commission orders shall become effective when all service provisions of these rules are effected, unless otherwise ordered by the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-16. Commission decisions. The

decisions of the commission or any panel of hearing commissioners shall be by majority vote. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-17. Intervention. (a) Initiation of intervention. At the discretion of the commission or presiding officer any person may by petition be allowed to intervene in person or by counsel, for such purposes and to such extent as the commission or presiding officer shall determine: Provided, Such person makes application to intervene at least ten (10) days before the hearing.

(b) Form and contents of petitions. Petitions to intervene shall set out clearly and concisely the facts from which the nature of the alleged right or interest of the petitioner can be determined, the grounds of the proposed intervention, and the position of the petitioner in the proceeding, so as fully and completely to advise the parties and the commission as to the specific issues of fact or law to be raised or controverted, by admitting, denying or otherwise answering, specifically and in detail, each material allegation of fact or law asserted in the proceeding, and citing by appropriate reference authority relied on.

(c) Notice and action on petitions. (1) Notice and service. Petitions to intervene, when tendered for filing, shall show service thereof upon all participants to the proceeding in conformity with § 21-40-11 (b) of this Title (relating to service by a participant.)

(2) Action on petitions. As soon as practicable after the expiration of the time for filing answers to such petitions or default thereof, the commission or presiding officer will grant or deny such petition in whole or in part or may, if found to be appropriate, authorize limited participation.

(d) Limitation of participation in hearings. Where there are two or more interveners having substantially like interests and positions, the commission or presiding officer may, in order to expedite the hearing, arrange appropriate limitations on the number of attorneys who will be permitted to cross-examine and make and argue motions and objections on behalf of such interveners. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-18. Certification of documents and records. Certified copies. Copies of and extracts from public records may be certified by the

commission. The chairman or such other person as may be designated by the commission is authorized to certify all documents or records of the commission. Persons requesting the commission to prepare such copies should clearly state the material to be copied and whether it shall be certified. Charges may be imposed for certification and for the preparation of copies. (Authorized by K.S.A. 1974 Supp. 44-1001; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-19. Requests to inspect other records not considered public. Request to inspect records other than those now deemed to be of a public nature shall be addressed to the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-40-20. Availability of rules. The rules of the commission shall be available to the public at the office of the commission and upon request. (Authorized by K.S.A. 1974 Supp. 44-1001; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 41.—COMPLAINTS

21-41-1. Who may file. (a) Filing and assistance. Any person claiming to be a complainant may sign and file with the commission a verified complaint in writing. Assistance in drafting and filing complaints shall be available to complainants at all commission offices or otherwise through the commission and its staff.

(b) On motion. The attorney general, or the commission on its own motion may file a complaint alleging any violation of any statute, rules or orders or other authority administered by the commission.

(c) Employer. Any employer whose employees, or some of them, refuse or threaten to refuse to cooperate with the provisions of the law, may file with the commission a verified complaint asking for assistance by conciliation or other remedial action. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-2. Forms. The complaint shall be in writing either on a form obtained at any of the offices of the commission or on any paper suitable for a complaint, the original being signed and verified before a notary public or other person duly authorized by law to take acknowledgments. No-

tarial service shall be furnished without charge by the commission. Every professional member of the commission's staff shall be a statewide notary public and as such may notarize any complaint. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-3. Contents. A complaint shall contain the following:

- (a) The full name and address of the complainant.
- (b) The full name and address of the respondent.
- (c) The alleged unlawful employment practice or unlawful discriminatory practice and a statement of the nature thereof.
- (d) The date or dates of the alleged unlawful employment practice or unlawful discriminatory practice, and if the alleged unlawful employment practice or unlawful discriminatory practice is of a continuing nature, the dates between which continuing acts of discrimination are alleged to have occurred.
- (e) A statement as to any other action instituted in any other forum based on the same grievance as is alleged in the complaint, together with a statement as to the status or disposition of such other action. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-4. Time of filing. The complaint must be filed within six (6) months after the date of the occurrence of the alleged unlawful employment practice or unlawful discriminatory practice. If the alleged unlawful employment practice or unlawful discriminatory practice is of a continuing nature, the date of the occurrence of said unlawful employment practice or unlawful discriminatory practice shall be deemed to be any date subsequent to the commencement of the unlawful employment practice or unlawful discriminatory practice up to and including the date upon which the unlawful employment practice or unlawful discriminatory practice shall have ceased. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

~~**21-41-5. Manner of filing.** The complaint may be filed by personal delivery to any commission employee or by mail to the commission's office. (Authorized by K.S.A. 1974 Supp. 44-1003,~~

21-41-5. Manner of filing. A complaint may be submitted for filing by delivery, mail, facsimile, or electronic mail to a commission office. If a complaint is received when the commission offices are closed, the complaint shall be considered received on the next business day that the commission offices are open. (Authorized by K.S.A. 44-1004, 44-1034, 44-1121; implementing K.S.A. 44-1004, 44-1115; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975; amended Nov. 17, 2017.)

~~44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)~~

21-41-6. Amendment. The commission or the complainant shall have the power reasonably and fairly to amend the complaint as a matter of right at any time before hearing thereon, and thereafter at the discretion of the presiding officer. The respondent and the complainant shall be notified of any such amendment in writing by the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-7. Withdrawal. A complaint may be withdrawn by the complainant at any time before a finding has been made. After a finding has been made, the complainant may request and the commission shall decide whether or not a complaint may be withdrawn. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-8. Dismissal before hearing. (a) Dismissal. If the commission finds either on the face of the complaint or after investigation, with respect to any respondent that it lacks jurisdiction or that probable cause does not exist, the complaint shall be dismissed as to such respondent.

(b) Administrative convenience. If the commission finds that the complainant's objections to a proposed conciliation agreement are without substance or that noticing the complaint for hearing would be otherwise undesirable, the commission may, at any time prior to a hearing, dismiss the complaint on grounds of administrative convenience.

(c) Service. When a complaint is dismissed before hearing, the commission shall issue and cause to be served upon each party a copy of the order dismissing the complaint, and stating the grounds for such dismissal. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-9. Discontinuance. After the service of a notice of hearing on a party, a proceeding may be discontinued by the complainant only with the consent of the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-10. Criminal and civil proceedings. When a complainant institutes either criminal or civil proceedings on a matter pending be-



fore the commission, the commission may, in its own discretion, suspend or dismiss action on a complaint based on the same matter. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-41-11. Service of complaint. A copy of the complaint and any amendments shall be promptly served by the commission on the respondent. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 42.—INVESTIGATION

21-42-1. Investigation. Any commissioner or presiding officer may request the commission to initiate an investigation whenever any possible violation of any statute, rules, orders or other authority administered by the commission appears. Upon such requests the commission may initiate such investigation. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-2. Subpoenas. Any commissioner or the executive director may sign and issue a subpoena in the name of the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-3. Investigating commissioner. Whenever an investigation of a complaint is initiated, an investigating commissioner shall be assigned the case. Whenever an investigation is initiated without the filing of a formal complaint, an investigating commissioner may be assigned to the case. The investigating commissioner so assigned shall have the same powers of discovery in the name of the commission as are provided in these rules for any commissioner or presiding officer relative to any hearing or other proceeding, including the power of subpoena per K.A.R. 21-42-2 and 21-45-9; and discovery dispositions in the same nature as provided by K.A.R. 21-45-10. If a formal complaint shall issue from the investigation, the same investigating commissioner shall be assigned to that complaint unless, in the judgment of the chairman, a new appointment should be made. The investigating commissioner may not participate in any subsequent proceedings which may eventually be held as a result of such investigation other than as a witness. (Authorized by

K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-4. Notice of investigation. Where an investigation is directed without the filing of a complaint, the commission will notify the person to be investigated of the nature and scope of such investigation. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-5. Preservation of records. (a) Employment records. When a complaint or notice of investigation has been served on an employer, labor organization or employment agency under the Kansas act against discrimination, the respondent shall preserve all personnel records relevant to the investigation until such complaint or investigation is finally adjudicated. The term “relevant to the investigation” shall include, but not be limited to, personnel, employment or membership records relating to the complainant and to all other employees, applicants or members holding or seeking positions similar to that held or sought by the complainant, and application forms or test papers completed by an unsuccessful applicant and by all other applicants or candidates for the same position or membership as that for which the complainant applied and was not accepted, and any records which are relevant to the scope of the investigation as defined in the notice or complaint.

(b) Membership club records. Where a complaint or notice of investigation has been served on a membership club under the Kansas act against discrimination, the respondent shall preserve all records relevant to the investigation until such complaint or investigation is finally adjudicated. The term “relevant to the investigation” shall include, but not be limited to, applications for membership on file at the time the complaint or notice of investigation is served and those received following service of the complaint or notice of investigation whether or not they have been accepted or rejected, membership lists, records of payment of initiation fees or regular dues, together with the minutes of meetings of the club conducted in conformity with the constitutions or by-laws adopted by the membership.

(c) Other records. Any other books, papers, documents, or records of any form which are relevant to the scope of any investigation as defined in the notice or complaint shall be preserved during the pendency of any proceedings by all parties to the proceedings unless the commission specif-

ically orders otherwise. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-6. Amendment. The commission in its discretion may amend the notice of investigation. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-42-7. Probable cause notice. The parties to the proceeding shall be notified by the commission of the investigating commissioner's final determination relative to probable cause. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 43.—CONFERENCE AND CONCILIATION

21-43-1. Conference. If the investigating commissioner finds that probable cause exists for crediting the allegations of the complaint, the investigating commissioner or such other commissioner as the commission may designate, shall, assisted by the executive director and the commission's staff, immediately endeavor to eliminate any unlawful practice or other matter in the complaint by conference, conciliation and persuasion. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-43-2. Time limitation for conciliations. Failure to arrive at a satisfactory adjustment within forty-five (45) days after respondent is notified in writing of a finding of probable cause may constitute sufficient reason for the commission to judge efforts at conference and conciliation to be a failure. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-43-3. Successful conciliation. (a) Preparation. If the investigating commissioner, or such other commissioner as the commission may designate, assisted by the executive director and the commission's staff, shall succeed in endeavors under conference and conciliation, then a proposed conciliation agreement shall be prepared.

(b) Agreement. The commission shall serve upon the complainant a copy of the proposed conciliation agreement. If the complainant agrees to the terms of the agreement or fails to object to

such terms within five (5) days after its service upon him, the commission may formally enter into the proposed conciliation agreement by issuing an order embodying such conciliation agreement. The commission shall serve a copy of such order upon all parties to the proceeding.

(c) Terms. The terms of such conciliation agreement may include any provisions and remedies, for retroactive, present or future effect, including all remedies which may be ordered by the commission per K.A.R. 21-45-21, and including a provision for the entry in court of a consent decree embodying terms of the conciliation agreement. When the commission accepts a conciliation agreement containing a provision for the entry in court of a consent decree, the commission's attorney, on behalf of and in the name of the commission, may commence a proceeding in the court to obtain an order for its enforcement. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-43-4. Consideration of complainant's objections. If the complainant objects to the proposed conciliation agreement, complainant shall, within five (5) days of the agreement's service upon complainant, serve a specification of the objections upon the commission. Unless such objections are met or withdrawn within five (5) days after service thereof, the commission shall thereafter notice the complaint for hearing, except in cases where the complaint may be dismissed on the grounds of administrative convenience. However, the commission, where it finds the terms of a conciliation agreement to be in the public interest, may execute such agreement if the respondent is still willing to execute it, and may limit the hearing to the objections of the complainant, unless the respondent demands a hearing on the merits of all of the charges by serving an answer including such a demand. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-43-5. Settlements. At the hearing, the commission's attorney, with the consent of the complainant, may stipulate with the respondent for settlement of the case and the commission may issue an order on such stipulation. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-43-6. Non-disclosure of facts. The commission shall not disclose what has transpired in the course of its endeavors at conciliation and persuasion, per K.S.A. 44-1005. However, when executed, the final terms of a conciliation agreement may be disclosed. No officer, agent or employee of the commission shall make public with respect to a particular person without his consent information from reports obtained by the commission except as necessary to the conduct of further commission proceedings. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 44.—COMPLIANCE

21-44-1. Compliance review. (a) Date. Not later than six (6) months from the date of a conciliation agreement or an order issued under article 45 of these rules, or at any other time in its discretion, including contract compliance review per K.S.A. 44-1032, the commission shall investigate whether the respondent is complying with the terms of such agreement, contract or order.

(b) Non-compliance. Upon a finding of non-compliance, the commission shall take appropriate action to assure compliance. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-44-2. Reports. (a) Filing. When any person subject to the jurisdiction of the commission is required to do or perform any act by the commission order, there shall be filed with the office of the commission within thirty (30) days following the date when such requirement became effective, a notice, stating that such requirement has been met or complied with, unless the commission directs otherwise.

(b) EEO forms. Every employer, labor organization and joint labor-management apprenticeship committee subject to the Kansas act against discrimination and also subject to the jurisdiction of the U.S. equal employment opportunity commission shall file with that agency the appropriate forms as required in accordance with that agency's instructions and regulations. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-44-3. Posting of law and information. "A conspicuous place or places" for the purposes of K.S.A. 44-1012 shall be any easily accessible and well lighted place or places where the notices

may readily be seen regularly by employees, applicants for employment, members of labor organizations, applicants for membership in labor organizations, or persons using or attempting to use places of public accommodations or the services of an employment agency, or any institution, department or agency of the state of Kansas or any political subdivision or municipality thereof. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-44-4. Records. No notation identifying the race, religion, color, sex, physical handicap, national origin or ancestry of an individual shall be made or maintained on application forms or other records except as provided otherwise in these rules. Violations of this rule shall be deemed evidence of discrimination unless a person may show it is acting in conformity with an explicit mandate of a local, state or federal civil rights agency. The commission recommends the maintenance of a permanent record as to the racial, sexual, religious or ethnic identity of an individual for the purpose of complying with various reporting requirements only where the person maintains such records separately from the individual's basic personnel file or other similar records available to those responsible for decisions (*e.g.*, as a part of an automatic data processing system in the payroll department). (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-44-5. Membership club references. Membership clubs which are covered by the Kansas act against discrimination may not require a recommendation by a present member or members as a prerequisite for admission to membership if the present membership does not bear a reasonable relationship to the ethnic and racial pattern of the general population of the area from which such clubs draw members; nor, in such circumstances, may they give preference to applicants recommended by present members by reason of such recommendation. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 45.—PROCEEDINGS

21-45-1. Notice of hearing. The notice of hearing shall inform the respondent of the time and place of the hearing and that respondent may

file written answer to the complaint. The notice of hearing and verified copy of the complaint, as the same may have been amended, shall be served by certified mail, return receipt requested, or by personal service on all parties. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-2. Answer. (a) Time of filing. The respondent against whom a verified complaint, as the same may have been amended, is filed and on whom a notice of hearing and a copy of such complaint have been served, may file a written verified answer in person or through an attorney-at-law within ten (10) days from the service of such complaint and notice of hearing.

(b) Form of answer. The answer shall contain a general or specific denial of each and every allegation of the complaint controverted by the respondent or a denial of any knowledge or information thereof sufficient to form a belief and a statement of any matter constituting a defense. Any allegation in the complaint which is not denied or admitted in the answer, unless the respondent shall state in the answer that he is without knowledge or information sufficient to form a belief, shall be deemed admitted. The answer shall contain the post-office address of the respondent, and if he is represented by an attorney, the identification of said attorney as otherwise provided by the rules.

(c) Amendment of answer. The answer or any part thereof may be amended as a matter of right at any time before the first hearing and thereafter in the discretion of the presiding officer on application duly made therefore.

(d) Amendment of answer upon amendment of complaint. In any case where a complaint has been amended, the respondent shall have an opportunity to amend his answer within such period as may be fixed by the presiding officer, and the hearing shall be postponed to a date at least fifteen (15) days after the filing of such amended complaint.

(e) Failure to file answer. The presiding officer may proceed, notwithstanding any failure of the respondent to file an answer within the time provided herein, to hold a hearing at the time and place specified in the notice of hearing and may make its findings of fact and enter its order upon the testimony taken at the hearing. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-3. Consolidation. By order of the commission, proceedings involving common questions of law or fact may be joined for hearing of any or all matters in issue and such proceedings may be consolidated; and any commissioner or presiding officer may make such orders concerning the conduct of the proceedings as may avoid unnecessary costs or delay. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-4. Waiver of hearing. In any proceeding if the participants waive hearing the commission may forthwith dispose of the matter upon the basis of the pleadings or submittals and the studies of the staff. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-5. Hearing calendar. The commission will maintain a hearing calendar of all proceedings set for hearing. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-6. Placement on calendar. In the absence of cause requiring otherwise, and as time, the nature of the proceedings, and the proper execution of the functions of the commission permit, matters required to be determined upon the record after hearing or opportunity for hearing will be placed upon the hearing calendar. Proceedings pending upon this calendar will be their order of assignment, so far as practicable, be heard at the times and places fixed by the commission or presiding officer, giving due regard to the convenience and necessity of the parties or their attorneys. The commission in its discretion with or without motion, for cause may at any time with due notice to the participants advance or postpone any proceeding on the hearing calendar. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-7. Pre-hearing conferences. (a) Generally. Conferences to adjust, settle or expedite proceedings. In order to provide opportunity for submission and consideration of facts, arguments, offers of settlement, or any of the issues therein, or consideration of means by which the conduct of the hearing may be facilitated and the disposition of the proceeding expedited, conferences between the participants for such purposes may be held at any time prior to or during hear-

ings before the presiding officer as time, the nature of the proceeding, and the public interest may permit.

(b) Conferences to expedite hearing. At any pre-hearing or other conferences which may be held to expedite the orderly conduct and disposition of any hearing, there may be considered, in addition to any offers of settlement or proposals of adjustment, the possibility of the following: (1) The simplification of the issues.

(2) The exchange and acceptance of service of exhibits proposed to be offered into evidence.

(3) The obtaining of admission as to, or stipulations of, facts not remaining in dispute, or the authenticity of documents which might properly shorten the hearing.

(4) The limitation of the number of witnesses.

(5) The discovery or production of evidence.

(6) Such other matters as may properly be dealt with to aid in expediting the orderly conduct and disposition of the proceeding.

(c) Initiation of conferences. (1) The commission or the presiding officer, with or without motion, and after consideration of the probability of beneficial results to be derived therefrom, may direct that a conference be held, and direct the parties to the proceeding, the staff of the commission and staff counsel to appear thereat to consider any or all of the matters enumerated in K.A.R. 21-45-7 (b) (relating to conferences to expedite hearings). Due notice of the time and place of such conference shall be given to all parties to the proceeding, the staff of the commission and staff counsel.

(2) All parties will be expected to come to the conference fully prepared for a useful discussion of all problems involved in the proceeding, both procedural and substantive and fully authorized to make commitments with respect thereto. Such preparation should include, among other things, advance study of all relevant material, and advance informal communication between the participants, including requests for additional data and information, to the extent it appears feasible and desirable. Failure of a participant to attend such conference, after being served with due notice of the time and place thereof, shall constitute a waiver of all objections to the agreements reached, if any, and any order or ruling with respect thereto.

(d) Authority of presiding officer at conference. The presiding officer at any conference may dispose of by ruling, irrespective of the consent of

the participants, any procedural matters which he is authorized to rule upon during the course of the proceeding, and which it appears may appropriately and usefully be disposed of at that stage. In addition, where it appears that the proceeding would be substantially expedited by distribution of proposed exhibits and written prepared testimony reasonably in advance of the hearing session, the presiding officer at his discretion and with due regard for the convenience and necessity of the parties, the staff of the commission and staff counsel, may direct such advance distribution by a prescribed date. The rulings of the presiding officer made at such conference shall control the subsequent course of the hearing, unless modified for good cause shown.

(e) Offers of settlement. Nothing contained in these rules shall be construed as precluding any participant in a proceeding from submitting at any time offers of settlement or proposals of adjustment to all parties and to the commission (or to staff counsel for transmittal to the commission) or from requesting conferences for such purpose.

(f) Refusal to make admissions or stipulate. If a party attending a conference convened pursuant to these rules refused to admit or stipulate the genuineness of any documents or the truth of any matters of fact and if the participant requesting the admissions or stipulations thereafter proves the genuineness of any such document or the truth of any such matter of fact, he may apply to the commission or presiding officer for an order requiring the other party to pay him the reasonable expenses incurred in making such proof, including reasonable attorney's fees. Unless the commission or presiding officer finds that there were good reasons for the refusal to admit or stipulate or that the admissions or stipulations sought were of not substantial importance, the order shall be made. An appeal may be taken to the commission from any such order made by a presiding officer. If a party refuses to comply with such order after it becomes final, the commission or presiding officer may strike all or any part of such pleadings of such party or limit or deny further participation by such party. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-8. Hearings. (a) Who shall conduct. Hearings and rehearings shall be conducted by the hearing commissioners designated by the chairman, one of whom shall be designated as pre-

siding officer by the chairman; or, at the discretion of the commission, hearings and rehearings may be conducted by a hearing examiner appointed per K.A.R. 21-45-17 who shall be the presiding officer vested with all the powers and duties of a presiding officer according to these rules.

(b) Place. Hearings and rehearings shall be held in the county where respondent is doing business and where the acts complained of occurred at a place designated by the chairman of the commission.

(c) Appearances. The presiding officer before whom the hearing is held shall cause to be entered upon the record all appearances, with a notation in whose behalf each appearance is made.

(d) Procedure before hearing commissioners. (1) The hearing commissioner(s) shall have full authority to direct the control of the procedure of the hearings and rehearings, by the presiding officer, to admit or exclude testimony or other evidence, and to rule upon all motions and objections.

(2) All rulings and determinations of the hearing commissioner(s) shall be by majority rule.

(3) The hearings commissioners may call and examine witnesses, direct the production of papers or other documents and introduce documentary or other evidence.

(4) Whenever the hearing commissioner(s) cannot arrive at a majority decision for any reason, the chairman may appoint one or more new hearing commissioners who shall review the transcript of proceedings and participate in the proceedings with the same power and authority as if originally appointed as a hearing commissioner.

(e) Order of procedure. (1) In hearings, the complainant, or other party having the burden of proof, as the case may be, shall open and close, unless otherwise directed by the presiding officer. In proceedings which have been consolidated for hearing, the presiding officer may direct who shall open and close.

(2) Interveners shall follow the parties in whose behalf the intervention is made. Where the intervention is not in support of any original party the presiding officers shall designate at what stage such intervener shall be heard.

(3) In proceedings where the evidence is peculiarly within the knowledge or control of another party or participant, the order of presentation set forth in subsections (1) and (2) of this section may be varied by the presiding officer.

(f) Presentation by the parties. (1) Parties and

staff counsel shall have the right of presentation of evidence, cross-examination, objection and motion. The taking of evidence and subsequent proceedings shall proceed with all reasonable diligence and with the least practicable delay.

(2) When objections to the admission or exclusion of evidence before the presiding officer are made, the grounds relied upon shall be stated briefly. Formal exceptions are unnecessary and shall not be taken to rulings thereon.

(g) Limiting number of witnesses. The presiding officer may limit appropriately the number of witnesses who may be heard upon any issue.

(h) Additional evidence. At any stage of the hearing the presiding officer may call for further evidence upon any issue, and require such evidence to be presented by the party or parties concerned or by the staff counsel, either at that hearing or at the adjournments thereof. At the hearing, the presiding officer may, if deemed advisable, authorize any participant to file specific documentary evidence as a part of the record within a fixed time.

(i) Oral examination. Witnesses whose testimony is to be taken shall be sworn, or shall affirm, before their testimony shall be deemed evidence in the proceeding or any questions are put to them.

(j) Fees of witnesses. Witnesses subpoenaed by the commission shall be paid the same fees and mileage as are paid for like services in the district court. Witnesses subpoenaed at the instance of participants shall be paid the same fees by the participant at whose instance the witnesses are subpoenaed; and the commission before issuing any subpoena as provided in § K.A.R. 21-45-9 (relating to subpoenas), may require a deposit of an amount adequate to cover the fees and mileage involved.

(k) Public hearings and rehearings. Hearings and rehearings shall be public.

(l) Rights of parties. All parties to a hearing or rehearing may call, examine and cross-examine witnesses and introduce papers, documents, or other evidence into the record of the proceedings, subject to the ruling of the presiding officer.

(m) Duties of the hearing commissioners or presiding officer include but are not limited to the following: (1) Administer the oath.

(2) Rule on proof.

(3) Regulate the hearing.

(4) Exclude people from the hearing.

(5) Hold conferences for simplification of issues.

(6) Dispose of procedural requests.

(7) Authorize and set times for filing of briefs.

(8) Grant continuances.

(9) Take any other action consistent with the purpose of the law administered by the commission and consistent with these rules.

(n) Stipulations. Written stipulations may be introduced in evidence, if signed by the persons sought to be bound thereby; or by their attorneys. Oral stipulations may be made on the record at open hearings or rehearings.

(o) Oral arguments and briefs. The presiding officer shall permit the parties to submit oral arguments before them and to file briefs within such time limits as the presiding officer may determine consistent with K.A.R. 21-45-15 regarding briefs.

(p) Waiver of objections. Any objection not duly urged before the presiding officer shall be deemed waived unless the failure or neglect to urge such objection shall be excused for cause by the presiding officer.

(q) Continuances, adjournments and substitutions. The presiding officer may postpone, consistent with commission directives regarding the setting of the matter, a scheduled hearing or continue a hearing from day to day or adjourn it to a later day or to a different place by announcement thereof at the hearing or by appropriate notice to all parties. The commission may, at any time prior to the completion of a hearing, substitute one hearing commissioner or presiding officer for another. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-9. Subpoenas. (a) Issuance. Subpoenas for the attendance of witnesses or for the production of evidence, unless directed by the commission upon its own motion, will issue only upon application in writing to the commission or the presiding officer, except that during sessions of a hearing in a proceeding, such application may be made orally on the record before the presiding officer, who is hereby given authority to issue subpoenas. Such written applications shall specify as nearly as may be the general scope of the testimony or evidence sought, including as to evidence, specification as nearly as may be, of the documents desired. Any commissioner may issue subpoenas.

(b) Service and return. If service of subpoena

is made by a sheriff or like officer or his deputy, such service shall be evidenced by his return thereof. If made by another person, such person shall make affidavit thereof, describing the manner in which service was made, and shall return such affidavit. In case of failure to make service, the reasons for the failure shall be stated on the original subpoena. In making service, a copy of the subpoena shall be exhibited to and left with the person to be served. The original subpoena, bearing or accompanied by the authorized return, affidavit or statement, shall be returned forthwith to the office of the commission, or, if so directed on the subpoena, to the presiding officer before whom the person named in the subpoena is required to appear.

(c) Fees of witnesses. Witnesses who are subpoenaed may be paid fees as provided by K.A.R. 21-45-8 (j) or as allowed by the state department of administration. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-10. Depositions. (a) Generally. The testimony of any witness may be taken by deposition, upon application by a participant in a proceeding pending before the commission any time before the hearing is closed, upon approval by the commission or the presiding officer.

(b) Notice and application. Unless notice is waived, no deposition shall be taken except after at least ten (10) days' notice when a deposition is to be taken elsewhere. Such notice shall be given in writing by the participant proposing to take such deposition to the other participants and to the commission. In such notice and application to take evidence by deposition, the participant desiring to take the deposition shall state the name and post office address of the witness, the subject matter concerning which the witness is expected to testify, the time and place of taking the deposition, the name and post office address of the notarial officer before whom it is desired that the deposition be taken, and the reason why such deposition should be taken. The other participants may, within the time stated in this section, make any appropriate response to such notice and application.

(c) Authorization of taking deposition. If an application for the taking of a deposition so warrants, the commission or presiding officer will issue and serve, within a reasonable time in advance of the time fixed for taking testimony, upon the partici-

pants an authorization naming the witness whose deposition is to be taken, and the time, place and notarial officer before whom the witness is to testify, but such time, place and notarial officer so specified may or may not be the same as those named in the said notice and application.

(d) Officer before whom deposition is taken. Depositions may be taken before any commissioner, a presiding officer or other authorized representative of the commission, any notary public or any other person authorized to administer oaths not being counsel or attorney for any of the participants, or interested in the proceeding or investigation, according to such designation as may be made in the authorization.

(e) Oath and reduction to writing. Every person whose testimony is taken by deposition shall be sworn, or shall affirm concerning the matter about which he shall testify, before any questions are put or testimony given. The testimony shall be reduced to writing by the notarial officer, or under his direction, after which the deposition shall be subscribed by the witness, unless waived, and certified in the usual form by the notarial officer.

(f) Scope and conduct of examination. Unless otherwise directed in the authorization, the deponent may be examined regarding any matter which may be relevant to the issues involved in the pending proceeding, including the existence, description, nature, custody, condition and location of any books, documents or other tangible things, and the identity and location of persons having knowledge of relevant facts. Participants shall have the right of cross-examination, objection and exception. In making objections to questions or evidence, the grounds relied upon shall be stated briefly, but no transcript filed by the notarial officer shall include argument or debate. Objections to questions or evidence shall be noted by the notarial officer upon the deposition, but he shall not have the power to decide on the competency, materiality or relevancy of evidence. Objections to questions or evidence not taken before the notarial officer shall be deemed waived.

(g) Status of deposition as part of record. No part of a deposition shall constitute a part of the record in the proceeding, unless received in evidence by the commission presiding officer. Objection may be made at the hearing in the proceeding to receiving in evidence any deposition or part thereof for any reason which would require the exclusion of the evidence if the witnesses were then present and testifying.

(h) Fees of officers and deponents. Deponents whose depositions are taken and the notarial officers taking such depositions shall be entitled to the same fees as are paid for like services in the district courts, which fees shall be paid by the participant at whose instance the depositions are taken.

(i) Deposition upon written questions. Upon written application requesting deposition by written questions, any commissioner or presiding officer may for good cause permit such a deposition according to such terms and scope as directed by said commissioner or presiding officer. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-11. Interrogatories. Upon written application, any commissioner or presiding officer may, for good cause, permit interrogatories as generally identified in K.S.A. 60-233, but limited to the specific terms and scope as may be directed by said commissioner or presiding officer. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-12. Motions. (a) Scope and contents. After a hearing has commenced in a proceeding, a request may be made by motion for any procedural or interlocutory ruling or relief desired, except as may be otherwise expressly provided in these rules. Other motions may be made as provided for elsewhere in these rules. Motions shall set forth the ruling or relief sought, and state the grounds therefor and the authority relied upon.

(b) Presentation. Motions may be made in writing at any time and motions made during hearings may be stated orally upon the record, or the presiding officer may require that such oral motions be reduced to writing and filed separately. Oral motions shall be included in the transcript.

(c) Objections. Any participant shall have ten (10) days within which to answer or object to any motion unless the period of time is otherwise fixed by the commission or the presiding officer.

(d) Action on motions. (1) The presiding officer is authorized to rule upon any motion not formally acted upon by the commissioners except that no motion made before or during a hearing, a ruling upon which would involve or constitute a final determination of the proceeding, shall be

ruled upon by a presiding officer except as a part of his proposed report submitted after the conclusion of the hearing. A presiding officer may refer any motion to the hearing commissioner(s) or commission for ultimate determination. The hearing commissioner(s) or commission will rule upon all other motions and upon such motions as presiding officers may certify to the commission for disposition.

(2) With respect to any motion filed with the commission after a hearing has commenced, or made to a presiding officer after a hearing has commenced and referred to the commission, unless the commission acts within thirty (30) days after such filing or referral, whichever is later, the motion shall be deemed to have been denied. The presiding officer, either by an announcement on the record where the hearing is in session or by written notice if the hearing is in recess, shall notify the parties to the proceeding of the date on which a motion is referred to the commission. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-13. Evidence. (a) Form and admissibility. In any proceeding before the commission or a presiding officer relevant and material evidence shall be admissible, but there shall be excluded such evidence as is unduly repetitious or cumulative, or such evidence as is not of any probative value.

(b) Reception and ruling. The presiding officer shall rule on the admissibility of all evidence, and shall otherwise control the reception of evidence so as to confine it to the issues in the proceeding. The production of further evidence upon any issue may be ordered.

(c) Documents on file with the commission. In case any matter contained in a report or other document on file with the agency is offered in evidence, such report or other document need not be produced or marked for identification, but may be offered in evidence by specifying the report, document, or other file containing the matter so offered.

(d) Public documents. Whenever there is offered in evidence (in whole or in part) a public document, such as an official report, decision, opinion, or published scientific or economic statistical data issued by any of the executive departments (or their subdivisions), legislative agencies or committees, or administrative agencies of the

federal government (including government-owned corporations) and such document (or part thereof) has been shown by the offerer to be reasonably available to the public, such document need not be produced or marked for identification, but may be offered in evidence as a public document item by specifying the document or relevant part thereof without regard to the requirements of K.A.R. 21-45-13 (g).

(e) Written testimony. (1) Direct testimony of any witness may be offered as an exhibit, or as prepared written testimony to be copied into the transcript. Cross examination of the witness presenting such written testimony or exhibit shall proceed at the hearing at which such testimony or exhibit is authenticated if, not less than twenty (20) days prior to such hearing, service thereof is made upon each participant of record, unless the presiding officer for good cause shall otherwise direct.

(2) Whenever in the circumstances of a particular case it is deemed necessary or desirable, the commission or the presiding officer may direct that testimony to be given upon direct examination shall be reduced to exhibit form or to the form of prepared written testimony and be served and offered in the manner provided in subsection (1) of this section. A reasonable period of time shall be allowed for the preparation of such written testimony.

(3) All participants offering prepared written testimony whether in the form of an exhibit, or to be copied into the transcript, shall insert line numbers on each page, in the left-hand margin, unless otherwise directed by the commission or the presiding officer.

(f) Records in other proceedings. When any portion of the record in any other proceeding before the commission is offered in evidence and shown to be relevant and material to the instant proceeding, a true copy of such record shall be presented in the form of an exhibit, together with additional copies as provided in K.A.R. 21-45-13 (g) (relating to copies to parties and commission), unless:

(1) the participant offering such record agrees to supply, within a period of time specified by the commission or the presiding officer, such copies at his own expense, if and when so required; and

(2) the portion is specified with particularity in such manner as to be readily identified, and upon motion is admitted in evidence by reference to the records of the other proceedings.

(g) Copies to parties and the commission. Except as otherwise provided in these rules, when exhibits of a documentary character are offered in evidence, unless otherwise directed by the commission or the presiding officer, copies shall be furnished to the presiding officer and to the participants present at the hearing. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-14. Official notice of facts. Official notice may be taken by the commission or the presiding officer of such matters as might be judicially noticed by the district courts, or capable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned, so that the fact is not subject to reasonable dispute, or any matters as to which the commission by reason of its functions is an expert. Any participant shall, on timely request, be afforded an opportunity to show the contrary. Any participant requesting the taking of official notice after the conclusion of the hearing shall set forth the reasons claimed to justify failure to make the request prior to the close of the hearing. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-15. Briefs. (a) Proceedings in which briefs are to be filed. At the close of the taking of testimony in each proceeding where briefs are allowed, the presiding officer shall fix the time for the filing and service of briefs, giving due regard to the nature of the proceeding, the magnitude of the record, and the complexity or importance of the issues involved; and he shall fix the order in which such briefs shall be filed. The first or initial brief shall be filed by the participant or participants upon whom rests the burden of proof, except that the presiding officer, when in his judgment the circumstances or exigencies require, may direct that briefs shall be filed simultaneously. In no proceeding, whether briefs are to be filed simultaneously or otherwise, shall any participant upon whom rests the burden of proof be denied the right to file a reply brief.

(b) Content. Briefs shall contain: (1) A concise statement of the case.

(2) An abstract of the evidence relied upon by the participant filing, preferably assembled by subjects, with references to the pages of the record or exhibits where the evidence appears.

(3) Proposed findings and conclusions and, if

desired, a proposed form of order or regulation, together with the reasons and authorities therefore, separately stated.

(c) Form. Exhibits should not be reproduced in the brief, but may, if desired, be reproduced in an appendix to the brief. Any analyses of exhibits relied on should be included in the part of the brief containing the abstract of evidence under the subjects to which they pertain. Every brief of more than ten (10) pages shall contain on its front leaves a subject index, with page references, and a list of all cases cited, alphabetically arranged, with references to the pages where the citations appear. All briefs shall be as concise as possible.

(d) Filing and service. Briefs not filed and served on or before the dates fixed therefor shall not be accepted for filing, except by special permission of the commission or the presiding officer. Except where filing of a different number is permitted or directed by the commission or presiding officer the same number of copies of each brief as is required for other pleadings shall be furnished for the use of the commission. (Authorized by K.S.A. 1972 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-16. Transcript. (a) Recording of proceedings. Hearings shall be stenographically reported by the official reporter of the commission unless reporting is otherwise directed by the commission, and a transcript of such report shall be a part of the record and the sole official transcript of the proceeding. Such transcripts shall include a verbatim report of the hearings and nothing shall be omitted therefrom except as is directed on the record by the commission or the presiding officer.

(b) Transcript corrections. Corrections in the official transcript may be made only to make it conform to the evidence presented at the hearing and to speak the truth. No corrections or physical changes shall be made in or upon the official transcript of the proceeding, except as provided in this section. Transcript corrections agreed to by opposing attorneys may be incorporated into the record, if and when approved by the commission or the presiding officer, at any time during the hearing or after the close of evidence, as may be permitted by the commission or the presiding officer before the filing of his proposed report, but not less than ten (10) days in advance of the time fixed for filing final briefs. The commission or the pre-

siding officer may call for the submission of proposed corrections and may make disposition thereof at appropriate times during the course of a proceeding.

(c) Copies. The commission will cause to be made a stenographic record of all public hearings and such copies of the transcript thereof as it requires for its own purposes. Participants desiring copies may obtain them from the official reporter upon payment of the reporter's fees. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-17. Presiding officers. (a) Designation of presiding officers. Either the chairman or, when duly designated for that purpose, one of the hearing commissioners, or a hearing examiner, or other duly appointed representative may preside at a hearing or otherwise, as the presiding officer.

(b) Hearing examiner qualification. Qualifications for the hearing examiner shall be that the person is a qualified attorney to practice law in the state of Kansas, that the person has practiced law for a minimum of three (3) years and that the person be familiar with the rules of the commission.

(c) Presiding officer disqualification. A presiding officer may withdraw from a proceeding when the presiding officer deems itself disqualified, or the presiding officer may be withdrawn by the chairman for good cause after timely affidavits alleging personal bias or other disqualification have been filed and the matter has been heard by the chairman or other hearing commissioner to whom the chairman has delegated the matter.

(d) Authority of presiding officers. Presiding officers duly designated by the commission to preside at hearings shall have the authority, within the powers and subject to the regulations of the commission, as follows: (1) To regulate and control the course of hearings, subject to the approval of the commission, and the recessing, reconvening, and the adjournment thereof.

(2) To administer oaths and affirmations.

(3) To issue subpoenas.

(4) To rule upon offers of proof and receive evidence.

(5) To take or cause depositions to be taken.

(6) To allow interrogatories.

(7) To hold appropriate conferences before or during hearings.

(8) To dispose of procedural matters but not,

before their proposed report, if any, to dispose of motions made during hearings to dismiss proceedings or other motions which involve final determination of proceedings.

(9) Within their discretion, or upon direction of the commission, to certify any question to the commission for consideration and disposition.

(10) To submit their proposed reports in accordance with K.A.R. 21-45-18 (relating to proceedings in which proposed reports are prepared).

(11) Hold conferences for the settlement or simplification of the issues or for the obtaining of mutually satisfactory stipulations as to facts or proof, by consent of the parties, as authorized by established procedure.

(12) Grant adjournments at the request of parties or representatives or on their own motion.

(13) Interrogate witnesses and parties as the case requires.

(14) Direct parties to appear at hearings.

(15) Consider and evaluate the facts and evidence on the record, as well as arguments and contentions made.

(16) Determine credibility and the weight of evidence in making findings of fact and conclusions of law or opinion and their reasons.

(17) Make a complete record of the proceeding and to include therein all relevant and material matters, including exhibits, necessary for a review on appeal.

(18) To take any other action necessary or appropriate to the discharge of the duties vested in them, consistent with the statutory or other authorities under which the agency functions and with the regulations and policies of the agency.

(e) Restrictions on duties and activities. Save to the extent required for the disposition of ex parte matters as authorized by law and by the regulations of the agency, no presiding officer shall, in any proceeding which the commission has directed be conducted pursuant to this subsection, consult any person or party on any fact in issue unless upon notice and opportunity for all participants to participate.

(f) Appeals to commission from rulings. (1) During hearing or conference. Rulings of presiding officers may not be appealed from during the course of hearings or conferences except in extraordinary circumstances where prompt decision by the commission is necessary to prevent detriment to the public interest. In such instance the matter shall be referred forthwith by the presiding officer to the commission for determination.

(2) Offers of proof. Any offer of proof made in connection with an objection taken to any ruling of the presiding officer rejecting or excluding proffered oral testimony shall consist of a statement of the substance of the evidence which counsel contends would be adduced by such testimony; and if the excluded evidence consists of evidence in documentary or written form or of reference to documents or records, a copy of such evidence shall be marked for identification and shall constitute the offer of proof. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-18. Proposed reports. (a) Generally. At the close of the evidence, the presiding officer shall allow briefs and hold such oral argument as he deems necessary, review the record in light of the applicable law, and prepare, certify and file with the office of the agency: (1) A proposed report.

(2) A copy of the record of the hearing.

(3) The briefs, if any, filed in the proceeding.

(b) Unavailability of presiding officer. If a presiding officer becomes unavailable, the commission will either designate another presiding officer to prepare a proposed report or will cause the record to be certified to the commission for decision, as may be deemed appropriate, giving notice to the parties.

(c) Proposals by the parties. There may be presented by the parties, as directed by the presiding officer, proposed findings and conclusions and, if desired, the reasons therefor, and such proposed forms of order or regulation as may be deemed requisite in view of the facts, the law and the public interest.

(d) Contents of proposed reports. All proposed reports by presiding officers shall include a statement of: (1) findings and conclusions, as well as the reasons or basis therefor, upon all the material issues of fact, law or discretion presented on the record, and

(2) the appropriate regulation, order, sanction, relief, or denial thereof.

(e) Proposed report a part of the record. All proposed reports shall become a part of the formal record.

(f) Service of proposed reports. All proposed reports shall be filed with the office of the commission, which shall serve copies thereof upon all parties and staff counsel of record. (Authorized by

K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-19 and 21-45-20. (Authorized by K.S.A. 1977 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975; revoked May 1, 1978.)

21-45-21. Content of orders. (a) An unlawful practice. If a proposed or final report finds that a respondent has engaged in any unlawful practice, the proposed or final order based on such report may include, where appropriate, but is not limited to the following: (1) Cease and desist: Directing the respondent to cease and desist from such unlawful practice; and

(2) Affirmative action: Requiring such respondent to take such affirmative action, including (but not limited to) hiring, reinstatement or upgrading of employees, with or without back pay, maintenance and operation of an affirmative action file per K.A.R. 21-30-18, restoration to membership in any respondent labor organization, admission to or participation in a guidance program apprenticeship training program, on-the-job training program or other occupational training or retraining program, and the extensions of full, equal and unsegregated accommodations, advantages, facilities and privileges to all persons, as will effectuate the purpose of the law; and

(3) Compensation damages: Awarding of compensatory damages to the persons aggrieved by such practice, as will effectuate the purposes of the law; and

(4) Punitive damages: Awarding of punitive damages to the persons aggrieved by such practice, as will effectuate the purposes of the law; and

(5) Compliance report: Including a requirement for report of the manner of compliance.

(b) No violation. If a proposed or final report finds the respondent has not engaged in any unlawful practice, the report shall state the finding of the fact and shall issue an order based on such findings dismissing the complaint as to such respondent. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-22. Final report and order. (a) Generally. All reports and orders of the commission shall be final orders (subject only to application for rehearing), except proposed regulations that may be issued in rulemaking. Final orders shall include determination by the commission

upon appeal of proposed reports or upon review initiated by the commission within ten (10) days next following the expiration of the time for filing exceptions under such section, or such other time as the commission may fix in specific cases.

(b) No rehearing. No application for rehearing will be entertained by the commission until an adjudication is issued and becomes a final order under the provisions of this section.

(c) Content. An order of the commission issued after a hearing shall set forth the findings and conclusions of the commission and an opinion containing the reasons for said decision.

(d) Copies. Copies of orders shall be delivered in all cases by the commission in accordance with the provisions of K.S.A. 44-1005, and also to every other party as otherwise required by these rules.

(e) Notice. Copies of orders shall be accompanied by a notice of the statutory right to apply for a rehearing.

(f) Change. When the commission upholds, abrogates, changes, or modifies an original order after a rehearing, it shall so notify in writing the party making application for the rehearing and all other persons furnished with a copy of the original order in accordance with the provisions of subsection (d) of this rule, K.A.R. 21-45-22 (d). Such notice shall be accompanied by a notice of the statutory right to judicial review.

(g) Filing. Filing of orders rendered after a hearing, as well as all abrogations, changes or modifications thereof as the result of a rehearing, shall be at the office of the commission and shall be open to public inspection during regular office hours of the commission.

(h) Final adjudication. A complaint shall be deemed finally adjudicated: (1) When a respondent is notified in writing by the commission that it is closing a case for whatever reason; or

(2) When an order issued by the commission after a hearing or rehearing becomes final. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-23. Record of the proceedings. The written record of the proceedings before the commission for appeal or other public purposes shall include the formal record. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-24. Rehearing. (a) Form, filing and service. An application for rehearing shall be filed

with the commission at its office in Topeka within ten (10) days after the issuance of any adjudication or other final order by the agency. Such application shall be made by petition, stating specifically the grounds relied on. A copy of such application shall be served on all other persons receiving a copy of the original order in conformity with the service provisions of these rules, by the party making such application.

(b) Content of application for rehearing. Every application for rehearing shall contain, other than the information required by K.S.A. 44-1010, the following: (1) The docket number of the case for which such application is being made.

(2) The name of the party making such application, together with such other identifying information as is otherwise required for any appearance or submittal by these rules.

(3) The name and address of each person served with a copy of such application in conformity with the service provisions of these rules.

(4) Such petitions shall state concisely and specifically alleged errors in the adjudication or other order of the commission. If an adjudication or other order of the agency is sought to be vacated, reversed, or modified by reason of matters that have arisen since the hearing and decision or order, or by reason of a consequence that would result from compliance therewith, the matters relied upon by the petitioner shall be set forth in the petition.

(c) Manner of filing and serving applications for rehearing. Applications for rehearing shall be filed and served by personal delivery or by certified mail, return receipt requested.

(d) Date of application for rehearing. The date an application for rehearing is filed shall be the date it is delivered to the commission's office in Topeka, whether by personal delivery or by mail.

(e) Granting an application for rehearing. When the commission grants an application for rehearing, it shall so notify the parties in writing.

(f) Date of granting of application for rehearing. The date an application for rehearing is granted shall be the date on which the commission makes such decision.

(g) Other procedural rules. The rehearing shall follow the same procedural rules as a hearing, except to the extent otherwise directed by the commission or a presiding officer.

(h) Effect of failure to allege specific error. Failure to request a rehearing on specific allegation of error and provide the reasons therefore

shall constitute a waiver of all objection to any matters not specifically alleged as error. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-45-25. Reopening of the record. (a) Petition to reopen. At any time after the conclusion of a hearing in a proceeding or adjournment thereof sine die, any participant with notice to all participants in the proceeding may file with the presiding officer, if before issuance by the presiding officer of a proposed report, otherwise with the commission a petition to reopen the proceeding for the purpose of taking additional evidence. Such petition shall set forth clearly the facts claimed to constitute grounds requiring reopening of the proceeding, including material changes of fact or of law alleged to have occurred since the conclusion of the hearing.

(b) Responses. Within ten (10) days following the service of such petition, any other participant may file with the presiding officer or the commission, the participant's answer thereto, and in default thereof shall be deemed to have waived any objection to the granting of such petition.

(c) Action on petition. As soon as practicable after the filing of responses to such petitions or default thereof, the presiding officer or commission will grant or deny such petition.

(d) Reopening by presiding officer. At any time prior to the filing of the proposed report a presiding officer, after notice to the participants, may reopen the proceeding for the reception of further evidence on the presiding officer's own motion, if the presiding officer has reason to believe that conditions of fact or of law have so changed as to require, or that the public interest requires, the reopening of such proceeding.

(e) Reopening by the commission. At any time the commission, after notice to the participants, may without motion reopen the proceeding for the reception of further evidence, if the commission has reason to believe that conditions of fact or law have so changed as to require or that the public interest requires the reopening of such proceeding. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Article 46.—MISCELLANEOUS SUBSTANTIVE PROVISIONS

21-46-1. Class B private clubs. All clubs holding licenses from the alcoholic beverage con-

trol commission as class B clubs are deemed places of public accommodations and subject to the provision of the Kansas act against discrimination. Nothing in the present paragraph shall be construed as grounds for an automatic exemption of any club holding a license from the alcoholic beverage control commission as a class A club from the provisions of the Kansas act against discrimination. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-46-2. Nonprofit fraternal or social associations or corporations. An association or corporation shall be deemed exempt from coverage by the Kansas act against discrimination as a nonprofit fraternal or social association or corporation only if it meets all the following requirements: (a) Requirements. (1) It is organized in good faith for social or fraternal purposes;

(2) Membership entails the payment of bona fide initiation fees or regular dues;

(3) There exists a regularly established means of self-government by the members thereof clearly set forth in a constitution or by-laws adopted by the membership.

(4) There is a regularly established means of and criteria for admitting members and for expulsion of members by the existing membership or by their duly elected or appointed delegates.

(5) It is not operated, directly or indirectly for purposes of profit for any individual or groups of individuals other than the membership as a whole.

(b) Investigations. The commission shall conduct an investigation of any proposed exemption from the act per K.A.R. 21-46-2 (a). (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

21-46-3. Student admissions to schools. Student admissions to schools are covered by the provisions of the Kansas act against discrimination. (Authorized by K.S.A. 1974 Supp. 44-1003, 44-1004; effective, E-74-14, Dec. 28, 1973; effective May 1, 1975.)

Articles 47 to 49.—RESERVED

Article 50.—CONTRACT COMPLIANCE

21-50-1. Applicability. This article shall apply to every contractor covered by K.S.A. 1977 Supp. 44-1030 and K.S.A. 1977 Supp. 44-1031.

(Authorized by K.S.A. 44-1034; modified, L. 1978, ch. 474, May 1, 1978.)

21-50-2. Definitions. The following words and terms when used in this article shall have the following meanings:

(a) "Contract" means any agreement, purchase order or arrangement or modification thereof between the state or any political sub-division of the state and any person to be paid in whole or in part, directly or indirectly, by public funds or in-kind contributions.

(b) "Contracting agency" or "agency" means any department, agency, commission, authority, establishment or other instrumentality of the state or any political sub-division of the state, which enters into contracts.

(c) "Contractor" means any contractor, supplier, vendor or other person who, through a contract or other arrangement, has received, is to receive or is receiving public funds or in-kind contributions from the contracting agency, and shall include any sub-contractor who performs under a contract covered under K.S.A. 44-1030 and K.S.A. 44-1031. Contractors, whether corporate or natural persons, are designated in this article by use of the third person neuter pronouns.

(d) "Classification" means one or more groups of jobs having similar content, wage rates and opportunities. (Authorized by K.S.A. 44-1034; effective May 1, 1978.)

21-50-3. Compliance review. (a) In determining whether a contractor is in compliance with the Kansas act against discrimination, the contract compliance review may consider, but shall not be limited to, the following evidentiary factors, except that a finding adverse to the contractor as to any one of the following factors will not alone constitute conclusive proof of noncompliance:

1. The ratio of minorities and females in the area in which the contractor operates as compared to the ratio of minority and female employees in the contractor's workforce.

2. The availability of promotable and transferable minorities and women within the contractor's employment.

3. The existence of local training institutions capable of training persons in the requisite skills.

4. The degree of training which the contractor is reasonably able to undertake as a means of making all job classifications available to otherwise qualified minorities and women.

5. The evidence that the contractor has furnished each labor union or workers' representative with which it has a collective bargaining agreement or other contract or understanding and every other source of recruitment regularly utilized a notice advising of its commitment to non-discrimination pursuant to regulation 21-50-7, as amended.

(b) Notifying contractor. After review, the commission shall notify the contractor whether or not there is evidence of noncompliance with the Kansas act against discrimination. Where evidence of non-compliance is found to exist as a result of contract compliance review, reasonable efforts shall be made through negotiation and persuasion to secure written commitments to eliminate such problem areas. Written commitments may include the preparation and implementation of an affirmative action program as described below and/or the precise action to be taken and dates for completion. (Authorized by K.S.A. 44-1034; modified, L. 1978, ch. 474, May 1, 1978.)

21-50-4. Affirmative action program. Affirmative action programs may contain, but are not limited to:

(a) Development or reaffirmation of the contractor's equal employment opportunity policy in all personnel actions.

(b) Formal internal and external dissemination of the contractor's policy.

(c) Establishment of responsibilities for implementation of the contractor's affirmative action program.

(d) Identification of problem areas (deficiencies) by organizational units and job classification, development of goals to remedy such problems, including timetables for completion.

(e) Development and execution of action oriented programs designed to attain specific goals and objectives.

(f) Design and implementation of internal audit and reporting systems to measure effectiveness of the total program.

(g) Compliance of personnel policies and practices with the regulations of the commission.

(h) Solicitation of the support and cooperation of the local and national community action programs and community service programs, designed to improve the employment opportunities of minorities and females.

(i) Consideration of minorities and females not currently in the labor market having requisite

skills who can be recruited through affirmative action measures.

(j) Consideration of the anticipated expansion and turnover of and in the contractor's workforce as one of the bases for development of goals and timetables. Supporting data and the analysis thereof on which goals and timetables are based may be part of the contractor's written affirmative action program. (Authorized by K.S.A. 44-1034; modified, L. 1978, ch. 474, May 1, 1978.)

21-50-5. Duties of contracting agency. It shall be the duty of the contracting agency upon request of the commission to furnish the commission with a listing as to the identity of the contractors whenever the contracts with any contractor exceed \$5,000 cumulatively in a fiscal year. (Authorized by K.S.A. 44-1034; effective May 1, 1978.)

21-50-6. Exemptions. Contractor obligations shall be limited to the contractor's facilities within Kansas. (Authorized by K.S.A. 44-1034; effective May 1, 1978.)

21-50-7. Contractor's obligations. (a) Recruiting. The contractor at least once during the life of the agreement, contract or understanding shall send each labor union or workers' representative with which it has or is entering into a collective bargaining agreement or other contract or understanding, a written notice advising said labor union or workers' representative that the contractor is an equal opportunity employer. Similar notice shall be sent to every other source of recruitment regularly utilized by the contractor.

(b) Contractors. Contractors shall not discriminatorily exclude minority and female contractors from those from whom bids are solicited. (Authorized by K.S.A. 44-1034; modified, L. 1978, ch. 474, May 1, 1978.)

Articles 51 to 59.—RESERVED

Article 60.—DISCRIMINATORY HOUSING PRACTICES

21-60-1. Definitions. (a) "Broker" or "Agent" means any person authorized to perform an action on behalf of another person regarding any matter related to the sale or rental of dwellings, including offers, solicitations or contracts as well as the administration of matters regarding such offers, solicitations or contracts, or any other real estate related transactions.

(b) "Dwelling" means any building, structure or portion thereof, which is occupied as, or designed or intended for occupancy as, a residence by one or more families as well as any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure or portion thereof.

(c) "Person in the business of selling or renting" means any person who:

(1) within the preceding twelve months, has participated as principal in more than three transactions involving the sale or rental of any dwelling or any interest therein;

(2) within the preceding twelve months, has participated as agent, other than in the sale of his or her own personal residence, in providing sales or rental facilities or sales or rental services in two or more transactions involving the sale or rental of any dwelling or any interest therein; or

(3) is the owner of any dwelling designed or intended for occupancy by, or occupied by, five or more families. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-2. Discriminatory housing practices on the basis of familial status. The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-3. Unlawful refusal to sell or rent or to negotiate for the sale or rental. Unlawful practices under K.S.A. 44-1016(a) include, but are not limited to:

(a) Failing to accept or consider a bona fide offer because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(b) Refusing to sell or rent real property to, or to negotiate for the sale or rental of real property with, any person because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(c) Imposing different sales prices or rental charges for the sale or rental of real property upon any person because of race, religion, color, sex,

disability, familial status, national origin or ancestry;

(d) Using different qualification criteria or applications, or sale or rental standards or procedures such as income standards, application requirements, application fees, credit analysis, sale or rental approval procedures or other requirements because of race, religion, color, sex, disability, familial status, national origin or ancestry; or

(e) Evicting tenants because of their race, religion, color, sex, disability, familial status, national origin or ancestry, or because of the race, religion, color, sex, disability, familial status, national origin or ancestry of a tenant's guest. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-4. Discrimination in terms, conditions and privileges and in services and facilities. Unlawful practices under K.S.A. 44-1016(b) include, but are not limited to:

(a) Using different provisions in leases or contracts of sale, such as those relating to rental charges, security deposits, down payment and closing requirements, because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(b) Failing to perform or delaying maintenance or repairs of sale or rental real property because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(c) Failing to process or accurately communicate an offer for the sale or rental of real property because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(d) Limiting the use of privileges, services or facilities associated with real property because of race, religion, color, sex, disability, familial status, national origin or ancestry of an owner, tenant or a person associated with him or her; and

(e) Denying or limiting services or facilities in connection with the sale or rental of real property because a person failed or refused to provide sexual favors. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-5. Other prohibited sale and rental conduct. (a) It shall be unlawful because of race, religion, color, sex, disability, familial

status, national origin or ancestry for an agent, broker, person in the business of selling or renting or any other person for profit to restrict or attempt to restrict, by word or conduct, the choices of a person seeking, negotiating for, buying or renting real property so as to perpetuate, or tend to perpetuate, segregated housing patterns, or to discourage or obstruct choices in a community, neighborhood or development.

(b) It shall be unlawful because of race, religion, color, sex, disability, familial status, national origin or ancestry to engage in any conduct relating to the provision of housing or of related services and facilities that otherwise makes unavailable or denies real property to persons.

(c) Prohibited actions under subsection (a), generally referred to as unlawful steering practices, include, but are not limited to:

(1) discouraging any person from inspecting, purchasing or renting real property because of race, religion, color, sex, disability, familial status, national origin or ancestry, or because of the race, religion, color, sex, disability, familial status, national origin or ancestry of persons in a community, neighborhood or development;

(2) discouraging the purchase or rental of real property because of race, religion, color, sex, disability, familial status, national origin or ancestry, by exaggerating drawbacks or failing to inform any person of desirable features of real property or of a community, neighborhood, or development;

(3) communicating to any prospective purchaser or renter that he or she would not be comfortable or compatible with existing residents of a community, neighborhood or development because of race, religion, color, sex, disability, familial status, national origin or ancestry; and

(4) assigning any person to a particular section of a community, neighborhood or development, or to a particular floor of a building, because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(d) Prohibited sales and rental activities under subsection (b) include, but are not limited to:

(1) discharging or taking other adverse action against an employee, broker or agent because he or she refused to participate in a discriminatory housing practice;

(2) employing codes or other devices to segregate or reject applicants, purchasers or renters;

(3) refusing to take or to show listings of real property in certain areas because of race, religion,

color, sex, disability, familial status, national origin or ancestry;

(4) denying or delaying the processing of an application made by a purchaser or renter, or refusing to approve such a person for occupancy in a cooperative or condominium because of race, color, sex, disability, familial status, national origin or ancestry; and

(5) refusing to provide municipal services or property hazard insurance for real property, or providing such services or insurance differently because of race, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-6. Discriminatory advertisements, statements and notices. (a) Unlawful practices under K.S.A. 44-1016(c) include, but are not limited to, all written or oral notices or statements by a person engaged in the sale or rental of real property. Written notices and statements include any applications, flyers, brochures, deeds, signs, banners, posters, billboards or any document used with respect to the sale or rental of real property.

(b) Discriminatory notices, statements and advertisements include, but are not limited to:

(1) using words, phrases, photographs, illustrations, symbols or forms which convey that dwellings are available or not available to a particular group of persons because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(2) expressing to agents, brokers, employees, prospective sellers or renters or any other persons a preference for or limitation on any purchaser or renter because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(3) selecting media or locations for advertising the sale or rental of real property in order to deny particular segments of the housing market information about housing opportunities because of race, religion, color, sex, disability, familial status, national origin or ancestry; and

(4) refusing to publish advertising for the sale or rental of real property or requiring different charges or terms for such advertising because of race, religion, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991

Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-7. Discriminatory representations on the availability of real property. (a)

It shall be unlawful, because of race, religion, color, sex, disability, familial status, national origin or ancestry, for a broker, agent, person in the business of selling or renting or other person for profit to provide inaccurate or untrue information about the availability of real property for sale or rental.

(b) Prohibited actions under this act include, but are not limited to:

(1) indicating through words or conduct that real property which is available for inspection, sale, or rental has been sold or rented, because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(2) representing that covenants or other deed, trust or lease provisions which purport to restrict the sale or rental of real property to persons because of race, religion, color, sex, disability, familial status, national origin or ancestry preclude the sale or rental of real property to a person;

(3) enforcing covenants or other deed, trust or lease provisions in order to preclude the sale or rental of real property to any person because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(4) limiting information, by word or conduct, regarding suitably priced real property available for inspection, sale or rental, because of race, religion, color, sex, disability, familial status, national origin or ancestry; and

(5) providing false or inaccurate information regarding the availability of real property for sale or rental to any person, including testers, regardless of whether such person is actually seeking housing, because of race, religion, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-8. Blockbusting. (a) It shall be unlawful, for profit, to induce or attempt to induce a person to sell or rent real property by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, religion, color, sex, familial status, national origin or ancestry or with a disability.

(b) In establishing a discriminatory housing practice under this act it is not necessary that there was in fact profit, as long as profit was a motive for engaging in the blockbusting activity.

(c) Prohibited actions under this act include, but are not limited to:

(1) engaging, for profit, in conduct (including uninvited solicitations for listings) which conveys to a person that a neighborhood is undergoing or is about to undergo a change in the race, religion, color, sex, disability, familial status, national origin or ancestry of persons residing in it, in order to encourage the person to offer real property for sale or rental; and

(2) encouraging, for profit, any person to sell or rent a real property through assertions that the entry or prospective entry of persons of a particular race, religion, color, sex, familial status, national origin or ancestry or with disabilities, can or will result in undesirable consequences for the project, neighborhood or community, such as a lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools or other services or facilities. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-9. Discrimination in the provision of brokerage services. Unlawful practices under K.S.A. 44-1016(f) include, but are not limited to:

(a) Setting different fees for access to or membership in a multiple listing service based on race, religion, color, sex, disability, familial status, national origin or ancestry;

(b) Denying or limiting benefits accruing to members in a real estate brokers' organization because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(c) Imposing different standards or criteria for membership in real estate sales or rental organization based on race, religion, color, sex, disability, familial status, national origin or ancestry; and

(d) Establishing geographic boundaries, office location or residence requirements for access to or membership or participation in any multiple listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting real property because of race, religion, color, sex, disability, familial status, national origin or ancestry. (Author-

ized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-10. Discrimination in the making of loans and in the provision of other financial assistance. Unlawful practices under K.S.A. 44-1017(a) include, but are not limited to, failing or refusing to provide to any person, in connection with a residential real estate-related transaction, information regarding the availability of loans or other financial assistance, application requirements, procedures or standards for the review and approval of loans or financial assistance, or providing information which is inaccurate or different from that provided others, because of race, religion, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1017, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-11. Discrimination in the purchasing of loans. (a) It shall be unlawful for any person or entity engaged in purchasing loans or other debts or securities which support the purchase, construction, improvement, repair or maintenance of a dwelling, or which are secured by residential real estate, to refuse to purchase such loans, debts, or securities, or to impose different terms or conditions for such purchases, because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(b) Unlawful practices under this act include, but are not limited to:

(1) purchasing loans or other debts or securities which relate to or are secured by real property in certain communities or neighborhoods, but not in others, because of the race, religion, color, sex, disability, familial status, national origin or ancestry of one or more persons in such neighborhoods or communities;

(2) pooling or packaging loans or other debts or securities which relate to or which are secured by real property in a different manner because of race, religion, color, sex, disability, familial status, national origin or ancestry; and

(3) imposing or using different terms or conditions on the marketing or sale of securities issued on the basis of loans or other debts or securities which relate to or which are secured by

real property because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(c) Any person or entity engaged in the purchasing of loans may consider factors justified by business necessity, including requirements of federal law, and factors relating to a transaction's financial security or to protection against default or reduction of the value of the security. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1017, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-12. Discrimination in the terms and conditions for making available loans or other financial assistance. (a) It shall be unlawful for any person or entity engaged in making loans or providing other financial assistance relating to the purchase, construction, improvement, repair or maintenance of dwellings or in making loans which are secured by residential real estate, to impose different terms or conditions for the availability of such loans or other financial assistance because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(b) Unlawful practices under this act include, but are not limited to:

(1) Using different policies, practices or procedures in evaluating or in determining the creditworthiness of any person in connection with the provision of any loan or other financial assistance for a dwelling, or for any loan or other financial assistance which is secured by residential real estate, because of race, religion, color, sex, disability, familial status, national origin or ancestry; and

(2) Determining the type of loan or other financial assistance to be provided with respect to a dwelling, or fixing the amount, interest rate, duration or other terms for a loan or other financial assistance for a dwelling, or for any loan or other financial assistance which is secured by residential real estate, because of race, religion, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1017, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-13. Unlawful practices in the selling, brokering, or appraising of residential real property. (a) It shall be unlawful for any

person or other entity whose business includes engaging in the selling, brokering or appraising of residential real property to discriminate against any person in making available such services, or in the performance of such services, because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(b) For the purpose of this act, the term "appraisal" means an estimate or opinion of the value of a specified residential real property made in a business context in connection with the sale, rental, financing or refinancing of a dwelling, or in connection with any activity that otherwise affects the availability of a residential real estate-related transaction, whether the appraisal is oral or written, or transmitted formally or informally. The appraisal includes all written comments and other documents submitted as support for the estimate or opinion of value.

(c) Practices which are unlawful under this act include, but are not limited to, using an appraisal of residential real property in connection with the sale, rental, or financing of any dwelling where the person knows or reasonably should know that the appraisal improperly takes into consideration race, religion, color, sex, disability, familial status, national origin or ancestry. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1017, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-14. Prohibitions against discrimination because of disability; definitions. (a) "Accessible," when used with respect to the public and common use areas of a building containing covered multifamily dwellings, means that the public or common use areas of the building can be approached, entered, and used by individuals with physical disabilities. The phrase "readily accessible to and usable by" is synonymous with accessible. A public or common use area that complies with the appropriate requirements of K.S.A. 1991 Supp. 44-1016(h)(4) or a comparable standard, is "accessible" within the meaning of this act.

(b) "Accessible route," when used with respect to the public and common areas of a building containing covered multifamily dwellings, means a continuous unobstructed path connecting accessible elements and spaces in a building or within a site that can be negotiated by a person with a severe disability using a wheelchair and that is also

safe for and usable by people with other disabilities. Interior accessible routes may include corridors, floors, ramps, elevators and lifts. Exterior accessible routes may include parking access aisles, curb ramps, walks, ramps and lifts. A route that complies with the appropriate requirements of K.S.A. 1991 Supp. 44-1016(h)(4) is an "accessible route."

(c) "Building" means a structure, facility or the portion thereof that contains or serves one or more dwelling units.

(d) "Building entrance on an accessible route" means an accessible entrance to a building that is connected by an accessible route within the boundary of the site to public transportation stops, to accessible parking and passenger loading zones, and to public streets or sidewalks, if available. A building entrance that complies with the appropriate requirements of K.S.A. 1991 Supp. 44-1016(h)(4) or a comparable standard complies with the requirements of this act.

(e) "Common use areas" means rooms, spaces or elements inside or outside of a building that are made available for the use of residents of a building or the guests thereof. These areas include hallways, lounges, lobbies, laundry rooms, refuse rooms, mail rooms, recreational areas and passageways among and between buildings.

(f) "Controlled substance" means any drug or other substance, or immediate precursor included in the definition in section 102 of the Controlled Substances Act (21 USC 802 1970).

(g) "Dwelling unit" means a single unit of residence for a family or one or more persons, including but not limited to, a single family home and an apartment unit within an apartment building. The term dwelling unit also includes other types of dwellings in which sleeping accommodations are provided but in which toilet or cooking facilities are shared by occupants of more than one room or portion of the dwelling, including, but not limited to, dormitory rooms, sleeping rooms and sleeping accommodations in shelters intended for occupancy as a residence for homeless persons.

(h) "Entrance" means any access point to a building used by residents for the purpose of entering.

(i) "Exterior" means all areas of the premises outside of an individual dwelling unit.

(j) "First occupancy" means a building that has never before been used for any purpose.

(k) "Ground floor" means a floor of a building

with a building entrance on an accessible route. A building may have more than one ground floor.

(l) "Interior" means the spaces, parts, components or elements inside of an individual dwelling unit.

(m) "Modification" means any change to the public or common use areas of a building or any change to a dwelling unit.

(n) "Premises" means the interior or exterior spaces, parts, components or elements of a building, including individual dwelling units and the public and common use areas of a building.

(o) "Public use areas" means rooms or spaces of a building that are made available to the general public. Public use areas may be provided at a building that is privately or publicly owned.

(p) "Site" means a parcel of land bounded by a property line or a designated portion of a public right of way. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-15. Permissible inquiries under K.S.A. 44-1016(h). K.S.A. 44-1016(h) does not prohibit the following inquiries, provided these inquiries are made of all applicants, whether or not they have disabilities:

(a) Inquiry into an applicant's ability to meet the requirements of ownership or tenancy;

(b) Inquiry to determine whether an applicant is qualified for a dwelling available only to persons with disabilities or to persons with a particular type of disability;

(c) Inquiry to determine whether an applicant for a dwelling is qualified for a priority available to persons with a particular type of disability;

(d) Inquiring whether an applicant for a dwelling is a current illegal abuser or addict of a controlled substance; and

(e) Inquiring whether an applicant has been convicted of the illegal manufacture or distribution of a controlled substance. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-16. Reasonable modifications of existing premises. (a) It shall be unlawful for any person to refuse to permit, at the expense of a disabled person, reasonable modifications of ex-

isting premises occupied or to be occupied by a disabled person, if the proposed modifications may be necessary to afford the disabled person full enjoyment of the premises of a dwelling.

(b) In the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.

(c) The landlord may not increase for disabled persons any customarily required security deposit. However, where it is necessary in order to ensure with reasonable certainty that funds will be available to pay for the restorations at the end of the tenancy, the landlord may negotiate as part of such a restoration agreement a provision requiring that the tenant pay into an interest bearing escrow account, over a reasonable period, a reasonable amount of money not to exceed the cost of the restorations. The interest in any such account shall accrue to the benefit of the tenant.

(d) A landlord may condition permission for a modification on the renter providing a reasonable description of the proposed modifications as well as reasonable assurances that the work will be done in a workmanlike manner and that any required building permits will be obtained. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-17. Design and construction requirements. (a) On or after July 1, 1992, covered multifamily residential real property designed and constructed for first occupancy after January 1, 1992 shall have at least one building entrance on an accessible route, unless it is impractical to do so because of the terrain or unusual characteristics of the site. For purposes of this paragraph, covered multifamily residential real property shall be deemed to be designed and constructed for first occupancy on or before January 1, 1992, if the covered multifamily residential real property is occupied by that date or if the last building permit or renewal thereof for the covered multifamily residential real property is issued by a State, county or local government on or before January 1, 1992. The burden of establishing impracticality because of terrain or unusual site characteristics

is on the person or persons who designed or constructed the housing facility.

(b) Compliance with a duly enacted law of the State of Kansas or unit of local government that includes the requirements of paragraph (h) of K.S.A. 44-1016 satisfies the requirements of this act.

(c) The State of Kansas or unit of general local government may review and approve newly constructed multifamily residential real property for the purpose of making determinations as to whether the requirements of paragraph (h) of K.S.A. 44-1016 are met.

(d) Determinations of compliance or noncompliance by the State of Kansas or a unit of general local government under paragraph (c) are not conclusive in proceedings under this act. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, as amended by 1992 H.B. 3164, § 1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-18. State and federal elderly housing programs. The provisions regarding familial status in this act shall not apply to housing provided under any Federal or State program that the Secretary of the United States Department of Housing and Urban Development determines is specifically designed and operated to assist elderly persons, as defined in the State or Federal program. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, 44-1018, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-19. 62 or over housing. The provisions regarding familial status in this act shall not apply to housing intended for, and solely occupied by, persons 62 years of age or older. Housing satisfies the requirements of this act even though:

(a) There are persons residing in such housing on January 1, 1992, who are under 62 years of age, provided that all new occupants are persons 62 years of age or older;

(b) There are unoccupied units, provided that such units are reserved for occupancy by persons 62 years of age or over;

(c) There are units occupied by employees of the housing units (and family members residing in the same unit) who are under 62 years of age, provided, they perform substantial duties directly related to the management or maintenance of the

housing. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, 44-1018, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-20. 55 or over housing. (a) The provisions regarding familial status shall not apply to housing intended and operated for occupancy by at least one person 55 years of age or older per unit, provided that the housing satisfies the requirements of subparagraphs (b)(1) or (b)(2) and the requirements of subsection (c).

(b)(1) The housing facility has significant facilities and services specifically designed to meet the physical and social needs of older persons. "Significant facilities and services specifically designed to meet the physical or social needs of older persons" means, but is not limited to:

- (A) social and recreational programs;
- (B) continuing education;
- (C) information and counseling;
- (D) recreational, homemaker, outside maintenance and referral services;
- (E) an accessible physical environment;
- (F) emergency and preventive health care or programs;
- (G) congregate dining facilities;
- (H) transportation to facilitate access to social services; and

(I) services designed to encourage and assist residents to use the services and facilities available to them (the housing facility need not have all of these features to qualify for the exemption under this subparagraph); or

(2) It is not practicable to provide significant facilities and services designed to meet the physical and social needs of older persons and the housing facility is necessary to provide important housing opportunities for older persons. In order to satisfy this subparagraph (b)(2), the owner or manager of the housing facility must demonstrate through credible and objective evidence that the provision of significant facilities and services designed to meet the physical or social needs of older persons would result in depriving older persons in the relevant geographic area of needed or desired housing. The following factors, among others, are relevant in meeting the requirements of subparagraph (b)(2):

(A) whether the owner or manager of the housing facility has endeavored to provide significant facilities and services designed by the owner or a

contractual third party to meet the physical or social needs of older persons. Demonstrating that such services and facilities are expensive to provide is not alone sufficient to demonstrate that the provision of such services is not practicable;

(B) the amount of rent charged, if the dwellings are rented, or the price of the dwellings, if they are offered for sale;

(C) the income range of the residents of the housing facility;

(D) the demand for housing for older persons in the relevant geographic area;

(E) the range of housing choices for older persons within the relevant geographic area;

(F) the availability of other similarly priced housing for older persons in the relevant geographic area; and

(G) the vacancy rate of the housing facility.

(3) If similarly priced housing for older persons with significant facilities and services is reasonably available in the relevant geographic area, then the housing facility does not meet the requirements of this subsection (2).

(c)(1) On and after July 1, 1992, at least 80% of the units in the housing facility are occupied by at least one person 55 years of age or older per unit, except that a newly constructed housing facility designed and constructed for first occupancy after January 1, 1992, need not comply with this subsection (c)(1) until 25% of the units in the facility are occupied; and

(2) The owner or manager of a housing facility publishes and adheres to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older. The following factors, among others, are relevant in determining whether the owner or manager of a housing facility has complied with the requirements of paragraph (c)(2):

(A) the manner in which the housing facility is described to prospective residents;

(B) the nature of any advertising designed to attract prospective residents;

(C) age verification procedures;

(D) lease provisions;

(E) written rules and regulations; and

(F) actual practices of the owner or manager in enforcing relevant lease provisions and relevant rules or regulations.

(3) Effective July 1, 1992, housing satisfies the requirements of this section even though:

(A) On January 1, 1992, under 80% of the occupied units in the housing facility are occupied

by at least one person 55 years of age or older per unit, provided that at least 80% of the units that are occupied by new occupants after January 1, 1992 are occupied by at least one person 55 years of age or older;

(B) there are unoccupied units, provided that at least 80% of such units are reserved for occupancy by at least one person 55 years of age or over; or

(C) there are units occupied by employees of the housing (and family members residing in the same unit) who are under 55 years of age, provided they perform substantial duties directly related to the management or maintenance of the housing. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1016, 44-1018, as amended by 1992 H.B. 3164, §2 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-21. Prohibited interference, coercion or intimidation. Conduct made unlawful under K.S.A. 1991 Supp. 44-1027 includes, but is not limited to, the following:

(a) Coercing a person either orally, in writing or by other means to deny or limit the benefits provided a person in connection with the sale or rental of real property, or in connection with a residential real estate-related transaction, because of race, religion, color, sex, disability, familial status, national origin or ancestry;

(b) Threatening, intimidating or interfering with persons in their enjoyment of real property because of the race, religion, color, sex, disability, familial status, national origin or ancestry of such persons, or of visitors or associates of such persons;

(c) Threatening an employee or agent with dismissal or an adverse employment action, or taking such adverse employment action, for any effort to assist a person seeking access to the sale or rental of real property or seeking access to any residential real estate-related transaction, because of the race, religion, color, sex, disability, familial status, national origin or ancestry of that person or of any person associated with that person;

(d) Intimidating or threatening any person because that person is engaging in activities designed to make other persons aware of, or to encourage such other persons to exercise, rights granted or protected by this act; and

(e) Retaliating against any person because that person has made a complaint, testified, assisted,

or participated in any manner in a proceeding under the act. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1027, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-22. Complaints alleging unlawful housing practices. (a) The procedures under this act for investigation and conciliation of complaints will be conducted in accordance with K.A.R. Sections 21-41, 21-42 and 21-43 to the extent these procedures are in compliance with K.S.A. 1991 Supp. 44-1019 and 44-1020. Unless referred to an appropriate local agency pursuant to K.S.A. 1991 Supp. 44-1019(c), the Commission shall commence investigation of the allegations of the complaint within 30 days after receipt of the complaint.

(b) Hearings shall be conducted in accordance with the provisions of the Kansas Administrative Procedure act and K.A.R. Section 21-45. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1019, as amended by 1992 H.B. 3164, §1 and 6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

21-60-23. Conciliation and conciliation agreements. (a) During the period beginning with the filing of the complaint and ending with either the serving of a notice of hearing under the provisions of K.S.A. 1991 Supp. 44-1019 or the dismissal of the complaint by the Commission, the Commission shall, to the extent feasible, attempt to conciliate the complaint.

(b) Where the aggrieved person has commenced a civil action under an act of Congress or a State law seeking relief with respect to the alleged discriminatory housing practice, and the trial in the action has commenced, the Commission shall terminate conciliation unless the court specifically requests assistance from the Commission.

(c) Conciliation agreements shall be made public, unless the aggrieved person and respondent request nondisclosure and the Commission determines that disclosure of a conciliation agreement is not required. The Commission may make public tabulated descriptions of the results of all conciliation efforts. (Authorized by K.S.A. 1991 Supp. 44-1004; implementing K.S.A. 1991 Supp. 44-1019, as amended by 1992 H.B. 3164, §1 and

6; effective July 1, 1992; effective, T-21-7-1-92, July 1, 1992; effective Aug. 17, 1992.)

Articles 61 to 69.—RESERVED

Article 70.—NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS

21-70-1. Definitions. (a) “Current illegal use of drugs” means illegal use of drugs that occurred recently enough to justify a reasonable belief that a person’s use is current or that continuing use is a real and ongoing problem.

(b) “Professional office of health care provider” means a location where a person or entity regulated by the State of Kansas to provide professional services related to the physical or mental health of an individual makes such services available to the public. The facility housing the “professional office of a health care provider” shall only include floor levels housing at least one health care provider, or any floor level designed or intended for use by at least one health care provider.

(c) “Public transportation facility” means transportation by bus, rail, aircraft, or any other conveyance that provides the general public with general or special services, including charter services, on a regular and continuing basis.

(d) “Qualified interpreter” means an interpreter who is able to interpret effectively, accurately and impartially both receptively and expressively, using any necessary specialized vocabulary.

(e) “Service animal” means any guide dog, signal dog, or other animal individually trained to do work or perform tasks for the benefit of an individual with a disability, including guiding individuals with impaired vision, alerting individuals with impaired hearing to intruders or sounds, providing minimal protection or rescue work, pulling a wheelchair, or fetching dropped items.

(f) “Shopping center or shopping mall” means:

(1) a building housing five or more places of public accommodation; or

(2) a series of buildings on a common site, either under common ownership or common control or developed either as one project or as a series of related projects, housing five or more places of public accommodation. The facility housing a “shopping center or shopping mall” only includes floor levels housing at least one place of public accommodation, or any floor level

designed or intended for use by at least one place of public accommodation.

(g) As used in these regulations, “the act” means the Kansas act against discrimination, K.S.A. 44-1001 et seq., as amended. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-2. Landlord and tenant responsibilities. Both the landlord who owns the building that houses a place of public accommodation and the tenant who owns or operates the place of public accommodation shall be considered public accommodations subject to the act. As between the parties, allocation of responsibility for complying with the obligations of the act may be determined by lease or contract. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-3. Activities; denial of participation. (a) Denial of participation. A public accommodation shall not deny an individual or class of individuals the opportunity to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations of that place on the basis of a disability or disabilities of the individual or class, either directly or through contractual, licensing or other arrangements.

(b) Participation in unequal benefit. A public accommodation shall not provide an individual or class of individuals, on the basis of a disability or disabilities of the individual or class, with the opportunity to participate in or benefit from a good, service, facility, privilege, advantage, or accommodation in a manner that is not equal to that afforded to other individuals directly, or through contractual, licensing, or other arrangements.

(c) Separate benefit. Unless such action is necessary to provide the individual or class of individuals with a good, service, facility, privilege, advantage, or accommodation, or other opportunity that is as effective as that provided to others, a public accommodation shall not provide an individual or class of individuals, on the basis of a disability or disabilities of the individual or class, with a good, service, facility, privilege, advantage, or accommodation that is different or separate from that provided to other individuals, directly, or through contractual, licensing, or other arrangements.

(d) Individual or class of individuals. For purposes of subsections (a) through (c) of this regulation, the term “individual or class of individuals” means the clients or customers of the public ac-

commodation that enter into the contractual, licensing, or other arrangement. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-4. Integrated settings. (a) Each public accommodation shall afford goods, services, facilities and accommodations to an individual with a disability in the most integrated setting appropriate to the needs of the individual.

(b) Notwithstanding the existence of separate or different programs or activities provided in accordance with the act, a public accommodation shall not deny an individual with a disability the opportunity to participate in regular programs or activities.

(c) (1) Nothing in this regulation shall be construed to require an individual with a disability to accept an accommodation, aid, service, opportunity, or benefit available under the act that the individual chooses not to accept.

(2) Nothing in the act shall authorize a representative or guardian of an individual with a disability to decline food, water, or medical treatment and services for that individual. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-5. Administrative methods. A public accommodation shall not, either directly or through contractual or other arrangements, utilize standards, criteria or methods of administration that have the effect of discriminating on the basis of disability, or that perpetuate the discrimination by others who are subject to common administrative control. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-6. Association. A public accommodation shall not exclude or otherwise deny equal goods, services, facilities, accommodations, or other opportunities to an individual or entity because of the known disability of an individual with whom the individual or entity is known to have a relationship or association. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-7. Retaliation or coercion. A public accommodation shall not discriminate against any individual because that individual has opposed any act or practice made unlawful by the act, or because that individual made a complaint, testified, assisted, or participated in any manner in an

investigation, proceeding, or hearing under the act. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-8. Places of public accommodation located in private residences. (a) When a place of public accommodation is located in a private residence, the portion of the residence used exclusively as a residence shall not be covered by the act. However, that portion used exclusively in the operation of the place of public accommodation, or that portion used both for the place of public accommodation and for residential purposes, shall be covered by the act and these regulations.

(b) The portion of the residence covered under subsection (a) of this regulation extends to those elements used to enter the place of public accommodation, including:

(1) the homeowner's front sidewalk, if any;

(2) the door or entryway;

(3) the hallways; and

(4) those portions of the residence, interior or exterior, available to or used by customers or clients, including restrooms. (Authorized by K.S.A. 44-1004; implementing K.S.A. 1992 Supp. 44-1009; effective Dec. 19, 1994.)

21-70-9. Direct threat. (a) The act and these regulations shall not be interpreted to require a public accommodation to permit an individual to participate in or benefit from the goods, services, facilities and accommodations of that public accommodation when that individual poses a direct threat to the health and safety of others.

(b) "Direct threat" means a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices, or procedures, or by the provision of auxiliary aids or services.

(c) In determining whether an individual poses a direct threat to the health or safety of others, a public accommodation shall make an individualized assessment, based on reasonable judgment that relies on current medical knowledge or on the best available objective evidence, to ascertain:

(1) the nature, duration, and severity of the risk;

(2) the probability that the potential injury will actually occur; and

(3) whether reasonable modifications of policies, practices, or procedures will mitigate the risk. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-10. Maintenance of accessible features. (a) A public accommodation shall maintain, in operable working condition, those features of facilities and equipment that are required by the act and these regulations to be readily accessible to and usable by persons with disabilities.

(b) These regulations do not prohibit isolated or temporary interruption in service or access due to maintenance or repairs. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-11. Safety. A public accommodation may impose legitimate safety requirements that are necessary for safe operation. Safety requirements shall be based on actual risks and not on mere speculation, stereotypes, or generalizations about individuals with disabilities. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-12. Charges. A public accommodation shall not impose a surcharge on an individual with a disability to cover the costs of measures that are required to provide that individual with the nondiscriminatory treatment required by the act or these regulations, including the provision of auxiliary aids, barrier alternatives to barrier removal, and reasonable modifications in policies, practices, or procedures. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-13. Modifications in policies, practices, or procedures. (a) Each public accommodation shall make reasonable modifications in policies, practices or procedures, when the modifications are necessary to afford goods, services, facilities or accommodations to individuals with disabilities, unless the public accommodation can demonstrate that making the modifications would fundamentally alter the nature of the goods, services, facilities or accommodations.

(b) Any public accommodation may refer an individual with a disability to another public accommodation if:

(1) that individual is seeking or requires treatment which is not within the referring public accommodation's area of specialization; and

(2) in the normal course of its operations, the referring public accommodation would make a similar referral for an individual without a disability who seeks or requires the same treatment or services. (Authorized by K.S.A. 44-1004; im-

plementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-14. Service animals. (a) Each public accommodation shall modify policies, practices or procedures as necessary to permit the use of a service animal by an individual with a disability.

(b) Nothing in the act or these regulations requires a public accommodation to supervise or care for a service animal. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-15. Undue burden: definition and determination. (a) "Undue burden" means significant difficulty or expense.

(b) In determining whether an action would result in an undue burden, factors to be considered shall include:

(1) the nature and cost of the action needed under the act;

(2) the overall financial resources of the site or sites involved in the action considering:

(A) the number of persons employed at the site;

(B) the effect on expenses and resources;

(C) legitimate safety requirements that are necessary for safe operation, including crime prevention measures; and

(D) how the action would otherwise impact the operation of the site; and

(3) whether the site or sites in question have a parent corporation or entity, and if so:

(A) the geographic separateness, and the administrative or fiscal relationship of the site or sites in question to the parent corporation or entity;

(B) the overall financial resources of any parent corporation or entity;

(C) the overall size of the parent corporation or entity with respect to the number of its employees;

(D) the number, type, and location of the parent corporation's or entity's facilities; and

(E) the type of operation or operations of any parent corporation, including the composition, structure, and functions of its workforce. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-16. Auxiliary aids and services. (a) Each public accommodation shall take those steps that may be necessary to ensure that no individual with a disability is excluded, denied, segregated or

otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the public accommodation can demonstrate that taking those steps would fundamentally alter the nature of the goods, services, facilities or accommodations being offered or would result in an undue burden.

(b) The term “auxiliary aids and services” shall include:

(1) qualified interpreters, notetakers, computer-aided transcription services, written materials, telephone headset amplifiers, assistive listening devices, assistive listening systems, telephones compatible with hearing aids, caption decoders, open and closed captioning, telecommunications devices for deaf persons (TDD’s), videotext displays, or other effective methods of making aurally-delivered materials available to individuals with hearing impairments;

(2) qualified readers, taped texts, audio recordings, Brailled materials, large print materials or other effective methods of making visually-delivered materials available to individuals with visual impairments;

(3) acquisition or modification of equipment or devices; and

(4) other similar services and actions.

(c) Each public accommodation shall furnish appropriate auxiliary aids and services where necessary to ensure effective communication with individuals with disabilities. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-17. Auxiliary aids and services; telecommunication devices for the deaf (TDD’s). (a) Each public accommodation that offers a customer, client, patient or participant the opportunity to make outgoing telephone calls on more than an incidental convenience basis shall make available, upon request, a TDD for the use of an individual who has impaired hearing or a communication disorder.

(b) The act and these regulations do not require a public accommodation to use a TDD for receiving or making telephone calls incident to its operation. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-18. Auxiliary aids and services; closed caption decoders. Each lodging establishment that provides televisions in five or more guest rooms and hospitals that provide televisions for patient use shall provide, upon request, a

means for decoding captions for use by an individual with impaired hearing. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-19. Alternatives to auxiliary aids and services. (a) If provision of a particular aid or service by a public accommodation would result in a fundamental alteration in the nature of the goods, services, facilities or accommodations being offered, or is an undue burden, the public accommodation shall provide an alternative auxiliary aid or service, if one exists, that would not result in an alteration or undue burden.

(b) The alternative auxiliary aid or service, to the maximum extent possible, shall ensure that individuals with disabilities receive the goods, services, facilities or accommodations offered by the public accommodation. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-20. Definition of readily achievable; determination. (a) “Readily achievable” means easily accomplished and able to be carried out without much difficulty or expense.

(b) In determining whether an action is readily achievable, factors to be considered shall include:

(1) The nature and cost of the action needed under the act;

(2) the overall financial resources of the site or sites involved in the action, considering:

(A) the number of persons employed at the site;

(B) the effect on expenses and resources;

(C) legitimate safety requirements that are necessary for safe operation, including crime prevention measures; and

(D) how the action would otherwise impact the operation of the site; and

(3) whether the site or sites in question have a parent corporation or entity, and if so:

(A) the geographic separateness, and the administrative or fiscal relationship of the site or sites in question to the parent corporation or entity;

(B) the overall financial resources of any parent corporation or entity;

(C) the overall size of the parent corporation or entity with respect to the number of its employees;

(D) the number, type, and location of the parent corporation’s or entity’s facilities; and

(E) the type of operation or operations of any

parent corporation, including the composition, structure, and functions of its workforce. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-21. Removal of barriers. (a) Each public accommodation shall remove architectural barriers in existing facilities, including communication barriers that are structural in nature, if removal is readily achievable.

(b) Removal of barriers may include the following actions:

- (1) installing ramps;
- (2) making curb cuts in sidewalks and entrances;
- (3) repositioning shelves;
- (4) rearranging tables, chairs, vending machines, display racks, and other furniture;
- (5) repositioning telephones;
- (6) adding raised markings on elevator control buttons;
- (7) installing flashing alarm lights;
- (8) widening doors;
- (9) installing offset hinges to widen doorways;
- (10) eliminating a turnstile or providing an alternative accessible path;
- (11) installing accessible door hardware;
- (12) installing grab bars in toilet stalls;
- (13) rearranging toilet partitions to increase maneuvering space;
- (14) insulating lavatory pipes under sinks to prevent burns;
- (15) installing a full-length bathroom mirror;
- (16) repositioning the paper towel dispenser in a bathroom;
- (17) creating designated accessible parking spaces;
- (18) installing an accessible paper cup dispenser at an existing inaccessible water fountain;
- (19) removing high pile, low density carpeting;
- (20) installing vehicle hand controls;
- (21) installing a raised toilet seat; and
- (22) installing assistive listening systems. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-22. Removal of barriers; priorities. Each public accommodation shall consider taking measures to comply with the barrier removal requirements of K.A.R. 21-70-21 in accordance with the following order of priorities. (a) The first priority shall be to make measures to provide access to a place of public accommodation from public sidewalks, parking, or public transportation.

These measures may include installing an entrance ramp, widening entrances, and providing accessible parking spaces.

(b) The second priority shall be to take measures to provide access to those areas of a place of public accommodation where goods and services are made available to the public. These measures may include adjusting the layout of display racks, rearranging tables, providing Brailled and raised character signage, widening doors, providing visual alarms, and installing ramps.

(c) The third priority shall be to take measures to provide access to restroom facilities. These measures may include removing obstructing furniture or vending machines, widening doors, installing ramps, providing accessible signage, widening toilet stalls, and installing grab bars.

(d) The final priority shall be to take any other measures necessary to provide access to its goods, services, facilities or accommodations. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-23. Removal of barriers; relationship to alteration requirements. (a) Except as provided in subsection (b) of this regulation, measures taken to comply with the barrier removal requirements of K.A.R. 21-70-21 shall comply with the applicable requirements in these regulations for the alteration of that element. However, the "path of travel" requirement in K.A.R. 21-70-36 shall not apply to measures taken solely to comply with the barrier removal requirement.

(b) If, as a result of compliance with the alterations requirements specified in subsection (a) of this regulation, the measures required to remove a barrier would not be readily achievable, a public accommodation may take other readily achievable measures to remove the barrier that do not fully comply with the specified requirements.

(c) Those readily achievable measures may include providing a ramp with a steeper slope or widening a doorway to a narrower width than that mandated by the alterations requirements. However, no measure shall be taken that would pose a significant risk to the health or safety of individuals with disabilities or others. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-24. Removal of barriers; portable ramps. If installation of a permanent ramp is not readily achievable, a portable ramp may be used

to comply with K.A.R. 21-70-21. To avoid any significant risk to the health or safety of individuals with disabilities or others in using portable ramps, due consideration shall be given to safety features, including nonslip surfaces, railings, anchoring, and strength of materials. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-25. Removal of barriers; selling or serving space. The rearrangement of temporary or movable structures, including furniture, equipment, and display racks shall not be considered readily achievable if it results in a significant loss of selling or serving space. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-26. Limitation on barrier removal obligations. (a) The requirements for barrier removal under these regulations shall not exceed the standards for alteration in K.A.R. 21-70-21.

(b) If relevant standards for alterations are not provided in K.A.R. 21-70-34, the requirements for barrier removal under these regulations shall not be interpreted to exceed the standards for new construction in these regulations.

(c) These regulations shall not apply to transportation services subject to K.A.R. 21-70-32. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-27. Alternatives to barrier removal. (a) If a public accommodation can demonstrate that barrier removal is not readily achievable, the public accommodation shall make its goods, services, facilities or accommodations available through alternative methods, if those methods are readily achievable.

(b) Alternatives to barrier removal may include the following actions:

- (1) providing curb service or home delivery;
- (2) retrieving merchandise from inaccessible shelves or racks; or
- (3) relocating activities to accessible locations.

(c) If removal of barriers to provide access by persons with mobility impairments to all of the theaters of a multiscreen cinema is not readily achievable, the cinema shall establish a film rotation schedule that provides reasonable access to all films for individuals who use wheelchairs. Reasonable notice shall be provided to the public as to the location and time of accessible showings.

(Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-28. Accessible or special goods.

(a) The act and these regulations shall not be interpreted to require a public accommodation to alter its inventory to include accessible or special goods that are designed for, or facilitate use by, individuals with disabilities.

(b) Each public accommodation shall order accessible or special goods at the request of an individual with disabilities, if in the normal course of its operation, it makes special orders on request for unstocked goods, and if the accessible or special goods can be obtained from a supplier with whom the public accommodation customarily does business.

(c) Accessible or special goods may include Brailled versions of books, books on audio cassettes, closed-captioned video tapes, special sizes or lines of clothing, and special foods to meet particular dietary needs. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-29. Seating in assembly areas; existing facilities. (a) To the extent that it is readily achievable, assembly areas of a public accommodation shall:

(1) provide a reasonable number of wheelchair seating spaces and seats with removable aisle-side arm rests; and

(2) locate the wheelchair seating spaces so that they:

- (A) are dispersed throughout the seating area;
- (B) provide lines of sight and choice of admission prices comparable to those for members of the general public;

(C) adjoin an accessible route that also serves as a means of egress in case of emergency; and

(D) permit individuals who use wheelchairs to sit with family members or other companions.

(b) If removal of seats is not readily achievable, each public accommodation with assembly areas shall provide, to the extent that it is readily achievable to do so, a portable chair or other means to permit a family member or other companion to sit with an individual who uses a wheelchair.

(c) The requirement of subsection (a) shall not be interpreted to exceed the standards for alterations in K.A.R. 21-70-34. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-30. Seating in assembly areas; new construction and alterations. The provision and location of wheelchair seating spaces in newly constructed or altered assembly areas shall be governed by the standards for new construction and alterations in K.A.R. 21-70-34. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-31. Examinations and courses. (a) Each public accommodation that offers examinations or courses related to applications, licensing, certification, or credentialing for secondary or postsecondary education, professional, or trade purposes shall offer the examinations or courses in a place and manner accessible to persons with disabilities or offer alternative arrangements for access.

(b) Examinations.

(1) Each private entity offering an examination covered by this section shall assure that:

(A) the examination is selected and administered so as to best ensure that, when the examination is administered to an individual with a disability that impairs sensory, manual, or speaking skills, the examination results accurately reflect the individual's aptitude or achievement level or whatever other factor the examination purports to measure, rather than reflecting the individual's impaired sensory, manual, or speaking skills, except where those skills are the factors that the examination purports to measure;

(B) any examination that is designed for individuals with impaired sensory, manual, or speaking skills is offered at equally convenient locations, as often, and in as timely a manner as are other examinations; and

(C) the examination is administered in facilities that are accessible to individuals with disabilities or alternative arrangements for access are made.

(2) Required modifications to an examination may include changes in the length of time permitted for completion of the examination and adaptation of the manner in which the examination is given.

(3) Each private entity offering an examination covered by this regulation shall provide appropriate auxiliary aids for persons with impaired sensory, manual, or speaking skills, unless that private entity can demonstrate that offering a particular auxiliary aid would fundamentally alter the measurement of the skills or knowledge the examination is intended to test or would result in an undue

burden. Auxiliary aids and services required by this regulation may include:

(A) taped examinations, interpreters or other effective methods of making orally delivered materials available to individuals with hearing impairments;

(B) Braille or large print examinations and answer sheets or qualified readers for individuals with visual impairments or learning disabilities;

(C) transcribers for individuals with manual impairments; and

(D) other similar services and actions.

(4) Alternative arrangements for access may include provision of an examination at an individual's home with a proctor if accessible facilities or equipment are unavailable. Alternative arrangements shall provide conditions which are comparable to those provided for nondisabled individuals.

(c) Courses.

(1) Each private entity that offers a course covered by these regulations shall make any modifications to that course necessary to ensure that the place and manner in which the course is given are accessible to individuals with disabilities.

(2) Required modifications may include changes in the length of time permitted for the completion of the course, substitution of specific requirements, or adaptation of manner in which the course is conducted or course materials are distributed.

(3) Each private entity that offers a course covered by this section shall provide appropriate auxiliary aids and services for persons with impaired sensory, manual, or speaking skills, unless the private entity can demonstrate that offering a particular auxiliary aid or service would fundamentally alter the course or would result in an undue burden. Auxiliary aids and services required by this section may include:

(A) taped texts, interpreters or other effective methods of making orally delivered materials available to individuals with hearing impairments;

(B) Braille or large print texts or qualified readers for individuals with visual impairments and learning disabilities;

(C) classroom equipment adapted for use by individuals with manual impairments; and

(D) other similar services and actions.

(4) Courses shall be administered in facilities that are accessible to individuals with disabilities, or alternative arrangements for access shall be made.

(5) Alternative arrangements for access may include offering the course through videotape, cassettes, or prepared notes. Alternative arrangements shall provide conditions which are comparable to those provided for nondisabled individuals. (Authorized by K.S.A. 44-1004; implementing K.S.A. 1992 Supp. 1009; effective Dec. 19, 1994.)

21-70-32. Transportation. (a) Each public accommodation which provides any transportation service shall ensure that each service provided by the public accommodation is available and accessible to people with disabilities. Necessary modifications may include:

- (1) retrofitting with lifts or ramps
- (2) retrofitting with P.A. systems
- (3) retrofitting with visible signage
- (4) using color coding on vehicles and routes

(b) Only those modifications which are readily achievable shall be required. However, good faith efforts shall be made to accomplish readily achievable modifications which make transportation services as accessible as possible. This regulation shall not be considered to require premature replacement of any existing vehicle.

(c) All services shall be provided equally in the most integrated manner possible to all individuals with disabilities including:

- (1) equal fares for all people regardless of accommodation provided;
- (2) equal access to all discounts, specials, programs, passes, and any other event or service in the most integrated setting possible;
- (3) accessibility to all fixed routes and shuttle services operated by units and subdivisions of government, unless an undue hardship would occur; and

(4) use of accessible vehicles in the existing fleet of vehicles, operating to the maximum extent feasible. When determining whether an activity referred to herein is readily achievable, providing an equivalent accommodation by contractual or other indirect means shall be considered.

(d) Each new vehicle used to transport the general public shall be accessible unless the vehicle is not generally available in an accessible design from factory dealerships or custom chassis or body manufacturers. At a minimum, a nationwide search shall be undertaken for vehicles available in an accessible design before it can be claimed as a defense that it is not possible to obtain them.

(Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-33. Transportation provided by public accommodations. (a) Each public accommodation that provides transportation services, but that is not primarily engaged in the business of transporting people, shall be subject to the act and these regulations.

(b) Transportation services shall include various types of shuttle services operated between a transportation facility and other places of public accommodation, including:

- (1) customer shuttle bus services operated by private companies and shopping centers; and
- (2) transportation provided within recreational facilities, including stadiums, zoos, amusement parks, and ski resorts.

(c) Each public accommodation subject to the act and these regulations shall remove transportation barriers in existing vehicles and rail cars used for transporting individuals when removal is readily achievable. However, this provision shall not be applicable to barriers that can only be removed through the retrofitting of vehicles or rail passenger cars by the installation of a hydraulic or other lift. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-34. New construction; exception for structural impracticability; elevator exemption. (a) Except as provided in subsection (b) of this regulation, an unlawful discriminatory practice shall include a failure to design and construct facilities for first occupancy after July 1, 1994, that are readily accessible to and useable by individuals with disabilities.

(b) For purposes of the act and this regulation, a facility shall be considered to have been designed and constructed for first occupancy after July 1, 1994, only if:

(1) (A) the last application for a building permit or permit extension for the facility is certified to be complete, by a state, county, or local government after July 1, 1993; or

(B) in those jurisdictions where the government does not certify completion of applications, the last application for a building permit or permit extension for the facility is received by the state, county, or local government after July 1, 1992; and

(2) if the first certificate of occupancy for the facility is issued after July 1, 1994.

(c) (1) If an entity can demonstrate that it is structurally impracticable to fully comply with the

requirements of this regulation, compliance shall be required to the extent that it is not structurally impracticable. Full compliance shall be considered structurally impracticable only in those rare circumstances when the unique characteristics of terrain prevent the incorporation of accessibility features.

(2) If providing accessibility to individuals with certain disabilities, such as those who use wheelchairs, would be structurally impracticable, accessibility shall nonetheless be ensured in accordance with this subsection (c) to persons with other types of disabilities, such as those who use crutches or who have sight, hearing, or mental impairments.

(d) Installation of an elevator shall not be required in a facility that is less than three stories high or has less than 3000 square feet per story, unless the facility houses one or more of the following:

(1) a shopping center or shopping mall, or a professional office of a health care provider; or

(2) a terminal, depot, or other station used for specified public transportation, or an airport passenger terminal. In these facilities, any area housing passenger services, including boarding and debarking, loading and unloading, baggage claim, dining facilities and other common areas open to the public, shall be on an accessible route from an accessible entrance.

(e) The elevator exemption set forth in subsection (d) shall not obviate or limit in any way the obligation to comply with the other accessibility requirements established in subsection (a) of this regulation. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-35. Alterations. (a) (1) Any alteration to a place of public accommodation after July 1, 1991, shall be made so as to ensure that, to the maximum extent feasible, the altered portions of the facility are readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs.

(2) An alteration shall be deemed to be undertaken after July 1, 1991, if the physical alteration begins after that date.

(b) For the purposes of this regulation, "alteration" means a change to a place of public accommodation that affects or could affect the usability of the building or facility or any part thereof.

(1) Alterations may include remodeling, renovation, rehabilitation, reconstruction, historic res-

toration, changes or rearrangements in structural parts or elements, and changes or rearrangement in the plan configuration of walls and full-height partitions.

(2) Normal maintenance, reroofing, painting or wallpapering, asbestos removal, or changes to mechanical and electrical systems shall not be considered alterations unless they affect the usability of the building or facility.

(3) If existing elements, spaces or common areas are altered, then each altered element, space or area shall comply with the applicable standards for accessible design in the Americans with disabilities act accessibility guidelines (ADAAG) dated July 26, 1991, which are incorporated herein by reference.

(c) The phrase "to the maximum extent feasible," as used in this regulation, shall apply to the occasional case where the nature of an existing facility makes it virtually impossible to comply fully with applicable accessibility standards through a planned alteration. In these circumstances, the alteration shall provide the maximum physical accessibility feasible. Any altered features of the facility that can be made accessible shall be made accessible. If providing accessibility in compliance with this regulation to individuals with certain disabilities, such as those who use wheelchairs, would not be feasible, the facility shall be made accessible to persons with other types of disabilities, such as those who use crutches, or those who have sight, hearing, or other impairments. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-36. New construction and alterations; path of travel. (a) If an alteration affects or could affect the usability of or access to an area of a facility that contains a primary function, the alteration shall be made so as to ensure that to the maximum extent feasible, the path of travel to the altered area and the restrooms, telephones and drinking fountains serving the altered area is readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs, unless the cost and scope of such alterations is disproportionate to the cost of the overall alteration.

(b) "Primary function" means a major activity for which the facility is intended. Areas that contain a primary function may include the customer services lobby of a bank, the dining area of a cafeteria, the meeting rooms in a conference center

and offices or other work areas in the public accommodation. Mechanical rooms, boiler rooms, supply storage rooms, employee lounges or locker rooms, janitorial closets, entrances, corridors, and restrooms shall not be considered areas containing a primary function. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-37. Alterations to an area containing a primary function. (a) Alterations that affect the usability of or access to an area containing a primary function may include:

- (1) remodeling merchandise display areas or employee work areas in a department store; and
- (2) replacing an inaccessible floor surface in the customer service or employee work areas of a bank.

(b) For the purposes of this regulation, alterations to windows, hardware, controls, electrical outlets, and signage shall not be deemed to be alterations that affect the usability of an area containing a primary function. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-38. New construction and alterations; path of travel; landlord or tenant. If a tenant is making alterations as defined in K.A.R. 21-60-16 that would trigger the requirements of K.A.R. 21-70-36, those alterations by the tenant in areas that only the tenant occupies shall not trigger an obligation on the landlord to alter the areas of the facility under the landlord's authority in order to comply with the "path of travel" requirements in K.A.R. 21-70-36, if those areas are not otherwise being altered. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-39. New construction and alterations; definition of path of travel. (a) The term "path of travel" means a continuous, unobstructed way of pedestrian passage by which the altered area may be approached, entered and exited, and which connects the altered area with:

- (1) an exterior approach, including sidewalks, streets, and parking areas;
 - (2) an entrance to the facility; and
 - (3) other parts of the facility.
- (b) An accessible path of travel may consist of:
- (1) walks and sidewalks;
 - (2) curb ramps and other interior or exterior pedestrian ramps;

(3) clear floor paths through lobbies, corridors, rooms, and other improved areas; or

(4) part or a combination of these elements.

(c) For the purposes of this regulation, the term "path of travel" also shall include the restrooms, telephones, and drinking fountains serving the altered area. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-40. New construction and alterations; path of travel; disproportionality. (a) The cost of alterations made to provide an accessible path of travel to the altered areas shall be deemed disproportionate to the overall alteration when the cost exceeds 20% of the cost of the alteration to the primary function area.

(b) Costs that may be counted as expenditures required to provide an accessible path of travel may include:

(1) costs associated with providing an accessible entrance and an accessible route to the altered area, including the cost of widening doorways or installing ramps;

(2) costs associated with making restrooms accessible, including installing grab bars, enlarging toilet stalls, insulating pipes, or installing accessible faucet controls;

(3) costs associated with providing accessible telephones, including relocating the telephone to an accessible height, installing amplification devices, or installing a telecommunications device for deaf persons (TDD); and

(4) costs associated with relocating an inaccessible drinking fountain. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-41. New construction and alterations; path of travel; duty to provide accessible features in the event of disproportionality. (a) When the cost of alterations necessary to make the path of travel to the altered area fully accessible is disproportionate to the cost of the overall alteration, the path of travel shall be made accessible to the extent that it can be made accessible without incurring disproportionate costs.

(b) In choosing which accessible elements to provide, consideration shall be given to altering those elements that will provide the greatest access, in the following order:

- (1) an accessible entrance;
- (2) an accessible route to the altered area;

- (3) at least one accessible restroom for each sex or a single unisex restroom;
- (4) accessible telephones;
- (5) accessible drinking fountains; and
- (6) when possible, additional accessible elements, including parking, storage, and alarms. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-42. New construction and alterations; path of travel; series of smaller alterations. (a) The obligation to provide an accessible path of travel shall not be evaded by performing a series of small alterations to the area served by a single path of travel if those alterations could have been performed as a single undertaking.

(b) Cost of alterations. (1) If an area containing a primary function has been altered without providing an accessible path of travel to that area, and subsequent alterations of that area, or a different area on the same path of travel, are undertaken within three years of the original alteration, the total cost of alterations to the primary function areas on that path of travel during the preceding three-year period shall be considered in determining whether the cost of making that path of travel accessible is disproportionate.

(2) Only alterations undertaken after July 1, 1991, shall be considered in determining if the cost of providing an accessible path of travel is disproportionate to the overall cost of the alterations. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-43. Alterations; elevator exemption. (a) Installation of an elevator shall not be required in an altered facility that is less than three stories high or has less than 3,000 square feet per story, except with respect to:

- (1) any public accommodation located in a shopping center or a shopping mall;
- (2) the professional office of a health care provider; and
- (3) any public transportation facility.

(b) The exemption provided in subsection (a) of this regulation shall not obviate or limit in any way the obligation to comply with the other accessibility requirements established by the act or these regulations. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-44. Alterations; historic preservation. (a) Alterations to buildings or facilities

that are eligible for listing in the national register of historic places under the national historic preservation act (16 U.S.C. 470 et seq.), or are designated as historic under state or local law, shall comply to the maximum extent feasible with section 4.1.7 of appendix A to 28 CFR Part 36 of the Americans with disabilities act accessibility guidelines dated July 26, 1991.

(b) If it is determined under the procedures set out in section 4.1.7 of appendix A to the Americans with disabilities act accessibility guidelines dated July 26, 1991 that it is not feasible to provide physical access to an historic property that is a place of public accommodation in a manner that will not threaten or destroy the historic significance of the building or facility, alternative methods of access shall be provided pursuant to the requirements of K.A.R. 21-70-41. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-45. Standards for new construction and alterations. New construction and alterations subject to the act and this regulation shall comply with the standards for accessible design published in appendix A to 28 CFR Part 36, the Americans with disabilities act accessibility guidelines (ADAAG), dated July 26, 1991. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-46. (a) The term “disability” shall not be interpreted to include:

- (1) transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, gender identity disorders not resulting from physical impairments, or other sexual behavior disorders;
- (2) compulsive gambling, kleptomania, or pyromania; or
- (3) psychoactive substance use disorder resulting from current illegal use of drugs.

(b) The phrase “physical or mental impairment” shall not be interpreted to include homosexuality or bisexuality. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-47. Smoking. This act shall not preclude the prohibition of, or the imposition of restrictions on smoking in places of public accommodation. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-48. Health insurance, life insurance and other benefit plans. (a) Any insurer, hospital, medical service company, health maintenance organization, or any similar entity or agent of an entity that administers benefit plans may underwrite risks, classify risks, or administer risks in a manner based on or not inconsistent with state law.

(b) Any person or organization covered by the act may establish or administer the terms of a bona fide benefit plan that are based on underwriting risks, classifying risks, or administering such risks in a manner based on or not inconsistent with state law.

(c) Any person or organization covered by the act may establish, sponsor, observe, or administer the terms of a bona fide benefit plan that is not subject to state laws that regulate insurance.

(d) The activities described in subsections paragraphs (a), (b), and (c) shall be permitted unless these activities are a subterfuge to evade the purposes of the act.

(e) A public accommodation shall not refuse to serve an individual with a disability because its insurance company conditions coverage or rates on the absence of individuals with disabilities. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-49. Personal devices and services. A public accommodation shall not be required to provide its customers, clients, or participants with:

(a) personal devices, such as wheelchairs;

(b) individually prescribed devices, such as prescription eyeglasses or hearing aids; or

(c) services of a personal nature including assistance in eating, toileting, or dressing. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-50. Illegal use of drugs. The term “illegal use of drugs” shall not include the use of a drug taken under the supervision of a licensed health care professional, or other uses authorized by the controlled substances act, 21 U.S.C. 812, or other provisions of federal or Kansas law. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-51. Illegal use of drugs. (a) Except as provided in paragraph (c)(2), the act and these regulations shall not be construed as prohibiting

discrimination against an individual based on that individual's current illegal use of drugs.

(b) A public accommodation shall not discriminate on the basis of illegal use of drugs against an individual who is not engaging in current illegal use of drugs and who:

(1) has successfully completed a supervised drug rehabilitation program or has otherwise been rehabilitated successfully;

(2) is currently participating in a supervised rehabilitation program; or

(3) is erroneously regarded as engaging in such use.

(c) (1) A public accommodation shall not deny health services, or services provided in connection with drug rehabilitation, to an individual on the basis of that individual's current illegal use of drugs, if the individual is otherwise entitled to such services.

(2) Any drug rehabilitation or treatment program may deny participation to individuals who engage in the illegal use of drugs while they are in the program. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-52. Illegal use of drugs; drug testing. (a) The act and these regulations shall not prohibit a public accommodation from adopting or administering reasonable policies or procedures that are designed to ensure that an individual who formerly engaged in the illegal use of drugs is not currently engaging in the illegal use of drugs. These policies and procedures may include drug testing.

(b) Nothing in this regulation shall be construed to encourage, prohibit, restrict, or authorize testing for the illegal use of drugs. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-53. Relationship to other law. (a) These regulations shall not be construed to invalidate or limit the remedies, rights and procedures of any other state or local laws that provide greater or equal protection for the rights of individuals with disabilities or individuals associated with them.

(b) Except as otherwise provided in these regulations, these regulations shall not be construed to apply a lesser standard than the standards applied under the Kansas handicapped accessibility standards, K.S.A. 1993 Supp. chapter 58, article 13, or regulations issued by the attorney general

or secretary of administration of the state of Kansas pursuant to that act. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

21-70-54. Certification of state laws or local building codes. (a) For purposes of this regulation:

(1) “assistant attorney general” means the assistant attorney general for civil rights, the United States department of justice (DOJ), or his or her designee;

(2) “certification of equivalency” means a final certification by the assistant attorney general that a code meets or exceeds the minimum requirements of title III of the Americans with disabilities act (ADA), 42 U.S.C. 12181, for accessibility and usability of facilities covered by that title; and

(3) “code” means a state law or local building code or similar ordinance, or part thereof, that establishes accessibility requirements.

(b) If the assistant attorney general certifies that a code meets or exceeds the minimum requirements of title III of the ADA at any proceeding under the act, the DOJ certification of equivalency shall be rebuttable evidence that the state law or local ordinance does meet or exceed the minimum requirements of the act for accessibility and usability of facilities covered by the act. (Authorized by K.S.A. 44-1004; implementing K.S.A. 44-1009; effective Dec. 19, 1994.)

Articles 71 to 79.—RESERVED

Article 80.—GUIDELINES ON AGE DISCRIMINATION IN EMPLOYMENT

21-80-1. Unlawful employment practices based on age. No employer, employment agency, or labor organization shall set an arbitrary age limit in relation to employment or membership except as otherwise provided by commission rules or by the Kansas age discrimination in employment act. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-2. Job opportunities advertising. Help wanted notices or advertisements shall not contain age-specific terms and phrases, including “young,” “boy,” “girl,” “college student,” “recent college graduate,” “retired person,” or others of a similar nature, unless a bona fide occupational requirement for the position has been established.

(Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-3. Age information on job applications and other preemployment inquiries.

(a) Any preemployment inquiry in connection with prospective employment which expresses directly or indirectly any limitation, specification, or discrimination as to age shall be unlawful unless based upon a bona fide occupational qualification. The burden shall be on the employer, employment agency or labor organization to demonstrate that the direct or indirect preemployment inquiry is based upon a bona fide occupational qualification.

(b) The following inquiries shall be permissible:

(1) Preemployment inquiries regarding the age of an applicant if the inquiry is made in good faith for a nondiscriminatory purpose; and

(2) preemployment inquiries to determine that an applicant is over 18 years of age. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-4. Bona fide occupational qualifications. (a) The bona fide occupational qualification exception as to age shall be narrowly construed.

(b) An employer asserting a bona fide occupational qualification defense has the burden of proving that:

(1) the age limit is reasonably necessary to the essence of the business; and

(2)(A) that all or substantially all individuals excluded from the job involved are in fact not qualified; or

(B) that some of the individuals were excluded on the basis of a trait that cannot be ascertained except by reference to age.

(c) If the employer’s bona fide occupational qualification defense is based on public safety, the employer shall prove that the challenged practice does effectuate that goal and that there is no acceptable alternative which would better advance it or equally advance it with less discriminatory impact. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-5. Differentiations based on necessary factors other than age. (a) If an employ-

ment practice uses age as a limiting criterion, the defense that the practice is justified by a necessary factor other than age is unavailable.

(b) Any employment practice, including a test, which is claimed as a basis for different treatment of employees or applicants for employment on the grounds that it is a necessary factor other than age, may only be justified on the basis of business necessity or valid business motive if such a practice has an adverse impact on individuals within the protected age group. Tests which are asserted as reasonable factors other than age will be scrutinized in accordance with the standards set forth at Article 30 of these regulations.

(c) If the exception of a necessity factor other than age is raised against an individual claim of discriminatory treatment, the employer shall bear the burden of proving the necessary factor other than age.

(d) An employment practice based on the average cost of employing older employees as a group shall be unlawful except with respect to employee benefit plans which qualify for the section 1113(b)(2) exception to the Kansas age discrimination in employment act. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-6. Bona fide seniority systems. (a)

Each bona fide seniority system shall be based on length of service as the primary criterion for the equitable allocation of available employment opportunities and prerogatives among younger and older workers. Other secondary factors, including merit, capacity, or ability, also may be used.

(b) A seniority system which gives those with longer service lesser rights, and results in discharge or less favored treatment to older workers, may be found to be a subterfuge to evade the purposes of the Kansas age discrimination in employment act.

(c) Essential terms and conditions of a seniority system shall be communicated to the affected employees and applied uniformly to all those affected, regardless of age. Any seniority system shall not be considered a bona fide seniority system within the meaning of the Kansas age discrimination in employment act if its terms and conditions are not communicated and applied as required by this subsection. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-7. Prohibition of involuntary retirement. (a) Each seniority system or employee benefit plan shall not require or permit the involuntary retirement of any individual. Accordingly, any system or plan provision requiring or permitting involuntary retirement shall be unlawful, unless the provision is otherwise permitted by state or federal law or by an ordinance or resolution which preempts, supersedes or otherwise takes precedence over the Kansas age discrimination in employment act.

(b) Any plan may permit individuals to elect early retirement at a specified age at their own option. Any plan may require early retirement for reasons other than age. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

21-80-8. Exemption for employees serving under a contract of unlimited tenure. (a)

The exemption for employees serving under a contract of unlimited tenure at an institution of higher education may be applied to any individual who attains age 70 prior to January 1, 1994, and whose job duties and responsibilities cease prior to January 1, 1994, regardless of the contract expiration date.

(b) The party seeking to invoke the exemption for employees serving under a contract of unlimited tenure shall have the burden of showing that every element of the exemption has been met clearly and unmistakably. This exemption shall be narrowly construed.

(c) Definitions.

(1) "Institution of higher education" means all public and private universities and colleges which grant tenure to employees.

(2) "Any employee" means faculty, teachers and other groups of employees who have tenured status at an institution of higher education, including academic deans, scientific researchers, professional librarians and counseling staff.

(3) "Tenure" means an arrangement under which certain appointments in an institution of higher education are continued until retirement for age or physical disability, subject to dismissal for adequate cause or under extraordinary circumstances on account of financial exigency or change of institutional program.

(4) "Unlimited" means tenure which is not limited to a specific term. A contract or other similar arrangement which is limited to a specific term shall not meet the requirements of the exemption.

(d) A contract or other similar arrangement which meets the standards in the "1940 Statement of Principles on Academic Freedom and Tenure," jointly developed by the Association of American Colleges and the American Association of University Professors, shall be deemed to satisfy the tenure requirements of the exemption.

(e) Any employee who is not assured of a continuing appointment either by contract, unlimited tenure or another similar arrangement shall not be exempted from the prohibitions against compulsory retirement, even if the employee performs functions identical to those performed by employees with appropriate tenure.

(f) Any employee within the exemption may lawfully be required to retire on account of age at age 70 or above. In the alternative, the employer may retain such an employee either in the same position or status or in a different position or status if the employee voluntarily accepts this new position or status. Any employee who accepts a nontenured position or part-time employment shall not be treated any less favorably, on account of age, than any similarly situated younger employee, unless the less favorable treatment is excused by an exception of the Kansas age discrimination in employment act. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113, 44-1118; effective Dec. 28, 1992.)

21-80-9. Exemption for bona fide executive or high policy making employees. (a) The party seeking to invoke the exemption for bona fide executive or high policy-making employees shall have the burden of showing that every element of the exemption has been met clearly and unmistakably. This exemption shall be narrowly construed.

(b) Any employee within the exemption may lawfully be required to retire on account of age at age 65 or above. In the alternative, the employer may retain such an employee either in the same position or status or in a different position or status. Any employee who accepts such a new status or position shall not get treated any less favorably, on account of age, than any similarly situated younger employee.

(c) The bona fide executive exemption shall apply to top-level employees who exercise substantial executive authority over a significant number of employees and a large volume of business.

Any individual in the corporate organizational structure who possesses a comparable or greater

level of responsibility and authority, as measured by established and recognized criteria, shall also qualify for this exemption.

(d) The phrase "high policymaking position" shall be limited to certain top-level employees:

- (1) who are not bona fide executives;
- (2) who are individuals who have little or no line authority; and

(3) whose position and responsibility are such that they play a significant role in the development of corporate policy and effectively recommend its implementation.

(e) Each employee qualifying for this exemption shall have been a bona fide executive or held a high policy-making position, as those terms are defined in this regulation, for the two-year period immediately before retirement.

(f) "Annual retirement benefit" means the aggregate sum payable during each one-year period of retirement. The initial one-year period shall commence from the date the benefits first became receivable by the retiree. Once established, the annual period upon which calculations are based may not be changed from year to year.

(g) The annual retirement benefit shall be immediately available to the employee retiring under this exemption. For purposes of determining compliance, "immediate" means that the payment of plan benefits, in a lump sum or the first of a series of periodic payments, shall occur not later than 60 days after the effective date of the retirement in question. The fact that an employee will receive benefits only after expiration of the 60-day period shall not preclude retirement under the exemption, if the employee could have elected to receive benefits within that period.

(h) To determine whether the aggregate annual retirement benefit equals at least \$44,000, only benefits authorized by and provided under the terms of a pension, profit-sharing, savings, or deferred compensation plan shall be included.

(i)(1) The annual retirement benefit shall be nonforfeitable. Accordingly, the exemption shall not be applied to any employee subject to plan provisions which could cause the cessation of payments to a retiree or result in the reduction of benefits to less than \$44,000 in any one year. However, retirement benefits shall not be considered forfeitable solely because the benefits are discontinued or suspended for reasons permitted under section 411(a)(3) of the Internal Revenue Code.

(2) An annual retirement benefit shall not be

considered forfeitable merely because the minimum statutory benefit level is not guaranteed against the possibility of plan bankruptcy or is subject to benefit restrictions in the event of early termination of the plan in accordance with Treasury Regulation 1.401-4(c). However, there shall be at least a reasonable expectation that the plan will meet its obligations when the retirement in question becomes effective. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A.

1991 Supp. 44-1113, 44-1118; effective Dec. 28, 1992.)

21-80-10. Firefighters and law enforcement officers. The party seeking to invoke the exemption for firefighters and law enforcement officers shall have the burden of showing that every element of the exemption has been met clearly and unmistakably. (Authorized by K.S.A. 1991 Supp. 44-1121; implementing K.S.A. 1991 Supp. 44-1113; effective Dec. 28, 1992.)

The Kansas Human Rights Times

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2025 Kansas Statutes

31-132a. Fire safety and prevention; apartment house, defined. Every building or other structure, together with any building or structure used in connection therewith, kept, used, maintained, advertised, or held out to the public to be a place where furnished or unfurnished living accommodations other than sleeping accommodations for transient guests may be rented as a single room or as a suite of rooms, containing three (3) or more single units or suites, or both, regardless of the number of tenants therein, and regardless of whether any such room or suite of rooms is occupied by an owner or operator of such a building or structure, shall, for the purpose of this act, be deemed an apartment house.

History: L. 1975, ch. 220, § 2; July 1.

2025 Kansas Statutes

31-133. Fire marshal; power and duties; rules and regulations. (a) The state fire marshal shall adopt reasonable rules and regulations, consistent with the provisions of this act, for the safeguarding of life and property from fire, explosion and hazardous materials. Such rules and regulations shall include, but not be limited to, the following:

- (1) The keeping, storage, use, sale, handling, transportation or other disposition of highly flammable materials, including crude petroleum or any of its products, natural gas for use in motor vehicles, and of explosives, including gunpowder, dynamite, fireworks and firecrackers. Any such rules and regulations may prescribe the materials and construction of receptacles and buildings to be used for any of such purposes;
- (2) the transportation of liquid fuel over public highways in order to provide for the public safety in connection therewith;
- (3) the construction, maintenance and regulation of exits and fire escapes from buildings and all other places in which people work, live or congregate from time to time for any purpose, including apartment houses, as defined by K.S.A. 31-132a, and amendments thereto. Such rules and regulations shall not apply to buildings used wholly as dwelling houses containing no more than two families;
- (4) the installation and maintenance of equipment intended for fire control, detection and extinguishment in all buildings and other places in which persons work, live or congregate from time to time for any purpose, including apartment houses as defined by K.S.A. 31-132a, and amendments thereto. Such rules and regulations shall not apply to buildings used wholly as dwelling houses containing no more than two families;
- (5) requiring administrators of public and private schools and educational institutions, except community colleges, colleges and universities, to conduct at least four fire drills each school year at some time during school hours, aside from the regular dismissal at the close of the day's session, and prescribing the manner in which such fire drills are to be conducted;
- (6) procedures for the reporting of fires and explosions occurring within the state and for the investigation thereof;
- (7) procedures for reporting by healthcare providers of treatment of second and third degree burn wounds involving 20% or more of the victim's body and requiring hospitalization of the victim, which reporting is hereby authorized notwithstanding any provision of K.S.A. 60-427, and amendments thereto, to the contrary;
- (8) requiring administrators of public and private schools and educational institutions, except community colleges, colleges and universities, to establish tornado procedures. Such procedures shall: (A) Provide for at least two tornado drills to be conducted each school year, of which one shall be conducted in September and one shall be conducted in March, at some time during school hours, aside from the regular dismissal at the close of the day's session; (B) describe the manner in which such tornado drills are to be conducted; and (C) shall be subject to approval by the state fire marshal;
- (9) requiring administrators of community colleges, colleges and universities to establish tornado procedures, which procedures shall be subject to approval by the director of the disaster agency of the county;
- (10) the development and implementation of a statewide system of hazardous materials assessment and response;
- (11) the use of pyrotechnics, pyrotechnic devices and pyrotechnic materials;

(12) requiring administrators of public and private schools and educational institutions, except community colleges, colleges and universities, to conduct at least three crisis drills each school year at some time during school hours, aside from the regular dismissal at the close of the day's session. The manner in which such crisis drills are conducted may be subject to approval by the safe and secure schools unit of the Kansas department of education; and

(13) other safeguards, protective measures or means adapted to render inherently safe from the hazards of fire or the loss of life by fire any building or other place in which people work, live or congregate from time to time for any purpose, except buildings used wholly as dwelling houses containing no more than two families.

(b) Any rules and regulations of the state fire marshal adopted pursuant to this section may incorporate by reference specific editions, or portions thereof, of nationally recognized fire prevention codes.

(c) The rules and regulations adopted pursuant to this section shall allow facilities in service prior to the effective date of such rules and regulations, and not in strict conformity therewith, to continue in service, so long as such facilities are not determined by the state fire marshal to constitute a distinct hazard to life or property. Any such determination shall be subject to the appeal provisions contained in K.S.A. 31-140, and amendments thereto.

(d) The state fire marshal may grant an exemption pursuant to K.S.A. 31-136, and amendments thereto, that authorizes a variance for the number or manner of drills conducted pursuant to subsection (a)(5), (8) or (12) for students receiving special education or related services.

History: L. 1972, ch. 157, § 2; L. 1974, ch. 172, § 1; L. 1975, ch. 219, § 1; L. 1975, ch. 220, § 1; L. 1976, ch. 200, § 1; L. 1982, ch. 168, § 1; L. 1985, ch. 128, § 1; L. 1988, ch. 127, § 1; L. 1999, ch. 65, § 1; L. 2004, ch. 1, § 7; L. 2019, ch. 27, § 1; July 1.

2025 Kansas Statutes

31-134. Adoption of rules and regulations, procedure; distribution; fees; remittance; designated as fire prevention code; judicial review. (a) Any rules and regulations adopted by the state fire marshal under this act shall comply with the provisions of K.S.A. 77-415 et seq., and amendments thereto, except that:

(1) In addition to the method of providing notice of the public hearing prescribed by K.S.A. 77-421, and amendments thereto, such notice shall be published three times in at least two newspapers of general circulation, with the last published notice to appear not less than 15 days prior to the public hearing.

(2) The state fire marshal shall make available for general distribution upon request copies of any nationally recognized code adopted by reference, marked so as to indicate the provisions thereof which have been so adopted. The state fire marshal may charge a fee for the copies in an amount equal to the cost of the copies and their distribution. Upon collection of any such fees, the state fire marshal shall remit to the state treasurer such fees in accordance with the provisions of K.S.A. 75-4215, and amendments thereto. The state treasurer shall deposit the entire amount in the state treasury. The state treasurer shall credit 10% of each such deposit to the state general fund and shall credit the remainder of each such deposit to the fire marshal fee fund.

(3) In addition to the filing requirements of K.S.A. 77-416, and amendments thereto, the state fire marshal shall publish all such rules and regulations and make the same available for distribution to the general public upon request, but the fire marshal shall not be required to republish the provisions of any nationally recognized code adopted by reference if such provisions are made available for general distribution upon request to the fire marshal's office.

(b) The rules and regulations adopted by the state fire marshal under authority of this act shall be known and may be cited as the Kansas fire prevention code. Such rules and regulations shall have uniform force and effect throughout the state. No municipality shall enact or enforce any ordinance, resolution or rule or regulation inconsistent therewith, except that nothing in this act shall be construed to impair the power of any municipality to regulate the use of land by zoning or fire district regulations or to prohibit or regulate the sale, handling, use or storage of fireworks within its boundaries. Whenever a question shall arise as to whether another state statute or an enactment of a municipality is inconsistent with the provisions of the fire prevention code, it shall be the duty of the state fire marshal to make such determination after a hearing thereon with all interested parties conducted in accordance with the provisions of the Kansas administrative procedure act. Any action of the state fire marshal pursuant to this section is subject to review in accordance with the Kansas judicial review act.

History: L. 1972, ch. 157, § 3; L. 1980, ch. 120, § 3; L. 1983, ch. 130, § 1; L. 1986, ch. 318, § 24; L. 1988, ch. 356, § 67; L. 1992, ch. 220, § 2; L. 2001, ch. 5, § 96; L. 2010, ch. 17, § 44; L. 2011, ch. 53, § 13; July 1.

2025 Kansas Statutes

31-135. Advisory committees to assist fire marshal; membership; no compensation. Whenever it is deemed necessary, the state fire marshal may appoint an advisory committee or committees to assist in the formulation and revision of the state fire prevention code and in the establishment of standards for certification of members of fire departments to make arrests, carry firearms and conduct searches and seizures pursuant to K.S.A. 31-157. Any such advisory committee shall serve without compensation. The membership of the advisory committee or committees shall be selected on the basis of their individual expertise and knowledge in the area of fire prevention under consideration.

History: L. 1972, ch. 157, § 4; L. 1982, ch. 135, § 3; July 1.

2025 Kansas Statutes

31-136. Same; exemptions from regulations, when; procedure. The state fire marshal shall have the power to grant exemptions from the application of specific requirements of regulations promulgated pursuant to this act. Any such exemption shall be granted only upon written request which clearly demonstrates that the enforcement of a specific requirement of a rule or regulation will cause unnecessary hardship to the petitioner, or that such exemption is necessary for the petitioner to take advantage of new methods or equipment of recognized adequacy which conforms to fundamental safety standards. The particulars of any exemption so granted shall be set forth in writing, and a copy thereof shall be retained in the office of the state fire marshal.

History: L. 1972, ch. 157, § 5; July 1.

2025 Kansas Statutes

31-137. Same; enforcement of act and regulations; investigations; entry and examination of buildings and premises; report, filing. The state fire marshal, deputies of the fire marshal, the chief of any organized fire department of any municipality, whether such fire department is regular or volunteer, or any member of any such fire department who has been duly authorized by the chief thereof, shall enforce the provisions of this act and any rules and regulations adopted pursuant thereto. Such persons are authorized to make any investigations deemed necessary of any fire or explosion occurring within this state. Such persons shall make an investigation of any fire or explosion occurring within this state, or an attempt to cause any fire or explosion within this state, if there is reason to believe that the fire was of an incendiary origin or was an attempt to defraud an insurance company. In addition, the chief of any organized fire department of any municipality may designate other qualified persons to conduct such investigations in such municipality. In order to carry out such investigations, the state fire marshal and those persons designated by or authorized to be designated by this section shall have the right and authority at all times of day or night to enter upon or examine, in accordance with existing laws and regulations, any building or premises where any fire or explosion or attempt to cause a fire or explosion has occurred. Such persons shall make a written report of the findings of any investigation conducted pursuant to this section which shall be filed in the office of the state fire marshal.

History: L. 1972, ch. 157, § 6; L. 2004, ch. 26, § 12; July 1.

2025 Kansas Statutes

31-138. Same; hearings; information and evidence to attorney general or county attorney; prosecution; assistance by state fire marshal. The state fire marshal or any of the state fire marshal's deputies, in making the investigations authorized or required in K.S.A. 31-137, and amendments thereto, may hold a hearing with all interested parties in accordance with the provisions of subsection (a) of K.S.A. 31-141, and amendments thereto. If the state fire marshal or any of the state fire marshal's deputies, having made the investigation, shall be of the opinion that there is probable cause to believe any person has violated any provision of this act or any of the rules and regulations adopted pursuant to this act, or that any person is guilty of a criminal conduct under the laws of this state with respect to any fire or explosion, the state fire marshal shall furnish to the attorney general or the proper county attorney the names of the witnesses and all of the information and evidence obtained from the investigation, including a copy of all pertinent and material testimony taken in the case; and the attorney general or such county attorney shall take such action as the evidence and testimony justify. The state fire marshal has the right either in person or by the state fire marshal's deputy to assist in any prosecution arising therefrom.

History: L. 1972, ch. 157, § 7; L. 1988, ch. 356, § 68; July 1, 1989.

2025 Kansas Statutes

31-139. Same; right of entry to determine compliance with law and regulations; complaint; order to cease and desist. The state fire marshal and those persons designated in K.S.A. 31-137 shall have the authority during all reasonable hours of operation to enter, in accordance with existing laws, in and upon all buildings and premises subject to this act for the purpose of examination, inspection and investigation to determine compliance with the rules and regulations promulgated under the authority of this act. Whenever the state fire marshal or any person designated in K.S.A. 31-137 finds any violation of this act or the act of which this section is amendatory, or of any of the rules or regulations issued thereunder, or any lawful order issued pursuant thereto, he may file a criminal complaint with the attorney general or the proper district or county attorney or he may issue an order to the owner or his agent to cease and desist such violations. Any order so issued may be appealed by any person aggrieved thereby, as provided in K.S.A. 31-140, but unless otherwise stated in the order, the filing or pendency of such appeal shall not abate or operate as a stay of the effect of such order.

History: L. 1972, ch. 157, § 8; L. 1974, ch. 172, § 2; July 1.

2025 Kansas Statutes

31-140. Same; appeals from orders; notice and hearing; decisions; compliance. Any person aggrieved by any order or ruling issued pursuant to the provisions of this act may appeal such order or ruling to the state fire marshal within 15 days from the date of the service of such order by filing a notice of such appeal in the office of the state fire marshal. The state fire marshal or a presiding officer from the office of administrative hearings shall hear such person within 30 days after the receipt of such notice of appeal, and the hearing shall be held in accordance with the provisions of the Kansas administrative procedure act. The state fire marshal shall file a decision thereon and, unless by authority of the state fire marshal the order is revoked or modified, the order shall be complied with within the time fixed in such decision.

History: L. 1972, ch. 157, § 9; L. 1988, ch. 356, § 69; L. 2004, ch. 145, § 11; July 1, 2009.

2025 Kansas Statutes

31-141. Same; powers of fire marshal in conduct of hearing; subpoena of witnesses and records; record of proceedings; statement; failure to comply with subpoena, effect; order by district court; service of process; costs, taxation. (a) Whenever the state fire marshal or the state fire marshal's authorized representative is authorized to conduct a hearing under the provisions of K.S.A. 31-138, and amendments thereto, the state fire marshal shall have the power to administer oaths, examine and cross-examine witnesses, receive oral and documentary evidence, and shall have the power to subpoena witnesses, compel their attendance, and require the production of books, papers, records, correspondence or other documents which are deemed relevant to the inquiry. The state fire marshal at such hearing may, and upon the request of any party shall, cause to be made a stenographic record of all the evidence and all the proceedings had at such hearing. If no stenographic record is made and if a judicial review is sought, the state fire marshal shall prepare a statement of the evidence and proceedings for use on review. In case of a refusal of any person to comply with any subpoena issued hereunder or to testify with respect to any matter concerning which such person may be lawfully interrogated, the district court of Shawnee county or the county wherein such party resides, on application of the state fire marshal, may issue an order requiring such person to comply with such subpoena and to testify. Any failure to obey any such order of the court may be punished by the court as a contempt thereof. Nothing contained in this act shall require the observance at any such hearing of formal rules of pleading or evidence. Notice of such hearings and any other process caused to be issued by the state fire marshal shall be served in substantial compliance with the requirements for service of process in district court.

(b) Whenever any person shall appeal an order or ruling issued pursuant to the provisions of this act, as provided in K.S.A. 31-140, and amendments thereto, and after a hearing the decision of the state fire marshal is adverse to such person, the costs of the hearing, including witness fees, shall be taxed to such person.

History: L. 1972, ch. 157, § 10; L. 1988, ch. 356, § 70; July 1, 1989.

2025 Kansas Statutes

31-142. Judicial review of fire marshal's action. Any action of the state fire marshal pursuant to K.S.A. 31-140, and amendments thereto, is subject to review in accordance with the Kansas judicial review act.

History: L. 1972, ch. 157, § 11; L. 1977, ch. 105, § 13; L. 1986, ch. 318, § 25; L. 2010, ch. 17, § 45; July 1.

2025 Kansas Statutes

31-143. Fire marshal authorized to advise and assist state civil defense director; assistance to municipalities; responsibilities and duties of state fire marshal. (a) The state fire marshal shall be authorized to advise, assist and coordinate with the state civil defense director in the development of civil defense or disaster plans, and on request shall assist any municipality in the enforcement of the state fire prevention code. He shall have the responsibility for the implementation of any fire safety programs developed by the state fire marshal and designed to minimize fire hazards and disasters in loss of life and property from these causes. Such responsibilities shall include, but are not limited to, the establishment and enforcement of fire safety practices throughout the state; preventive inspection and correction activities; coordination of fire safety programs with volunteer and paid fire companies, other state agencies and municipalities, and the state fire marshal shall analyze and evaluate Kansas fire loss statistics in order to make a determination of the problems.

(b) The state fire marshal upon request shall assist the chief of any recognized fire company or department, any legally designated fire marshal of a municipality and the personnel of other state agencies in fire prevention matters.

History: L. 1972, ch. 157, § 12; July 1.

2025 Kansas Statutes

31-144. School buildings; definition; inspection; correction of violations; closing in lieu of repair; judicial review. (a) As used in this act, "school building" means any building or structure operated or used for any purpose by, or located upon the land of, any school district, community college district, area vocational school, area vocational-technical school, institution under the state board of regents or any private or nonpublic school, college or university, whether or not operated for profit. The term school building does not include within its meaning any single-family dwelling or duplex constructed as part of a vocational education program or construction trades class if such single-family dwelling or duplex is to be sold, after its construction, for private use.

(b) All school buildings shall be inspected at least once each year. In all cities of the first and second class in which there is a full-time fire chief or full-time fire inspector, the inspection of the school buildings shall be conducted by such chief or inspector. The chief or inspector shall report the findings from the inspection to the state fire marshal within 30 days after such inspection. In all other cases, school buildings shall be inspected by the state fire marshal or the fire marshal's authorized assistants.

(c) The state fire marshal shall order the governing body having control of any school building or facility thereof to correct any condition in such building or facility which is in violation of this act, or any condition which the fire marshal deems dangerous, or which in any way prevents a speedy exit from such building. After any such order is rendered, such governing body shall make the changes required to comply therewith. A board of education of any school district is hereby authorized to make expenditures from its general fund or capital outlay fund to comply with such order, or the board may issue no-fund warrants in such amounts as are necessary to pay expenses incurred in complying with such order. Such no-fund warrants shall be issued, registered, paid and redeemed and bear interest as provided by K.S.A. 79-2940, and amendments thereto, except that the approval of the state board of tax appeals shall not be required. Such warrants shall recite that they are issued by the board of education of the school district under authority of this act. Any board of education issuing warrants hereunder shall make a tax levy at the same time as other tax levies are made, after such warrants are issued, sufficient to pay such warrants and the interest thereon.

(d) Whenever a board of education receives an order from the state fire marshal pursuant to subsection (c), the board, in lieu of repairing or remodeling the school building or facility as ordered by the state fire marshal, may close such building or facility as an attendance center. Whenever any board of education finds that any such order of the state fire marshal involves a cost in excess of that which the board of education finds the school district can afford, or that the changes ordered are unwarranted or unnecessary, the board may petition for review of such order in the district court of the home county of such school district. Upon receiving such petition, the district court shall appoint three disinterested commissioners, one of whom shall be a licensed architect. The commissioners shall inspect the building or facility affected by the order and report to the court its findings of fact as to the necessity for the improvements or changes ordered by the state fire marshal, together with the estimated cost of each such improvement or change and such other recommendations as the commissioners deem advisable. Upon receiving such findings of fact and recommendations, or any other evidence relating to the petition for review, the court

shall enter its order affirming, reversing or modifying the order of the state fire marshal. Such order of the court may be reviewed by the appellate courts in the same manner as other orders and judgments of the district court may be reviewed.

(e) Except as provided in subsection (d), any action of the state fire marshal pursuant to this section is subject to review in accordance with the Kansas judicial review act.

History: L. 1972, ch. 157, § 13; L. 1986, ch. 318, § 26; L. 1988, ch. 128, § 1; L. 1991, ch. 230, § 2; L. 1992, ch. 280, § 52; L. 2008, ch. 109, § 57; L. 2010, ch. 17, § 46; L. 2014, ch. 141, § 51; July 1.

2025 Kansas Statutes

31-145. Powers of actual members of organized fire departments. Actual members of any organized fire department, whether regular or volunteer, of any municipality shall be vested with police power to form fire lines, to prohibit persons from interfering with firefighters in the discharge of their duties, interfering with apparatus, running over fire hose and trespassing upon private property, and shall have power to blockade any public highway temporarily while in the discharge of their official duties; and for the purpose of effectuating this police power shall have the power to make arrests for violation of any lawful orders made hereunder.

History: L. 1972, ch. 157, § 14; L. 2009, ch. 42, § 1; July 1.

2025 Kansas Statutes

31-146. Mandatory provisions of regulations governing transportation of liquid fuels; how inspections performed. The rules and regulations promulgated by the state fire marshal for transporting liquid fuel shall require that the vehicles used in such transportation be inspected by qualified inspectors sufficiently often to insure operation with maximum safety, and the operator of any such vehicle which is subject to the jurisdiction of the state corporation commission shall file with the commission copies of all such inspector's clearance receipts for such vehicles. The inspections required herein shall be performed by inspectors in the state fire marshal's office, except that the state fire marshal may issue a private inspector's permit to any person having registered in his name in this state one (1) or more vehicles used for transporting liquid fuel, if such person maintains inspection facilities and personnel qualified to perform the inspection to the satisfaction of the state fire marshal's office.

History: L. 1972, ch. 157, § 15; July 1.

2025 Kansas Statutes

31-147. Compliance with regulations by hotels, lodging facilities and restaurants. Hotels, motels, rooming houses, apartment houses, adult care homes, child care facilities, hospitals, adult boarding homes and restaurants shall comply with the rules and regulations promulgated by the state fire marshal for such occupancies.

History: L. 1972, ch. 157, § 16; July 1.

2025 Kansas Statutes

31-148. Inspection of building under jurisdiction of state penal director and division of institutional management. The state fire marshal at least annually shall inspect all buildings under the jurisdiction of the state penal director and the division of institutional management of the department of social welfare.

History: L. 1972, ch. 157, § 17; July 1.

2025 Kansas Statutes

31-150. Fire safety and prevention; school buildings; construction, reconstruction or renovation requirements; accessibility to persons with a disability; building plans, certification; exceptions; rules and regulations. (a) Except as otherwise provided in this section, the construction, reconstruction or renovation of school buildings shall comply with the requirements of the 2000 edition of the international building code as published by the international codes council. All electric wiring shall conform to requirements of the 1999 issue of the national electric code of the national fire protection association.

(b) The construction, reconstruction or renovation of mobile, modular, portable or relocatable school buildings shall conform to the requirements of the 2000 edition of the life safety code as published by the national fire protection association.

(c) The construction, reconstruction or renovation of all school buildings shall conform to the provisions for making buildings and facilities accessible to, and usable by, persons with a disability, as required by K.S.A. 58-1301 through 58-1311, and amendments thereto.

(d) No contract shall be let for the construction, reconstruction or renovation of any school building, and it shall be illegal to pay out any public funds for the construction, reconstruction or renovation of a school building unless the plans for such building bear the seal of an architect or a professional engineer licensed by the state board of technical professions of the state of Kansas certifying that the plans meet the applicable requirements of this act.

(e) The provisions of subsections (c) and (d) shall not apply to any building or structure operated or used for any purpose by, or located upon the land of any community college, technical college, municipal university, institution under the governance of the state board of regents or other institutions of post secondary education as defined by K.S.A. 74-3249, and amendments thereto. Prior to construction, reconstruction or renovation of a building or structure, all community colleges, technical colleges, any municipal university, institutions under the governance of the state board of regents or other institutions of post secondary education as defined by K.S.A. 74-3249, and amendments thereto, shall submit to the state fire marshal a code footprint for evaluation and approval of the fire/life safety features of such building or structure.

(f) The relocation of school buildings to which the provisions of subsection (b) apply shall not be construed to be construction or reconstruction under the provisions of this section.

(g) The state fire marshal shall adopt rules and regulations specifying those subsequent editions of the codes enumerated in subsections (a) and (b) which the state fire marshal has determined provide protection equivalent to those editions specified herein. Compliance with any subsequent edition specified by such rules and regulations shall be considered compliance with the edition of the code specified by this section.

History: L. 1972, ch. 157, § 19; L. 1978, ch. 150, § 1; L. 1978, ch. 336, § 1; L. 1979, ch. 115, § 1; L. 1981, ch. 343, § 2; L. 1984, ch. 149, § 1; L. 1986, ch. 147, § 1; L. 1992, ch. 208, § 4; L. 2001, ch. 23, § 1; L. 2004, ch. 166, § 3; L. 2010, ch. 149, § 2; July 1.

2025 Kansas Statutes

31-157. Fire marshal deputies and investigatory personnel; law enforcement powers, when; training required, exceptions. (a) The state fire marshal, the state fire marshal's deputies and full-time fire prevention personnel assigned investigation duties who are members of a paid fire department who have been certified by the state fire marshal pursuant to this section shall have the authority to make arrests, carry firearms and conduct searches and seizures while investigating any fire or explosion in which arson or attempted arson is suspected or in which there is an attempt or suspected attempt to defraud an insurance company. Any affidavits necessary to authorize arrests, searches or seizures pursuant to this section shall be made in accordance with K.S.A. 22-2302 and 22-2502, and amendments thereto.

(b) The state fire marshal, with the assistance of an advisory committee appointed pursuant to K.S.A. 31-135, and amendments thereto, shall adopt rules and regulations and specify the number of investigators for departments or areas and establish standards for certification of members of fire departments to make arrests, carry firearms and conduct searches and seizures pursuant to this section. No fire department personnel shall be certified to carry firearms under the provisions of this act without having first successfully completed the firearm training course or courses prescribed for law enforcement officers under K.S.A. 74-5604a, and amendments thereto.

(c) With the exception of firearms training, nothing in this section shall be construed to require persons employed prior to the effective date of this act to comply with the standards established by the state fire marshal pursuant to this section as a condition of continued employment, and such persons' failure to comply with such standards shall not make such persons ineligible for any promotional examination for which they are otherwise eligible or affect in any way any pension rights to which they are entitled on the effective date of this act.

History: L. 1982, ch. 135, § 1; L. 2012, ch. 89, § 12; July 1.

2025 Kansas Statutes

31-158. Fire safety and prevention; sale to or purchase by fire department of clothing or equipment which does not meet standards set by national fire protection association; penalty; definition. (a) No person shall knowingly sell or offer for sale in this state to any fire department any item of clothing or equipment intended to protect firefighters from death or injury while fighting fires unless the item of clothing or equipment meets or exceeds the minimum standards established for such item of clothing or equipment by the national fire protection association, in effect on the effective date of this act.

(b) No fire department shall purchase in this state any item of clothing or equipment intended to protect firefighters from death or injury while fighting fires unless the item of clothing or equipment meets or exceeds the minimum standards established for such item of clothing or equipment by the national fire protection association, in effect on the effective date of this act.

(c) A violation of subsection (a) is a class B misdemeanor.

(d) As used in this section, "fire department" means any city, county, township or other public or private fire department.

History: L. 1988, ch. 126, § 1; July 1.

2025 Kansas Statutes

31-159. Violations of fire prevention code, administrative penalties. (a) In addition to any other penalty provided by law, the state fire marshal, upon finding that any person has violated the provisions of the Kansas fire prevention code, may impose a penalty not to exceed \$1,000, which shall constitute an actual and substantial economic deterrent to the violation for which the penalty is assessed.

(b) No penalty shall be imposed pursuant to this section except upon the written order of the state fire marshal to the person who committed the violation. The order shall state the violation, the penalty imposed and the right to appeal to the state fire marshal. Any such person, within 30 days after service of such order, may make written request to the fire marshal for a hearing thereon. The fire marshal shall conduct a hearing in accordance with the provisions of the Kansas administrative procedure act within 30 days after receipt of such request.

(c) Any person aggrieved by any order issued pursuant to this section may appeal such order in accordance with the provisions of the Kansas judicial review act.

(d) All moneys received from penalties imposed pursuant to this section shall be remitted to the state treasurer in accordance with the provisions of K.S.A. 75-4215, and amendments thereto. Upon receipt of each such remittance, the state treasurer shall deposit the entire amount in the state treasury to the credit of the state general fund.

(e) If a fire safety inspection is required to meet licensing requirements of a state agency, the state fire marshal, before imposing a penalty pursuant to this section, shall make written request to the state licensing agency to take appropriate action to require compliance with the Kansas fire prevention code. If the state licensing agency fails to take such action within 60 days after receipt of the state fire marshal's notice, the state fire marshal may impose a penalty as provided by this section.

History: L. 1993, ch. 65, § 1; L. 2001, ch. 5, § 97; L. 2010, ch. 17, § 47; July 1.

2025 Kansas Statutes

31-160. Smoke detectors; citation of act. K.S.A. 31-160 through 31-164 shall be known and may be cited as the smoke detector act.

History: L. 1998, ch. 66, § 12; July 1.

2025 Kansas Statutes

31-161. Same; definitions. When used in this act:

- (a) "Dwelling unit" means a single-family residence, multiple-family residence and each living unit in a mixed-use building.
- (b) "Smoke detector" means a device or combination of devices which operate from a power supply in the dwelling unit or at the point of installation for the purpose of detecting visible or invisible particles of combustion. Such term shall include smoke detectors approved or listed for the purpose for which they are intended by an approved independent testing laboratory.

History: L. 1998, ch. 66, § 13; July 1.

2025 Kansas Statutes

31-162. Same; installation of smoke detectors required; limitations on enforcement; certain evidence inadmissible; insurance payments not affected. (a) Every single-family residence shall have at least one smoke detector on every story of the dwelling unit.

(b) Every structure which:

(1) Contains more than one dwelling unit; or
(2) contains at least one dwelling unit and is a mixed-use structure, shall contain at least one smoke detector at the uppermost ceiling of each interior stairwell and on every story in each dwelling unit.

(c) The owner of a structure shall supply and install all required smoke detectors. The owner of a structure shall test and maintain all smoke detectors, except inside rental units, the occupant shall test and maintain all smoke detectors after taking possession of the dwelling unit.

(d) The smoke detectors required in dwelling units in existence on January 1, 1999, may either be battery-powered or wired into the structure's electrical system, and need not be interconnected. The smoke detectors required in dwelling units constructed after January 1, 1999, shall be wired permanently into the structure's electrical system.

(e) For purposes of this act, manufactured homes as defined in K.S.A. 58-4202, and amendments thereto, shall be subject to the federal, manufactured home construction and safety standards established pursuant to 42 U.S.C. § 5403 in lieu of the standards set forth herein. Owners and occupants of such manufactured homes shall be subject to the testing and maintenance standards for smoke detectors required under this act.

(f) Officials responsible for the enforcement of the smoke detector act shall not enter a dwelling unit solely for the purpose of determining compliance with the provisions of the smoke detector act except when:

(1) Conducting an inspection prior to the issuance of an occupancy permit or building permit;
(2) responding to a report of a fire in a dwelling unit, except in cases of a false alarm;
or
(3) conducting, at the request of the owner or occupant, a home safety inspection.

(g) Evidence of the failure of any property owner to provide an operational smoke detector in a residence as required by this section shall not be admissible in any action for the purpose of determining any aspect of civil liability.

Evidence of the failure of any occupant to properly maintain a smoke detector as required by this section shall not be admissible in any action for the purpose of determining any aspect of civil liability.

(h) The provisions of the smoke detector act shall not constitute grounds for the purpose of offsetting, reducing or denying the payment of amounts due under any contract for or policy of insurance.

History: L. 1998, ch. 66, § 14; July 1.

2025 Kansas Statutes

31-163. Same; violations; penalties. Failure to place or maintain a smoke detector as provided by the smoke detector act shall be a nonclass nonperson misdemeanor. Any fine imposed for a violation of this section shall not exceed \$25.

History: L. 1998, ch. 66, § 15; July 1.

2025 Kansas Statutes

31-164. Same; act in addition to local law. This law shall be in addition to any county resolution or city ordinance relating to regulation of smoke detectors.

History: L. 1998, ch. 66, § 16; July 1.

2025 Kansas Statutes

65-1,200. Citation of act. K.S.A. 65-1,200 to 65-1,214, inclusive, of this act shall be known and may be cited as the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 2; April 22.

2025 Kansas Statutes

65-1,201. Definitions. As used in the residential childhood lead poisoning prevention act:

- (a) "Abatement" means any measure or set of measures designed to permanently eliminate lead-based paint hazards as defined in the federal program.
- (b) "Accredited training program" means a training program that has been accredited by the federal program or the secretary to present training courses to individuals engaged in lead-based paint activities.
- (c) "Business entity" means a company, partnership, corporation, sole proprietorship, association, or other business concern.
- (d) "Certificate" means an authorization issued by the secretary permitting an individual to engage in lead-based paint activities.
- (e) "Federal program" means subpart L, lead-based paint activities of 40 C.F.R. part 745, as in effect on the effective date of this act.
- (f) "Lead-based paint" means paint or other surface coatings that contain lead equal to or in excess of one milligram per square centimeter or more than 0.5% by weight.
- (g) "Lead-based paint activities" means the inspection, assessment and abatement of lead-based paint, including the disposal of waste generated therefrom.
- (h) "License" means an authorization issued by the secretary permitting a business entity to engage in lead-based paint activities.
- (i) "Public agency" means any state agency or political or taxing subdivision of the state and those federal departments, agencies or instrumentalities thereof which are not subject to preemption.
- (j) "Secretary" means the secretary of health and environment.
- (k) "Residential dwelling" means a detached single family dwelling or a single family dwelling unit in a structure that contains more than one separate residential dwelling unit used as a place of residence for habitation by an individual or the individual's immediate family, or both.
- (l) "Habitation" means a place of abode or residence constructed before 1978 where individuals eat, sleep and reside.
- (m) "Immediate family" means spouse, parent, stepparent, child, stepchild or sibling.

History: L. 1999, ch. 99, § 3; April 22.

2025 Kansas Statutes

65-1,202. Development and implementation of prevention program; licensure training and inspections; fees; rules and regulations. The secretary shall administer the provisions of the residential childhood lead poisoning prevention act. In administering the provisions of the residential childhood lead poisoning prevention act, the secretary shall be authorized to:

(a) Develop and implement a childhood lead poisoning prevention program as necessary to protect the health of the children of Kansas, which may include provisions to:

- (1) Investigate the extent of childhood lead poisoning in Kansas;
- (2) develop a data management system designed to collect and analyze information on childhood lead poisoning;
- (3) develop and conduct programs to educate health care providers regarding the magnitude and severity of and the necessary responses to lead poisoning in Kansas;
- (4) issue recommendations for the methods and intervals for blood lead screening and testing of children, taking into account recommendations by the United States centers for disease control and prevention, except that no child shall be screened or tested if the child's parent or guardian objects in writing on the ground that such screening or testing is contrary to the parent's or guardian's religious beliefs and practices;
- (5) develop and issue health advisories urging health care providers to conduct blood lead screening of children;
- (6) encourage health care providers to ensure that parents and guardians of children are advised of the availability and advisability of screening and testing for lead poisoning;
- (7) develop a program to assist local health departments in identification and follow-up of cases of elevated blood lead levels in children and other high-risk individuals; and
- (8) in consultation with appropriate federal, state and local agencies, develop a comprehensive public education program regarding environmental lead exposures and lead poisoning by:

(A) Identifying appropriate target groups that are in a position to prevent lead poisoning or reduce the number of children who are exposed to lead;

(B) assessing the information needed for each of the target groups and determine the best means of educating the members of each target groups; and

(C) disseminating the information to the target groups in an effective manner.

(b) adopt rules and regulations necessary for the administration of the residential childhood lead poisoning prevention act including, but not limited to, licensure of business entities and public agencies, certification of individuals, accreditation of training programs, on-site inspections and requirements, notification and record keeping, procedures and work practice standards relating to lead-based paint activities as are necessary to protect the public health and safety;

(c) adopt by rules and regulations a reasonable schedule of fees for the issuance and renewal of certificates and licenses, training program accreditations and on-site inspections. The fees shall be periodically increased or decreased consistent with the need to cover the direct and indirect costs to administer the program. At no time shall such fees exceed those charged by the United States environmental protection agency for the same or similar regulatory programs. The fees shall be based upon the amount of

revenue determined by the secretary to be required for proper administration of the provisions of the residential childhood lead poisoning prevention act. State and local health department personnel certifying for the purpose of environmental investigation of lead poisoned children shall be exempted from licensure fees;

(d) conduct on-site inspections of procedures being utilized by a licensee during an actual abatement project and conduct inspection of the records pertaining to the residential childhood lead poisoning prevention act;

(e) adopt rules and regulations regarding the distribution of lead hazard information to owners and occupants of housing prior to conducting renovation activities in housing;

(f) develop rules and regulations to control and disposition and reuse of architectural debris that contains lead-based paint.

History: L. 1999, ch. 99, § 4; April 22.

2025 Kansas Statutes

65-1,203. Licensure or certification to perform lead-based paint activities. (a) A business entity or public agency shall not engage in a lead-based paint activity unless the business entity or public agency holds a license issued by the secretary for that purpose.

(b) Except as otherwise provided in the residential childhood lead poisoning prevention act, no individual shall engage in lead-based paint activities unless the individual holds a certificate issued by the secretary for that purpose. In order to qualify for a certificate, an individual must have successfully completed an accredited training program and pass a third party exam as required by the secretary. Any individual who owns and resides in a residential dwelling may perform lead-based paint activities within such residential dwelling even though such individual does not hold a certificate for that purpose under the residential childhood lead poisoning prevention act. All work performed by such individual owner of a residential dwelling must be performed in accordance with state and federal guidelines or statutes, or both.

(c) Any business or public agency that owns or leases a nonresidential dwelling may perform lead-based paint activities within such facility even though such business or public agency does not hold a license for that purpose under the residential childhood lead poisoning prevention act. All work performed by a business or public agency on such facility must be performed in accordance with state and federal guidelines or statutes, or both.

History: L. 1999, ch. 99, § 5; April 22.

2025 Kansas Statutes

65-1,204. Same; qualification requirements. In order to qualify for a license, a business entity or public agency shall:

- (a) Ensure that each employee or agent of the business entity or public agency who will engage in a lead-based paint activity is certified;
- (b) demonstrate to the satisfaction of the secretary that the business entity or public agency is capable of complying with all requirements, procedures and standards of the United States environmental protection agency, the United States occupational safety and health administration and the secretary, as applicable, to lead-based paint activities;
- (c) comply with all rules and regulations adopted by the secretary under the residential childhood lead poisoning prevention act; and
- (d) allow representatives of the secretary, after identification, to enter and inspect any habitation or property on which a habitation is situated at any reasonable time with consent of the owner or under search warrant for the purpose of inspecting lead-based paint activities as required in order to implement provisions of the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 6; April 22.

2025 Kansas Statutes

65-1,205. Remittance of fees. The secretary shall remit all moneys received from the fees established pursuant to the residential childhood lead poisoning prevention act to the state treasurer in accordance with the provisions of K.S.A. 75-4215, and amendments thereto. Upon receipt of each such remittance, the state treasurer shall deposit the entire amount in the state treasury to the credit of the lead-based paint hazard fee fund established in K.S.A. 65-1,206, and amendments thereto.

History: L. 1999, ch. 99, § 7; L. 2001, ch. 5, § 215; July 1.

2025 Kansas Statutes

65-1,206. Lead-based paint hazard fee fund; sources of revenue; expenditures. (a) There is established in the state treasury the lead-based paint hazard fee fund. Revenue from the following sources shall be deposited in the state treasury and credited to the fund:

- (1) Fees collected under the residential childhood lead poisoning prevention act for licensure and certification to engage in lead-based paint activities, accreditation of training programs and fees for evaluation of abatement projects;
- (2) any moneys recovered by the state under the residential childhood lead poisoning prevention act, including administrative expenses, civil penalties and moneys paid under any agreement, stipulation or settlement;
- (3) any moneys collected or received from public or private grants and from gifts and donations; and
- (4) interest attributable to investment of moneys in the fund.

(b) Moneys deposited in the fund shall be expended only for the purpose of administering the residential childhood lead poisoning prevention act and for no other governmental purposes.

(c) On or before the 10th day of each month, the director of accounts and reports shall transfer from the state general fund to the lead-based paint hazard fee fund interest earnings based on:

- (1) The average daily balance of moneys in the lead-based paint hazard fee fund for the preceding month; and
- (2) the net earnings rate of the pooled money investment portfolio for the preceding month.

(d) All expenditures from the fund shall be made in accordance with appropriation acts upon warrants of the director of accounts and reports issued pursuant to vouchers approved by the secretary for the purposes set forth in this section.

History: L. 1999, ch. 99, § 8; April 22.

2025 Kansas Statutes

65-1,207. Denial, suspension or revocation of license or certificate or accreditation of training program, when; suspension of abatement program; administrative review. (a) The secretary may refuse to issue a license or may suspend or revoke any license issued under the residential childhood lead poisoning prevention act if the secretary finds, after notice and hearing conducted in accordance with the provisions of the Kansas administrative procedure act, that the applicant or licensee has:

- (1) Fraudulently or deceptively obtained or attempted to obtain a license;
- (2) failed at any time to meet the qualifications for a license or to comply with any rules and regulations adopted by the secretary under the residential childhood lead poisoning prevention act;
- (3) failed at any time to meet any applicable federal or state standard for lead-based paint activities; or
- (4) employed or permitted an uncertified individual to work on a lead-based paint activity.

(b) The secretary may refuse to issue a certificate or may suspend or revoke any certificate issued under the residential childhood lead poisoning prevention act if the secretary finds, after notice and hearing conducted in accordance with the provisions of the Kansas administrative procedure act, that the applicant for certificate or certificate holder has:

- (1) Fraudulently or deceptively obtained or attempted to obtain a certificate; or
- (2) failed at any time to meet qualifications for a certificate or to comply with any provision or requirement of the residential childhood lead poisoning prevention act or any rules and regulations adopted by the secretary under the residential childhood lead poisoning prevention act.

(c) The secretary may deny, suspend or revoke any accreditation of a training program under the residential childhood lead poisoning prevention act if the secretary finds, after notice and hearing conducted in accordance with the provisions of the Kansas administrative procedure act, that the applicant for training program accreditation or training provider has:

- (1) Fraudulently or deceptively obtained or attempted to obtain accreditation of a training program;
- (2) failed at any time to meet the qualifications to obtain accreditation of a training program or to comply with any rules and regulations adopted by the secretary under the residential childhood lead poisoning prevention act;
- (3) failed to maintain or provide information on training programs; or
- (4) falsified information, accreditation or approval records, instructor qualification information or other accreditation or approval information required to be submitted by the secretary.

(d) Any individual, business entity or accredited training program aggrieved by a decision or order of the secretary may appeal the order or decision in accordance with the provisions of the Kansas judicial review act.

(e) (1) If the secretary finds that the public health or safety is endangered by the continuation of an abatement project, the secretary may temporarily suspend, without notice or hearing in accordance with the emergency adjudication procedures of the provisions of the Kansas administrative procedure act, the license of the business entity

or public agency or the certificate of any person engaging in such abatement project.

(2) In no case shall a temporary suspension of a license or certificate under this section be in effect for a period of time in excess of 90 days. At the end of such period of time, the license or certificate shall be reinstated unless the secretary has suspended or revoked the license or certificate, after notice and hearing in accordance with the provisions of the residential childhood lead poisoning prevention act, or the license has expired as otherwise provided under the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 9; L. 2010, ch. 17, § 115; July 1.

2025 Kansas Statutes

65-1,208. Noncompliance; notice; duty to meet compliance requirements. Whenever an authorized agency of the secretary finds that any individual, business entity, accredited program or public agency is not in compliance with the residential childhood lead poisoning prevention act or any rules and regulations adopted under the residential childhood lead poisoning prevention act, it shall be the duty of such agent to notify the individual, business entity, accredited program or public agency in writing of such changes or alterations as the agency shall deem necessary in order to comply with the requirements of the residential childhood lead poisoning prevention act and any rules and regulations adopted under the residential childhood lead poisoning prevention act, and the agency shall file a copy of such notice with the secretary. It shall thereupon be the duty of the individual, business entity, accredited program or public agency to make such changes or alterations as are contained in the written notice within five days from the receipt of such notice.

History: L. 1999, ch. 99, § 10; April 22.

2025 Kansas Statutes

65-1,209. Violations; criminal penalties. Any individual, business entity, public agency or accredited training program which knowingly violates any provision of the residential childhood lead poisoning prevention act or any rules and regulations adopted under the residential childhood lead poisoning prevention act is guilty:

- (a) For a first offense, of a class C misdemeanor; and
- (b) for a second offense or subsequent offense, of a class B misdemeanor.

History: L. 1999, ch. 99, § 11; April 22.

2025 Kansas Statutes

65-1,210. Same; civil penalties; corrective action; appeals; grants to communities to eliminate hazards. (a) Any individual, business entity, accredited training program or public agency who violates any provision of the residential childhood lead poisoning prevention act or any rules and regulations adopted under the residential childhood lead poisoning prevention act, in addition to any other penalty or litigation provided by law, may incur a civil penalty imposed under subsection (b) in a maximum amount not to exceed \$1,000 for the first violation, \$5,000 for each subsequent violation and, in the case of a continuing violation, every day such previously notified violation continues shall be deemed a separate violation.

(b) The secretary, upon finding that any individual, business entity, accredited training program or public agency has violated any provision of the residential childhood lead poisoning prevention act or any rules and regulations adopted under the residential childhood lead poisoning prevention act, may impose a civil penalty within the limits provided in this section upon such individual, business entity, accredited training program or public agency which civil penalty shall be in an amount to constitute an actual and substantial economic deterrent to the violation for which the civil penalty is assessed.

(c) The secretary, upon finding that an individual, business entity, accredited training program or public agency has violated any provision of the residential childhood lead poisoning prevention act or rules and regulations adopted under the residential childhood lead poisoning prevention act, may issue an order finding such individual, business entity, accredited training program or public agency in violation of the residential childhood lead poisoning prevention act and directing the individual, business entity, accredited training program or public agency to take such action as necessary to correct the violation.

(d) No civil penalty shall be imposed under this section except upon the written order of the secretary after notification and hearing, if a hearing is requested, in accordance with the provisions of the Kansas administrative procedure act.

(e) Any individual, business entity, accredited training program or public agency aggrieved by an order of the secretary made under this section may appeal such order to the district court in the manner provided by the Kansas judicial review act.

(f) Any penalty recovered pursuant to the provisions of this section shall be remitted to the state treasurer and deposited in the lead-based paint hazard fee fund.

(g) The secretary shall use penalties recovered pursuant to the provisions of this section to establish a grant program for communities to conduct activities designed to reduce or eliminate exposure of children to residential lead-based paint hazards.

History: L. 1999, ch. 99, § 12; L. 2010, ch. 17, § 116; July 1.

2025 Kansas Statutes

65-1,211. Same; additional remedies. Notwithstanding any other remedy and in addition to any other remedy, the secretary may maintain, in the manner provided by the Kansas judicial review act, an action in the name of the state of Kansas for injunction or other process against any business entity or individual to restrain or prevent any violation of the provisions of the residential childhood lead poisoning prevention act or of any rules and regulations adopted under the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 13; L. 2010, ch. 17, § 117; July 1.

2025 Kansas Statutes

65-1,212. Implementation of act by entities engaging in lead-based paint activities; when. Licensure, certification or training program accreditation for a business entity, public agency or individual who engages in lead-based paint activities shall not be required until such time as the secretary adopts rules and regulations to implement the provisions of the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 14; April 22.

2025 Kansas Statutes

65-1,213. Statutory audit privilege not applicable. The audit privilege recognized in K.S.A. 60-3332 through 60-3339 does not pertain to the residential childhood lead poisoning prevention act.

History: L. 1999, ch. 99, § 15; April 22.

2025 Kansas Statutes

58-3037. Exemptions. The provisions of this act shall not apply to:

- (a) Any person, other than a person licensed under this act, who directly performs any of the acts within the scope of this act with reference to such person's own property.
- (b) Any person who directly performs any of the acts within the scope of this act with reference to property that such person is authorized to transfer in any way by a power of attorney from the owner, provided that such person receives no commission or other compensation, direct or indirect, for performing any such act.
- (c) Services rendered by an attorney licensed to practice in this state in performing such attorney's professional duties as an attorney.
- (d) Any person acting as receiver, trustee in bankruptcy, administrator, executor or guardian, or while acting under a court order or under the authority of a will or a trust instrument or as a witness in any judicial proceeding or other proceeding conducted by the state or any governmental subdivision or agency.
- (e) Any officer or employee of the federal or state government, or any political subdivision or agency thereof, when performing the official duties of the officer or employee.
- (f) Any multiple listing service wholly owned by a nonprofit organization or association of brokers.
- (g) Any nonprofit referral system or organization of brokers formed for the purpose of referral of prospects for the sale or listing of real estate.
- (h) Railroads or other public utilities regulated by the state of Kansas, or their subsidiaries, affiliated corporations, officers or regular employees, unless performance of any of the acts described in subsection (f) of K.S.A. 58-3035, and amendments thereto, is in connection with the sale, purchase, lease or other disposition of real estate or investment therein unrelated to the principal business activity of such railroad or other public utility or affiliated or subsidiary corporation thereof.
- (i) The sale or lease of real estate by an employee of a person, association, corporation, limited liability company, limited liability partnership, partnership or professional corporation which owns or leases such real estate, if such employee owns 5% or greater interest in such association, limited liability company, limited liability partnership, partnership or professional corporation or of the stock of such corporation.
- (j) The sale or lease of new homes by a person, association, corporation, limited liability company, limited liability partnership or professional corporation who constructed such homes, but the provisions of this act shall apply to the sale or lease of any such homes by any employee of such person, association, corporation, limited liability company, limited liability partnership, partnership or professional corporation if such employee owns less than 5% interest in such association, limited liability company, limited liability partnership, partnership or professional corporation or by any employee of a corporation who owns less than 5% of the stock of such corporation.
- (k) The lease of real estate for agricultural purposes.

History: L. 1980, ch. 164, § 4; L. 1986, ch. 209, § 16; L. 1989, ch. 167, § 3; L. 1991, ch. 163, § 1; L. 1995, ch. 252, § 16; L. 1996, ch. 212, § 4; L. 1997, ch. 65, § 6; L. 2002, ch. 82, § 2; L. 2010, ch. 104, § 2; July 1.

2025 Kansas Statutes

16-201. Legal rate of interest; prejudgment interest rate in civil tort actions. (a) Except as provided in subsection (b), creditors shall be allowed to receive interest at the rate of 10% per annum when no other rate of interest is agreed upon, for any money after it becomes due; for money lent or money due on settlement of account, from the day of liquidating the account and ascertaining the balance; for money received for the use of another and retained without the owner's knowledge of the receipt; for money due and withheld by an unreasonable and vexatious delay of payment or settlement of accounts; for all other money due and to become due for the forbearance of payment whereof an express promise to pay interest has been made; and for money due from corporations and individuals to their daily or monthly employees, from and after the end of each month, unless paid within 15 days thereafter.

(b) In all civil tort actions filed on or after July 1, 2023, under chapter 60 of the Kansas Statutes Annotated, and amendments thereto, in which the court determines that prejudgment interest shall be awarded, the judgment creditor shall be allowed to receive interest at the rate per annum of two percentage points below the rate per annum specified in K.S.A. 16-204(e)(1), and amendments thereto.

History: L. 1889, ch. 164, § 1; L. 1980, ch. 74, § 1; L. 2023, ch. 55, § 1; July 1.

2025 Kansas Statutes

60-2610. Civil liability for worthless check. (a) If a person gives a worthless check, the person shall be liable to the holder of the check for the amount of the check, the incurred court costs, the incurred service charge, interest at the statutory rate and the costs of collection including but not limited to reasonable attorney fees, plus an amount equal to the greater of the following:

- (1) Damages equal to three times the amount of the check but not exceeding the amount of the check by more than \$500; or
- (2) \$100.

The court may waive all or part of the attorney fees provided for by this subsection, if the court finds that the damages and other amounts awarded are sufficient to adequately compensate the holder of the check. In the event the court waives all or part of the attorney fees, the court shall make written findings of fact as to the specific reasons that the amounts awarded are sufficient to adequately compensate the holder of the check.

(b) The amounts specified by subsection (a) shall be recoverable in a civil action brought by or on behalf of the holder of the check only if: (1) Not less than 14 days before filing the civil action, the holder of the check made written demand on the maker or drawer for payment of the amount of the check, the incurred service charge and accrued interest; and (2) the maker or drawer failed to tender to the holder, prior to the filing of the action, an amount not less than the amount demanded.

The written demand shall be sent by first class mail, to the person to be given notice at such person's address as it appears on such check, draft or order or to the last known address of the maker or drawer. The written demand shall include notice that, if the money is not paid within 14 days, triple damages in addition to an amount of money equal to the sum of the amount of the check, the incurred service charge, court costs, accrued interest, the costs of collection, including but not limited to, reasonable attorney fees unless the court otherwise orders, may be incurred by the maker or drawer of the check.

Notice required by subsection (b)(1) shall state the exact amount and date due, as well as an estimate of the amount that may be incurred if the amount demanded is not paid by the specified date.

(c) Subsequent to the filing of an action under this section but prior to the commencement of a dispositional hearing by the court, the defendant may tender to the plaintiff as satisfaction of the claim, an amount of money equal to the sum of the amount of the check, the incurred service charge, accrued interest, the costs of collection including, but not limited to, reasonable attorney fees and court costs. The plaintiff shall include in the petition a statement alleging that the defendant may tender such amount as satisfaction of the claim as provided in this subsection. If the amount alleged in the petition is tendered to the plaintiff in full satisfaction of the debt prior to the commencement of the dispositional hearing by the court, the case shall be dismissed by the plaintiff. For purposes of this subsection only, the amount tendered as satisfaction of the claim shall not include triple damages or damages of \$100 as provided in subsections (a)(1) and (2). For purposes of this subsection, a dispositional hearing means a trial or other hearing by the court in which the plaintiff is seeking the entry of judgment against the defendant. The court may waive all or part of the attorney fees

provided for by this subsection, if the court finds that the amount tendered is sufficient to adequately compensate the holder of the check. In the event the court waives all or part of the attorney fees, the court shall make written findings of fact as to the specific reasons that the amount tendered is sufficient to adequately compensate the holder of the check.

(d) If the trier of fact determines that the failure of the defendant to satisfy the dishonored check was due to economic hardship, the court may waive all or part of the damages provided for by this section, but the court shall render judgment against defendant for not less than the amount of the dishonored check, the incurred court costs, service charge and the costs of collection, including but not limited to reasonable attorney fees, unless otherwise provided in this subsection. The court may waive all or part of the attorney fees provided for by this subsection, if the court finds that the damages and other amounts awarded are sufficient to adequately compensate the holder of the check. In the event the court waives all or part of the attorney fees, the court shall make written findings of fact as to the specific reasons that the amounts awarded are sufficient to adequately compensate the holder of the check.

(e) Any amount previously paid as restitution or reparations to the holder of the check by or on behalf of its maker or drawer shall be credited against the amount for which the maker or drawer is liable under subsection (a).

(f) Conviction of giving a worthless check, as defined by K.S.A. 21-5821, and amendments thereto, shall not be a prerequisite or bar to recovery pursuant to this section.

(g) The service charge on a check which is dishonored by the drawee because the maker or drawer had no deposits in or credits with the drawee or has not sufficient funds in, or credits with, the drawee for the payment of each check, order or draft in full upon its presentation, shall not exceed \$30.

(h) As used in this section, "giving a worthless check" means the making, drawing, issuing or delivering or causing or directing the making, drawing, issuing or delivering of any check, order or draft on any bank, credit union, savings and loan association or depository for the payment of money or its equivalent:

(1) With intent to defraud or in payment for a preexisting debt; or

(2) which is dishonored by the drawee because the maker or drawer had no deposits in or credits with the drawee or has not sufficient funds in, or credits with, the drawee for the payment of such check, order or draft in full upon its presentation; and

(3) for which the maker or drawer has not tendered to the holder's agent the amount of money demanded and within the time allowed by the demand required in subsection (b).

History: L. 1986, ch. 223, § 1; L. 1990, ch. 209, § 1; L. 1991, ch. 72, § 2; L. 1994, ch. 273, § 14; L. 1995, ch. 230, § 3; L. 1996, ch. 203, § 2; L. 2000, ch. 175, § 8; L. 2001, ch. 186, § 3; L. 2004, ch. 176, § 2; L. 2011, ch. 30, § 220; July 1.

2025 Kansas Statutes

39-1101. Rights of persons with disabilities. It is hereby declared to be the policy of this state to encourage and enable the blind, the visually disabled and persons who are otherwise disabled to participate fully in the social and economic life of the state and to engage in remunerative employment. Such persons shall have the same right as the able-bodied to the full and free use of the streets, highways, sidewalks, walkways, public buildings, public facilities and other public places; and such persons are entitled to full and equal accommodations, advantages, facilities and privileges of: (a) All common carriers, airplanes, motor vehicles, railroad trains, motor buses, street cars, boats or any other public conveyances or modes of transportation; (b) hotels, lodging places and places of public accommodation, amusement or resort, including food service establishments and establishments for sale of food; and (c) other places to which the general public is invited, subject only to the conditions and limitations established by law and applicable alike to all persons.

History: L. 1969, ch. 54, § 1; L. 1984, ch. 159, § 1; L. 2003, ch. 64, § 2; July 1.

2025 Kansas Statutes

39-1102. Same; use of guide dog by legally blind person. Every legally blind person shall have the right to be accompanied by a guide dog, specially selected, trained and tested for the purpose, in or upon any of the places listed in K.S.A. 39-1101, and amendments thereto, in the acquisition and use of rental, residential housing and in the purchase and use of residential housing without being required to pay an extra charge for the guide dog, except that such person shall be liable for any damage done to the premises or facilities by such dog.

History: L. 1969, ch. 54, § 2; L. 1987, ch. 155, § 1; L. 2003, ch. 64, § 3; July 1.

2025 Kansas Statutes

39-1103. Same; unlawful to interfere with rights. Any person, firm, corporation, or the agent of any person, firm or corporation, who denies or interferes with the exercise of the rights recognized in K.S.A. 39-1101, 39-1102, 39-1107, 39-1108 or 39-1109, and amendments thereto, is guilty of a misdemeanor.

History: L. 1969, ch. 54, § 3; L. 1989, ch. 127, § 2; L. 1992, ch. 205, § 13; L. 2003, ch. 64, § 4; July 1.

2025 Kansas Statutes

39-1104. Same; safety day; proclamation; contents. Each year, the governor shall take suitable public notice of October 15 as white cane safety day. He shall issue a proclamation in which:

- (a) He comments upon the significance of the white cane;
- (b) he calls upon the citizens of the state to observe the provisions of the white cane law and to take precautions necessary to the safety of the disabled;
- (c) he reminds the citizens of the state of the policies with respect to the disabled herein declared, and urges the citizens to cooperate in giving effect to them;
- (d) he emphasizes the need of the citizens to be aware of the presence of disabled persons in the community and to keep safe and functional for the disabled the streets, highways, sidewalks, walkways, public buildings, public facilities, other public places, places of public accommodation, amusement and resort and other places to which the public is invited, and to offer assistance to disabled persons upon appropriate occasions.

History: L. 1969, ch. 54, § 5; July 1.

2025 Kansas Statutes

39-1105. Same; employment. It is the policy of this state that the blind, the visually handicapped and persons who are otherwise physically disabled shall be employed in the service of the state, political subdivisions of the state, the public schools and in all other employment supported in whole or in part by public funds, on the same terms and conditions as the able-bodied, unless it is shown that the particular disability prevents the performance of the work involved.

History: L. 1969, ch. 54, § 6; July 1.

2025 Kansas Statutes

39-1106. Same; name and citation of act. This act shall be known and may be cited as the Kansas white cane law.

History: L. 1969, ch. 54, § 7; July 1.

2025 Kansas Statutes

39-1107. Rights of persons with disabilities; use of hearing assistance dog by person who is deaf or hard of hearing. Every person who is deaf or hard of hearing has the right to be accompanied by a hearing assistance dog, specially selected, trained and tested for the purpose of hearing assistance, in or upon any of the places listed in K.S.A. 39-1101, and amendments thereto, in the acquisition and use of rental, residential housing and in the purchase and use of residential housing without being required to pay an extra charge for the hearing assistance dog. The person who is deaf or hard of hearing shall be liable for any damage done to the premises or facilities by such dog.

History: L. 1982, ch. 184, § 1; L. 2003, ch. 64, § 5; L. 2022, ch. 75, § 6; April 28.

2025 Kansas Statutes

39-1108. Same; use of service dog by person with disability. Every person with a disability shall have the right to be accompanied by a service dog, specially selected, trained and tested for the purpose which shall include, but not be limited to, pulling a wheelchair, opening doors and picking up objects, in or upon any of the places listed in K.S.A. 39-1101, and amendments thereto, in the acquisition and use of rental, residential housing and in the purchase and use of residential housing without being required to pay an extra charge for the service dog. Such person shall be liable for any damage done to the premises by such dog.

History: L. 1989, ch. 127, § 1; L. 1992, ch. 205, § 14; L. 2003, ch. 64, § 6; July 1.

2025 Kansas Statutes

39-1109. Use of assistance dog while training. Any professional trainer, from a recognized training center, of an assistance dog, while engaged in the training of such dog, shall have the right to be accompanied by such dog in or upon any of the places listed in K.S.A. 39-1101, and amendments thereto, without being required to pay an extra charge for such dog. Such trainer shall be liable for any damage done to the premises of facilities by such dog.

History: L. 1992, ch. 205, § 12; L. 2003, ch. 64, § 7; July 1.

2025 Kansas Statutes

39-1110. Use of professional therapy dog while training. Any qualified handler of a professional therapy dog when accompanied by such dog and when using any conveyance of public transportation available to all members of the general public, and when renting and using accommodations in motels, hotels and other temporary lodging places shall have the right to be accompanied by such dog in such places. Any owner or employee of a business or retail establishment to which the public is invited, including establishments which serve or sell food, shall admit a professional therapy dog, accompanied by its qualified handler, to the business. The qualified handler shall be liable for any damage done by the dog to any such conveyance or facility.

History: L. 2003, ch. 64, § 8; July 1.

2025 Kansas Statutes

39-1111. Procedure for verification of person's right to be accompanied by assistance dog or professional therapy dog. (a) If a question arises as to whether an assistance dog qualifies under this act to accompany a person with a disability in or upon any place set forth in K.S.A. 39-1101, and amendments thereto, the person with a disability may produce for the employee or person responsible for such place an identification card or letter conforming to the requirements of this subsection. Upon production of such identification card or letter, the assistance dog shall be allowed to accompany the person with a disability in or upon such place.

(1) If the assistance dog has been trained by a training facility, school or trainer, the identification card or letter shall be provided by the training facility, school or trainer that trained the dog and shall contain the following information: (A) The legal name of the dog's user; (B) the name, address and telephone number of the facility, school or trainer who trained the dog; (C) whether the dog is designated as a guide, hearing assistance or service dog; and (D) a picture or digital photographic likeness of the dog user and the dog. If a card is used, the picture or digital photographic likeness shall be on the card. If a letter is used, the picture or digital photographic likeness shall either be printed as a part of the letter or be affixed to the letter.

(2) If the assistance dog has been trained by the person using the dog, the identification card or letter shall contain the following information: (A) The legal name of the dog's user; (B) the dog user's address; (C) a statement that the dog has been trained to mitigate the dog user's disability; and (D) a picture or digital photographic likeness of the dog user and the dog. If a card is used, the picture or digital photographic likeness shall be on the card. If a letter is used, the picture or digital photographic likeness shall either be printed as a part of the letter or be affixed to the letter.

(b) If a question arises as to whether a dog handler is qualified, or whether the dog accompanying the handler is qualified as a professional therapy dog, to enter in or upon the places set forth in K.S.A. 39-1110, and amendments thereto, an employee or person responsible for such places may request, and the qualified handler shall produce, an identification card or letter, provided by the training facility, school or trainer who trained the dog. Such card or letter shall contain the following information: (1) The legal name of the qualified dog handler; (2) the name, address and telephone number of the facility, school or trainer who trained the dog; (3) information documenting that the dog is trained to provide therapeutic supports; and (4) a picture or digital photographic likeness of the qualified handler and the dog. If a card is used, the picture or digital photographic likeness shall be on the card. If a letter is used, the picture or digital photographic likeness shall either be printed as a part of the letter or be affixed to the letter.

(c) If a question arises as to whether an individual accompanied by a dog is a professional trainer, from a recognized training center, of an assistance dog, in order to enter in or upon a place set forth in K.S.A. 39-1101, and amendments thereto, an employee or person responsible for such place may request, and the trainer shall produce, an identification card provided by the recognized training center containing the following information: (1) The legal name of the trainer; (2) the name of the training center; (3) the address and telephone number of the training center; (4) the types of functions for which dogs are trained by the center; and (5) a picture or digital

photographic likeness of the trainer.

(d) An identification card or letter produced for inspection pursuant to this section shall be promptly returned to the person with a disability, the qualified handler or the professional trainer after inspection.

History: L. 2003, ch. 64, § 9; July 1.

2025 Kansas Statutes

39-1112. Unlawful misrepresentations. It is a class A nonperson misdemeanor for any person to:

(a) Represent that such person has the right to be accompanied by an assistance dog in or upon any place listed in K.S.A. 39-1101, and amendments thereto, or that such person has a right to be accompanied by a professional therapy dog in or upon any place listed in K.S.A. 39-1110, and amendments thereto, unless such person has the right to be accompanied in or upon such place by such dog pursuant to this act; or

(b) represent that such person has a disability for the purpose of acquiring an assistance dog unless such person has such disability.

History: L. 2003, ch. 64, § 10; July 1.

2025 Kansas Statutes

39-1113. Assistance dogs and professional therapy dogs; definitions. As used in this act and in K.S.A. 39-1101 through 39-1109, and amendments thereto:

- (a) "Assistance dog" means any guide dog, hearing assistance dog or service dog.
- (b) "Guide dog" means a dog which has been specially selected, trained and tested for the purpose of guiding a person who is legally blind.
- (c) "Hearing assistance dog" means a dog which is specially selected, trained and tested to alert or warn individuals who are deaf or hard of hearing to specific sounds.
- (d) "Professional therapy dog" means a dog which is selected, trained and tested to provide specific physical or therapeutic functions, under the direction and control of a qualified handler who works with the dog as a team, and as a part of the handler's occupation or profession. Such dogs, with their handlers, perform such functions in institutional settings, community based group settings, or when providing services to specific persons who have disabilities. "Professional therapy dog" does not include dogs, certified or not, which are used by volunteers for pet visitation therapy.
- (e) "Service dog" means a dog which has been specially selected, trained and tested to perform a variety of tasks for persons with disabilities. These tasks include, but are not limited to: Pulling wheelchairs, lending balance support, picking up dropped objects or providing assistance in, or to avoid, a medical crisis, or to otherwise mitigate the effects of a disability.
- (f) The presence of a dog for comfort, protection or personal defense does not qualify a dog as being trained to mitigate an individual's disability and therefor does not qualify the dog as an assistance dog covered under the provisions of this act.

History: L. 2003, ch. 64, § 1; July 1.

2025 Kansas Statutes

39-1114. Children parented by blind individuals; purpose of act; legislative findings. (a) The purpose of K.S.A. 2025 Supp. 39-1114 through 39-1116, and amendments thereto, is to protect the best interests of children parented by blind individuals or children who could be parented by blind individuals through the establishment of procedural safeguards that require adherence to the federal Americans with disabilities act of 1990, and respect for the due process and equal protection rights of parents and prospective parents who are blind in the context of child welfare, foster care, family law and adoption.

(b) The legislature hereby finds and declares that:

- (1) Blind individuals continue to face unfair, preconceived and unnecessary societal biases as well as antiquated attitudes regarding such individuals' ability to successfully parent their children;
- (2) blind individuals face these biases and preconceived attitudes in family and dependency law proceedings where legal custody, residency and parenting time are at stake and in public and private adoption, guardianship and foster care proceedings;
- (3) because of these societal biases and antiquated attitudes, children of blind parents are unnecessarily being removed from their parents' care or being restricted from enjoying meaningful time with their parents; and
- (4) children are being denied the opportunity to enjoy the experience of living in loving homes with blind parents or other blind caretakers.

History: L. 2022, ch. 75, § 1; April 28.

2025 Kansas Statutes

39-1115. Definitions. As used in K.S.A. 2025 Supp. 39-1114 through 39-1116, and amendments thereto:

(a) "Blind" or "blindness" means a central visual acuity of 20/200 or less in the better eye with the use of a correcting lens. An eye that has a limitation in the field of vision so that the widest diameter of the visual field subtends an angle no greater than 20 degrees is considered to have a central visual acuity of 20/200 or less. The term "blind" or "blindness" includes any degenerative condition that reasonably can be expected to result in blindness.

(b) "Family foster home" means a child care facility that is a private residence, including any adjacent grounds, where a person provides care for 24 hours per day for one or more children in foster care and for which a license is required under K.S.A. 65-501 et seq., and amendments thereto.

(c) "Supportive parenting services" means services, including, but not limited to, services, aids and supports that may assist a parent or prospective parent who is blind in the effective use of non-visual techniques and other alternative methods to enable the parent or prospective parent to discharge parental responsibilities as successfully as a parent who is not blind.

History: L. 2022, ch. 75, § 2; April 28.

2025 Kansas Statutes

39-1116. Blindness of parent or prospective parent in parentage, dissolution of marriage, adoption, guardianship and child in need of care cases; considerations and restrictions. (a) In any action brought under article 22 or article 27 of chapter 23 of the Kansas Statutes Annotated, and amendments thereto:

- (1) A parent's blindness shall not serve as a basis for denial or restriction of legal custody, residency or parenting time when such legal custody, residency or parenting time is determined to be otherwise in the best interests of the child;
 - (2) (A) if a parent's blindness is alleged to not be in the best interests of a child, the party asserting such allegation shall have the burden of proving by clear and convincing evidence that the parent's blindness is not in the best interests of the child;
 - (B) if a party asserting an allegation described in subparagraph (A) has satisfied such party's burden of proof, the blind parent shall have the opportunity to present evidence that, with the implementation of supportive parenting services, placement with such parent is in the best interests of the child; and
 - (C) the court may issue an order requiring that supportive parenting services be implemented, and the parties may request that the court review the need for continuing such supportive parenting services after a reasonable period of time; and
 - (3) if a court denies or otherwise restricts a blind parent's request for legal custody, residency or parenting time, the court shall make specific findings of fact stating the basis for its decision, including reasons why the provision of supportive parenting services is not a reasonable accommodation that is required to prevent such denial or restriction.
- (b) In any action brought under article 21 of chapter 59 of the Kansas Statutes Annotated, and amendments thereto, a prospective parent's blindness shall not serve as a basis for the denial of such prospective parent's participation in any adoption when such adoption is determined to be otherwise in the best interests of the child.
- (c) In any action brought under article 30 of chapter 59 of the Kansas Statutes Annotated, and amendments thereto, an individual's blindness shall not serve as a basis for the denial of such individual's appointment as a guardian when such appointment is determined to be otherwise in the best interests of the child.
- (d) An individual's blindness shall not serve as a basis for the denial or restriction of such individual's licensure as a family foster home.
- (e) (1) In any action brought under article 22 of chapter 38 of the Kansas Statutes Annotated, and amendments thereto, an individual's blindness shall not serve as a basis for an order of temporary custody, adjudication, disposition, finding of unfitness or termination of parental rights.
- (2) If a court issues an order of temporary custody, adjudication, disposition, finding of unfitness or termination of parental rights that is adverse to an individual who is a party to the proceeding and who is blind, the court shall make specific findings of fact stating the basis for its decision, including reasons why the provision of supportive parenting services is not a reasonable accommodation that is required to prevent such adverse order.

History: L. 2022, ch. 75, § 3; April 28.

2025 Kansas Statutes

50-701. Findings and purpose. (a) The legislature of the state of Kansas hereby finds and determines that:

(1) The banking system is dependent upon fair and accurate credit reporting. Inaccurate credit reports directly impair the efficiency of the banking system, and unfair credit reporting methods undermine the public confidence which is essential to the continued functioning of the banking system.

(2) An elaborate mechanism has been developed for investigating and evaluating the credit worthiness, credit standing, credit capacity, character, and general reputation of consumers.

(3) Consumer reporting agencies have assumed a vital role in assembling and evaluating consumer credit and other information on consumers.

(4) There is a need to insure that consumer reporting agencies exercise their grave responsibilities with fairness, impartiality, and a respect for the consumer's right to privacy.

(b) It is the purpose of K.S.A. 50-701 to 50-722, inclusive, and amendments thereto, to require that consumer reporting agencies adopt reasonable procedures for meeting the needs of commerce for consumer credit, personnel, insurance, and other information in a manner which is fair and equitable to the consumer, with regard to the confidentiality, accuracy, relevancy, and proper utilization of such information in accordance with the requirements of such sections of this act.

History: L. 1973, ch. 85, § 136; January 1, 1974.

2025 Kansas Statutes

50-702. Definitions and rules of construction. The following words and phrases when used in the fair credit reporting act shall have the meanings ascribed to them in this section:

- (a) The term "person" means any individual, partnership, corporation, trust, estate, cooperative, association, government or governmental subdivision or agency, or other entity.
- (b) The term "consumer" means an individual.
- (c) The term "consumer report" means any written, oral, or other communication of any information by a consumer reporting agency bearing on a consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for credit or insurance to be used primarily for personal, family, or household purposes, or employment purposes, or other purposes authorized under K.S.A. 50-703, and amendments thereto. The term does not include:
 - (1) Any report containing information solely as to transactions or experiences between the consumer and the person making the report;
 - (2) any authorization or approval of a specific extension of credit directly or indirectly by the issuer of a credit card or similar device; or
 - (3) any report in which a person who has been requested by a third party to make a specific extension of credit directly or indirectly to a consumer conveys that decision with respect to such request, if the third party advises the consumer of the name and address of the person to whom the request was made and such person makes the disclosures to the consumer required under K.S.A. 50-714, and amendments thereto.
- (d) The term "investigative consumer report" means a consumer report or portion thereof in which information on a consumer's character, general reputation, personal characteristics, or mode of living is obtained through personal interviews with neighbors, friends, or associates of the consumer reported on or with others with whom the consumer is acquainted or who may have knowledge concerning any such items of information. However, such information shall not include specific factual information on a consumer's credit record obtained directly from a creditor of the consumer or from a consumer reporting agency when such information was obtained directly from a creditor of the consumer or from the consumer.
- (e) The term "consumer reporting agency" means any person which, for monetary fees, dues, or on a cooperative nonprofit basis, regularly engages in whole or in part in the practice of assembling or evaluating consumer credit information or other information on consumers for the purpose of furnishing consumer reports to third parties, and which uses any means or facility of interstate commerce for the purpose of preparing or furnishing consumer reports.
- (f) The term "file," when used in connection with information on any consumer, means all of the information on that consumer recorded and retained by a consumer reporting agency regardless of how the information is stored.
- (g) The term "employment purposes" when used in connection with a consumer report means a report used for the purpose of evaluating a consumer for employment, promotion, reassignment or retention as an employee.
- (h) The term "medical information" means information or records obtained, with the

consent of the individual to whom it relates, from licensed physicians or medical practitioners, hospitals, clinics, or other medical or medically related facilities.

(i) The term "clear and proper identification" means information generally deemed sufficient to identify a person.

(j) The term "security freeze" means a notice placed on a consumer report, at the request of the consumer and subject to certain exceptions, that prohibits a consumer reporting agency from releasing the consumer's consumer report or credit score relating to the extension of credit.

(k) The term "protected consumer" means an individual who is:

(1) Under the age of 16 years at the time a request for the placement of a security freeze is made under K.S.A. 50-725, and amendments thereto; or

(2) an individual for whom a guardian or conservator has been appointed.

(l) The term "record" means a compilation of information about a protected consumer that satisfies all of the following:

(1) The compilation identifies the protected consumer; and

(2) the compilation is created by a consumer reporting agency solely for the purpose of complying with K.S.A. 50-725, and amendments thereto.

(m) The term "security freeze for a protected consumer" means one of the following:

(1) If a consumer reporting agency does not have a file pertaining to a protected consumer, a restriction placed on the protected consumer's record that prohibits the consumer reporting agency from releasing the protected consumer's record; or

(2) if a consumer reporting agency has a file pertaining to the protected consumer, a restriction placed on the protected consumer's consumer report that prohibits the consumer reporting agency from releasing the protected consumer's consumer report or any information derived from the protected consumer's consumer report.

(n) The term "sufficient proof of authority" means documentation that shows a representative has authority to act on behalf of a protected consumer, including any of the following:

(1) An order issued by a court;

(2) a lawfully executed and valid power of attorney; or

(3) a written, notarized statement signed by a representative that expressly describes the authority of the representative to act on behalf of a protected consumer.

(o) The term "sufficient proof of identification" means information or documentation that identifies a protected consumer or a representative of a protected consumer, including any of the following:

(1) A social security number or a copy of a social security card issued by the social security administration; or

(2) a certified or official copy of a birth certificate issued by the entity authorized to issue the birth certificate.

History: L. 1973, ch. 85, § 137; L. 2006, ch. 149, § 11; L. 2009, ch. 112, § 1; L. 2016, ch. 37, § 2; January 1, 2017.

2025 Kansas Statutes

50-703. Permissible purposes of reports. A consumer reporting agency may furnish a consumer report under the following circumstances and no other:

- (a) In response to the order of a court having jurisdiction to issue such an order;
- (b) in accordance with the written instructions of the consumer to whom it relates; and
- (c) to a person which it has reason to believe
 - (1) intends to use the information in connection with a credit transaction involving the consumer on whom the information is to be furnished and involving the extension of credit to, or review or collection of an account of, the consumer; or
 - (2) intends to use the information for employment purposes; or
 - (3) intends to use the information in connection with the underwriting of insurance involving the consumer; or
 - (4) intends to use the information in connection with a determination of the consumer's eligibility for a license or other benefit granted by a governmental instrumentality required by law to consider an applicant's financial responsibility or status; or
 - (5) otherwise has a legitimate business need for the information in connection with a business transaction involving the consumer.

History: L. 1973, ch. 85, § 138; January 1, 1974.

2025 Kansas Statutes

50-704. Obsolete information. (a) Except as authorized under subsection (b) of this section, no consumer reporting agency may make any consumer report containing any of the following items of information:

- (1) Bankruptcies which, from date of adjudication of the most recent bankruptcy, antedate the report by more than fourteen (14) years;
- (2) suits and judgments which, from date of entry, antedate the report by more than seven (7) years or until the governing statute of limitations has expired, whichever is the longer period;
- (3) paid tax liens which, from date of payment, antedate the report by more than seven (7) years;
- (4) accounts placed for collection or charged to profit and loss which antedate the report by more than seven (7) years;
- (5) records of arrest, indictment, or conviction of crime which, from date of disposition, release, or parole, antedate the report by more than seven (7) years; and
- (6) any other adverse item of information which antedates the report by more than seven (7) years.

(b) The provisions of subsection (a) of this section are not applicable in the case of any consumer credit report to be used in connection with

- (1) a credit transaction involving, or which may reasonably be expected to involve, a principal amount of fifty thousand dollars (\$50,000) or more;
- (2) the underwriting of life insurance involving, or which may reasonably be expected to involve, a face amount of fifty thousand dollars (\$50,000) or more; or
- (3) the employment of any individual at an annual salary which equals, or which may reasonably be expected to equal twenty thousand dollars (\$20,000), or more.

History: L. 1973, ch. 85, § 139; January 1, 1974.

2025 Kansas Statutes

50-705. Disclosure of investigative consumer reports. (a) A person may not procure or cause to be prepared an investigative consumer report on any consumer unless

(1) it is clearly and accurately disclosed to the consumer that an investigative consumer report including information as to the consumer's character, general reputation, personal characteristics, and mode of living, whichever are applicable, may be made, and such disclosure (A) is made in a writing mailed, or otherwise delivered, to the consumer, not later than three days after the date on which the report was first requested, and (B) includes a statement informing the consumer of the right to request the additional disclosures provided for under subsection (b) of this section; or

(2) the report is to be used for employment purposes for which the consumer has not specifically applied.

(b) Any person who procures or causes to be prepared an investigative consumer report on any consumer shall, upon written request made by the consumer within a reasonable period of time after the receipt by him or her of the disclosure required by subsection (a) (1) of this section, make a complete and accurate disclosure of the nature and scope of the investigation requested. This disclosure shall be made in a writing mailed, or otherwise delivered, to the consumer not later than five (5) days after the date on which the request for such disclosure was received from the consumer or such report was first requested, whichever is the later.

(c) No person may be held liable for any violation of subsection (a) or (b) of this section if that person shows by a preponderance of the evidence that at the time of the violation the person maintained reasonable procedures to assure compliance with subsection (a) or (b).

History: L. 1973, ch. 85, § 140; January 1, 1974.

2025 Kansas Statutes

50-706. Compliance procedures. (a) Every consumer reporting agency shall maintain reasonable procedures designed to avoid violations of K.S.A. 50-704 and to limit the furnishing of consumer reports to the purposes listed under K.S.A. 50-703. These procedures shall require that prospective users of the information identify themselves, certify the purposes for which the information is sought, and certify that the information will be used for no other purpose. Every consumer reporting agency shall make a reasonable effort to verify the identity of a new prospective user and the uses certified by such prospective user prior to furnishing such user a consumer report. No consumer reporting agency may furnish a consumer report to any person if it has reasonable grounds for believing that the consumer report will not be used for a purpose listed in K.S.A. 50-703.

(b) Whenever a consumer reporting agency prepares a consumer report it shall follow reasonable procedures to assure maximum possible accuracy of the information concerning the individual about whom the report relates.

History: L. 1973, ch. 85, § 141; January 1, 1974.

2025 Kansas Statutes

50-707. Disclosures to governmental agencies. Notwithstanding the provisions of K.S.A. 50-703, a consumer reporting agency may furnish identifying information respecting any consumer, limited to name, address, former addresses, places of employment, or former places of employment, to a governmental agency.

History: L. 1973, ch. 85, § 142; January 1, 1974.

2025 Kansas Statutes

50-708. Disclosures to consumers. (a) Every consumer reporting agency shall, upon request and proper identification of any consumer, clearly and accurately disclose to the consumer:

- (1) The nature and substance of all information (except medical information) in its files on the consumer at the time of the request.
- (2) The sources of the information; except that the sources of information acquired solely for use in preparing an investigative consumer report and actually used for no other purpose need not be disclosed: Provided, That in the event an action is brought under the provisions of K.S.A. 50-701 to 50-722, inclusive, and amendments thereto, such sources shall be available to the plaintiff under appropriate discovery procedures in the court in which the action is brought.
- (3) The recipients of any consumer report on the consumer which it has furnished
 - (A) for employment purposes within the two-year period preceding the request, and
 - (B) for any other purpose within the six-month period preceding the request.
- (b) The requirements of subsection (a) respecting the disclosure of sources of information and the recipients of consumer reports do not apply to information received or consumer reports furnished prior to the effective date of this act except to the extent that the matter involved is contained in the files of the consumer reporting agency on that date.

History: L. 1973, ch. 85, § 143; January 1, 1974.

2025 Kansas Statutes

50-709. Conditions of disclosure to consumers. (a) A consumer reporting agency shall make the disclosures required under K.S.A. 50-708 during normal business hours and on reasonable notice.

(b) The disclosures required under K.S.A. 50-708 shall be made to the consumer

- (1) in person if the consumer appears in person and furnishes proper identification; or
- (2) by telephone if the consumer has made a written request, with proper identification, for telephone disclosure and the toll charge, if any, for the telephone call is prepaid by or charged directly to the consumer.

(c) Any consumer reporting agency shall provide trained personnel to explain to the consumer any information furnished to him or her pursuant to K.S.A. 50-708.

(d) The consumer shall be permitted to be accompanied by one other person of his or her choosing, who shall furnish reasonable identification. A consumer reporting agency may require the consumer to furnish a written statement granting permission to the consumer reporting agency to discuss the consumer's file in such person's presence.

(e) Except as provided in K.S.A. 50-715 and 50-716, no consumer may bring any action or proceeding in the nature of defamation, invasion of privacy, or negligence with respect to the reporting of information against any consumer reporting agency, any user of information, or any person who furnishes information to a consumer reporting agency, based on information disclosed pursuant to K.S.A. 50-708, 50-709 or 50-714, except as to false information furnished with malice or willful intent to injure such consumer.

History: L. 1973, ch. 85, § 144; January 1, 1974.

2025 Kansas Statutes

50-710. Procedure in case of disputed accuracy. (a) If the completeness or accuracy of any item of information contained in his or her file is disputed by a consumer, and such dispute is directly conveyed to the consumer reporting agency by the consumer, the consumer reporting agency shall within a reasonable period of time reinvestigate and record the current status of that information unless it has reasonable grounds to believe that the dispute by the consumer is frivolous or irrelevant. If after such reinvestigation such information is found to be inaccurate or can no longer be verified, the consumer reporting agency shall promptly delete such information. The presence of contradictory information in the consumer's file does not in and of itself constitute reasonable grounds for believing the dispute is frivolous or irrelevant.

(b) If the reinvestigation does not resolve the dispute, the consumer may file a brief statement setting forth the nature of the dispute. The consumer reporting agency may limit such statements to not more than one hundred words if it provides the consumer with assistance in writing a clear summary of the dispute.

(c) Whenever a statement of dispute is filed, unless there is reasonable grounds to believe that it is frivolous or irrelevant, the consumer reporting agency shall, in any subsequent consumer report containing the information in question, clearly note that it is disputed by the consumer and provide either the consumer's statement or a clear and accurate codification or summary thereof.

(d) Following any deletion of information which is found to be inaccurate or whose accuracy can no longer be verified or any notation as to disputed information, the consumer reporting agency shall, at the request of the consumer, furnish notification that the item has been deleted or the statement, codification or summary pursuant to subsection (b) or (c) of this section to any person specifically designated by the consumer who has within two years prior thereto received a consumer report for employment purposes, or within six months prior thereto received a consumer report for any other purpose, which contained the deleted or disputed information. The consumer reporting agency shall clearly and conspicuously disclose to the consumer his or her rights to make such a request. Such disclosure shall be made at or prior to the time the information is deleted or the consumer's statement regarding the disputed information is received.

History: L. 1973, ch. 85, § 145; January 1, 1974.

2025 Kansas Statutes

50-711. Charges for certain disclosures. A consumer reporting agency shall make all disclosures pursuant to K.S.A. 50-708 and furnish all consumer reports pursuant to K.S.A. 50-710(d) without charge to the consumer if, within thirty (30) days after receipt by such consumer of a notification pursuant to K.S.A. 50-714 or notification from a debt collection agency affiliated with such consumer reporting agency stating that the consumer's credit rating may be or has been adversely affected, the consumer makes a request under K.S.A. 50-708 or 50-710(d). Otherwise, the consumer reporting agency may impose a reasonable charge on the consumer for making disclosure to such consumer pursuant to K.S.A. 50-708, the charge for which shall be indicated to the consumer prior to making disclosure; and for furnishing notifications, statements, summaries, or codifications to persons designated by the consumer pursuant to K.S.A. 50-710(d), the charge for which shall be indicated to the consumer prior to furnishing such information and shall not exceed the charge that the consumer reporting agency would impose on each designated recipient for a consumer report except that no charge may be made for notifying such persons of the deletion of information which is found to be inaccurate or which can no longer be verified.

History: L. 1973, ch. 85, § 146; January 1, 1974.

2025 Kansas Statutes

50-712. Public record information for employment purposes. A consumer reporting agency which furnishes a consumer report for employment purposes and which for that purpose compiles and reports items of information on consumers which are matters of public record and are likely to have an adverse effect upon a consumer's ability to obtain employment shall

(a) at the time such public record information is reported to the user of such consumer report, notify the consumer of the fact that public record information is being reported by the consumer reporting agency, together with the name and address of the person to whom such information is being reported; or

(b) maintain strict procedures designed to insure that whenever public record information which is likely to have an adverse effect on a consumer's ability to obtain employment is reported it is complete and up to date. For purposes of this paragraph, items of public record relating to arrests, indictments, convictions, suits, tax liens, and outstanding judgments shall be considered up to date if the current public record status of the item at the time of the report is reported.

History: L. 1973, ch. 85, § 147; January 1, 1974.

2025 Kansas Statutes

50-713. Restrictions on investigative consumer reports. Whenever a consumer reporting agency prepares an investigative consumer report, no adverse information in the consumer report (other than information which is a matter of public record) may be included in a subsequent consumer report unless such adverse information has been verified in the process of making such subsequent consumer report, or the adverse information was received within the three-month period preceding the date the subsequent report is furnished.

History: L. 1973, ch. 85, § 148; January 1, 1974.

2025 Kansas Statutes

50-714. Requirements on users of consumer reports. (a) Whenever credit or insurance for personal, family or household purposes, or employment involving a consumer is denied or the charge for such credit or insurance is increased either wholly or partly because of information contained in a consumer report from a consumer reporting agency, the user of the consumer report shall so advise the consumer against whom such adverse action has been taken and supply the name and address of the consumer reporting agency making the report.

(b) Whenever credit for personal, family, or household purposes involving a consumer is denied or the charge for such credit is increased either wholly or partly because of information obtained from a person other than a consumer reporting agency bearing upon the consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living, the user of such information shall, within a reasonable period of time, upon the consumer's written request for the reasons for such adverse action received within sixty (60) days after learning of such adverse action, disclose the nature of the information to the consumer. The user of such information shall clearly and accurately disclose to the consumer the right to make such written request at the time such adverse action is communicated to the consumer.

(c) No person shall be held liable for any violation of this section if the person shows by a preponderance of the evidence that at the time of the alleged violation he or she maintained reasonable procedures to assure compliance with the provisions of subsections (a) and (b).

History: L. 1973, ch. 85, § 149; January 1, 1974.

2025 Kansas Statutes

50-715. Civil liability for willful noncompliance. Any consumer reporting agency or user of information which willfully fails to comply with any requirement imposed under K.S.A. 50-701 to 50-722, inclusive, and amendments thereto, with respect to any consumer is liable to that consumer in an amount equal to the sum of

- (a) any actual damages sustained by the consumer as a result of the failure;
- (b) such amount of punitive damages as the court may allow; and
- (c) in the case of any successful action to enforce any liability under this section, the costs of the action together with reasonable attorney's fees as determined by the court.

History: L. 1973, ch. 85, § 150; January 1, 1974.

2025 Kansas Statutes

50-716. Civil liability for negligent noncompliance. Any consumer reporting agency or user of information which is negligent in failing to comply with any requirement imposed under K.S.A. 50-701 to 50-722, inclusive, and amendments thereto, with respect to any consumer is liable to that consumer in an amount equal to the sum of

- (a) any actual damages sustained by the consumer as a result of the failure;
- (b) in the case of any successful action to enforce any liability under this section, the costs of the action together with reasonable attorney's fees as determined by the court.

History: L. 1973, ch. 85, § 151; January 1, 1974.

2025 Kansas Statutes

50-717. Jurisdiction of courts; limitation of actions. An action to enforce any liability created under the provisions of K.S.A. 50-701 to 50-722, inclusive, and amendments thereto, may be brought in the district court of the county in which the controversy arose, within two years from the date on which the liability arises, except that where a defendant has materially and willfully misrepresented any information required under the provisions of such sections of this act to be disclosed to an individual and the information so misrepresented is material to the establishment of the defendant's liability to that individual under such provisions of this act, the action may be brought at any time within two years after discovery by the individual of the misrepresentation.

History: L. 1973, ch. 85, § 152; January 1, 1974.

2025 Kansas Statutes

50-718. Obtaining information under false pretenses. Any person who knowingly and willfully obtains information on a consumer from a consumer reporting agency under false pretenses is guilty of a severity level 7, person felony and upon conviction shall be punished in the manner provided by law.

History: L. 1973, ch. 85, § 153; L. 2000, ch. 181, § 12; July 1.

2025 Kansas Statutes

50-719. Unauthorized disclosures by officers or employees. Any officer or employee of a consumer reporting agency who knowingly and willfully provides information concerning an individual from the agency's files to a person not authorized to receive that information is guilty of a severity level 7, person felony and upon conviction shall be punished in the manner provided by law.

History: L. 1973, ch. 85, § 154; L. 2000, ch. 181, § 13; July 1.

2025 Kansas Statutes

50-720. Penalties. Any person violating any of the provisions of K.S.A. 50-701 to 50-719, inclusive, and amendments thereto, for which penalties are not otherwise hereinbefore provided shall be deemed guilty of a class C misdemeanor and upon conviction thereof shall be punished in the manner provided by law.

History: L. 1973, ch. 85, § 155; January 1, 1974.

2025 Kansas Statutes

50-721. Enforcement by consumer credit commissioner. The consumer credit commissioner is hereby authorized to enforce the provisions of K.S.A. 50-701 to 50-720, inclusive, and amendments thereto, and for such purpose is hereby authorized to adopt such rules and regulations as may be necessary for the proper administration and enforcement of the provisions of such sections of this act.

History: L. 1973, ch. 85, § 156; January 1, 1974.

2025 Kansas Statutes

50-722. Citation of act. K.S.A. 50-701 through 50-725, and amendments thereto, may be cited as the fair credit reporting act.

History: L. 1973, ch. 85, § 157; L. 2018, ch. 44, § 1; July 1.

2025 Kansas Statutes

50-723. Security freeze on consumer report; requirements; procedure; damages. (a) A consumer may elect to place a security freeze on the consumer's consumer report by written request, sent by certified mail or regular mail, through a secure website if made available by a consumer reporting agency, or by telephone, if the consumer reporting agency does not have an available secure website. A consumer reporting agency shall place a security freeze on a consumer's consumer report no later than five business days after receiving:

(1) A request provided by this subsection; and

(2) proper identification.

(b) When a security freeze is in place, information from a consumer report shall not be released to a third party without prior express authorization from the consumer. This subsection shall not prevent a consumer reporting agency from advising a third party that a security freeze is in effect with respect to a consumer report.

(c) The consumer reporting agency, no later than 10 business days after the date the agency places a security freeze, shall provide the consumer with a unique personal identification number, password or similar device to be used by the consumer when providing authorization for the access to the consumer's consumer report for a specific period of time. In addition, the consumer reporting agency shall simultaneously provide to the consumer in writing the process of placing, removing and temporarily lifting a security freeze and the process for allowing access to information from the consumer's consumer report for a specific period while the security freeze is in effect.

(d) If, in connection with an application for credit or any other use, a third party requests access to a consumer report on which a security freeze is in effect, the third party may treat the application as incomplete if the consumer does not allow the consumer's consumer report to be accessed for that specific period of time.

(e) If the consumer wishes to allow the consumer's consumer report or score to be accessed for a specific period of time while a freeze is in place, the consumer shall contact the consumer reporting agency, request that the freeze be temporarily lifted and provide the following:

(1) Clear and proper identification;

(2) the unique personal identification number or password provided by the consumer reporting agency in accordance with subsection (c); and

(3) the proper information regarding the time period for which the report shall be available to users of the consumer report.

(f) (1) A consumer reporting agency that receives a request from a consumer to temporarily lift a freeze on a consumer report pursuant to subsection (e) shall comply with the request:

(A) No later than three business days after receiving the request if the request is made at a postal address designated by the agency to receive such requests; or

(B) fifteen minutes after the request is received by the consumer reporting agency through the electronic contact method chosen by the consumer reporting agency in accordance with this section and such request is received between 6:00 a.m. and 9:30 p.m. in the central time zone.

(2) A consumer reporting agency is not required to temporarily lift a security freeze within the time provided in subsection (f)(1)(B) if the consumer fails to meet the

requirements of subsection (e) or the consumer reporting agency's ability to temporarily lift the security freeze within 15 minutes is prevented by:

(A) An act of God, including, but not limited to, fire, earthquake, hurricane, storm or similar natural disaster or phenomena;

(B) unauthorized or illegal acts by a third party, including, but not limited to, terrorism, sabotage, riot, vandalism, labor strikes or disputes disrupting operations or similar occurrence;

(C) operational interruption, including, but not limited to, electrical failure, unanticipated delay in equipment or replacement part delivery, computer hardware or software failures inhibiting response time or similar disruption;

(D) governmental action, including, but not limited to, emergency orders or regulations, judicial or law enforcement action or similar directives;

(E) regularly scheduled maintenance, other than during normal business hours, of or updates to the consumer reporting agency's systems; or

(F) commercially reasonable maintenance of or repair to the consumer reporting agency's systems that is unexpected or unscheduled.

(g) A consumer reporting agency shall remove or temporarily lift a freeze placed on a consumer's consumer report only in the following cases:

(1) Upon consumer request as provided in this section; or

(2) if the consumer's consumer report was frozen due to a material misrepresentation of fact by the consumer, in which case, if a consumer reporting agency intends to remove a freeze upon the consumer's consumer report, the consumer reporting agency shall notify the consumer in writing prior to removing the freeze on the consumer's consumer report.

(h) A security freeze shall remain in place until the consumer requests that the security freeze be removed. A consumer reporting agency shall remove a security freeze within three business days after receiving a request for removal from the consumer, who shall be required to provide:

(1) Clear and proper identification; and

(2) the unique personal identification number or password provided by the consumer reporting agency in accordance with subsection (c).

(i) A security freeze does not apply to a consumer report provided to:

(1) A federal, state or local governmental entity, including a law enforcement agency or court, or agents or assigns thereof;

(2) a private collection agency for the sole purpose of assisting in the collection of an existing debt of the consumer who is the subject of the consumer report requested;

(3) a person or entity, or a subsidiary, affiliate or agent of such person or entity, or an assignee of a financial obligation owing by the consumer to such person or entity, or a prospective assignee of a financial obligation owing by the consumer to such person or entity in conjunction with the proposed purchase of the financial obligation, with which the consumer has or had prior to assignment of an account or contract, including a demand deposit account, or to whom the consumer issued a negotiable instrument, for the purposes of reviewing the account or collecting the financial obligation owing for the account, contract, or negotiable instrument. For purposes of this paragraph, "reviewing the account" includes activities related to account maintenance, monitoring, credit line increases and account upgrades and enhancements;

(4) a subsidiary, affiliate, agent, assignee or prospective assignee of a person to whom access has been granted under subsection (e) for the purposes of facilitating the

extension of credit;

(5) a person providing a credit report for the purposes permitted under 15 U.S.C. § 1681b(c);

(6) any person providing a consumer with a copy of the consumer's own report at such consumer's request;

(7) a child support enforcement agency;

(8) a consumer reporting agency that acts only as a reseller of credit information by assembling and merging information contained in the database of another consumer reporting agency or multiple consumer reporting agencies and does not maintain a permanent database of credit information from which new consumer reports are produced; however, a consumer reporting agency acting as a reseller shall honor any security freeze placed on a consumer report by another consumer reporting agency;

(9) a check services or fraud prevention services company, which issues reports on incidents of fraud or authorizations for the purpose of approving or processing negotiable instruments, electronic funds transfers or similar methods of payments;

(10) a deposit account information service company which issues to inquiring banks or other financial institutions, for use only in reviewing a consumer request for a deposit account at the inquiring bank or financial institution, reports regarding account closures due to fraud, substantial overdrafts, ATM abuse or similar negative information regarding a consumer;

(11) an employer in connection with any application for employment with the employer;

(12) any person administering a credit file monitoring subscription service to which the consumer has subscribed; or

(13) any person or entity for use in setting or adjusting a rate, adjusting a claim or underwriting for insurance purposes.

(j) A consumer reporting agency shall not charge a fee for placing, temporarily lifting or removing each freeze or for replacing a previously requested personal identification number.

(1) A person who has learned or reasonably suspects that the person has been a victim of identity theft may contact the local law enforcement agency that has jurisdiction over the person's actual residence, which shall take a police report of the matter, and provide the complainant with a copy of that report. Notwithstanding the fact the jurisdiction may be elsewhere for investigation and prosecution of a crime of identity theft, any local or state law enforcement agency shall take the complaint and provide the complainant with a copy of the complaint and may refer the complainant to a law enforcement agency in a different jurisdiction.

(2) Nothing in this section shall be construed to interfere with the discretion of a law enforcement agency to allocate resources for investigation of crimes. A complaint filed under this section is not required to be counted as an open case for statistical reporting purposes.

(k) If a security freeze is in place, a consumer reporting agency shall not change any of the following official information in the consumer report without sending a written confirmation of the change to the consumer within 30 days after the change is posted to the consumer's file: Name, date of birth, social security number and address. Written confirmation is not required for technical modifications of a consumer's official information, including name and street abbreviations, complete spellings or transposition of numbers or letters. In the case of an address change, the written

confirmation shall be sent to both the new address and to the former address.

(l) Any person who willfully fails to comply with any requirement imposed under this subchapter* with respect to any consumer is liable to that consumer in an amount equal to the sum of:

- (1) Actual damages sustained by the consumer as a result of the failure or damages of not less than \$100 and not more than \$1,000; or
- (2) such amount of punitive damages as the court may allow; and
- (3) in the case of any successful action to enforce any liability under this section, the costs of the action together with reasonable attorney's fees as determined by the court.

(m) Any person who obtains a consumer report, requests a security freeze, requests the temporary lift of a freeze, or the removal of a security freeze from a consumer reporting agency under false pretenses or in an attempt to violate federal or state law shall be liable to the consumer reporting agency for actual damages sustained by the consumer reporting agency or \$1,000, whichever is greater.

(n) Any person who is negligent in failing to comply with any requirement imposed under this section with respect to any consumer, is liable to that consumer in an amount equal to the sum of:

- (1) Any actual damages sustained by the consumer as a result of the failure; and
- (2) in the case of any successful action to enforce any liability under this section, the costs of the action together with reasonable attorney's fees as determined by the court.

(o) Upon a finding by the court that an unsuccessful pleading, motion or other paper filed in connection with an action under this section was filed in bad faith or for purposes of harassment, the court shall award to the prevailing party attorney's fees reasonable in relation to the work expended in responding to the pleading, motion or other paper.

(p) This section shall be part of and supplemental to the fair credit reporting act.

(q) This section shall take effect and be in force on and after January 1, 2007.

(r) Notwithstanding any other provision of law to the contrary, the exclusive authority to bring an action for any violation of subsection (f)(1)(B) shall be with the attorney general.

History: L. 2006, ch. 149, § 12; L. 2009, ch. 112, § 2; L. 2018, ch. 44, § 2; July 1.

2025 Kansas Statutes

50-724. Security freeze; exceptions. (a) Nothing in K.S.A. 50-723, and amendments thereto, shall be construed to require the following to place a security freeze on a consumer report:

- (1) A check services or fraud prevention services company, which issues reports on incidents of fraud or authorizations for the purpose of approving or processing negotiable instruments, electronic funds transfers, or similar methods of payments;
 - (2) a deposit account information service company which issues to inquiring banks or other financial institutions, for use only in reviewing a consumer request for a deposit account at the inquiring bank or financial institution, reports regarding account closures due to fraud, substantial overdrafts, ATM abuse or similar negative information regarding a consumer;
 - (3) a consumer reporting agency that acts as a reseller of credit information that assembles or merges information contained in the database of another consumer reporting agency or multiple consumer reporting agencies and does not maintain a permanent database of credit information from which new consumer reports are produced;
 - (4) any database or file which consists solely of any information adverse to the interests of the consumer, including, but not limited to, criminal record information, which is used for fraud prevention or detection, tenant screening, employment screening or any purpose permitted by the federal fair credit reporting act, 15 U.S.C. § 1681b;
 - (5) a person to the extent such person offers fraud prevention services that issues reports on incidents of fraud or reports used primarily in the detection or prevention of fraud; or
 - (6) any bank, savings bank, trust company, savings and loan association, credit union or any other financial institution regulated by the state of Kansas or any agency of the United States.
- (b) This section shall be part of and supplemental to the fair credit reporting act.
- (c) This section shall take effect and be in force on and after January 1, 2007.

History: L. 2006, ch. 149, § 13; July 1.

2025 Kansas Statutes

50-725. Security freeze for protected consumers; requirements; procedure. (a) A consumer reporting agency shall place a security freeze for a protected consumer if the consumer reporting agency receives a request from the protected consumer's representative for the placement of the security freeze and the protected consumer's representative:

- (1) Submits the request to the consumer reporting agency at the address or other point of contact and in the manner specified by the consumer reporting agency;
- (2) provides to the consumer reporting agency sufficient proof of identification of the protected consumer and the representative; and
- (3) provides to the consumer reporting agency sufficient proof of authority to act on behalf of the protected consumer.

(b) If a consumer reporting agency does not have a record pertaining to a protected consumer when the consumer reporting agency receives a request under subsection (a), the consumer reporting agency shall create a record for the protected consumer.

(c) Within 30 days after receiving a request that meets the requirements of subsection (a), a consumer reporting agency shall place a security freeze for the protected consumer.

(d) Unless a security freeze for a protected consumer is removed in accordance with subsection (f) or (i), a consumer reporting agency shall not release the protected consumer's consumer report, any information derived from the protected consumer's consumer report, or any record created for the protected consumer.

(e) A security freeze for a protected consumer placed under subsection (c) shall remain in effect until:

- (1) The protected consumer or the protected consumer's representative requests the consumer reporting agency to remove the security freeze in accordance with subsection (f); or
- (2) the security freeze is removed in accordance with subsection (i).

(f) If a protected consumer or a protected consumer's representative wishes to remove a security freeze for a protected consumer, the protected consumer or the protected consumer's representative shall:

- (1) Submit a request for the removal of the security freeze to the consumer reporting agency at the address or other point of contact and in the manner specified by the consumer reporting agency; and
- (2) provide to the consumer reporting agency sufficient proof of identification of the protected consumer and:

(A) For a request by the protected consumer, proof that the sufficient proof of authority for the protected consumer's representative to act on behalf of the protected consumer is no longer valid; or

(B) for a request by the representative of a protected consumer, sufficient proof of identification of the representative and sufficient proof of authority to act on behalf of the protected consumer.

(g) A consumer reporting agency shall not charge a fee for any service performed under this section.

(h) This section shall not apply to:

- (1) A person administering a credit file monitoring subscription service to which the protected consumer has subscribed or the representative of the protected consumer has

subscribed on behalf of the protected consumer;

(2) a person providing the protected consumer or the protected consumer's representative with a copy of the protected consumer's consumer report on request of the protected consumer or the protected consumer's representative; or

(3) a person or entity listed in K.S.A. 50-723(i)(1) and (6) through (12) or 50-724(a)(1) through (5), and amendments thereto.

(i) A consumer reporting agency may remove a security freeze for a protected consumer or delete a record of a protected consumer if such security freeze was placed or the record was created based on a material misrepresentation of a fact by the protected consumer or the protected consumer's representative.

(j) Any person who fails to comply with any requirement imposed under this section with respect to any protected consumer shall be liable pursuant to the provisions of the fair credit reporting act.

(k) This section shall be part of and supplemental to the fair credit reporting act.

History: L. 2016, ch. 37, § 1; L. 2018, ch. 44, § 3; July 1.

2025 Kansas Statutes

12-16,120. Prohibiting rent control or control of real estate purchase price by political subdivisions; exceptions. (a) No political subdivision of this state, including, but not limited to, a county, municipality or township, shall enact, maintain or enforce any ordinance or resolution that would have the effect of controlling the amount of rent charged or the purchase price agreed upon between the parties to the transaction for the lease or purchase of privately owned residential or commercial property.

(b) This section shall not impair the right of any political subdivision to manage and control commercial or residential property in which such political subdivision has an ownership interest.

(c) This section shall not impair the right of any owner of privately owned property to enter into a voluntary agreement with a political subdivision to agree to requirements that would have the effect of controlling the amount of rent charged or the purchase price agreed upon between the parties to the transaction for the lease or purchase of privately owned property in return for grants or incentives provided by the political subdivision to the owner of privately owned property.

(d) No political subdivision shall require any owner of privately owned property to agree to any requirements that would have the effect of controlling the amount of rent charged or the purchase price agreed upon between the parties to the transaction for the lease or purchase of privately owned property, as a condition for consideration or approval of:

(1) Any building permit or plat; or

(2) any request for a zoning regulation, boundary, classification or a conditional use permit, or for a change or variance in a zoning regulation, boundary, classification or a conditional use permit.

History: L. 2001, ch. 134, § 2; L. 2016, ch. 104, § 4; July 1.

2025 Kansas Statutes

12-16,123. Cities and counties prohibited from requiring lists of tenants; exceptions. (a) As used in this section, "municipality" means any city or county or agency, department or other division of a city or county.

(b) Except as provided by subsection (c) and as necessary to comply with the Kansas offender registration act, K.S.A. 22-4901 et seq., and amendments thereto, no municipality shall adopt or enforce an ordinance or resolution which requires any landlord to provide to such municipality a list of names of any tenants of such landlord.

(c) A municipality may require a landlord to provide to the municipality a list of the names of tenants occupying the landlord's property if a citation for a violation of an ordinance or resolution adopted to protect the public health, safety or welfare has occurred on such property. Such list shall not be required to be provided until at least 30 days following the date of the issuance of a citation. Such list shall not be required if the landlord complies with the provisions of such ordinance or resolution.

History: L. 2001, ch. 147, § 2; July 1.

2025 Kansas Statutes

12-16,138. Cities; counties; prohibiting periodic interior inspections of residential property; exceptions. (a) No city or county shall adopt, enforce or maintain a residential property licensing ordinance or resolution which includes a requirement for periodic interior inspections of privately owned residential property for city or county code violations unless the lawful occupant has consented to such interior inspections. This subsection shall not apply to inspections of mixed-use residential and commercial property. This subsection shall not prohibit a city or county from conducting plan reviews, periodic construction inspections or final occupancy inspections as required by building permits. (b) Any lawful occupant residing in privately owned residential housing located within the corporate limits of a city may request an inspection at any time by the city or, if the property is located in the unincorporated area of the county, by the county to determine code violations.

History: L. 2016, ch. 104, § 3; July 1.